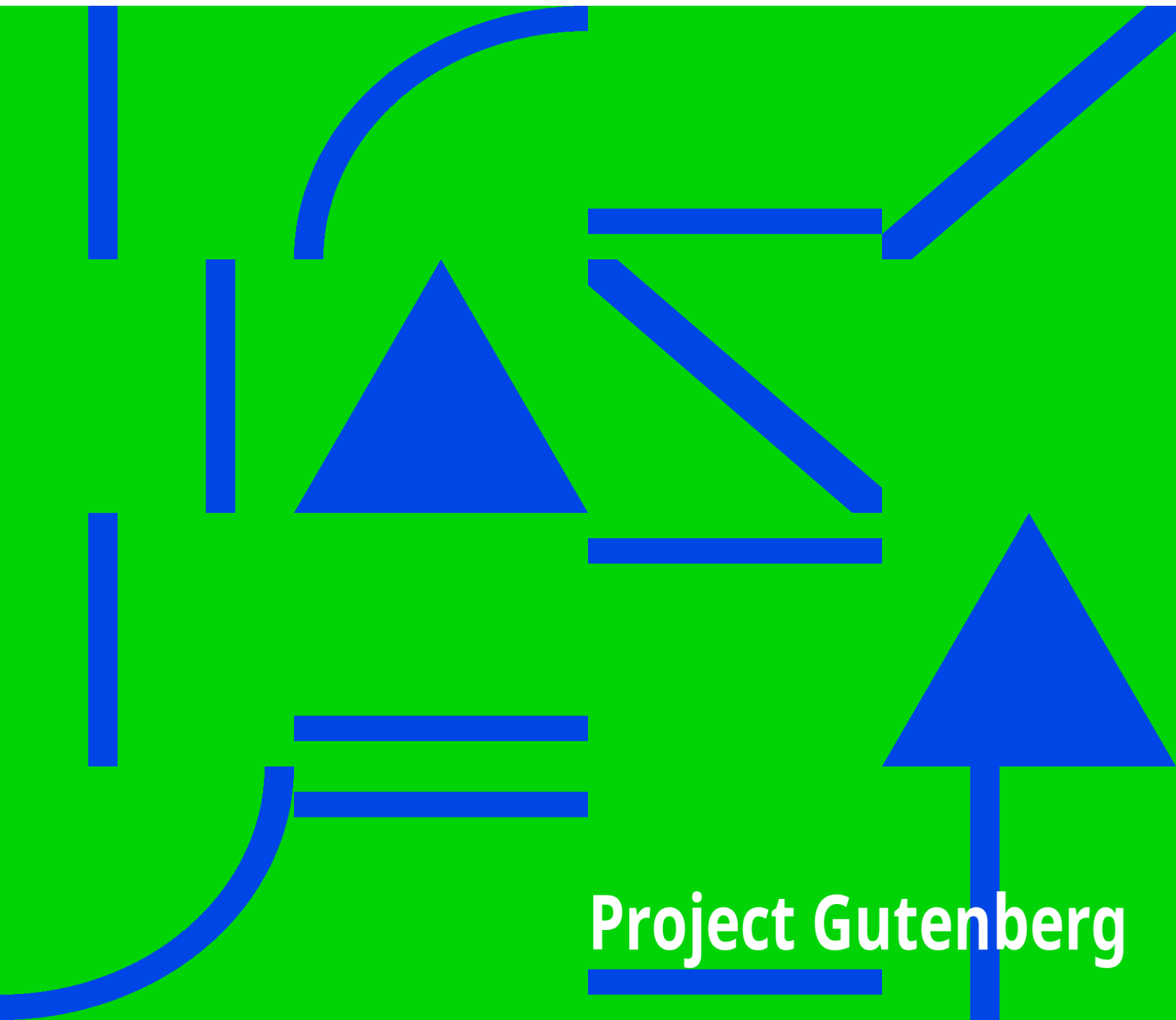


# Burnham Breaker

Homer Greene



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BREAKER \*\*\*

**BURNHAM BREAKER**

**BY**

**HOMER GREENE**

**AUTHOR OF "THE BLIND BROTHER"**

**TO MY FATHER,**

**WHOSE GRAY HAIRS I HONOR, AND WHOSE PERFECT MANHOOD I REVERE,**

**THIS VOLUME IS AFFECTIONATELY INSCRIBED BY THE AUTHOR.**

**HONESDALE, PENN., SEPT. 29, 1887.**

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# CHAPTER I.

## A SURPRISE IN THE SCREEN-ROOM.

The city of Scranton lies in the centre of the Lackawanna coal-field, in the State of Pennsylvania. Year by year the suburbs of the city creep up the sides of the surrounding hills, like the waters of a rising lake.

Standing at any point on this shore line of human habitations, you can look out across the wide landscape and count a score of coal-breakers within the limits of your first glance. These breakers are huge, dark buildings that remind you of castles of the olden time. They are many-winged and many-windowed, and their shaft-towers rise high up toward the clouds and the stars. About the feet of those in the valley the waves of the out-reaching city beat and break, and out on the hill-sides they stand like mighty fortresses built to guard the lives and fortunes of the multitudes who toil beneath them. But they are not long-lived. Like human beings, they rise, they flourish, they die and are forgotten. Not one in hundreds of the people who walk the streets of Scranton to-day, or who dig the coal from its surrounding hills, can tell you where Burnham Breaker stood a quarter of a century ago. Yet there are men still living, and boys who have grown to manhood, scores of them, who toiled for years in the black dust breathed out from its throats of iron, and listened to the thunder of its grinding jaws from dawn to dark of many and many a day.

These will surely tell you where the breaker stood. They are proud to have labored there in other years. They will speak to you of that time with pleasant memories. It was thought to be a stroke of fortune to obtain work at Burnham Breaker. It was just beyond the suburbs of the city as they then were, and near to the homes of all the workmen. The vein of coal at this point was of more than ordinary thickness, and of excellent quality, and these were matters of much moment to the miners who worked there. Then, the wages were always paid according to the highest rate, promptly and in full.

But there was something more, and more important than all this, to be considered. Robert Burnham, the chief power in the company, and the manager of its interests, was a man whose energetic business qualities and methods did not interfere with his concern for the welfare of his employees. He was not only just, but liberal and kind. He held not only the confidence but the good-will, even the affection, of those who labored under him. There were never any strikes at the Burnham mines. The men would have considered it high treason in any one to advocate a strike against the interests of Robert Burnham.

Yet it was no place for idling. There were, no laggards there. Men had to work, and work hard too, for the wages that bought their daily bread. Even the boys in the screen-room were held as closely to their tasks as care and vigilance could hold them. Theirs were no light tasks, either. They sat all day on their little benches, high up in the great black building, with their eyes fixed always on the shallow streams of broken coal passing down the iron-sheathed chutes, and falling out of sight below them; and it was their duty to pick the particles of slate and stone from out these moving masses, bending constantly above them as they worked. It was not the physical exertion that made their task a hard one; there was not much straining of the



joints or muscles, not even in the constant bending of the body to that one position.

Neither was it that their tender hands were often cut and bruised by the sharp pieces of the coal or the heavy ones of slate. But it was hard because they were boys; young boys, with bounding pulses, chafing at restraint, full to the brim with life and spirit, longing for the fresh air, the bright sunlight, the fields, the woods, the waters, the birds, the flowers, all things beautiful and wonderful that nature spreads upon the earth to make of it a paradise for boys. To think of all these things, to catch brief glimpses of the happiness of children who were not born to toil, and then to sit, from dawn to mid-day and from mid-day till the sun went down, and listen to the ceaseless thunder of moving wheels and the constant sliding of the streams of coal across their iron beds,—it was this that wearied them.

To know that in the woods the brooks were singing over pebbly bottoms, that in the fields the air was filled with the fragrance of blossoming flowers, that everywhere the free wind rioted at will, and then to sit in such a prison-house as this all day, and breathe an atmosphere so thick with dust that even the bits of blue sky framed in by the open windows in the summer time were like strips of some dark thunder-cloud,—it was this, this dull monotony of dizzy sight and doleful sound and changeless post of duty, that made their task a hard one.

There came a certain summer day at Burnham Breaker when the labor and confinement fell with double weight upon the slate-pickers in the screen-room. It was circus day. The dead-walls and bill-boards of the city had been gorgeous for weeks and weeks with pictures heralding the wonders of the coming show. By the turnpike road, not forty rods from where the breaker stood, there was a wide barn the whole side of which had been covered with brightly colored prints of beasts and birds, of long

processions, of men turning marvellous somersaults, of ladies riding, poised on one foot, on the backs of flying horses, of a hundred other things to charm the eyes and rouse anticipation in the breasts of boys.

Every day, when the whistle blew at noon, the boys ran, shouting, from the breaker, and hurried, with their dinner-pails, to the roadside barn, to eat and gaze alternately, and discuss the pictured wonders.

And now it was all here; beasts, birds, vaulting men, flying women, racing horses and all. They had seen the great white tents gleaming in the sunlight up in the open fields, a mile away, and had heard the distant music of the band and caught glimpses of the long procession as it wound through the city streets below them. This was at the noon hour, while they were waiting for the signal that should call them back into the dust and din of the screen-room, where they might dream, indeed, of circus joys while bending to their tasks, but that was all. There was much wishing and longing. There was some murmuring. There was even a rash suggestion from one boy that they should go, in spite of the breaker and the bosses, and revel for a good half-day in the pleasures of the show. But this treasonable proposition was frowned down without delay. These boys had caught the spirit of loyalty from the men who worked at Burnham Breaker, and not even so great a temptation as this could keep them from the path of duty.

When the bell rang for them to return to work, not one was missing, each bench had its accustomed occupant, and the coal that was poured into the cars at the loading-place was never more free from slate and stone than it was that afternoon.

But it was hot up in the screen-room. The air was close and stifling, and heavy with the choking dust. The noise of the iron-teethed rollers crunching the lumps of coal, and the bang and rattle of ponderous machinery were never before so loud and discordant, and the black streams moving down

their narrow channels never passed beneath these dizzy boys in monotony quite so dull and ceaseless as they were passing this day.

Suddenly the machinery stopped. The grinding and the roaring ceased. The frame-work of the giant building was quiet from its trembling. The iron gates that held back the broken coal were quickly shut and the long chutes were empty.

The unexpected stillness was almost startling. The boys looked up in mute astonishment.

Through the dust, in the door-way at the end of the room, they saw the breaker boss and the screen-room boss talking with Robert Burnham. Then Mr. Burnham advanced a step or two and said:—

"Boys, Mr. Curtis tells me you are all here. I am pleased with your loyalty. I had rather have the good-will and confidence of the boys who work for me than to have the money that they earn. Now, I intend that you shall see the circus if you wish to, and you will be provided with the means of admission to it. Mr. Curtis will dismiss you for the rest of the day, and as you pass out you will each receive a silver quarter as a gift for good behavior."

For a minute the boys were silent. It was too sudden a vision of happiness to be realized at once. Then one little fellow stood up on his bench and shouted:—

"Hooray for Mr. Burnham!" The next moment the air was filled with shouts and hurrahs so loud and vigorous that they went echoing through every dust-laden apartment of the huge building from head to loading-place.

Then the boys filed out. One by one they went through the door-way, each, as he passed, receiving from Mr. Burnham's own hand the shining piece of silver that should admit him to the wonders of the "greatest show on earth."

They spoke their thanks, rudely indeed, and in voices that were almost too much burdened with happiness for quiet speech.

But their eyes were sparkling with anticipation; their lips were parted in smiles, their white teeth were gleaming from their dust-black faces, each look and action was eloquent with thoughts of coming pleasure. And the one who enjoyed it more than all the others was Robert Burnham.

It is so old that it was trite and tiresome centuries ago, that saying about one finding one's greatest happiness in making others happy. But it has never ceased to be true; it never will cease to be true; it is one of those primal principles of humanity that no use nor law nor logic can ever hope to falsify.

The last boy in the line differed apparently in no respect from those who had preceded him. The faces of all of them were black with coal-dust, and their clothes were patched and soiled. But this one had just cut his hand, and, as he held it up to let the blood drip from it you noticed that it was small and delicate in shape.

"Why, my boy!" exclaimed Mr. Burnham, "you have cut your hand. Let me see."

"'Taint much, sir," the lad replied; "I often cut 'em a little. You're apt to, a-handlin' the coal that way." The man had the little hand in his and bent to examine the wound. "That's quite a cut," he said, "as clean as though it had been made with a knife. Come, let's wash it off and fix it up a little."

He led the way to the corner of the room, uncovered the water-pail, dipped out a cup of water, and began to bathe the bleeding hand.

"That shows it's good coal, sir," said the boy, "Poor coal wouldn't make such a clean cut as that. The better the coal the sharper 'tis."

"Thank you," said Mr. Burnham, smiling. "Taking the circumstances into consideration, I regard that as the best compliment for our coal that I have ever received."

The hand had been washed off as well as water without soap could do it.

"I guess that's as clean as it'll come," said the boy. "It's pirty hard work to git 'em real clean. The dirt gits into the corners so, an' into the chaps an' cuts, an' you can't git it all out, not even for Sunday."

The man was looking around for something to bind up the wound with. "Have you a handkerchief?" he asked.

The boy drew from an inner pocket what had once been a red bandanna handkerchief of the old style, but alas! it was sadly soiled, it was worn beyond repair and crumpled beyond belief.

"'Taint very clean," he said, apologetically. "You can't keep a han'kerchy very clean a-workin' in the breaker, it's so dusty here."

"Oh! it's good enough," replied the man, noticing the boy's embarrassment, and trying to reassure him, "it's plenty good enough, but it's red you see, and red won't do. Here, I have a white one. This is just the thing," he added, tearing his own handkerchief into strips and binding them carefully about the wounded hand. "There!" giving the bandage a final adjustment; "that will be better for it. Now, then, you're off to the circus; good-by."

The lad took a step or two forward, hesitated a moment, and then turned back. The breaker boss and the screen-room boss were already gone and he was alone with Mr. Burnham.

"Would it make any dif'rence to you," he asked, holding up the silver coin, "if I spent this money for sumpthin' else, an' didn't go to the circus with it?"

"Why, no!" said the man, wonderingly, "I suppose not; but I thought you boys would rather spend your money at the circus than to spend it in almost any other way."

"Oh! I'd like to go well enough. I al'ays did like a circus, an' I wanted to go to this one, 'cause it's a big one; but they's sumpthin' else I want worse'n that, an' I'm a-tryin' to save up a little money for it."

Robert Burnham's curiosity was aroused. Here was a boy who was willing to forego the pleasures of the circus that he might gratify some greater desire; a strong and noble one, the man felt sure, to call for such a sacrifice. Visions of a worn-out mother, an invalid sister, a mortgaged home, passed through his mind as he said: "And what is it you are saving your money for, my boy, if I am at liberty to ask?"

"To'stablish my'dentity, sir."

"To do what?"

"To'stablish my'dentity; that's what Uncle Billy calls it."

"Why, what's the matter with your identity?"

"I ain't got any; I'm a stranger; I don't know who my 'lations are."

"Don't know—who—your relations are! Why, what's your name?"

"Ralph, that's all; I ain't got any other name. They call me Ralph Buckley sometimes, 'cause I live with Uncle Billy; but he ain't my uncle, you know,—I only call him Uncle Billy 'cause I live with him, an'—an' he's good to me, that's all."

At the name "Ralph," coming so suddenly from the lad's lips, the man had started, turned pale, and then his face flushed deeply. He drew the boy down tenderly on the bench beside him, and said:—

"Tell me about yourself, Ralph; where do you say you live?"

"With Uncle Billy,—Bachelor Billy they call him; him that dumps at the head, pushes the cars out from the carriage an' dumps 'em; don't you know Billy Buckley?"

The man nodded assent and the boy went on:—

"He's been awful good to me, Uncle Billy has; you don't know how good he's been to me; but he ain't my uncle, he ain't no 'lotion to me; I ain't got no 'lations 'at I know of; I wish't I had."

The lad looked wistfully out through the open window to the far line of hills with their summits veiled in a delicate mist of blue.

"But where did Billy get you?" asked Mr. Burnham.

"He foun' me; he foun' me on the road, an' he took me in an' took care o' me, and he didn't know me at all; that's where he's so good. I was sick, an' he hired Widow Maloney to tend me while he was a-workin', and when I got well he got me this place a-pickin' slate in the breaker."

"But, Ralph, where had you come from when Billy found you?"

"Well, now, I'll tell you all I know about it. The first thing 'at I 'member is 'at I was a-livin' with Gran'pa Simon in Philadelphia. He wasn't my gran'pa, though; if he had 'a' been he wouldn't 'a' 'bused me so. I don't know where he got me, but he treated me very bad; an' when I wouldn't do bad things for him, he whipped me, he whipped me awful, an' he shet me up in the dark all day an' all night, 'an didn't give me nothin' to eat; an' I'm dreadful 'fraid o' the dark; an' I wasn't more'n jest about so high, neither. Well, you see, I couldn't stan' it, an' one day I run away. I wouldn't 'a' run away if I could 'a' stood it, but I *couldn't* stan' it no longer. Gran'pa Simon wasn't there when I run away. He used to go off an' leave me with Ole Sally, an' she wasn't much better'n him, only she couldn't see very well, an' she couldn't follow me. I slep' with Buck the bootblack that night, an' nex' mornin', early, I started out in the country. I was 'fraid they'd find me if I stayed aroun' the city. It was pirty near afternoon 'fore I got out where the fields is, an' then a woman, she give me sumpthin' to eat. I wanted to git away from the city fur's I could, an' day-times I walked fast, an' nights I slep' under the big trees, an' folks in the houses along the road, they give me things to eat. An' then a circus came along, an' the man on the tiger wagon he give me a ride, an' then I went everywhere with the circus, an' I worked for 'em, oh! for a good many days; I worked real hard too, a-doin' everything, an' they never let me go into their show but once, only jest once. Well, w'en we got here to Scranton I got sick, an' they wouldn't take me no further 'cause I wasn't any good to 'em, an' they went off an' lef me, an' nex' mornin' I laid down up there along the road a-cryin' an' a-feelin' awful bad, an' then Uncle Billy, he happened to come that way, an' he foun' me an' took me home with him. He lives in part o' Widow Maloney's house, you know, an' he ain't got nobody but me, an' I ain't got nobody but him, an' we live together. That's why they call him Bachelor Billy, 'cause he ain't never got married. Oh! he's been



awful good to me, Uncle Billy has, awful good!" And the boy looked out again musingly into the blue distance.

The man had not once stirred during this recital. His eyes had been fixed on the boy's face, and he had listened with intense interest.

"Well, Ralph," he said, "that is indeed a strange story. And is that all you know about yourself? Have you no clew to your parentage or birthplace?"

"No, sir; not any. That's what I want to find out when I git money enough."

"How much money have you now?"

"About nine dollars, countin' what I'll save from nex' pay day."

"And how do you propose to proceed when you have money enough?"

"Hire a lawyer to 'vestigate. The lawyer he keeps half the money, an' gives the other half of it to a 'tective, an' then the 'tective, he finds out all about you. Uncle Billy says that's the way. He says if you git a good smart lawyer you can find out 'most anything."

"And suppose you should find your parents, and they should be rich and give you a great deal of money, how would you spend it?"

"Well, I don't know; I'd give a lot of it to Uncle Billy, I guess, an' some to Widow Maloney, an'—an' I'd go to the circus, an'—but I wouldn't care so much about the money, sir, if I could have folks like other boys have. If I could only have a mother, that's what I want worst, a mother to kiss me every day, an' be good to me that way, like mothers are, you know; if I could only jest have that, I wouldn't want nothin' else, not never any more."

The man turned his face away.

"And wouldn't you like to have a father too?" he asked.

"Oh, yes, I would; but I *could* git along without a father, a real father. Uncle Billy's been a kind o' father to me; but I ain't never had no mother, nor no sister; an' that's what I want now, an' I want 'em very bad. Seems, sometimes, jes' as if I *couldn't* wait; jes' as if I couldn't stan' it no longer 'thout 'em. Don't—don't you s'pose the things we can't have is the things we want worst?"

"Yes, my boy: yes. You've spoken a truth as old as the ages. That which I myself would give my fortune for I can never have. I mean my little boy who—who died. I cannot have him back. His name too was Ralph."

For a few moments there was silence in the screen-room. The child was awed by the man's effort to suppress his deep emotion.

At last Ralph said, rising:—

"Well, I mus' go now an' tell Uncle Billy."

Mr. Burnham rose in his turn.

"Yes," he said, "you'll be late for the circus if you don't hurry. What! you're not going? Oh! yes, you *must* go. Here, here's a silver dollar to add to your identity fund; now you can afford to spend the quarter. Yes," as the boy hesitated to accept the proffered money, "yes, you *must* take it; you can pay it back, you know, when—when you come to your own. And wait! I want to help you in that matter of establishing your identity. Come to my office, and we'll talk it over. Let me see; to-day is Tuesday. Friday we shall shut down the screens a half-day for repairs. Come on Friday afternoon."

"Thank you, sir; yes, sir, I will."

"All right; good-by!"

"Good-by, sir!"

When Ralph reached the circus grounds the crowds were still pushing in through the gate at the front of the big tent, and he had to take his place far back in the line and move slowly along with the others.

Leaning wearily against a post near the entrance, and watching the people as they passed in, stood an old man. He was shabbily dressed, his clothes were very dusty, and an old felt hat was pulled low on his forehead. He was pale and gaunt, and an occasional hollow cough gave conclusive evidence of his disease. But he had a pair of sharp gray eyes that looked out from under the brim of his hat, and gave close scrutiny to every one who passed by. The breaker boys, who had gone into the tent in a body some minutes earlier, had attracted his attention and aroused his interest. By and by his eyes rested upon Ralph, who stood back in the line, awaiting the forward movement of the crowd. The old man started perceptibly at sight of the boy, and uttered an ejaculation of surprise, which ended in a cough. He moved forward as if to meet him; then, apparently on second thought, he retreated to his post. But he kept his eyes fixed on the lad, who was coming slowly nearer, and his thin face took on an expression of the deepest satisfaction. He turned partly aside, however, as the boy approached him, and stood with averted countenance until the lad had passed through the gate.

Ralph was just in time. He had no sooner got in and found a seat, with the other breaker boys, away up under the edge of the tent, than the grand procession made its entrance. There were golden chariots, there were ladies in elegant riding habits and men in knightly costumes, there were prancing

steeds and gorgeous banners, elephants, camels, monkeys, clowns, a moving mass of dazzling beauty and bright colors that almost made one dizzy to look upon it; and through it all the great band across the arena poured its stirring music in a way to make the pulses leap and the hands and feet keep time to its sounding rhythm.

Then came the athletes and the jugglers, the tight-rope walkers and the trapeze performers, the trained dogs and horses, the clowns and the monkeys, the riding and the races; all of it too wonderful, too mirthful, too complete to be adequately described. At least, this was what the breaker boys thought.

After the performance was ended, they went out to the menagerie tent, in a body, to look at the animals.

One of the boys became separated from the others, and stood watching the antics of the monkeys, and laughing gleefully at each comical trick performed by the grave-faced little creatures. Looking up, he saw an old man standing by him; an old man with sharp gray eyes and dusty clothes, who leaned heavily upon a cane.

"Curious things, these monkeys," said the old man.

"Ain't they, though!" replied the boy. "Luk at that un, now!—don't he beat all? ain't he funny?"

"Very!" responded the old man, gazing across the open space to where Ralph stood chattering with his companions.

"Sonny," said he, "can you tell me who that boy is, over yonder, with his hand done up in a white cloth?"

"That boy w'ats a-talkin' to Jimmy Dooley, you mean?"

"Yes, the one there by the lion's cage."

"You mean that boy there with the blue patch on his pants?"

"Yes, yes! the one with his hand bandaged; don't you see?"

"Oh, that's Ralph."

"Ralph who?"

"Ralph nobody. He ain't got no other name. He lives with Bachelor Billy."

"Is—is Bachelor Billy his father?"

"Naw; he ain't got no father."

"Does he work with you in the mines?"

"In the mines? naw; we don't work in the mines; we work in the screen-room up t' the breaker, a-pickin' slate. He sets nex' to me."

"How long has he been working there?"

"Oh, I donno; couple o' years, I guess. You want to see 'im? I'll go call 'im."

"No; I don't care to see him. Don't call him; he isn't the boy I'm looking for, any way."

"There! he's a-turnin' this way now. I'll have 'im here in a minute; hey, Ralph! Ralph! here he comes."

But the old man was gone. He had disappeared suddenly and mysteriously. A little later he was trudging slowly along the dusty road, through the crowds of people, up toward the city. He was smiling, and muttering to himself. "Found him at last!" he exclaimed, in a whisper, "found him at last! It'll be all right now; only be cautious, Simon! be cautious!"

## CHAPTER II.

### A STRANGE VISITOR.

It was the day after the circus. Robert Burnham sat in his office on Lackawanna Avenue, busy with his afternoon mail. As he laid the last letter aside the incidents of the previous day recurred to him, and he saw again, in imagination, the long line of breaker-boys, with happy, dusty faces, filing slowly by him, grateful for his gifts, eager for the joys to come. The pleasure he had found in his generous deed stayed with him, as such pleasures always do, and was manifest even now in the light of his kindly face.

He had pondered, too, upon the strange story of the boy Ralph. It had awakened his interest and aroused his sympathy. He had spoken to his wife about the lad when he went home at night; and he had taken his little daughter on his knee and told to her the story of the boy who worked all day in the breaker, who had no father and no mother, and whose name was—Ralph! Both wife and daughter had listened eagerly to the tale, and had made him promise to look carefully to the lad and help him to some better occupation than the drudgery of the screen-room.

But he had already resolved to do this, and more. The mystery surrounding the child's life should be unravelled. Obscure and humble though his origin might be, he should, at least, bear the name to which his

parentage entitled him. The more he thought on this subject, the wider grew his intentions concerning the child. His fatherly nature was aroused and eager for action.

There was something about the lad, too, that reminded him, not so much of what his own child had been as of what he might have been had he lived to this boy's age. It was not alone in the name, but something also in the tone of voice, in the turn of the head, in the look of the brown eyes; something which struck a chord of memory or hope, and brought no unfamiliar sound.

The thought pleased him, and he dwelt upon it, and, turning away from his table with its accumulation of letters and papers, he looked absently out into the busy street and laid plans for the future of this boy who had dropped so suddenly into the current of his life.

By and by he heard some one in the outer office inquiring for him. Then his door was opened, and a stranger entered, an old man in shabby clothes, leaning on a cane. He was breathing heavily, apparently from the exertion of climbing the steps at the entrance, and he was no sooner in the room than he fell into a violent fit of coughing.

He seated himself carefully in a chair at the other side of the table from Mr. Burnham, placed a well worn leather satchel on the floor by his side, and laid his cane across it.

When he had recovered somewhat from his shortness of breath, he said: "Excuse me. A little unusual exertion always brings on a fit of coughing. This is Mr. Robert Burnham, I suppose?"

"That is my name," answered Burnham, regarding his visitor with some curiosity.



"Ah! just so; you don't know me, I presume?"

"No, I don't remember to have met you before."

"It's not likely that you have, not at all likely. My name is Craft, Simon Craft. I live in Philadelphia when I'm at home."

"Ah! Philadelphia is a fine city. What can I do for you, Mr. Craft?"

"That isn't the question, sir. The question is, what can *I* do for *you*?"

The old man looked carefully around the room, rose, went to the door, which had been left ajar, closed it noiselessly, and resumed his seat.

"Well," said Mr. Burnham, calmly, "what can you do for me?"

"Much," responded the old man, resting his elbows on the table in front of him; "very much if you will give me your time and attention for a few moments."

"My time is at your disposal," replied Burnham, smiling, and leaning back in his chair somewhat wearily, "and I am all attention; proceed."

Thus far the old man had succeeded in arousing in his listener only a languid curiosity. This coal magnate was accustomed to being interrupted by "cranks" of all kinds, as are most rich men, and often enjoyed short interviews with them. This one had opened the conversation in much the usual manner, and the probability seemed to be that he would now go on to unfold the usual scheme by which his listener's thousands could be converted into millions in an incredibly short time, under the skilful management of the schemer. But his very next words dispelled this idea and aroused Robert Burnham to serious attention.

"Do you remember," the old man asked, "the Cherry Brook bridge disaster that occurred near Philadelphia some eight years ago?"

"Yes," replied Burnham, straightening up in his chair, "I do; I have good reason to remember it. Were you on that train?"

"I was on that train. Terrible accident, wasn't it?"

"Terrible; yes, it was terrible indeed."

"Wouldn't have been quite so bad if the cars hadn't taken fire and burned up after they went down, would it?"

"The fire was the most distressing part of it; but why do you ask me these questions?"

"You were on board, I believe, you and your wife and your child, and all went down. Isn't that so?"

"Yes, it is so. But why, I repeat, are you asking me these questions? It is no pleasure to me to talk about this matter, I assure you."

Craft gave no heed to this protest, but kept on:—

"You and your wife were rescued in an unconscious state, were you not, just as the fire was creeping up to you?"

The old man seemed to take delight in torturing his hearer by calling up painful memories. Receiving no answer to his question, he continued:—

"But the boy, the boy Ralph, he perished, didn't he? Was burned up in the wreck, wasn't he?"

"Stop!" exclaimed Burnham. "You have said enough. If you have any object in repeating this harrowing story, let me know what it is at once; if not, I have no time to listen to you further."

"I have an object," replied Craft, deliberately, "a most important object, which I will disclose to you if you will be good enough to answer my question. Your boy Ralph was burned up in the wreck at Cherry Bridge, wasn't he?"

"Yes, he was. That is our firm belief; what then?"

"Simply this, that you are mistaken."

"What do you mean?"

"Your boy is not dead."

Burnham started to his feet, unable for the moment to speak. His face took on a sudden pallor, then a smile of incredulity settled on his lips.

"You are wild," he said; "the child perished; we have abundant proof of it."

"I say the child is not dead," persisted the old man; "I saw him—yesterday."

"Then, bring him to me. Bring him to me and I will believe you."

Burnham had settled down into his chair with a look of weary hopelessness on his face.

"You have no faith in me," said Craft. "Mere perversity might make you fail to recognize the child. Suppose I show you further proofs of the truth of what I say."

"Very well; produce them."

The old man bent down, took his leather hand-bag from the floor, and placed it on the table before him. The exertion brought on a spasm of coughing. When he had recovered from this, he drew an old wallet from his pocket and took from it a key, with which he unlocked the satchel. Then, drawing forth a package and untying and unrolling it, he shook it out and held it up for Robert Burnham to look at. It was a little flannel cloak. It had once been white, but it was sadly stained and soiled now. The delicate ribbons that had ornamented it were completely faded, and out of the front a great hole had been burned, the edges of which were still black and crumbling.

"Do you recognize it?" asked the old man.

Burnham seized it with both hands.

"It is his!" he exclaimed. "It is Ralph's! He wore it that day. Where did you get it? Where did you get it, I say?"

Craft did not reply. He was searching in his hand-bag for something else. Finally he drew out a child's cap, a quaint little thing of velvet and lace, and laid it on the table.

This, too, was grasped by Burnham with eager fingers, and looked upon with loving eyes.

"Do you still think me wild?" said the old man, "or do you believe now that I have some knowledge of what I am talking about?"

His listener did not answer the question. His mind seemed to be far away. He said, finally:—

"There—there was a locket, a little gold locket. It had his father's picture in it. Did—did you find that?"

The visitor smiled, opened the wallet again, and produced the locket. The father took it in his trembling hands, looked on it very tenderly for a moment, and then his eyes became flooded with tears.

"It was his," he said at last, very gently; "they were all his; tell me now—where did you get them?"

"I came by them honestly, Mr. Burnham, honestly; and I have kept them faithfully. But I will tell you the whole story. I think you are ready now to hear it with attention, and to consider it fairly."

The old man pushed his satchel aside, pulled his chair closer to the table, cleared his throat, and began:—

"It was May 13, 1859. I'd been out in the country at my son's, and was riding into the city in the evening. I was in the smoking-car. Along about nine o'clock there was a sudden jerk, then half a dozen more jerks, and the train came to a dead stop. I got up and went out with the rest, and we then saw that the bridge had broken down, and the three cars behind the smoker had tumbled into the creek. I hurried down the bank and did what I could to help those in the wreck, but it was very dark and the cars were piled up in a heap, and it was hard to do anything. Then the fire broke out and we had to stand back. But I heard a child crying by a broken window, just where the middle car had struck across the rear one, and I climbed up there at the risk of my life and looked in. The fire gave some light by this time, and I saw a young woman lying there, caught between the timbers and perfectly still. A sudden blaze showed me that she was dead. Then the child cried again; I saw where he was, and reached in and pulled him out just as the fire caught in his cloak. I jumped down into the water with him, and put out the fire

and saved him. He wasn't hurt much. It was your boy Ralph. By this time the wreck was all ablaze and we had to get up on the bank.

"I took the child around among the people there, and tried to find out who he belonged to, but no one seemed to know anything about him. He wasn't old enough to talk distinctly, so he couldn't tell me much about himself; not anything, in fact, except that his name was Ralph. I took him home with me to my lodgings in the city that night, and the next morning I went out to the scene of the accident to try to discover some clew to his identity. But I couldn't find out anything about him; nothing at all. The day after that I was taken sick. The exertion, the exposure, and the wetting I had got in the water of the brook, brought on a severe attack of pneumonia. It was several months before I got around again as usual, and I am still suffering, you see, from the results of that sickness. After that, as my time and means and business would permit, I went out and searched for the boy's friends. It is useless for me to go into the details of that search, but I will say that I made every effort and every sacrifice possible during five years, without the slightest success. In the meantime the child remained with me, and I clothed him and fed him and cared for him the very best I could, considering the circumstances in which I was placed.

"About three years ago I happened to be in Scranton on business, and, by the merest chance, I learned that you had been in the Cherry Brook disaster, that you had lost your child there, and that the child's name was Ralph. Following up the clew, I became convinced that this boy was your son. I thought the best way to break the news to you was to bring you the child himself. With that end in view, I returned immediately to Philadelphia, only to find Ralph—missing. He had either run away or been stolen, I could not tell which. I was not able to trace him. Three months later I heard that he had been with a travelling circus company, but had left them after a few days. After that I lost track of him entirely for about three years. Now,

however, I have found him. I saw him so lately as yesterday. He is alive and well."

Several times during the recital of this narrative, the old man had been interrupted by spasms of coughing, and, now that he was done, he gave himself up to a violent and prolonged fit of it.

Robert Burnham had listened intently enough, there was no doubt of that; but he did not yet seem quite ready to believe that his boy was really alive.

"Why did you not tell me," he asked, "when the child left you, so that I might have assisted you in the search for him?"

Craft hesitated a moment.

"I did not dare to," he said. I was afraid you would blame me too severely for not taking better care of him, and I was hoping every day to find him myself."

"Well, let that pass. Where is he now? Where is the boy who, you say, is my son?"

"Pardon me, sir, but I cannot tell you that just yet. I know where he is. I can bring him to you on two days' notice. But, before I do that, I feel that, in justice to myself, I should receive some compensation, not only for the care of the child through five years of his life, but also for the time, toil, and money spent in restoring him to you."

Burnham's brow darkened.

"Ah! I see," he said. "This is to be a money transaction. Your object is to get gain from it. Am I right?"

"Exactly. My motive is not wholly an unselfish one, I assure you."

"Still, you insist upon the absolute truth of your story?"

"I do, certainly."

"Well, then, what is your proposition? name it."

"Yes, sir. After mature consideration, I have concluded that three thousand dollars is not too large a sum."

"Well, what then?"

"I am to receive that amount when I bring your son to you."

"But suppose I should not recognize nor acknowledge as my son the person whom you will bring?"

"Then you will pay me no money, and the boy will return home with me."

Burnham wheeled suddenly in his chair and rose to his feet. "Listen!" he exclaimed, earnestly. "If you will bring my boy to me, alive, unharmed, my own boy Ralph, I will give you twice three thousand dollars."

"In cash?"

"In cash."

"It's a bargain. You shall see him within two days. But—you may change your mind in the meantime; will you give me a writing to secure me?"

"Certainly."



Mr. Burnham resumed his seat and wrote hurriedly, the following contract:—

"This agreement, made and executed this thirtieth day of June, 1867, between Simon Craft of the city of Philadelphia, party of the first part, and Robert Burnham of the city of Scranton, party of the second part, both of the state of Pennsylvania, witnesseth that the said Craft agrees to produce to the said Burnham, within two days from this date, the son of the said Robert Burnham, named Ralph, in full life, and in good health of body and mind. And thereupon the said Burnham, provided he recognizes as his said son Ralph the person so produced, agrees to pay to the said Craft, in cash, the sum of six thousand dollars. Witness our hands and seals the day and year aforesaid.

**"ROBERT BURNHAM."** [L.S.]

"There!" said Burnham, handing the paper to Craft; "that will secure you in the payment of the money, provided you fulfil your agreement. But let me be plain with you. If you are deceiving me or trying to deceive me, or if you should practise fraud on me, or attempt to do so, you will surely regret it. And if that child be really in life, and you have been guilty of any cruelty toward him, of any kind whatever, you will look upon the world through prison bars, I promise you, in spite of the money you may obtain from me. Now you understand; go bring the boy."

The old man did not answer. He was holding the paper close to his eyes, and going over it word by word.

"Yes," he said, finally; "I suppose it's all right. I'm not very familiar with written contracts, but I'll venture it."

Burnham had risen again from his chair, and was striding up and down the floor.

"When will you bring him?" he asked; "to-morrow?"

"My dear sir, do not be in too great haste; I am not gifted with miraculous powers. I will bring the boy here or take you to him within two days, as I have agreed."

"Well, then, to-day is Tuesday. Will you have him here by Friday? Friday morning?"

"By Friday afternoon, at any rate."

The old man was carefully wrapping up the articles he had exhibited, and putting them back into his hand-bag. Finally, Burnham's attention was attracted to this proceeding.

"Why," he exclaimed, "what are you doing? You have no right to those things; they are mine."

"Oh no! they are mine. They shall be given to you some time perhaps; but, for the present, they are mine."

"Stop! you shall not have them. Those things are very precious to me. Put them down, I say; put them down!"

"Very well. You may have these or—your boy. If you force these things from me, you go without your child. Now take your choice."

Old Simon was very calm and firm. He knew his ground, and knew that he could afford to be domineering. His long experience in sharp practice had not failed to teach him that the man who holds his temper, in a contest

like this, always has the best of it. And he was too shrewd not to see that his listener was laboring under an excitement that was liable at any moment to break forth in passionate speech. He was, therefore, not surprised nor greatly disturbed when Burnham exclaimed, vehemently:—

"I'll have you arrested, sir! I'll force you to disclose your secret! I'll have you punished by the hand of the law!"

"The hand of the law is not laid in punishment on people who are guilty of no crime," responded Craft, coolly; "and there is no criminal charge that you can fairly bring against me. Poverty is my worst crime. I have done nothing except for your benefit. Now, Mr. Burnham you are excited. Calm yourself and listen to reason. Don't you see that if I were to give those things to you I would be putting out of my hands the best evidence I have of the truth of my assertions?"

"But I have seen you produce them. I will not deny that you gave them to me."

"Ah! very good; but you may die before night! What then?"

"Die before night! Absurd! But keep the things; keep them. I can do without them if you will restore the child himself to me. When did you say you would bring him?"

"Friday afternoon."

"Until Friday afternoon, then, I wait."

"Very well, sir; good day!"

"Good day!"

The old man picked up his cane, rose slowly from his chair, and, with his satchel in his hand, walked softly out, closing the door carefully behind him.

Robert Burnham continued his walk up and down the room, his flushed face showing alternately the signs of the hope and the doubt that were striving for the mastery within him.

For eight years he had believed his boy to be dead. The terrible wreck at Cherry Brook had yielded up to him from its ashes only a few formless trinkets of all that had once been his child's, only a few unrecognizable bones, to be interred, long afterward, where flowers might bloom above them. The last search had been made, the last clue followed, the last resources of wealth and skill were at an end, and these, these bones and trinkets were all that could be found. Still, the fact of the child's death had not been established beyond all question, and among the millions of remote possibilities that this world always holds in reserve lingered yet the one that he might after all be living.

And now came this old man with his strange story, and the cap and the cloak and the locket. Did it mean simply a renewal of the old hope, destined to fade away again into a hopelessness duller than the last?

But what if the man's story were true? What if the boy were really in life? What if in two days' time the father should clasp his living child in his arms, and bear him to his mother! Ah! his mother. She would have given her life any time to have had her child restored to her, if only for a day. But she had been taught early to believe that he was dead. It was better than to torture her heart with hopes that could only by the rarest possibility be fulfilled. Now, now, if he dared to go home to her this night, and tell her that their son was alive, was found, was coming back to them! Ah! if he only dared!

The sunlight, streaming through the western window, fell upon him as he walked. It was that golden light that comes from a sun low in the west, when the days are long, and it illumined his face with a glow that revealed there the hope, the courage, the honor, the manly strength that held mastery in his heart.

There was a sudden commotion in the outer office. Men were talking in an excited manner; some one opened the door, and said:—

"There's been an accident in the breaker mine, Mr. Burnham."

"What kind of an accident?"

"Explosion of fire-damp."

"What about the men?"

"It is not known yet how many are injured."

"Tell James to bring the horses immediately; I will go there."

"James is waiting at the door now with the team, sir."

Mr. Burnham put away a few papers, wrote a hurried letter to his wife, took his hat and went out and down the steps.

"Send Dr. Gunther up to the breaker at once," he said, as he made ready to start.

The fleet horses drew him rapidly out through the suburbs and up the hill, and in less than twenty minutes he had reached the breaker, and stopped at the mouth of the shaft.

Many people had already assembled, and others were coming from all directions. Women whose husbands and sons worked in the mine were there, with pale faces and beseeching words. There was much confusion. It was difficult to keep the crowd from pressing in against the mouth of the shaft. Men were busy clearing a space about the opening when Robert Burnham arrived.

"How did it happen?" he said to the mine boss as he stepped from his wagon. "Where was it?"

"Up in the north tier, sir. We don't know how it happened. Some one must 'a' gone in below, where the fire-damp was, with a naked lamp, an' touched it off; an' then, most like, it run along the roof to the chambers where the men was a-workin'. I can't account for it in no other way."

"Has any one come out from there?"

"Yes, Billy Williams. He was a-comin' out when it went off. We found him up in the headin', senseless. He ain't come to yet."

"And the others?"

"We've tried to git to 'em, sir, but the after-damp is awful, an' we couldn't stan' it; we had to come out."

"How many men are up there?"

"Five, as we count 'em; the rest are all out."

The carriage came up the shaft, and a half-dozen miners, with dull eyes and drawn faces, staggered from it, out into the sunlight. It was a rescuing party, just come from a vain attempt to save their unfortunate comrades.

They were almost choked to death themselves, with the foul air of the mine. One of them recovered sufficiently to speak.

"We got a'most there," he gasped; "we could hear 'em a-groanin'; but the after-damp got—so bad—we—" He reeled and fell, speechless and exhausted.

The crowd had surged up, trying to hear what the man was saying. People were getting dangerously near to the mouth of the shaft. Women whose husbands were below were wringing their hands and crying out desperately that some one should go down to the rescue.

"Stand back, my friends," said Burnham, facing the people, "stand back and give these men air, and leave us room to work. We shall do all in our power to help those who are below. If they can be saved, we shall save them. Trust us and give us opportunity to do it. Now, men, who will go down? I feel that we shall get to them this time and bring them out. Who volunteers?"

A dozen miners stepped forward from the crowd; sturdy, strong-limbed men, with courage stamped on their dust-soiled faces, and heroic resolution gleaming from their eyes.

"Good! we want but eight. Take the aprons of the women; give us the safety-lamps, the oil, the brandy; there, ready; slack off!"

Burnham had stepped on to the carriage with the men who were going down. One of them cried out to him:—

"Don't ye go, sir! don't ye go! it'll be worth the life o' ye!"

"I'll not ask men to go where I dare not go myself," he said; "slack off!"

For an instant the carriage trembled in the slight rise that preceded its descent, and in that instant a boy, a young slender boy, pushed his way through the encircling crowd, leaped in among the men of the rescuing party, and with them went speeding down into the blackness.

It was Ralph. After the first moment of surprise his employer recognized him.

"Ralph!" he exclaimed, "Ralph, why have you done this?"

"I couldn't help it, sir," replied the boy; "I had to come. Please don't send me back."

"But it's a desperate trip. These men are taking their lives in their hands."

"I know it, sir; but they ain't one o' them whose life is worth so little as mine. They've all got folks to live an' work for, an' I ain't. I'll go where they don't dare. Please let me help!"

The men who were clustered on the carriage looked down on the boy in mute astonishment. His slight figure was drawn up to its full height; his little hands were tightly clenched; out from his brown eyes shone the fire of resolution. Some latent spirit of true knighthood had risen in his breast, had quenched all the coward in his nature, and impelled him, in that one moment that called for sacrifice and courage, to a deed as daring and heroic as any that the knights of old were ever prompted to perform. To those who looked upon him thus, the dust and rags that covered him were blotted out, the marks of pain and poverty and all his childish weaknesses had disappeared, and it seemed to them almost as though a messenger from God were standing in their midst.



But Robert Burnham saw something besides this in the child's face; he saw a likeness to himself that startled him. Men see things in moments of sublimity to which at all other times their eyes are blinded. He thought of Craft's story; he thought of the boy's story; he compared them; a sudden hope seized him, a conviction broke upon his mind like a flash of light.

This boy was his son. For the moment, all other thoughts, motives, desires were blotted from his mind. His desperate errand was lost to sight. The imperilled miners were forgotten.

"Ralph!" he cried, seizing the boy's hand in both of his; "Ralph, I have found you!"

But the child looked up in wonder, and the men who stood by did not know what it meant.

The carriage struck the floor of the mine and they all stepped off. The shock at stopping brought Burnham to himself. This was no time, no place to recognize the lad and take him to his heart. He would do that—afterward. Duty, with a stern voice, was calling to him now.

"Men," he said, "are you ready? Here, soak the aprons; Ralph, take this; now then, come on!"

Up the heading, in single file, they walked swiftly, swinging their safety-lamps in their hands, or holding them against their breasts. They knew that up in the chambers their comrades were lying prostrate and in pain. They knew that the spaces through which they must pass to reach them were filled with poisonous gases, and that in those regions death lurked in every "entrance" and behind every "pillar." But they hurried on, saying little, fearing little, hoping much, as they plunged ahead into the blackness, on their humane but desperate errand.

A half-hour later the bell in the engine-room tinkled softly once, and then rang savagely again and again to "hoist away." The great wheel turned fast and faster; the piston-rods flew in and out; the iron ropes hummed as they cut the air; and the people at the shaft's mouth waited, breathless with suspense, to see what the blackness would yield up to them. The carriage rose swiftly to the surface. On it four men, tottering and exhausted, were supporting an insensible body in their midst. The body was taken into strong arms, and borne hurriedly to the office of the breaker, a little distance away. Then a boy staggered off the carriage and fell fainting into the outstretched arms of Bachelor Billy.

"Ralph!" cried the man, "Ralph, lad! here! brandy for the child! brandy, quick!"

After a little the boy opened his eyes, and gazed wonderingly at the people who were looking down on him. Then he remembered what had happened.

"Mr. Burnham," he whispered, "is—is he alive?"

"Yes, lad; they've took 'im to the office; the doctor's in wi' 'im. Did ye fin' the air bad?"

The child lay back with a sigh of relief.

"Yes," he said, "very bad. We got to 'em though; we found 'em an' brought 'em out. I carried the things; they couldn't 'a' got along 'ithout me."

The carriage had gone down again and brought up a load of those who had suffered from the fire. They were blackened, burned, disfigured, but living. One of them, in the midst of his agony, cried out:—

"Whaur is he? whaur's Robert Burnham? I'll gi' ma life for his, an' ye'll save his to 'im. Ye mus' na let 'im dee. Mon! he done the brawest thing ye ever kenned. He plungit through the belt o' after-damp ahead o' all o' them, an' draggit us back across it, mon by mon, an' did na fa' till he pullit the last one ayont it. Did ye ever hear the like? He's worth a thousan' o' us. I say ye mus' na let 'im dee!"

Over at the breaker office there was silence. The doctor and his helpers were there with Robert Burnham, and the door was closed. Every one knew that, inside, a desperate struggle was going on between life and death. The story of Burnham's bravery had gone out through the assembled crowds, and, with one instinct and one hope, all eyes were turned toward the little room wherein he lay. Men spoke in whispers; women were weeping softly; every face was set in pale expectancy. There were hundreds there who would have given all they had on earth to prolong this noble life for just one day. Still, there was silence at the office. It grew ominous. A great hush had fallen on the multitude. The sun dropped down behind the hills, obscured in mist, and the pallor that precedes the twilight overspread the earth.

Then the office door was opened, and the white-haired doctor came outside and stood upon the steps. His head was bared and his eyes were filled with tears. He turned to those who stood near by, and whispered, sadly:—

"He is dead."

## CHAPTER III.

### A BRILLIANT SCHEME.

Lackawanna Avenue is the principal thoroughfare in the city of Scranton. Anthracite Avenue leads from it eastwardly at right angles.

Midway in the second block, on the right side of this last named street, there stood, twenty years ago, a small wooden building, but one story in height. It was set well back from the street, and a stone walk led up to the front door. On the door-post, at the left, was a sign, in rusty gilt letters, reading:—

### JOHN R. SHARPMAN, ATTORNEY AT LAW.

On the morning following his interview with Robert Burnham, Simon Craft turned in from Anthracite Avenue, shuffled along the walk to the office door, and stood for a minute examining the sign, and comparing the name on it with the name on a bit of paper that he held in his hand.

"That's the man," he muttered; "he's the one;" and he entered at the half-opened door.

Inside, a clerk sat, busily writing.

"Mr. Sharpman has not come down yet," he said, in answer to Craft's question. "Take a chair; he'll be here in twenty minutes."

The old man seated himself, and the clerk resumed his writing.

In less than half an hour Sharpman came in. He was a tall, well-built man, forty years of age, smooth-faced, with a clerical cast of countenance, easy and graceful in manner, and of pleasant address.

After a few words relating to a certain matter of business, the clerk said to his employer,—

"This man has been waiting some time to see you, Mr. Sharpman."

The lawyer advanced to Craft, and shook hands with him in a very friendly way. "Good-morning, sir," he said. "Will you step into my office, sir?"

He ushered the old man into an inner room, and gave him an easy, cushioned chair to sit in. Sharpman was nothing, if not gracious. Rich and poor, alike, were met by him with the utmost cordiality. He had a pleasant word for every one. His success at the bar was due, in no small degree, to his apparent frankness and friendliness toward all men. The fact that these qualities were indeed apparent rather than real, did not seem to matter; the general effect was the same. His personal character, so far as any one knew, was beyond reproach. But his reputation for shrewdness, for sharp practice, for concocting brilliant financial schemes, was general. It was this latter reputation that had brought Simon Graft to him.

This morning Sharpman was especially courteous. He regretted that his visitor had been obliged to wait so long. He spoke of the beautiful weather. He noticed that the old man was in ill health, and expressed much sorrow

thereat. Finally he said: "Well, my friend, I am at your service for any favor I can do you."

Craft was not displeased with the lawyer's manner. On the contrary, he rather liked it. But he was too shrewd and far-sighted to allow himself to be carried away by it. He proceeded at once to business. He took from an inner pocket of his coat the paper that Robert Burnham had given to him the day before, unfolded it slowly, and handed it to Sharpman.

"I want your opinion of this paper," he said. "Is it drawn up in legal shape? Is it binding on the man that signed it?"

Sharpman took the paper, and read it carefully through; then he looked up at Craft in unfeigned surprise.

"My dear sir!" he said, "did you know that Robert Burnham died last night?"

The old man started from his chair in sudden amazement.

"Died!" he exclaimed. "Robert Burnham—died!"

"Yes; suffocated by foul air in his own mine. It was a dreadful thing."

Craft dropped into his chair again, his pale face growing each moment more pale and gaunt, and stared at the lawyer in silence. Finally he said: "There must be some mistake. I saw him only yesterday. He signed that paper in my presence as late as four o'clock."

"Very likely," responded Sharpman: "he did not die until after six. Oh, no! there is no mistake. It was this Robert Burnham. I know his signature."

The old man sat for another minute in silence, keen disappointment written plainly on his face. Then a thought came to him.

"Don't that agreement bind his heirs?" he gasped, "or his estate? Don't somebody have to pay me that money, when I bring the boy?"

The lawyer took the paper up, and re-read it. "No;" he said. "The agreement was binding only on Burnham himself. It calls for the production of the boy to him personally; you can't produce anything to a dead man."

Old Simon settled back in his chair, a perfect picture of gaunt despair.

Sharpman continued: "This is a strange case, though. I thought that child of Burnham's was dead. Do you mean to say that the boy is still living?"

"Yes; that's it. He wasn't even hurt. Of course he's alive. I know it."

"Can you prove it?"

"Certainly!"

The lawyer gazed at his visitor, apparently in doubt as to the man's veracity or sanity, and again there was silence.

Finally Craft spoke. Another thought had come to him.

"The boy's mother; she's living, ain't she?"

"Burnham's widow? Yes; she's living."

"Then I'll go to her! I'll make a new contract with her. The money'll be hers, now. I'll raise on my price! She'll pay it. I'll warrant she'll pay it! May be it's lucky for me, after all, that I've got her to deal with instead of her husband!"

Even Sharpman was amazed and disgusted at this exhibition of cruel greed in the face of death.

"That's it!" continued the old man in an exulting tone; "that's the plan. I'll go to her. I'll get my money—I'll get it in spite of death!"

He rose from his chair, and grasped his cane to go, but the excitement had brought on a severe fit of coughing, and he was obliged to resume his seat until it was over.

This delay gave Sharpman time to think.

"Wait!" he said, when the old man had finally recovered; "wait a little. I think I have a plan in mind that is better than yours—one that will bring you in more cash."

"More cash?" Craft was quiet and attentive in a moment. The word "cash" had a magical influence over him.

Sharpman arose, closed the door between the two rooms tightly, and locked it. "Some one might chance to intrude," he explained.

Then he came back, sat down in front of his visitor, and assumed an attitude of confidence.

"Yes," he said, "more cash; ten times as much."

"Well, what's your plan?" asked the old man, somewhat incredulously.

"Let me tell you first what I know," replied the lawyer. "I know that Mrs. Burnham believes this boy to be dead; believes it with her whole mind and heart. You would find it exceedingly difficult to convince her to the contrary. She would explain away your proofs: she would fail to recognize



the child himself. Such an errand as you propose would be little better than useless."

Sharpman paused.

"Well, what's your plan?" repeated Craft, impatiently.

The lawyer assumed a still more confidential attitude.

"Listen! Burnham died rich. His wealth will mount well up into the hundreds of thousands. He leaves a widow and one daughter, a little girl. This boy, if he is really Burnham's son, is entitled to one third of the personal property absolutely, to one third of the real estate at once, and to one fourth of the remainder at his mother's death. Do you understand?" Old Simon nodded. This was worth listening to. He began to think that this shrewd lawyer was going to put him in the way of making a fortune after all. Sharpman continued: "Now, the boy is a minor. He must have a guardian. The mother would be the guardian preferred by law; but if, for any reason, she should fail to recognize the boy as her son, some one else must be appointed. It will be the duty of the guardian to establish his ward's identity in case it should be disputed, to sue for his portion of the estate, if necessary, and to receive and care for it till the boy reaches his majority. The usual guardian's commission is five per cent, retainable out of the funds of the estate. Do you see how the management of such an estate would be a fortune to a guardian, acting within the strict letter of the law?"

Craft nodded again, but this time with eagerness and excitement. He saw that a scheme was being opened up to him that outrivalled in splendid opportunities any he had ever thought of.

After a pause Sharpman asked, glancing furtively at his client:—

"Do you think, Mr. Craft, that you could take upon your shoulders the duties and responsibilities attendant upon such a trust? In short, could you act as this boy's guardian?"

"Yes, no doubt of it"; responded the old man, eagerly. "Why, I would be the very person. I am his nearest friend."

"Very well; that's my opinion, too. Now, then, as to the boy's identity. There must be no mistake in proving that. What proof have you? Tell me what you know about it."

Thus requested, Craft gave to the lawyer a detailed account of the disaster at the bridge, of the finding and keeping of Ralph, of his mysterious disappearance, and of the prolonged search for him.

"Day before yesterday," continued the old man, "I was watching the crowds at the circus,—I knew the boy was fond of circuses,—an who should go by me into the tent but this same Ralph. I made sure he was the identical person, and yesterday I went to Robert Burnham, and got that paper."

"Indeed! Where does the boy live? what does he do?"

"Why, it seems that he works at picking slate, in Burnham's own breaker, and lives with one Bachelor Billy, a simple-minded old fellow, without a family, who took the boy in when he was abandoned by the circus."

"Good!" exclaimed the lawyer; "good! we shall have a capital case. But wait; does Mrs. Burnham know of your interview with her husband, or about this paper?"

"I don't know. I left the man at his office, alone."

"At what hour?"

"Well, about half-past four, as nearly as I can judge."

"Then it's not at all probable that she knows. He went from his office directly to the breaker, and died before she could see him."

"Well, how shall we begin?" said Craft, impatiently. "What's the first thing to be done?" Visions of golden thousands were already floating before his greedy eyes.

"We shall not begin at all, just yet," said Sharpman. "We'll wait till the horror and excitement, consequent upon this disaster, have passed away. It wouldn't do to proceed now; besides, all action should be postponed, at any rate, until an inventory of the estate shall have been filed."

A look of disappointment came into old Simon's face. The lawyer noticed it. "You mustn't be in too much of a hurry," he said. "All good things come slowly. Now, I'll tell you what I propose to do. After this excitement has passed over, and the lady's mind has become somewhat settled, I will go to her myself, and say to her frankly that you believe her son to be still alive. Of course, she'll not believe me. Indeed, I shall be very careful to put the matter in such a shape that she will not believe me. I will say to her, however, that you have employed me to prosecute your claim for services to the child, and that it will be necessary to have a guardian appointed against whom such action may be taken. I will suggest to her that if she will acknowledge the boy to be her son, she will be the proper person to act as his guardian. Of course, she will refuse to do either. The rest is easy. We will go into court with a petition setting forth the facts in the case, stating that the boy's mother has refused to act as his guardian, and asking for your appointment as such. Do you see?"

"Oh, yes! that's good; that's very good, indeed."

"But, let me see, though; you'll have to give bonds. There's the trouble. Got any money, or any rich friends?"

"Neither; I'm very poor, very poor indeed, Mr. Sharpman."

"Ah! that's awkward. We can do nothing without bondsmen. The court wouldn't let us touch a penny of that fund without first giving good bonds."

The look of disappointment and trouble had returned into the old man's face. "Ain't there some way you could get bonds for me?" he asked, appealingly.

"Well, yes, I suppose I might procure bondsmen for you; I suppose I might go on your bond myself. But you see no one cares to risk his fortune in the hands of a total stranger that way. We don't know you; we don't know what you might do."

"Oh! I should be honest, Mr. Sharpman, perfectly honest and discreet; and you should not suffer to the value of a cent, not a single cent."

"No doubt your intentions are good enough, my dear sir, but it requires great skill to handle so large an estate properly, and a single error in judgment on your part might cost thousands of dollars. Good intentions and promises are well enough in their way, but they are no security against misfortune, you see. I guess we'll have to drop the scheme, after all."

Sharpman arose and walked the floor in apparent perplexity, while Craft, resting his hands on his cane, and staring silently at the lawyer, tried to conceive some plan to prevent this golden opportunity from eluding his grasp. Finally Sharpman stopped.

"Craft," he said, "I'll tell you what I'll do. If you will give me a power of attorney to hold and manage all the funds of the trust until the boy shall have attained his majority, I'll get the necessary bonds for you."

Craft thought a moment. The proposition did not strike him favorably. "That would be putting the whole thing out of my hands into yours," he said.

"Ah! but you would still be the boy's guardian, with right to use all the money that in your judgment should be necessary, to maintain and educate him according to his proper station in life. For this purpose I would agree to pay you three thousand dollars on receipt of the funds, and three thousand dollars each year thereafter, besides your guardian's commission, which would amount to eight or ten thousand dollars at least. I would also agree to pay you a liberal sum for past services, say two or three thousand dollars. You would have no responsibility whatever in the matter. I would be liable for any mistakes you might make. You could use the money as you saw fit. What do you say?"

The scheme appeared to Simon Craft to be a very brilliant one. He saw a great fortune in it for himself, if he could only depend on the lawyer's promises.

"Will you give me a writing to this effect?" he asked.

"Certainly; we shall have a mutual agreement."

"Then I'll do it. You'll get the lion's share I can see that easy enough; but if you'll do what you say you will, I shan't complain. Then will I have a right to take the boy again?"

"Yes, after your appointment; but I don't think I would, if I were you. If he is contented and well off, you had better let him stay where he is. He might give you the slip again. How old is he now?"

"I don't know exactly; somewhere between ten and twelve, I think."

"Well, his consent to the choice of a guardian is not necessary; but I think it would be better, under the circumstances, if he would go into court with us, and agree to your appointment. Do you think he will?"

Old Simon frowned savagely.

"Yes, he will," he exclaimed. "I'll make him do it. I've made him do harder things than that; it's a pity if I can't make him do what's for his own benefit now!" He struck the floor viciously with his cane.

"Easy," said the lawyer, soothingly, "easy; I fear the boy has been his own master too long to be bullied. We shall have to work him in a different way now. I think I can manage it, though. I'll have him come down here some day, after we get Mrs. Burnham's refusal to acknowledge him, and I'll explain matters to him, and show him why it's necessary that you should take hold of the case. I'll use logic with him, and I'll wager that he'll come around all right. You must treat boys as though they were men, Craft. They will listen to reason, and yield to persuasion, but they won't be bullied, not even into a fortune. By the way, I don't quite understand how it was, if Burnham was searching energetically for the boy, and you were searching with as much energy for the boy's father all those years, that you didn't meet each other sooner."

Craft looked up slyly from under his shaggy eyebrows.

"May I speak confidentially?" he asked.

"Certainly."

"Well, then, I didn't wear myself out hunting for the boy's friends, for the first year or two. Time increases the value of some things, you know—lost children, particularly. I knew there was money back of the boy by the looks of his clothes. I kept matters pretty well covered up for a while; allowed that he was my grandson; made him call me 'Grandpa'; carried the scheme a little too far, and came near losing everything. Now, do you see?"

Sharpman nodded, and smiled knowingly. "You're a shrewd man, Craft," he said.

But the old man's thought had returned to the wealth he believed to be in store for him. "What's to be done now?" he asked. "Ain't there something we can start on?"

"No; we can do nothing until after I have seen the widow, and that will be a couple of months yet at least. In the meantime, you must not say a word to any one about this matter. The boy, especially, must not know that you have been here. Come again about the first of September. In the meantime, get together the evidence necessary to establish the boy's identity. We mustn't fail in that when it comes to an issue."

"I'll have proof enough, no fear of that. The only thing I don't like about the business is this waiting. I'm pretty bad here," placing his bony hand on his chest; "no knowing how long I'll last."

"Oh! you're good for twenty years yet," said Sharpman, heartily, taking him by the hand, and walking with him to the door. "A—are you pretty well off for money? Would trifling loan be of any benefit to you?"

"Why, if you can spare it," said the old man, trying to suppress his evident pleasure at the offer; "if you can spare it, it would come in very handy indeed."

Sharpman drew a well-filled wallet from his pocket, took two bills from it, folded them together, and placed them into Craft's trembling fingers. "There," he said, "that's all right; we won't say anything about that till we come into our fortune."

Old Simon pocketed the money, mumbling his thanks as he did so. The two men shook hands again at the outer door, and Craft trudged down the avenue, toward the railroad station, his mind filled with visions of enormous wealth, but his patience sorely tried by the long delay that he must suffer before his fingers should close upon the promised money.

Sharpman returned to his office to congratulate himself upon the happy chance that had placed so rich an opportunity within his grasp. If the old man's story were true—he proposed to take steps immediately to satisfy himself upon that point—then he saw no reason why he should not have the management of a large estate. Of course there would be opposition, but if he could succeed so far as to get the funds and the property into his hands, he felt sure that, in one way or another, he could make a fortune out of the estate before he should be compelled to relinquish his hold. As for Simon Craft, he should use him so far as such use was necessary for the accomplishment of his object. After that he would or would not keep faith with him, as he chose. And as for Ralph, if he were really Robert Burnham's son, he would be rich enough at any rate, and if he were not that son he would not be entitled to wealth. There was no use, therefore, in being over-conscientious on his account.

It was a brilliant scheme, worth risking a great deal on, both of money and reputation, Sharpman resolved to make the most of it.



## CHAPTER IV.

### A SET OF RESOLUTIONS.

It was the morning of the third day after the disaster at Burnham Shaft. The breaker boys were to go that morning, in a body, to the mansion of their dead employer to look for the last time on his face. They had asked that they might be permitted to do this, and the privilege had been granted.

Grief holds short reign in young hearts, it is true; but the sorrow in the hearts of these children of toil was none the less sincere. Had there been any tendency to forget their loss, the solemn faces and tearful eyes of those who were older than they would have been a constant reminder.

As Robert Burnham had been universally beloved, so his death was universally mourned. The miners at Burnham Shaft felt that they had especial cause for grief. He had a way of coming to the mines and looking after them and their labor, personally, that they liked. He knew the names of all the men who worked there, and he had a word of kindly greeting for each one whom he met. When he came among them out of the darkness of heading or chamber, there seemed, somehow, to be more light in the mines, more light and better air, and a sense of cheeriness and comfort. And, after he had gone, you could hear these men whistling and singing at their tasks for hours; the mere fact of his presence had so lightened their labors. The bosses caught this spirit of friendliness, and there was always harmony at

Burnham Breaker and in the Burnham mines, among all who labored there in any way whatever. But the screen-room boys had, somehow, come to look upon this man as their especial friend. He sympathized with them. He seemed to understand how hard it was for boys like they were to bend all day above those moving streams of coal. He always had kind words for them, and devised means to lessen, at times, the rigid monotony of their tasks. They regarded him with something of that affection which a child has for a firm, kind parent. Moreover, they looked upon him as a type of that perfect manhood toward which each, to the extent of his poor ability, should strive to climb. Even in his death he had set for them a shining mark of manly bravery. He had died to rescue others. If he had been a father to them before, he was a hero to them now. But he was dead. They had heard his gentle voice and seen his kindly smile and felt the searching tenderness of his brown eyes for the last time. They would see his face once more; it would not be like him as he was, but—they would see it.

They had gathered on the grass-plot, on the hill east of the breaker, under the shadow of a great oak-tree. There were forty of them. They were dressed in their best clothes; not very rich apparel to be sure, patched and worn and faded most of it was, but it was their very best. There was no loud talking among them. There were no tricks being played; there was no shouting, no laughter. They were all sober-faced, earnest, and sorrowful.

One of the boys spoke up and said: "Tell you what I think, fellows; I think we ought to pass res'lutions like what the miners they done."

"Res'lutions," said another, "w'at's them?"

"W'y," said a third, "it's a little piece o' black cloth, like a veil, w'at you wear on your arm w'en you go to a fun'al."

Then some one proposed that the meeting should first be duly organized. Many of the boys had attended the miners' meetings and knew something about parliamentary organization.

"I move't Ralph Buckley, he be chairman," said one.

"I second the move," said another. The motion was put, and Ralph was unanimously elected as chairman.

"They ain't no time to make any speech," he said, backing up against the tree in order to face the assemblage. "We got jest time to 'lect a sec'etary and draw out some res'lutions."

"I move't Jimmie Donnelly be sec'etary."

"I second Jimmie Donnelly."

"All you who want Jimmie Donnelly for sec'etary, hol' up your right han's an' say yi."

There was a chorus of yi's.

"I move't Ed. Williams be treasurer."

Then the objector rose. "Aw!" he said, "we don't want no treasurer. W'at we want a treasurer for? we ain't goin' to spen' no money."

"You got to have a treasurer," broke in a youthful Gushing, "you got to have one, or less your meetin' won't be legal, nor your res'lutions, neither!"

The discussion was ended abruptly by some one seconding the nomination of Ed. Williams, and the motion was immediately put and carried.

"Now," said another young parliamentarian, "I move't the chairman pint out a committee of three fellows to write the res'lutions."

This motion was also seconded, put, and carried, and Ralph designated three boys in the company, one of whom, Joe Foster, had more than an ordinary reputation for learning, as a committee on resolutions; and, while they went down to the breaker office for pen, ink, and paper, the meeting took a recess.

It was, indeed, a task for those three unlearned boys to express in writing, their grief consequent upon the death of their employer, and their sympathy for his living loved ones, but they performed it. There was some discussion concerning a proper form for beginning. One thought they should begin by saying, "Know all men by these presents."

"But we ain't got no presents to give 'em," said another, "an' if we had it ain't no time to give any presents."

Joe Foster had attended the meeting at which the resolutions by the miners were adopted, and after recalling, as nearly as possible, the language in which they were drawn, it was decided to begin:—"We, the breaker boys, of Burnham Breaker, in mass meeting met"—

After that, with the exception of an occasional dispute concerning the spelling of a word, they got on very well, and came, finally, to the end.

"You two write your names on to it," said Jack Murphy; "I won't put mine down; two's enough."

"Oh! we've all got to sign it," said Joe Foster; "a majoriky ain't enough to make a paper like this stan' law."

"Well, I don't b'lieve I'll sign it," responded Jack; "I don't like the res'lutions very well, anyway."

"Why not? they're jest as you wanted 'em—oh, I know! you can't write your name.

"Well, I guess I could, maybe, if I wanted to, but I don't want to; I'm 'fraid I'd spile the looks o' the paper. You's fellows go ahead an' sign it."

"I'll tell you what to do," said Joe; "I'll write your name jest as good as I can, an' then you can put your solemn cross on top of it, an' that'll make it jest as legal as it can be got."

So they arranged it in that way. Joe signed Jack Murphy's name in his very best style, and then Jack took the pen and under Joe's explicit directions, drew one line horizontally through the name and another line perpendicularly between the two words of it, and Joe wrote above it: "his solem mark." This completed the resolutions, and the committee hurried back with them to the impatient assembly. The meeting was called to order again, and Joe Foster read the resolutions.

"That's jest the way I feel about it," said Ralph, "jest the way that paper reads. He couldn't 'a' been no better to us, no way. Boys," he continued, earnestly, forgetting for the time being his position, "do you 'member 'bout his comin' into the screen-room last Tuesday an' givin' us each a quarter to go t' the circus with? Well, I'd cut my han' that day on a piece o' coal, an' it was a-bleedin' bad, an' he see it, an' he asked me what was the matter with it, an' I told 'im, an' he took it an' washed it off, he did, jest as nice an' careful; an' then what d'ye think he done? W'y he took 'is own han'kerchy, his own han'kerchy, mind ye, an' tore it into strips an' wrapped it roun' my han' jest as nice—jest as nice—"

And here the memory of this kindness became so vivid in Ralph's mind that he broke down and cried outright.

"It was jes' like 'im," said one in the crowd; "he was always a-doin' sumpthin' jes' like that. D'ye 'member that time w'en I froze my ear, an' he give me money to buy a new cap with ear-laps on to it?"

The recital of this incident called from another the statement of some generous deed, and, in the fund of kindly reminiscence thus aroused, the resolutions came near to being wholly forgotten. But they were remembered, finally, and were called up and adopted, and it was agreed that the chairman should carry them and present them to whoever should be found in charge at the house. Then, with Ralph and Joe Foster leading the procession, they started toward the city. Reaching Laburnum Avenue, they marched down that street in twos until they came to the Burnham residence. There was a short consultation there, and then they all passed in through the gate to the lawn, and Ralph and Joe went up the broad stone steps to the door. A kind-faced woman met them there, and Ralph said: "We've come, if you please, the breaker boys have come to—to—" The woman smiled sweetly, and said: "Yes, we've been expecting you; wait a moment and I will see what arrangements have been made for you."

Joe Foster nudged Ralph with his elbow, and whispered:—

"The res'lutions, Ralph, the res'lutions; now's the time; give 'em to her."

But Ralph did not hear him. His mind was elsewhere. As his eyes grew accustomed to the dim light in the hall, and he saw the winding staircase with its richly carved posts, the beauty of the stained-glass windows, the graceful hangings, the broad doors, the pictures, and the flowers, there came upon him a sense of strange familiarity with the scene. It seemed to him as

though sometime, somewhere, he had seen it, known it all before. The feeling was so sudden and so strong that it made him faint and dizzy.

The kind-featured woman saw the pallor on his face and the tremor on his lips, and led him to a chair. She ascribed his weakness to sorrow and excitement, and the dread of looking on a dead face.

"Poor boy!" she said. "I don't wonder at it; he was more than generous to us all."

But Joe, afraid that the resolutions he had labored on with so much diligence would be forgotten, spoke of them again to Ralph.

"Oh, yes," said Ralph, with a wan smile, "oh, yes! here's the res'lutions. That's the way the breaker boys feel—the way it says in this paper; an' we want Mrs. Burnham to know."

"I'll take it to her," said the woman, receiving from Ralph's hands the awkwardly folded and now sadly soiled paper. "You will wait here a moment, please."

She passed up the broad staircase, by the richly colored window at the landing, and was lost to sight; while the two boys, sitting in the spacious hall, gazed, with wondering eyes, upon the beauty which surrounded them.

The widow of Robert Burnham sat in the morning-room of her desolated home, talking calmly with her friends.

After the first shock incident upon her husband's death had passed away, she had made no outcry, she grew quiet and self-possessed, she was ready for any consultation, gave all necessary orders, spoke of her dead husband's goodness to her with a smile on her face, and looked calmly forth into the

future. The shock of that terrible message from the mines, two days ago, had paralyzed her emotional nature, and left her white-faced and tearless.

She had a smile and a kind word for every one as before; she had eaten mechanically; but she had lain with wide-open eyes all night, and still no one had seen a single tear upon her cheeks. This was why they feared for her; they said,

"She must weep, or she will die."

Some one came into the room and spoke to her.

"The breaker boys, who asked to come this morning, are here."

"Let them come in," she said, "and pass through the parlors and look upon him; and let them be treated with all kindness and courtesy."

"They have brought this paper, containing resolutions passed by them, which they would like to have you read."

Mrs. Burnham took the paper, and asked the woman to wait while she read it. There was something in the fact that these boys had passed resolutions of sympathy that touched her heart. She unfolded the soiled paper and read:—

Wee, the braker Boys of burnham braker in mass meeting met  
Did pass thease res'lutions. first the braker Boys is all vary sory  
indede Cause mister Burnham dide.

second Wee have A grate dele of sympathy for his wife and his  
little girl, what has got to get along now without him. third wee are  
vary Proud of him cause he dide a trying to save John Welshes life  
and pat Morys life and the other mens lifes. fourth he was vary



Good indede to us Boys, and they ain't one of us but what liked him vary mutch and feel vary bad. fift Wee dont none of us ixpect to have no moar sutch good Times at the braker as wee did Befoar. sixt Wee aint scollers enough to rite it down just what wee feel, but wee feel a hunderd times more an what weave got rote down.

JOE FOSTER, comity,

PAT DONNELLY, comity,

his solem mark

JACK + MURFY comity.

The widow laid aside the paper, put her face in her hands, and began to weep. There was something in the honest, unskilled way in which these boys had laid their hearts open before her in this time of general sorrow, that brought the tears into her eyes at last, and for many minutes they flowed without restraint. Those who were with her knew that the danger that had menaced her was passed.

After a little she lifted her head.

"I will see the boys," she said. "I will thank them in person. Tell them to assemble in the hall."

The message was given, and the boys filed into the broad hall, and stood waiting, hats in hand, in silence and in awe.

Down the wide staircase the lady came, holding her little girl by the hand, and at the last step they halted. As Ralph looked up and saw her face, pallid but beautiful, and felt the influence of her gracious yet commanding presence, there came over him again that strange sensation as of beholding

some familiar sight. It seemed to him that sometime, somewhere, he had not only seen her and known her, but that she had been very close to him. He felt an almost uncontrollable impulse to cry out to her for some word, some look of recognition. Then she began to speak. He held himself firmly by the back of a chair, and listened as to a voice that had been familiar to him in some state of being prior to his life on earth.

"Boys," said the lady, "I come to thank you in person for your assurances of sympathy for me and for my little daughter, and for your veneration for the dead. I know that his feeling toward you was very kind, that he tried to lighten your labors as he could, that he hoped for you that you would all grow into strong, good men. I do not wonder that you sorrow at his loss. This honest, simple tribute to his memory that you have given to me has touched me deeply.

"I cannot hope to be as close to you as he was, but from this time forth I shall be twice your friend. I want to take each one of you by the hand as you pass by, in token of our friendship, and of my faith in you, and my gratitude toward you."

So, one by one, as they passed into the room beyond, she held each boy's hand for a moment and spoke to him some kind word, and every heart in her presence went out to her in sympathy and love.

Last of all came Ralph. As leader of the party he had thought it proper to give precedence to the rest. The lady took his hand as he came by, the same hand that had received her husband's tender care; but there was something in his pallid, grief-marked face, in the brown eyes filled with tears, in the sensitive trembling of the delicate lips, as she looked down on him, that brought swift tenderness for him to her heart. She bent over and lifted up his face to hers, and kissed his lips, and then, unable longer to restrain her emotion, she turned and hastened up the stairway, and was lost to sight.

For many minutes Ralph stood still, in gratified amazement. It was the first time in all his life, so far as memory served him, that any one had kissed him. And that this grief-stricken lady should be the first—it was very strange, but very beautiful, indeed. He felt that by that kiss he had been lifted to a higher level, to a clearer, purer atmosphere, to a station where better things than he had ever done before would be expected of him now; he felt, indeed, as though it were the first long reach ahead to attain to such a manhood as was Robert Burnham's. The repetition of this name in his mind brought him to himself, and he turned into the parlor just as the last one of the other boys was passing out. He hurried across the room to look upon the face of his friend and employer. It was not the unpleasant sight that he had feared it might be. The dead man's features were relaxed and calm. A smile seemed to be playing about the lips. The face had all its wonted color and fulness, and one might well have thought, looking on the closed eye-lids, that he lay asleep.

Standing thus in the presence of death, the boy had no fear. His only feeling was one of tenderness and of deep sorrow. The man had been so kind to him in life, so very kind. It seemed almost as though the lips might part and speak to him. But he was dead; this was his face, this his body; but he, himself, was not here. Dead! The word struck harshly on his mind and roused him from his reverie. He looked up; the boys had all gone, only the kind-faced woman stood there with a puzzled expression in her eyes. She had chanced to mark the strong resemblance between the face of the dead man and that of the boy who looked upon it; a resemblance so striking that it startled her. In the countenance of Robert Burnham as he had looked in life, one might not have noticed it, but—

"Sometimes, in a dead man's face,  
To those that watch it more and more,

A likeness, hardly seen before,  
Comes out, to some one of his race."

It was so here. The faces of the dead man and of the living boy were the faces of father and son.

Ralph turned away, at last, from the lifeless presence before him, from the searching eyes of the woman, from the hall with its dim suggestions of something in the long ago, and went out into the street, into the sunlight, into the busy world around him; but from that time forth a shadow rested on his young life that had never darkened it before,—a shadow whose cause he could not fathom and whose gloom he could not dispel.

## CHAPTER V.

### IN SEARCH OF A MOTHER.

Three months had gone by since the accident at Burnham Shaft. They were summer months, full of sunshine and green landscapes and singing birds and blossoming flowers and all things beautiful. But in the house from which the body of Robert Burnham had been carried to the grave there were still tears and desolation. Not, indeed, as an outward show; Margaret Burnham was very brave, and hid her grief under a calm exterior, but there were times, in the quiet of her own chamber, when loneliness and sorrow came down upon her as a burden too great for her woman's heart to bear. Still, she had her daughter Mildred, and the child's sweet ways and ceaseless chatter and fond devotion charmed her, now and then, into something almost like forgetfulness. She often sighed, and said: "If only Ralph had lived, that I might have both my children with me now!"

One morning, toward the middle of September, Lawyer John H. Sharpman rang the bell at the door of the Burnham mansion, sent his card up to Mrs. Burnham, and seated himself gracefully in an easy-chair by the parlor window to wait for her appearance.

She came soon and greeted him with gracious dignity. He was very courteous to her; he apologized for coming, in this way, without previous

announcement, but said that the nature of his errand seemed to render it necessary.

"I am sure no apology is required," she replied; "I shall be pleased to listen to you."

"Then I will proceed directly to the matter in hand. You remember, of course, the Cherry Brook disaster and what occurred there?"

"I shall never forget it," she said.

"I have a strange thing to tell you about that, an almost incredible thing. An old man has visited me at my office, within the last few days, who claims to have saved your child from that wreck, to have taken him to his own home and cared for him, and to know that he is living to-day."

The woman rose from her chair, with a sudden pallor on her face, too greatly startled, for the moment, to reply.

"I beg you to be calm, madam," the lawyer said; "I will try to speak of the matter as gently as possible."

"Ralph!" she exclaimed, "my Ralph! did you say that he is living?"

"So this old man says. I am simply telling you his story. He seems to be very much in earnest, though I am bound to say that his appearance is somewhat against him."

"Who is he? Bring him here! I will question him myself. Bring the child to me also; why did you not bring the child?"

"My dear lady, I beg that you will be calm; if you will allow me I will explain it all, so far as lies in my power."

"But if my boy is living I must see him; I cannot wait! It is cruel to keep him from me!"

Sharpman began to fear that he had injured his cause by presenting the case too strongly. At this rate the lady would soon believe, fully, that her son had been saved and could be restored to her. With such a belief in her mind the success of his scheme would be impossible. It would never do to let her go on in this way; he began to remonstrate.

"But, madam, I am telling to you only what this man has told to me. I have no means of proving his veracity, and his appearance, as I have said, is against him. I have agreed to assist him only in case he is able to establish, beyond question, the boy's identity. Thus far his statements have not been wholly satisfactory."

Mrs. Burnham had grown more calm. The startling suddenness of the proposition that Ralph was living had, for the time being, overmastered her. Now she sank back into her chair, with pale face, controlling her emotion with an effort, trying to give way to reason.

"What does he say?" she asked. "What is this old man's story?"

Sharpman repeated, in substance, old Simon's account of the rescue, giving to it, however, an air of lightness and improbability that it had not had before.

"It is possible," he added, "that the evidence you have of the child's death is sufficient to refute this man's story completely. On what facts do you rest your belief, if I am at liberty to ask?"

"The proofs," she replied, "have seemed to us to be abundant. Neither Mr. Burnham nor myself were in a condition to make personal investigation

until some days had elapsed from the time of the accident, and then the wreck had been cleared away. But we learned beyond doubt that there was but one other child in the car, a bright, pretty boy of Ralph's age, travelling with his grandfather, and that this child was saved. No one had seen Ralph after the crash; no article of clothing that he wore has ever been found; there were only a few trinkets, fireproof, that he carried in the pocket of his skirt, discovered in the ashes of the wreck."

The lady put her hands to her eyes as if to shut out the memory of some dread sight.

"And I presume you made diligent inquiry afterward?" questioned the lawyer.

"Oh, yes! of the most searching nature, but no trace could be found of our child's existence. We came to the firm belief, long ago, that he died that night. The most that we have dared to hope is that his sufferings were not great nor prolonged."

"It seems incredible," said Sharpman, "that the child could have been saved and cared for, without your knowledge, through so long a period. But the man appears to be in earnest, his story is a straightforward one, and I feel it to be my duty to examine into it. Of course, his object is to get gain. He wants compensation for his services in the matter of rescuing and caring for the child. He seems also to be very desirous that the boy's rights should be established and maintained, and has asked me to take the matter in hand in that respect as well. Are you prepared to say, definitely, that no evidence would induce you to believe your child to be living?"

"Oh, no! not that. But I should want something very strong in the way of proof. Let this man come and relate his story to me. If it is false, I think I should be able to detect it."



"I advised him to do so, but, aside from his appearance, which is hardly in harmony with these surroundings, I think he would prefer not to hold a personal conference with the boy's friends. I may as well give you my reason for that belief. The old man says that the boy ran away from him two or three years ago, and I have inferred that the flight was due, partially, at least, to unkind treatment on Craft's part. I believe he is now afraid to talk the matter over with you personally, lest you should rebuke him too severely for his conduct toward the child and his failure to take proper care of him. He is anxious that all negotiations should be conducted through his attorney. Rather sensitive, he is, for a man of his general stamp."

"And did the child return to him?" asked the lady, anxiously, not heeding the lawyer's last remark.

"Oh, no! The old man searched the country over for him. He did not find him until this summer."

"And where was he found?"

"Here, in Scranton."

"In Scranton! That is strange. Is the boy here still?"

"He is."

"Where does he live? who cares for him?"

Sharpman had not intended to give quite so much information, but he could not well evade these questions and at the same time appear to be perfectly honest in the matter, so he answered her frankly:

"He lives with one William Buckley, better known as 'Bachelor Billy.' He works in the screen-room at Burnham Breaker."

"Indeed! by what name is he known?"

"By your son's name—Ralph."

"Ralph, the slate-picker! Do you mean that boy?"

It was Sharpman's turn to be surprised.

"Do you know him?" he asked, quickly.

"I do," she replied. "My husband first told me of him; I have seen him frequently; I have talked with him so lately as yesterday."

"Ah, indeed! I am very glad you know the boy. We can talk more intelligently concerning him."

"Do I understand you, then, to claim that Ralph, the slate-picker, is my son? this boy and no other?"

"That is my client's statement, madam."

The lady leaned back wearily in her chair.

"Then I fear you have come upon a futile errand, Mr. Sharpman," she said.

But, from the lawyer's stand-point, it began to look as if the errand was to be successful. He felt that he could speak a little more strongly now of Ralph's identity with Mrs. Burnham's son without endangering his cause.

"Can you remember," he said, "nothing about the lad's appearance that impressed you—now that you know the claim set up for hi—that impressed you with a sense of his relationship to you?"

"Nothing, sir, nothing whatever. The boy is a bright, frank, manly fellow; I have taken much interest in him from the first. His sorrow at the time of my husband's death touched me very deeply. I have been several times since then to look after his comfort and happiness. I saw and talked with him yesterday, as I have already told you. But he is not my son, sir, he is not my son."

"Pardon me, madam! but you must remember that time works wonders in a child's appearance; from three to eleven is a long stretch."

"I appreciate that fact, but I recall no resemblance whatever. My baby had light, curling hair, large eyes, full round cheeks and chin, a glow of health and happiness in his face. This lad is different, very different. There could not have been so great a change. Oh, no, sir! your client is mistaken; the boy is not my son; I am sure he is not."

Sharpman was rejoiced. Everything was working now exactly according to his plan. He thought it safe to push his scheme more rapidly.

"But my client," he said, "appears to be perfectly sincere in his belief. He will doubtless desire me to institute legal proceedings to recover for the boy his portion of Robert Burnham's estate."

"If you can recover it," she said, calmly, "I shall transfer it to the child most cheerfully. I take it, however, that you must first establish his identity as an heir?"

"Certainly."

"And do you think this can be done against my positive testimony?"

"Perhaps not; that remains to be seen. But I do not desire to contemplate such a contingency. My object, my sole object, is to obtain a harmonious

settlement of this matter outside of the courts. That is why I am here in person. I had hoped that I might induce you to acknowledge the boy as your son, to agree to set off his interest in his father's estate, and to reimburse my client, to some extent, for his care and services. This is my only wish in the matter, I assure you."

"Why, as to that," she replied, "I am willing to recognize services performed for any one; and if this old man has rescued and cared for the boy, even though he is not my son—I have enough; if the man is in want, I will help him, I will give him money. But wait! did you say he had been cruel to the child? Then I withdraw my offer. I have no pity for the harsh task-masters of young children. Something to eat, to drink, to wear,—I will give him that,—nothing more."

"I am to understand, then, that you positively decline to acknowledge this boy as your son?" asked the lawyer, rising.

"With the evidence that I now have," she said, "I do. I should be glad to assist him; I have it in mind to do so; he is a brave, good boy, and I love him. But I can do nothing more, sir,—nothing more."

"I regret exceedingly, madam, the failure of my visit," said Sharpman, bowing himself toward the door. "I trust, I sincerely trust, that whatever I may find it in my heart and conscience to do in behalf of this boy, through the medium of the courts, will meet with no bitterness of feeling on your part."

"Certainly not," she replied, standing in matronly dignity. "You could do me no greater favor than to prove to me that this boy is Ralph Burnham. If I could believe that he is really my son, I would take him to my heart with inexpressible joy. Without that belief I should be false to my daughter's

interest to compel her to share with a stranger not only her father's estate but also her mother's affection."

"Madam, I have the most profound respect for your conscience and your judgment. I trust that no meeting between us will be less pleasant than this one has been. I wish you good-morning!"

"Good-morning, sir!"

Sharpman bowed himself gracefully out, and walked briskly down the street, with a smile on his face. The execution of his scheme had met, thus far, with a success which he had hardly anticipated.

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Every one about Burnham Breaker knew Bachelor Billy. No one ever knew any ill of him. He was simple and unlearned, but his heart was very large, and he was honest and manly to the marrow of his bones. He had no ties of family or of kin, but every one who knew him was his friend; every child who saw him smiled up instinctively into his face; he was a brother to all men. Gray spots were coming in his hair, his shoulders were bowed with toil, and his limbs were bent with disease, but the kind look never vanished from his rugged face, and the kind word never faltered on his lips. He went to his task at Burnham Breaker in the early morning, he toiled all day, and came home at night, happy and contented with his lot.

His work was at the head of the shaft, at the very topmost part of the towering breaker. When a mine car came up, loaded with coal, it was his duty to push it to the dump, some forty feet away, to tip it till the load ran out, and then to push it back to the waiting carriage. Michael Maloney had been Billy's assistant here, in other years; but, one day, Michael stepped back, inadvertently, into the open mouth of the shaft, and, three minutes

later, his mangled remains were gathered up at the foot. Billy knew that Michael's widow was poor, with a family of small children to care for, so he came and hired from her a part of her cottage to live in, and took his meals with her, and paid her generously. To this house he had taken Ralph. It was not an elegant home, to be sure, but it was a home where no harsh word was spoken from year's end to year's end; and to Ralph, fresh from his dreadful life with Simon Craft, this was much, oh! very much, indeed. The boy was very fond of "Uncle Billy," as he called him, and the days and nights he spent with him were not unhappy ones. But since the day when Mrs. Burnham turned his face to hers, and kissed him on his lips, there had been a longing in his heart for something more; a longing which, at first, he could not quite define, but which grew and crystallized, at last, into a strong desire to merit and possess the fond affection, and to live in the sweet presence, of a kind and loving mother. He had always wanted a mother, ever since he could remember. The thought of one had always brought a picture of perfect happiness to his mind. But never, until now, had that want reached so great proportions. It had come to be the leading motive and ambition of his life. He yearned for mother-love and home affection, with an intensity as passionate, a desire as deep, as ever stirred within the heart of man. He had not revealed his longing to Bachelor Billy. He feared that he might think he was discontented and unhappy, and he would not have hurt his Uncle Billy's feelings for the world. So the summer days went by, and he kept his thought in this matter, as much as possible, to himself.

It had come to be the middle of September. There had been a three days rain, which had so freshened the parched grass and checked the fading of the leaves, that one might readily have thought the summer had returned to bring new foliage and flowers, and to deck the earth for still another season with its covering of green.

But it had cleared off cold.

"It'd be nice to have a fire to-night, Uncle Billy," said Ralph, as the two were walking home together in the twilight, from their day's work at the breaker.

"Wull, lad," was the reply, "ye ha' the wood choppit for it, ye can mak' un oop."

So, after supper, Ralph built a wood fire in the little rude grate, and Billy lighted his clay pipe, and they both drew their chairs up before the comfortable blaze, and watched it while they talked.

It was the first fire of the season, and they enjoyed it. It seemed to bring not only warmth but cheer.

"Ain't this nice, Uncle Billy?" said Ralph, after quite a long silence. "Seems kind o' home-like an' happy, don't it?"

"Ye're richt, lad! Gin a mon has a guid fire to sit to, an' a guid pipe o' 'bacca to pull awa' on, what more wull ye? eh, Ralph!"

"A comfortable room like this to stay in, Uncle Billy," replied the boy, looking around on the four bare walls, the uncarpeted floor, and the rude furniture of the room, all bright and glowing now in the light of the cheerful fire.

"Oh! the room's guid enook, guid enook," responded the man, without removing the pipe from his mouth.

"An' a nice bed, like ours, to sleep in."

"True for ye lad; tired bones rest well in a saft bed."

"An' plenty to eat, too, Uncle Billy; that's a good thing to have."

"Richt again, Ralph! richt again!" exclaimed Billy, enthusiastically, pushing the burning tobacco down in the bowl of his pipe. "An' the Widow Maloney, she do gi' us 'mazin' proper food, now, don't she? D'ye min' that opple pie we had for sooper, lad?"

"Yes, that was good," said Ralph, gazing absently into the fire. "They's only one thing more we need, Uncle Billy, an' that's somebody to love us. Not but what you an' me cares a good deal for each other," added Ralph, apprehensively, as the man puffed vigorously away at his pipe, "but that ain't it. I mean somebody, some woman, you know, 'at'd kiss us an' comfort us an' be nice to us that way."

Billy turned and gazed contemplatively at Ralph. "Been readin' some more o' them love-stories?" he asked, smiling behind a cloud of smoke.

"No, I ain't, an' I don't mean that kind. I mean your mother or your sister or your wife—it'd be jes' like as though you had a wife, you know, Uncle Billy."

Again, the man puffed savagely at his pipe before replying.

"Wull," he said at last, "na doot it'd be comfortin' to have a guid weef to care for ye; but they're an awfu' trooble, Ralph, women is,—an awfu' trooble."

"But you don't know, Uncle Billy; you ain't had no 'xperience."

"No more am I like to have. I'm a gittin' too auld now. I could na get me a weef an' I wanted one. Hoot, lad! think o' your Uncle Billy wi' a weef to look after; it's no' sensiba, no' sensiba," and the man took his pipe from his mouth and indulged in a hearty burst of laughter at the mental vision of himself in matrimonial chains.



"But then," persisted Ralph, "you'd have such a nice home, you know; an' somebody to look glad an' smile an' say nice things to you w'en you come home from work o' nights. Uncle Billy, I'd give a good deal if I had it, jes' to have a home like other boys has, an' mothers an' fathers an' sisters an' all that."

"Wull, lad, I've done the bes' I could for ye, I've—"

"Oh, Uncle Billy!" interrupted the boy, rising and laying his hand on the man's shoulder affectionately, "you know I don't mean that; I don't mean but what you've been awful good to me; jes' as good as any one ever could be; but it's sumpthin' dif'rent from that 'at I mean. I'm thinkin' about a home with pirty things in it, books, an' pictures, an' cushions, the way women fix 'em you know, an'—an' a mother; I want a mother very much; I think it'd be the mos' beautiful thing in the world to have a mother. You've had one, ain't you, Uncle Billy?"

The man's face had taken on a pleased expression when Ralph began with his expostulation, but, as the boy continued, the look changed into one of sadness.

"Yes, lad," he said, "an' a guid mither she waur too. She died an' went to heaven it's mony a year sin', but I still min' the sweet way she had wi' me. Ye're richt, laddie, there's naught like a blessed mither to care for ye—an' ye never had the good o' one yoursel"—turning and looking at the boy, with an expression of wondering pity on his face, as though that thought had occurred to him now for the first time.

"No, I never had, you know; that's the worst of it. If I could only remember jest the least bit about my mother, it wouldn't seem so bad, but I can't remember nothing, not nothing."

"Puir lad! puir lad! I had na thocht o' that afoor. But, patience, Ralph, patience; mayhap we'll find a mither for ye yet."

"Oh, Uncle Billy! if we could, if we only could! Do you know, sometimes w'en I go down town, an' walk along the street, an' see the ladies there, I look at ev'ry one I meet, an' w'en a real nice beautiful one comes along, I say to myself, 'I wisht that lady was my mother,' an' w'en some other one goes by, I say, 'I wonder if that ain't my mother.' It don't do no good, you know, but it's kind o' comfortin'."

"Puir lad!" repeated Billy, putting his arm around the boy and drawing him up closer to his chair, "Puir lad!"

"You 'member that night I come home a-cryin', an' I couldn't tell w'at the matter was? Well, it wasn't nothin' but that. I come by a house down there in the city, w'ere they had it all lighted up, an' they wasn't no curtains acrost the windows, an' you could look right in. They was a havin' a little party there; they was a father an' a mother an' sisters and brothers an' all; an' they was all a-laughin' an' a-playin' an' jest as happy as they could be. An' they was a boy there 'at wasn't no bigger'n me, an' his mother come an' put her arms aroun' his neck an' kissed him. It didn't seem as though I could stan' it, Uncle Billy, I wanted to go in so bad an' be one of 'em. An' then it begun to rain, an' I had to come away, an' I walked up here in the dark all alone, an' w'en I got here they wasn't nothin' but jest one room, an' nobody but you a-waitin' for me, an'—no! now, Uncle Billy, don't! I don't mean nothin' like that—you've been jest as good to me as you could be; you've been awful good to me, al'ays! but it ain't like, you know; it ain't like havin' a home with your own mother."

"Never min', laddie; never min'; ye s'all have a hame, an' a mither too some day, I mak' na doot,—some day."

There was silence for a time, then Bachelor Billy continued:—

"Gin ye had your choice, lad, what kin' o' a mither would ye choose for yoursel'?"

"Oh! I don't know—yes, I do too!—it's wild, I know it's wild, an' I hadn't ought to think of it; but if I could have jest the mother I want, it'd be—it'd be Mrs. Burnham. There! now, don't laugh, Uncle Billy; I know it's out o' all reason; she's very rich, an' beautiful, an' everything; but if I could be her boy for jest one week—jest one week, Uncle Billy, I'd—well, I'd be willin' to die."

"Ye mak' high choice, Ralph, high choice; but why not? ye're as like to find the mither in high places as in low, an' liker too fra my way o' thinkin'. Choose the bes', lad, choose the bes'!"

"But she's so good to us," continued the boy, "an' she talks so nice to us. You 'member the time I told you 'bout, w'en we breaker boys went down there, all of us, an' she cried kin' o' soft, an' stooped down an' kissed me? I shouldn't never forgit that if I live to be a thousan' years old. An' jes' think of her kissin' me that way ev'ry night,—think of it Uncle Billy! an' ev'ry mornin' too, maybe; wouldn't that be—be—" and Ralph, at a loss for a fitting wor to represent such bliss as that, simply clasped his hands together and gazed wistfully into the fire. After a minute or two he went on: "She 'membered it, too. I was 'fraid she'd never know which boy it was she kissed, they was so many of us there; but she did, you know, an' she's been to see me, an' brought me things, ain't she? an' promised to help me find out about myself jest the same as Mr. Burnham did. Oh dear! I hope she won't die now, like he did—Uncle Billy! oh, Uncle Billy!" as a sudden thought struck in on the boy's mind, "if she was—if Mrs. Burnham was my mother, then Mr. Burnham would 'a' been my father wouldn't he?"

"Na doot, lad, na doot."

"Robert Burnham—would 'a' been—my father. Oh!" The boy drew himself up to his full height and stood gazing into the fire in proud contemplation of such overwhelming happiness and honor.

There was a knock at the door. Ralph went and opened it, and a young man stepped in.

"Ah! good evening!" he said. "Does a man by the name of Buckley live here? William Buckley?"

"That's my name," responded Billy, rising from his chair.

"And are you Ralph?" asked the young man, turning to the boy.

"Yes, sir, that's my name, too," was the quick reply.

"Well, Ralph, can you take a little walk with me this evening, as far as Lawyer Sharpman's office?"

"Wha' for do ye want the lad?" asked Billy, advancing and placing a chair for the stranger to sit in.

"Well, to speak confidentially, I believe it's something about his parentage."

"Who his father an' mother waur?"

"Yes."

"Then he s'all go wi' ye if he like. Ralph, ye can put on the new jacket an' go wi' the mon."

The boy's heart beat tumultuously as he hurried on his best clothes.

At last! at last he was to know. Some one had found him out. He was no longer "nobody's child."

He struggled into his Sunday coat, pulled his cap on his head, and, in less than ten minutes he was out on the road with the messenger, hurrying through the frosty air and the bright moonlight, toward Sharpman's office.

## CHAPTER VI.

### BREAKING THE NEWS.

Simon Craft and Lawyer Sharpman were sitting together in the rear room of the latter's law office. The window-shades were closely drawn, shutting out the mellow light of the full moon, which rested brightly and beautifully on all objects out of doors.

The gas jet, shaded by a powerful reflector, threw a disk of light on the round table beneath it, but the corners of the room were in shadow. It was in a shaded corner that Craft was sitting, resting his folded arms on his cane, while Sharpman, seated carelessly by the table, was toying with a pencil. There were pleased looks on the faces of both men; but old Simon seemed to have grown thinner and feebler during the summer months, and his cough troubled him greatly.

Sharpman was saying: "If we can succeed in managing the boy, now, as well as we have managed the mother, I think we are all right. I somewhat fear the effect of your presence on him, Craft, but he may as well see you to-night as later. You must keep cool, and be gentle; don't let him think you are here for any purpose but his good."

"Oh! you may trust me, Mr. Sharpman," responded the old man, "you may trust me. I shall get into the spirit of the scheme very nicely."

"What kind of a boy is he, any way? Pretty clear-headed?"

"Well, yes, middling; but as obstinate as a mule. When he gets his mind set on a thing, it's no use to try to budge him. I've whipped him till he was black and blue, and it didn't do a penny's worth of good."

"You should have used moral suasion, Craft; that's the way to treat boys. Get their confidence, and then you can handle them. Well, we'll get Ralph's mind fixed on the fact that he is Mrs. Burnham's son, and see how he'll stick to that. Hark! There they come now. Sooner than I expected."

The outer door of the office was opened, and Ralph and the young man entered. The messenger disappeared into the inner room, but after a minute or two he came out and ushered Ralph into the presence of the lawyer. Sharpman arose, greeted the boy pleasantly and shook hands with him, and Ralph thought that lawyers were not such forbidding people after all.

"Do you recognize this gentleman?" said Sharpman, turning, with a wave of his hand, toward old Simon.

The old man was sitting there with his hands crossed on his cane, and with a grim smile on his gaunt face. Ralph looked intently, for a moment, into the shadow, and then, with an exclamation of surprise and fear on his lips, he stepped back toward the door.

"I won't go!" he cried; "don't make me go back with him, sir!" turning his distressed face to the lawyer, as he spoke.

Sharpman advanced and took the boy by the hand and led him to a chair. "Don't be afraid," he said, gently, "there's no cause for alarm. You shall not go back with him. He is not here to take you back, but to establish your identity."

Then a new fear dawned upon Ralph's mind.

"He ain't my grandfather!" he exclaimed. "Simon Craft ain't my grandfather. He wouldn't never 'a' whipped me the way he done if he'd a-been truly my grandfather."

Craft looked up at Sharpman with a little nod. The boy had identified him pretty plainly, and proved the truth of his story to that extent at least.

"Oh, no!" said the lawyer, "oh, no! Mr. Craft is not your grandfather; he doesn't claim to be. He has come here only to do you good. Now, be calm and reasonable, and listen to what we have to tell you, and, my word for it, you will go back to Billy Buckley's to-night with a heart as light as a feather. Now, you'll take my advice, and do that much, won't you?"

"Yes, I will," said Ralph, settling himself into his chair, "I will, if I can only find out about my father 'n' mother. But I won't go back to live with him; I won't never go back there!"

"Oh, no!" replied Sharpman, "we'll find a better home for you than Mr. Craft could ever give you. Now, if you will sit still and listen to us, and take our advice, we will tell you more things about yourself than you have ever thought of knowing. You want to hear them, don't you?"

"Well, yes," replied Ralph, smiling and rapidly regaining his composure; "yes, of course."

"I thought so. Now I want to ask you one or two questions. In the first place, what do you remember about yourself before you went to live with Mr. Craft?"

"I don't remember anything, sir,—not anything."



"Haven't you a faint recollection of having been in a big accident sometime; say, for instance, a railroad disaster?"

"No—I don't think I have. I think I must 'a' dreamed sumpthin' like that once, but I guess it never happened to me, or I'd 'member more about it."

"Well, Ralph, it did happen to you. You were riding in a railroad car with your father and mother, and the train went through a bridge. A good many people were killed, and a good many more were wounded; but you were saved. Do you know how?"

Ralph did not answer the question. His face had suddenly paled.

"Were my father an' mother killed?" he exclaimed.

"No, Ralph, they were not killed. They were injured, but they recovered in good time."

"Are they alive now? where are they?" asked the boy, rising suddenly from his chair.

"Be patient, Ralph! be patient! we will get to that in time. Be seated and answer my question. Do you know how you were saved?"

"No, sir; I don't."

"Well, my boy," said the lawyer, impressively, pointing his finger toward Craft, "there is the man who saved you. He was on the train. He rushed into the wreck at the risk of his life, and drew you from the car window. In another minute it would have been too late. He fell back into the river holding you in his arms, but he saved you from both fire and water. The effort and exposure of that night brought on the illness that has resulted in

the permanent loss of his health, and left him in the condition in which you now see him."

Ralph looked earnestly at old Simon, who still sat, quiet and speechless, chuckling to himself, and wishing, in his heart, that he could tell a story as smoothly and impressively as Lawyer Sharpman.

"An' do I owe my life to him?" asked the boy. "Wouldn't I 'a' been saved if he hadn't 'a' saved me?"

"It is not at all probable," replied Sharpman. "The flames had already reached you, and your clothing was on fire when you were drawn from the car."

It was hard for Ralph to believe in any heroic or unselfish conduct on the part of Simon Craft; but as he felt the force of the story, and thought of the horrors of a death by fire, he began to relent toward the old man, and was ready to condone the harsh treatment that he had suffered at his hands.

"I'm sure I'm much obliged to 'im," he said, "I'm much obliged to 'im, even if he did use me very bad afterwards."

"But you must remember, Ralph, that Mr. Craft was very poor, and he was ill and irritable, and your high temper and stubborn ways annoyed him greatly. But he never ceased to have your best interests at heart, and he was in constant search of your parents, in order to restore you to them. Do you remember that he used often to be away from home?"

"Yes, sir, he used to go an' leave me with ole Sally."

"Well, he was away searching for your friends. He continued the search for five years, and at last he found your father and mother. He hurried back to Philadelphia to get you and bring you to your parents, as the best means

of breaking to them the glad news; and when he reached his home, what do you suppose he found?"

Ralph smiled sheepishly, and said: "I 'xpect, maybe, I'd run away."

"Yes, my boy, you had. You had left his sheltering roof and his fostering care, without his knowledge or consent. Most men would have left you, then, to struggle on by yourself, as best you could; and would have rewarded your ingratitude by forgetfulness. Not so with Mr. Craft. He swallowed his pain and disappointment, and went out to search for you. He had your welfare too deeply at heart to neglect you, even then. His mind had been too long set on restoring you to loving parents and a happy home. After years of unremitting toil he found you, and is here to-night to act as your best and nearest friend."

Ralph had sat during this recital, with astonishment plainly depicted on his face. He could scarcely believe what he heard. The idea that Simon Craft could be kind or good to any one had never occurred to him before.

"I hope," he said, slowly, "I hope you'll forgive me, Gran'pa Simon, if I've thought wrong of you. I didn't know 'at you was a-doin' all that for me, an' I thought I was a-havin' a pirty hard time with you."

"Well," said Craft, speaking for the first time since Ralph's entrance. "Well, we won't say anything more about your bad behavior; it's all past and gone now, and I'm here to help you, not to scold you. I'm going to put you, now, in the way of getting back into your own home and family, if you'll let me. What do you say?"

"I'm sure that's very good in you, an' of course I'd like it. You couldn't do anything for me 'at I'd like better. I'm sorry if I've ever hurt your feelin's, but —"

"How do you think you would like to belong to a nice family, Ralph?" interrupted Sharpman.

"I think it'd make me very happy, sir."

"And have a home, a beautiful home, with books, pictures, horses, fine clothes, everything that wealth could furnish?"

"That'd be lovely, very lovely; but I don't quite 'xpect that, an' what I want most is a good mother, a real, nice, good mother. Haven't you got one for me? say, haven't you got one?"

The boy had risen to his feet and stood with clasped hands, gazing anxiously at Sharpman.

"Yes, my boy, yes," said the lawyer, "we've found a good mother for you, the best in the city of Scranton, and the sweetest little sister you ever saw. Now what do you think?"

"I think—I think 'at it's most too good to be true. But you wouldn't tell me a lie about it, would you? you wouldn't do that, would you?"

"Oh, no! Ralph; good lawyers never lie, and I'm a good lawyer."

"An' when can I see 'em? Can I go to 'em to-night? I don't b'lieve I can wait,—I don't b'lieve I can!"

"Ralph! Ralph! you promised to be quiet and reasonable. There, be seated and wait till you hear us through. There is something better yet for you to know. Now, who do you suppose your mother is? She lives in Scranton."

Ralph sat, for a moment, in stupid wonder, staring at Sharpman. Then a brilliant thought, borne on by instinct, impulse, strong desire, flashed like a

ray of sunlight, into his mind, and he started to his feet again, exclaiming:—

"Mrs. Burnham! it can't be! oh, it can't be! tell me, is it Mrs. Burnham?"

Craft and Sharpman exchanged quick glances of amazement, and the latter said, impressively:—

"Yes, Ralph, Mrs. Burnham is your mother."

The boy stood for another moment, as if lost in thought; then he cried out, suddenly: "And Mr. Burnham, he—he was my—my father!" and he sank back into his chair, with a sudden weakness in his limbs, and a mist before his eyes.

For many minutes no one spoke. Then Ralph asked, quietly,—

"Does—does she know?"

"Now, Ralph," said Sharpman, "now comes the strangest part of the story. Your mother believes you to be dead. She believes that you perished in the accident at Cherry Brook, and has mourned for you ever since the time of that disaster."

"Am I the boy—am I the Ralph she lost?"

"The very one, but we cannot make her think so. I went to her, myself, this morning, and told her that you are alive. I told her who you are, and all about you. She knows you, but she will not believe that you are her son. She wants better evidence than we can give to her, outside of the courts."

"An' won't she never believe it? won't she never take me?"

The boy's voice and look revealed the sudden clashing of his hope.

"Oh, yes, Ralph! in time; I do not doubt that in good time she will recognize you and take you to her home. She has so long believed you to be dead that it is hard for her to overcome the prejudice of that belief."

Then another fear came into the lad's mind.

"Are you sure," he cried out, "that I am her boy? are you sure I'm the right one?"

"Oh, yes!" said the lawyer, assuringly, "oh, yes! there's no mistake about that, there isn't the shadow of a doubt about that. We shall establish your identity beyond question; but we shall have to do it in the courts. When it is once done no one can prevent you from taking the name and the property to which you are entitled and using them as you see fit."

"But my mother!" said Ralph, anxiously, "my mother; she's all I care about; I don't want the property if I can't have her."

"And you shall have her, my boy. Mrs. Burnham said to me this morning, that, until your claim was duly proved in a court of law, she would have no legal right to accept you as her son; but that, when your identity is once established in that way, she will receive you into her home and her heart with much joy."

Ralph looked up with brightening eyes.

"Did she say that?" he exclaimed, "an' will she do it?"

"I have no doubt of it, none whatever."

"Then let's get at it right away," said the boy, impatiently, "it won't take very long, will it?"

"Oh! some little time; several months, may be; may be longer."

Ralph's face fell again.

"I can't wait that long!" he exclaimed; "I'll go to her myself; I'll tell her ev'rything; I'll beg her to take me. Do you think she would? do you?"

"Oh, Ralph! now be reasonable. That would never do. In the first place, it would be useless. She has seen you, she knows you; she says you are not her son; you can't prove it to her. Besides that, she has no legal right to take you as her son until the courts have passed upon the question of your identity. If she should attempt to do so, the other heirs of Robert Burnham would come in and contest your claim, and you would be in a far worse position to maintain your rights than you are now,—oh! far worse. No, you must not go to Mrs. Burnham, you must not go to her at all, until your sonship is fully established. You must keep cool, and wait patiently, or you will destroy every chance you have."

"Well, then, I'll try to; I'll try to wait an' do what you tell me to; what shall I do first?"

"The first thing to be done, Ralph, is to have the court appoint a guardian for you. You can't do anything for yourself, legally, you know, till you are twenty-one years old; and whatever action is taken in your behalf, must be taken by a guardian. It will be his place to establish your identity, to restore you to your mother, and to take care of your property. Now, who would you prefer to have act in that capacity?"

"Well, I don't know; there's Uncle Billy, he's the best friend I've got; wouldn't he do?"

"Do you mean William Buckley, with whom you are living?"

"Yes, sir."

"Why, he would do if he were rich, or had rich friends who would go on his bond. You see, the guardian would have to give a bond to the extent of a great many thousand dollars for the faithful performance of his duties. Could Buckley do that?"

"I'm afraid not, sir. He ain't rich, himself, an' I never heard of his havin' any rich friends."

"Whom else can you think of?"

"Won't Mrs. Burnham do?"

"Oh, no! it might be necessary for the guardian to bring suit against her."

"There ain't anybody else that I can think of," said Ralph, despairingly, after a moment's pause.

"Well, then, I don't know what we shall do. If you can't find some one who is able to qualify for this trust, we may as well stop right here. I guess we've done all we can for the boy, Mr. Craft?"

Craft nodded and smiled. He was enjoying the lawyer's diplomacy with Ralph, exceedingly.

The lad was again in the depths of anxiety. He looked from one to the other of the men with appealing eyes.

"Ain't they some way to fix it, Mr. Sharpman?" he said. "Can't you do sumptin' for me?"

"Oh! I couldn't be your guardian, my boy, the law wouldn't allow that; and Mr. Craft, here, hasn't money enough. I guess we'll have to give up the



idea of restoring you to your mother, and let you go back to work in the breaker again."

"That'd be too bad," said the boy. "Don't do that; I couldn't stan' that—now. Can't you see my mother again, Mr. Sharpman, an' get her to take me—some way?"

"It can't be done, Ralph. There's only one way to fix it, and that is to get a guardian for you. If we can't do that, we may as well give it all up."

The anxiety and disappointment expressed in the lad's face was pitiful to look upon.

Then Craft spoke up.

"Ralph has been very unkind and ungrateful to me," he said, "but I have always been his best friend. I saved his life; and I've spent time and money and lost my health on his account. But I'm willing to do him a favor yet, if he thinks he can appreciate it. I'll act as his guardian and take care of his property for him, if he'll be a good boy and do as we tell him."

"I'll do everything I can," said Ralph, eagerly, "'ceptin' to go back an' live with you; everything—but Mr. Sharpman said you wasn't rich enough."

"No, I ain't," responded the old man; "and I don't know how to get around that difficulty, unless Mr. Sharpman will help me and be my bondsman."

Ralph turned his face pleadingly to Sharpman.

"Oh, now, Craft!" said the lawyer, smiling, and shaking his head, "don't you think you are presuming a little too much on my friendship? If you were the only one to be trusted, why, I might do it; but in this case I would have to depend on the boy as well, and there's no knowing how he would

misbehave. According to your own story, he is a wilful, wrong-headed lad, who has already rewarded your kindness to him with base ingratitude. Oh, no! I could trust you, but not him."

"Mr. Sharpman!" pleaded the boy, "Mr. Sharpman, I never meant to be mean or unkind to Gran'pa Simon. I never knew't he saved my life, never. I thought he abused me, I did; I was sure of it; that's the reason I run away from 'im. But, you see, I'm older now; I'd be more reason'ble; I'll do anything you tell me to, Mr. Sharpman,—anything, if you'll only fix it for Gran'pa Simon so's't he can help me get back to my mother."

The lawyer sat for a few moments as if lost in thought. Finally, he raised his head and said:—

"I've a great mind to try you, Ralph. Do you think I can really place full confidence in you?"

"Yes, sir; oh, yes, sir!"

"And will you follow my advice to the letter, and do just what I tell you to do in this matter?"

"Yes, sir; I will."

"Well, then," said Sharpman, turning to Craft, "I think I'll trust the boy, and I'll assist you in your bonds. I know that we both have his interest at heart, and I believe that, together, we can restore his rights to him, and place him in the way of acceptance by his family. Ralph," turning again to the boy, "you ought to be very thankful to have found two such good friends as Mr. Craft and myself."

"Yes, sir, I am. You'll do everything you can for me, won't you? as quick as you can?"

"Oh, yes! Mr. Craft will be your guardian, and I will be his bondsman and lawyer. Now, I think we understand each other, and I guess that's all for to-night."

"When do you want me to come again?"

"Well, I shall want you to go to Wilkesbarre with me in a few days, to have the appointment of guardian made; but I will send for you. In the meantime you will keep on with your work as usual, and say nothing to any person about what we have told you. You'll do that, won't you?"

"Yes, sir, I will. But, Uncle Billy—can't I tell him? he'll be awful glad to know."

"Well, yes, you may tell Billy, but charge him to keep it a profound secret."

"Oh! he will, he will; he'll do anything like that 'at I ask 'im to."

Ralph picked up his cap and turned to go; he hesitated a moment, then he crossed the room to where old Simon still sat, and, standing before him, he said:—

"I'm sorry you're sick, Gran'pa Simon. I never meant to do wrong by you. I'll try to do w'at's right, after this, anyway."

The old man, taken by surprise, had no answer ready; and Sharpman, seeing that the situation was likely to become awkward, stepped forward and said: "Oh! I've no doubt he'll be all we can desire now."

He took the boy's hand, and led him toward the door. "I see my clerk has gone," he said; "are you afraid to go home alone?"

"Oh, no! It's moonlight; an' besides, I've gone home alone lot's o' nights."

"Well, good luck to you! Good-night!"

"Good-night!"

The office door closed behind the boy, and he went out into the street and turned toward home.

The moon was bright and full, and a delicate mist hung close to the earth. It was a very beautiful night. Ralph thought he had never seen so beautiful a night before. His own footsteps had a musical sound in his ears, as he hurried along, impatient to reach Bachelor Billy, and to tell to him the wonderful news,—news so wonderful that he could scarcely realize or comprehend it. Mr. Sharpman said he would be going back home to-night with a heart as light as a feather. And so he was, was he not? He asked his heart the question, but, somehow, it would not say yes. There was a vague uneasiness within him that he could not quite define. It was not because he doubted that he was Mrs. Burnham's son; he believed that fact implicitly. It was not so much, either, that he could not go to her at once; he could wait for that if the end would only surely bring it. But it seemed to him that he was being set up in a kind of opposition to her; that he was being placed in a position which might lead to an estrangement between them: and that would be a very sad result, indeed, of this effort to establish his identity. But Mr. Sharpman had assured him that Mrs. Burnham approved of the action that was about to be taken in his behalf. Why, then, should he fear? Was it not absurd to cloud his happiness with the dread of something which would never come? Away with doubts! away with fears! he would revel, for to-night at least, in the joy of his new knowledge. Mrs. Burnham was his mother; was not that beautiful, beautiful? Could he, in his wildest flight of fancy or desire, have ever hoped for more than that? But there was something more, and that something was that Robert Burnham was his

father. Ah! that was, beyond all question, the highest honor that could ever rest upon a boy,—to be the son of a hero! Ralph threw back his head and shoulders with instinctive, honest pride as this thought filled his mind and heart, and his quick step grew more elastic and more firm as he hurried on along the moonlit path.

He was out beyond the city limits now, climbing the long hill toward home. He could see Burnham Breaker, standing out in majestic proportions, black and clear-cut against the moon-illuminated sky. By and by the little mining village came into view, and the row of cottages, in one of which the Widow Maloney lived; and finally the light in Bachelor Billy's window. When Ralph saw this he broke into a run, and sped swiftly along the deserted street, with the whole glad story of his parentage and his prospects crowding to his tongue.

Billy was still sitting by the fire when the boy burst into the room; but he had fallen asleep, and his clay pipe had dropped from his fingers and lay broken on the hearth.

"Uncle Billy! oh, Uncle Billy! what do you think?"

"Why, Ralph, lad, is that yo'? I mus' 'a' been asleep. Whaur ye been, eh?"

"W'y don't you 'member? I went to Lawyer Sharpman's office."

"True for ye, so ye did. I forgot; an' did ye—"

"Oh, Uncle Billy! what *do* you think? Guess who I am; guess!"

"Why, lad, don't frighten a mon like that. Ye'll wake the neeborhood. Who be ye, then?"

"Guess! guess! Oh, you'd never guess! I'm Ralph Burnham; I'm Mrs. Burnham's son!"

Bachelor Billy's hands dropped lifelessly to his knees, his mouth and eyes came wide open with unfeigned astonishment, and, for the moment, he was speechless. Finally he found breath to exclaim: "Why, Ralph, lad; Ralph, ye're crazy,—or a-jokin'! Don't joke wi' a mon that way, Ralph; it ain't richt!"

"No, but, Uncle Billy, it's true; it's all true! Ain't it splendid?"

"Be ye sure o' that, Ralph? be ye sure o' it?"

"Oh! they ain't no mistake about it; they couldn't be."

"Well, the guid Lord save ye, lad!" and Billy looked the boy over carefully from head to foot, apparently to see if he had undergone any change during his absence. Then he continued: "Coom, sit ye, then; sit ye, an' tell us about it a'; how happenit it, eh?"

Again they drew their chairs up before the replenished fire, and Ralph gave a full account of all that had occurred at the lawyer's office.

By virtue of his own faith he inspired Bachelor Billy with equal confidence in the truth of the story; and, by virtue of his own enthusiasm, he kindled a blaze of enthusiasm in the man's heart that glowed with hardly less of brightness than that in his own. Very late that night they sat there, these two, talking of what the future held for Ralph; building bright castles for him, and high hopes, with happiness beyond measure. It was only when the fire burned out and left its charred coals in the iron grate-bars and on the hearth that they went to bed, the one to rest in the dreamless sleep that follows in the path of honest toil, and the other to wake often from his

feverish slumber and stare down into the block of moonlight that fell across his bed through the half-curtained window of the room, and wonder whether he had just dreamed it all, or whether he had, indeed, at last, a birthright and a name.

## CHAPTER VII.

### RHYMING JOE.

Ten days after the evening interview at Sharpman's office, Ralph received a message from the lawyer instructing him to be at the railroad station on the following morning, prepared to go to Wilkesbarre.

So Bachelor Billy went alone that day to the breaker, and Ralph stayed behind to make ready for his journey.

He dressed himself in his best clothes, brushed them carefully, put a little money in his pocket, and, long before the appointed hour, he was at the station, waiting for Sharpman.

The lawyer did not come until it was nearly time for the train to start. He greeted Ralph very pleasantly, and they took a seat together in the car. It was a beautiful autumn morning, and the nature-loving boy enjoyed greatly the changing views from the car window, as the train bore them swiftly on through the picturesque valley of the Lackawanna. After reaching, at Pittston, the junction with the Susquehanna River, the scenery was grander; and, as they passed down through the far-famed Wyoming Valley, Ralph thought he had never before seen anything quite so beautiful. On the whole it was a delightful journey. Sharpman was in excellent spirits and made himself very agreeable indeed. He seemed to enjoy answering the boy's



bright questions, and listening to his shrewd remarks and frank opinions. It was not until they were nearing Wilkesbarre that the special object of their trip was mentioned; then the lawyer informed Ralph that they would go directly to court, and instructed him that if the judge should ask him whom he wished for his guardian, Ralph was to reply that he desired the appointment of Simon Craft. That matter being thoroughly understood, they went on to talk of what they should do in the future.

"It will be necessary, eventually," said Sharpman, "to bring a formal suit against Mrs. Burnham, as administrator, to recover your interest in the estate; but, judging from what she has intimated to me, I don't anticipate any serious opposition on her part."

"I'm sorry, though," responded Ralph, "that they's got to be a law-suit. Couldn't we make it so plain to her, some way, 'at I'm her son that we needn't have any suit?"

"I am afraid not. Even though she, herself, were convinced, she would have no right to distribute a portion of the estate to you against the objection of her daughter's guardian. There is no way but to get a judgment of the court in the matter."

"Well, why couldn't she jes' take my part, an' give it to her daughter's guarden, an' then take me home to live with her without any propaty? Wouldn't that do? I'd a good deal ruther do that than have a law-suit. A man hates to go to law with his own mother, you know."

Sharpman smiled and replied: "That would be a very generous offer, indeed; but I am afraid even that would not do. You would have no right to make such an agreement before you are twenty-one years old. Oh, no! we must have a law-suit, there is no other way; but it will be a mere matter of form; you need have no fear concerning it."

The train reached Wilkesbarre, and Ralph and the lawyer went directly from the station to the court-house. There were very few people in the court-room when they entered it, and there seemed to be no especial business before the court. Sharpman went down into the bar and shook hands with several of the attorneys there. The judge was writing busily at his desk. After a few moments he laid his pen aside and read a long opinion he had prepared in the matter of some decedent's estate. Ralph could not understand it at all, and his mind soon wandered to other subjects. After the reading was finished and one or two of the lawyers had made short speeches, there was a pause. Then Sharpman arose, and, drawing a bundle of papers from his pocket, he read to the court from one of them as follows:—

**"TO THE HONORABLE, THE JUDGE OF THE ORPHANS' COURT OF LUZERNE COUNTY:—**

"The petition of Ralph Burnham, by his next friend Simon Craft, respectfully represents that the petitioner is a minor child of Robert Burnham, late of the city of Scranton in said county, deceased, under the age of fourteen years; that he is resident within the said county and has no guardian to take care of his estate. He therefore prays the court to appoint a guardian for that purpose.

**"RALPH BURNHAM.**

By his next friend, SIMON CRAFT.

Dated, Sept. 26, 1867."

"Your Honor will notice that the petition is duly sworn to," said Sharpman, handing the paper to the clerk, who, in turn, handed it to the judge. There was a minute of silence. The lawyers were all staring at Sharpman in astonishment.

Then, the judge spoke.

"Mr. Sharpman, I was not aware that Robert Burnham left more than one child living; a girl, for whom we have already made appointment of a guardian."

"I was not aware of that fact either," rejoined Sharpman, "until very recently; but it is a fact, nevertheless; and we are here now, asking that a way be prepared by which this heir may come into his rightful portion of his father's estate."

"This is a peculiar case," responded the judge; "and I think we should have some other basis than this on which to act; some affidavit of facts."

"I came prepared to meet that objection," said Sharpman. "I will now read, if the court please, a statement of the facts in the case." He unfolded another paper and read a long and detailed account of the wreck, of Ralph's rescue by Simon Craft, of the old man's care and keeping of the boy, of the finding of Ralph's parents, the lad's desertion, the recent discovery of his whereabouts, of Craft's toil and sacrifice in the matter, and of Ralph's desire to be restored to his family. This was signed and sworn to by Simon Craft.

The judge sat for a moment in silence, as if studying the effect of this affidavit.

"Has the mother been notified," he said finally, "that this child is living, and, if so, why does not she appear here to make this application?"

"I will answer that question, your Honor, by reading the following affidavit," replied Sharpman.

**"LUZERNE COUNTY, SS.:**

"John H. Sharpman, attorney at law of said county, being duly sworn according to law, deposes, and says: that, on the fifteenth day of September, A.D. 1867, he called upon Mrs. Margaret Burnham, the widow of Robert Burnham, late of the city of Scranton, deceased, and administrator of the said Robert Burnham's estate, and informed her of the facts set forth in the foregoing affidavit of Simon Craft. She acknowledged her acquaintance with the boy Ralph, herein mentioned, but refused to acknowledge him as the son of Robert Burnham, or to grant him any legal interest in the estate of the said Robert Burnham. A notice, a copy of which is hereto attached, has been served on the said Margaret Burnham, warning her that application will be made to the Orphans' Court, on this day, at this hour, for the appointment of a guardian for the boy Ralph.

"JOHN H. SHARPMAN.

Sworn and subscribed before me,

Sept. 26, 1867.

ISRAEL DURHAM,

*Justice of the Peace.*"

"Does any one appear for Mrs. Burnham in this matter?" inquired the judge, addressing the assembly of lawyers.

An elderly man, short and thick-set, with gray hair and moustache, arose, and said:—

"I have been informed, as Mrs. Burnham's attorney, that such a proceeding as this was in contemplation. I appreciate your Honor's careful scrutiny of the matter before making an appointment; but, so long as we do not recognize the boy as Robert Burnham's son, it would hardly be justifiable for us to interfere in the simple appointment of a guardian for him. Inasmuch, however, as the avowed purpose is to make an attack on the

Burnham estates, we shall insist that the guardian enter into a bond of sufficient amount and value to cover any damages which may accrue from any action he may see fit to take."

"Have you prepared a bond, Mr. Sharpman?" inquired the judge.

"We have," replied Sharpman, producing still another paper.

"Mr. Goodlaw," continued the judge, addressing Mrs. Burnham's attorney, "will you look at the bond and see if it is satisfactory to you?"

Mr. Goodlaw took the bond, examined it, and returned it to the clerk. "I have no objection to make to it," he said.

"Then we will approve the bond, Mr. Sharpman, and make the appointment. You have named Simon Craft as guardian. We are wholly unacquainted with him. Have you consulted with the boy in this matter? What does he say?"

"I have brought the boy into court, so that, notwithstanding his legal inability to make choice for himself, your Honor might be satisfied as to his wish in the matter. This is the boy," as Ralph, obedient to the lawyer's summons, came into the bar and stood beside him. The judge scrutinized the lad closely, and the lawyers leaned forward in their chairs, or came nearer for the purpose of better observation. Ralph felt somewhat embarrassed, standing there to be stared at so, but the voice of the judge soon reassured him.

"Ralph," he said, "is this application for a guardian made according to your desire?"

"Yes, sir," replied the boy; "Mr. Sharpman says I ought to have one."

"And whom do you choose for your guardian?"

"Gran'pa Simon, sir."

Sharpman looked annoyed, and whispered something to Ralph.

"I mean Simon Craft," said the boy, correcting himself.

"Is Simon Craft your grandfather?" asked the judge, sternly.

"Oh, no! I guess not. He made me call 'im that. I never had no grandfather; but Mr. Sharpman says that Robert Burnham was my father—and—and he's dead."

The judge looked down at the lad somewhat uncertainly, then he said: "Well, Ralph, that will do; we'll make the appointment, but," turning to Sharpman, "we shall watch this matter closely. We shall see that justice is done to the child in any event."

"It is my earnest wish," responded Sharpman, "that your Honor shall do so. My only object in the matter is to see that this boy, whom I firmly believe to be Robert Burnham's son, is restored to his family and estates, and that this old man, who has saved the lad's life, and has spent and endured much for him through many years, is adequately rewarded in his old age."

The judge endorsed the papers and handed them to the clerk, and Sharpman walked up the aisle with Ralph to the door of the court-room.

"I have business," said the lawyer, "which will keep me here the rest of the day. Can you find your way back to the station?"

"Oh, yes!"

"Here is something to pay your fare with;" offering a piece of money to the boy.

"I've got enough," said Ralph, declining to accept it, "plenty; I'll get home all right."

"Well, the train will leave at noon. I'll send for you when we want you again. Good-by!"

"Good-by!"

Ralph went down the steps, out at the door, and across the court-house yard. He was not sure that he struck into the right street to go to the station, there were so many streets radiating from the court-house square. But it did not much matter; there was plenty of time before the train would start, and he thought he would like to walk about a little, and see something of the city. He felt like walking off, too, a feeling of dissatisfaction concerning what had just been done in court. It was too much in the nature of an adverse proceeding to seem quite right to him; he was fearful that, somehow, it would estrange his mother from him. He thought there ought to be some simpler way to restore him to his family, some way in which he and his mother could act jointly and in undoubted harmony. He hoped it would all come out right, though. He did not know what better he could do, at any rate, than to follow the advice of his lawyer; and, besides that, he had promised to obey him implicitly in this matter, and he must keep his promise. He had no thought that he was being used merely as an instrument in the hands of designing men.

It was with this vague feeling of unrest at his heart, and with his mind occupied by uneasy thought, that he walked leisurely down the street of this strange city, paying little attention to his course, or to what was going on around him.

Finally he thought it was time he should have reached the station, or at least made some attempt to find it; so he quickened his steps a little, and looked out ahead of him.

There was a man standing on the next corner, and Ralph stopped and asked him if he was on the right road to get to the station. The man laughed good-naturedly, and told him he was on the right road to get away from it, and advised him to retrace his steps for four blocks, then to go two blocks to the left, and there he would find a street running diagonally across the town, which, if he would follow it, would take him very near to the station. He would have to hurry, too, the man said, if he wanted to catch the noon train.

So Ralph turned back, counting the blocks as he went, turning at the right place, and coming, at last, to the street described. But, instead of one street running diagonally from this point there were two or three; and Ralph did not know which one to follow. He asked a boy, who was passing by with a basket on his shoulder, where the station was, and the boy, bending his neck and looking at him, said,—

"I guess this's the way you want to go, sonny," pointing down one of the streets, as he spoke, and then whistling a merry tune as he trudged on with his burden.

Ralph turned into the street designated, and hurried down it, block after block; but he did not reach the station, nor did he see any place that looked like it. He seemed to be in the suburbs, too, in a locality the surroundings of which impressed him unpleasantly. The buildings were small and dilapidated, there was a good deal of rubbish on the sidewalks and in the streets, a few ragged children were playing in the gutter near by, shivering with cold as they ran about in bare, dirty feet, and a drunken man, leaning against a post on the opposite corner, was talking affectionately to some



imaginary person in the vicinity. Ralph thought that this, certainly, was not where he ought to be. He walked more slowly, trying to find some one who would give him reliable directions.

At the corner of the block there was a house that looked somewhat better than its neighbors. It had a show-window projecting a few inches into the street, and in the window was a display of wine-bottles, and a very dirty placard announcing that oysters would be served to customers, in every style. On the ground-glass comprising the upper part of the door, the words "Sample Room" were elaborately lettered. Ralph heard some one talking inside, and, after a moment of hesitation, concluded to go in there and make his inquiry, as the need of finding his way had come to be very pressing. Coming in, as he did, from the street, the room was quite dark to his eyes, and he could not well make out, at first, who were in it. But he soon discovered a man standing, in his shirt-sleeves, behind a bar, and he went up to him and said:—

"Will you please tell me, sir, which is the nearest way to the railroad station?"

"Which station d'ye want to go to, bub?" inquired the man, leaning over the bar to look at him.

"The one you take the train for Scranton from."

"Which train for Scranton d'ye want to take?"

"The one't leaves at noon."

"Why that train goes in just five minutes. You couldn't catch that train now, my little cupid, if you should spread your wings and fly to the station."

It was not the bar-tender who spoke this time; it was a young man who had left his chair by the stove and had come up closer to get a better look at the boy. He was just slipping a silver watch back into his vest pocket. It was a black silk vest, dotted with little red figures. Below the vest, encasing the wearer's legs very tightly, were a pair of much soiled corduroy pantaloons that had once been of a lavender shade. Over the vest was a short, dark, double-breasted sack coat, now unbuttoned. A large gaudy, flowing cravat, and an ill-used silk hat, set well back on the wearer's head, completed this somewhat noticeable costume.

There was a good-natured looking face under the hat though, smooth and freckled; but the eyes were red and heavy, and the tip of the straight nose was of quite a vermilion hue.

"No, my dear boy," he continued,—

"You can't catch it,  
And I can't fetch it,

"so you may as well take it easy and wait for the next one."

"When does the next one go?" inquired Ralph, looking up at the strange young man, but with his eyes still unaccustomed to the darkness of the room.

"Four o'clock, my cherub; not till four o'clock. Going up on that train myself, and I'll see you right through:—

"Oh, sonny! if you'll wait and go with me,  
How happy and delighted I should be."

Then the young man did a strange thing; he took hold of Ralph's arm, led him to the window, turned his face to the light and scrutinized it closely.

"Well, I'll be kicked to death by grasshoppers!" he exclaimed, at last, "have I found—do I behold—is this indeed the long lost Ralph?"

The boy had broken away from him, and stood with frightened, wondering face, gazing steadily on the young man, as if trying to call something to memory. Then a light of recognition came into his eyes, and a smile to his lips.

"Why!" he exclaimed, "it's Joe; it's Rhymin' Joe!"

"A happy meeting," said the young man, "and a mutual remembrance. Heart speaks to heart.

"The hand of friendship, ever true,  
Brings you to me and me to you.

"Mr. Bummerton," turning to the bar-tender, "allow me to introduce my esteemed young friend, Mr. Ralph Craft, the worthy grandson of an old acquaintance."

Mr. Bummerton reached a burly hand over the bar and shook hands cordially with Ralph. "Glad to meet your young friend," he said.

"Well," continued Rhyming Joe, "isn't it strange how and under what circumstances old cronies sometimes meet? I cast my eyes on you and I said to myself, 'that young man has a familiar look to me.' I listened to your voice and I remarked to my inner consciousness, 'that voice lingers somewhere in the depths of of memory.' I turn your face to the light, and lo and behold! I reveal to my astonished gaze the features of my old friend, Ralph.

"No tongue can tell my great delight,  
At seeing you again to-night.

"Of course it isn't night yet, you know, but the pressing exigencies of rhyme often demand the elimination, as it were, of a small portion of time."

Ralph was glancing uneasily about the room. "Gran'pa Simon ain't anywheres around is he?" he asked, letting his eyes rest, with careful scrutiny, on a drunken man asleep in a chair in a dark corner.

"No, my boy," answered Joe, "he isn't. I haven't seen the dear old saint, for, lo, these many moons. Ah!—let me see! did you not leave the patriarch's sweet home circle, somewhat prematurely, eh?"

"Gave the good old man the slip  
Ere the cup could touch the lip?"

"Yes," said Ralph, "I did. I run away. He didn't use me right."

"No, he didn't, that's so. Come, be seated—tell me about it. Oh! you needn't fear. I'll not give it away. Your affectionate grandpa and I are not on speaking terms. The unpleasant bitterness of our estrangement is sapping the juices of my young life and dragging the roses from my cheeks.

"How sad when lack of faith doth part  
The tender from the toughened heart!"

Rhyming Joe had drawn two chairs near to the stove, and had playfully forced Ralph into one of them, while he, himself, took the other.

The bar-tender came out from behind his bar and approached the couple.

"Oh, by the way," he asked, "did ye have a ticket for your passage up, or was ye goin' to pay your fare?"

"Oh, no!" said Ralph, "I ain't got any ticket. Mr. Sharpman paid my fare down, but I was goin' to pay it back, myself."

The man stood, for a few minutes, listening to the reminiscences of their Philadelphia life which Ralph and Joe were recalling, then he interrupted again:—

"How'd ye like to have some dinner, me boy? Ain't ye gittin' a little hungry? it's after noon now."

"Well, I am a bit hungry," responded Ralph, "that's a fact. Do you get dinners here for people?"

"Oh, certainly! jest as good a dinner as ye'll git anywhere. Don't charge ye for nothing more'n ye actially eat, neither. Have some?"

"Well, yes," said the boy, "I guess so; I won't have no better chance to get any, 'fore I get home."

"I think," said Rhyming Joe, as the man shuffled away, "that my young friend would like a dish of soup, then a bit of tenderloin, and a little chicken-salad, and some quail on toast, with the vegetables and accessories. For dessert we will have some ices, a few chocolate eclairs and lady-fingers, and a cup of black coffee. You had better bring the iced champagne with the dinner, and don't forget the finger-bowls."

Before the last words were out of the speaker's mouth, the bar-tender had disappeared through a door behind the bar, with a wicked smile on his face.

It seemed a long time, to Ralph, before the man came back, but when he did come, he carried in his hands a tray, on which were bowls of oyster soup, very thin, a few crackers, and two little plates of dirty butter. He

placed them on a round table at one side of the room, and Ralph and Joe drew up their chairs and began to eat.

The man came again, a few minutes afterward, with bread, and pork, and cabbage, and coffee.

On the whole, it was much better than no dinner, and Ralph's hunger prevented him from being very critical. The warm food seemed to have the effect of making him more communicative, and he was allowing his companion to draw out from him, little by little, as they sat and ate, the whole story of his life since leaving Simon Craft. Rhyming Joe appeared to be deeply interested and very sympathetic.

"Well, you did have a hard time, my dear lad," he said, "out on the road with that circus company. I travelled with a circus company once, myself, in the capacity of special entertainer of country people and inspector of watches and jewelry, but it brings tears to my eyes now, to remember how ungratefully they treated me."

"That's jes' like they did me," said Ralph; "w'en I got sick up there at Scranton, they hadn't no funder use for me, an' they went away an' lef' me there alone."

"That was a sad plight to be in. How did you meet that emergency?"

"I didn't meet it at all. Bachelor Billy, he met it; he foun' me, an' cured me, an' I live with him now, an' work in the breaker."

"Ah, indeed! at work. *Laborarium est honorarium*, as the Latin poet has it. How often have I wished that it were possible for me to earn my bread by the sweat of my brow; but, alas!—"

"Ain't it?" interrupted Ralph.

"No, my dear boy, it isn't. I have been afflicted, from my youth up, with a chronic disease which the best physicians of both continents have pronounced imminently dangerous to both life and happiness, if physical exercise be immoderately indulged in."

"What is it?" asked Ralph, innocently.

"Indolentia, my dear boy, indolentia; a terrible affliction. But how about Grandpa Simon? Has he discovered your retreat?"

"Has the bald, bad eagle of the plain  
Swooped down upon his prey again?"

"Well, not hardly that," responded Ralph, "but he's foun' me."

"Indeed! And what is his state of mind concerning you now?"

"He ain't my grandfather," said the boy, abruptly.

"Ain't your grandfather! You startle me."

"No, he ain't no relation to me."

"You take my breath away! Who are you, then?"

"I'm Ralph Burnham. I'm Robert Burnham's son."

Ralph had not meant to disclose so much, in this place, to this fellow, but the words came out before he thought. It did not matter much anyway,—every one would soon know it.

"Robert Burnham's son? You don't mean the rich coal proprietor who died at his mine in Scranton last spring?"

"Yes, he's the one I mean. I'm his son."

Rhyming Joe leaned across the table, lifted up the boy's chin, and looked into his eyes. "My dear young friend," he said, "I fear you have fallen into evil ways since you passed out of the range of my beneficent influence. But you should not try to impose so glittering a romance on the verdant credulity of an old acquaintance at the first meeting in many weary years."

"To your faithful friend and true,  
Tell the truth, whate'er you do."

"Tis true!" asserted Ralph, stoutly. "Gran'pa Simon says so, an' Lawyer Sharpman says so, an' Mrs. Burnham, she—she—she almost believes it, too, I guess."

The bar-tender approached again and asked what else they would have.

"A little something to wash the dinner down with, Bummerton," said Joe, turning again quickly to Ralph.

"Then why don't you live in the Burnham mansion?" he asked, "and leave rude toil for others?"

"'Cause my mother ain't able to reco'nize me yet; she can't do it till the suit's ended. They's other heirs, you know."

"Suit! what suit? are you going to have a suit over it?"

The bar-tender brought a bottle, a pitcher of water, two glasses, and a bowl of sugar.

"Yes," replied the boy, sadly, "I s'pose we've got to. Gran'pa Simon, he's been 'pointed my garden. He ain't so bad a man as he used to be, Gran'pa



Simon ain't. He's been sick a good deal lately, I guess."

Rhyming Joe paid no attention to these last remarks, but he seemed to be deeply interested in the law-suit mentioned. He took time to pour some of the contents of the bottle into each glass, then he filled the glasses up with water and stirred a goodly quantity of sugar into the one he pushed toward Ralph.

"What is it?" asked the boy. "Uncle Billy an' me's temperance; we don't drink nothin' much but water."

"Oh!" responded Joe, "this is purely a temperance drink; it's made up from wheat, just the same as you get in your white bread. They have to drink it here in Wilkesbarre, the water is so bad.

"When man and water both are ill,  
A little wheat-juice fills the bill.

"Try some, you'll find it good."

Ralph was thirsty, and he sipped a little of the mixture; but he did not like it very well, and he drank no more of it.

"Who is going to carry on the suit for you?" continued Rhyming Joe; "have you got a lawyer?"

"Oh, yes! Lawyer Sharpman; he's very smart, too. He's goin' to manage it."

"And when will the trial come off? Perhaps I may be of some assistance to you and to my quondam friend, your sometime grandfather. I would drop all bitterness of feeling, all vain enmity, if I might do the revered patriarch a favor.

"My motto has been, and my motto is yet,  
That it frequently pays to forgive and forget."

"Oh! I don't know," Ralph replied; "it'll be two or three months yet, anyway, I guess."

Rhyming Joe gazed thoughtfully at the stove.

Bummerton came and began to take away the dishes.

"What's your bill, landlord?" inquired Joe.

"D'ye want the bill for both of ye?"

"Certainly. My young friend here, if I remember rightly, invited me to dine with him. I am his guest, and he foots the bills. See?"

Ralph did not remember to have asked Rhyming Joe to dine with him, but he did not want to appear mean, so he said:—

"Yes, I'll foot the bill; how much is it?" taking out his little leather wallet as he spoke.

"It'll be three dollars," said Bummerton; "a dollar an' a quarter apiece for the dinner, an' a quarter apiece for the drinks."

Ralph looked up in amazement. He had never before heard of a dinner being worth so much money.

"Oh! it's all right," said Joe. "This is rather a high-priced hotel; but they get up everything in first-class style, do you see?"

"If in style you drink and eat,  
Lofty bills you'll have to meet."

"But I ain't got that much money," said Ralph, unstrapping his wallet.

"How much have ye got?" inquired the bar-tender.

"I've only got a dollar'n eighty-two cents."

"Well, you see, sonny," said Bummerton, "that ain't more'n half enough. Ye shouldn't order such a fancy dinner 'nless ye've got money to pay for it."

"But I didn't know it was goin' to cost so much," protested Ralph. "Uncle Billy an' me got jest as good a dinner last Fourth o' July at a place in Scranton, an' it didn't cost both of us but seventy cents. Besides, I don't b'lieve—"

"Look here, Bummerton!" said Joe, rising and leading the bar-tender aside. They whispered together for a few moments and then returned.

"It's all right," said Joe. "You're to pay him what money you have, and he's to charge the remainder on my bill. I'll stand the rest of it for you."

"I'll be that precious 'friend in need,'  
Who proves himself a friend indeed."

"Then," said Ralph, "I won't have any money left to pay my fare back home."

"Oh, I'll see to that!" exclaimed Joe. "I invited you to ride up with me, didn't I? and of course I'll pay your fare; *das versteckt sich*; that goes without saying."

"I'll never desert you, oh, never! he spake,  
We'll stand by each other, asleep or awake."

It was not without much misgiving that Ralph gave the dollar and eighty-two cents to the bar-tender, and returned the empty wallet to his pocket. But Rhyming Joe soon engaged him again in conversation. The young man seemed to be deeply interested in the movement to restore the boy to his family rights and possessions. He asked many questions about it, about Craft, about Sharpman, about Ralph's knowledge of himself; the whole ground, indeed, was gone over carefully from the beginning to the present; even the probabilities of the future were fully discussed.

In the meantime, the liquor in the bottle was steadily diminishing in quantity, as a result of Rhyming Joe's constant attention to it, and Ralph thought he began to detect evidences of intoxication in the speech and conduct of his friend. His nose appeared to be getting redder, his eyelids were drooping, he was sinking lower into his chair, his utterance was growing thick, and his voice had a sleepy tone.

Ralph, too, felt sleepy. The excitement and exercise of the morning, the hearty dinner, the warm, close room, and the fumes of alcohol in the atmosphere, were all having their effect on his senses. He saw, dimly, that Joe's chin was resting on his breast and that his eyes were closed; he heard him mutter in a voice that seemed to come from some distant room:—

"Of all 'e bowls I s-s-smell or see,  
The wassail bowl's 'e bowl f-f-for me,"

and the next moment both man and boy were fast asleep.

## CHAPTER VIII.

### A FRIEND IN NEED.

When Ralph awoke, it was quite dark in the room. He was still sitting at the round table, but Rhyming Joe had disappeared from the other side of it. He looked around the room, and saw that an oil-lamp was burning behind the bar, and that two or three rough-looking men stood there with the bar-tender, talking and drinking. But the young man who had dined with him was nowhere to be seen. Ralph arose, and went over to the bar.

"Can you tell me where Joe is, please?" he asked of the bar-tender.

"Joe? Oh, he went out a half-an-hour ago. I don't know where he went, sonny." And the man went on filling the glasses, and talking to the other men. Ralph stood for a moment, in deep thought, then he asked:—

"Did Joe say when he would be back?"

The bar-tender paid no attention to him, and, after a few moments, the boy repeated the question.

"Mr. Bummerton, did Joe say when he would be back?"

"No, he didn't," responded the man, in a surly tone; "I don't know nothing about him."

Ralph went back, and stood by the stove to consider the matter. He thought it was very strange. He could hardly believe that Rhyming Toe had intended to desert him in this way. He preferred to think that the fellow had become helpless, and that Bummerton had dragged him into some other room. He knew that Joe used to get that way, years before, in Philadelphia. He had seen much of him during the wretched period of his life with Simon Craft. Joe and the old man were together a great deal during that time. They were engaged jointly in an occupation which was not strictly within the limit of the law, and which, therefore, required mutual confidence. The young fellow had, apparently, taken a great liking to Ralph, had made much of him in a jovial way, and, indeed, in several instances, had successfully defended him against the results of Old Simon's wrath. The child had come to regard him as a friend, and had not been displeased to meet him, after all these years, in this unexpected manner. He had had a general idea that the young man's character was not good, and that his life was not moral, but he had not expected to be badly treated by him. Now, however, he felt compelled to believe that Joe had abused the privileges of friendship. The more he thought of it, the more sure he became that he had been deceived and deserted. He was alone in a strange city, without money or friends. What was to be done?

Perhaps the bar-tender, understanding the difficulty, would help him out of it. He resolved to apply to him.

"Mr. Bummerton," he said, approaching the bar again, "now't Joe's gone, an' I ain't got no money, I don't see how I'm goin' to git home. Could—could you lend me enough to pay my fare up? I'll send it back to you right away. I will,—honest!"

The man pushed both his hands into the pockets of his pantaloons, and stood for a minute staring at the boy, in feigned astonishment.

"Why, my little innocent!" he exclaimed, "what do ye take me for; a reg'lar home for the friendless? No, I ain't in the charitable business jist now. By the way, did ye know that the law don't allow hotel-keepers to let boys stay in the bar-room? Fust thing I know they'll be a constable a-swoopin' down on me here with a warrant. Don't ye think ye'd better excuse yourself? That's the door over yonder, young feller."

Ralph turned, without a word, went to the door, opened it, and stepped into the street. It was very dark outside, and a cold wind was blowing up. He stood, for a few minutes, on the corner, shivering, and wondering which way to go. He felt very wretched indeed; not so much because he was penniless and lost, as because he had been deceived, abused, and mocked. He saw through the whole scheme now, and wondered how he had fallen so easily into it.

On a distant corner there was a street-lamp, burning dimly, and, without much thought of where he was going, the boy started toward it.

There were other drinking-saloons along the street, and he could hear loud talking and quarrelling in them as he passed by. A man came out from one of them and hailed him gruffly. It frightened him, and he started to run. The man followed him for a little way, shouting savagely, and then turned back; but Ralph ran on. He stumbled, finally, on the uneven pavement, and fell headlong, bruising his side and hurting his wrist. His cap had rolled off, and it took him a long time to find it. Then he crossed the street to avoid a party of drunken revellers, and limped along until he came to the lamp that he had seen from the distance. Down another street there were a number of lights, and it looked more inviting; so he turned in that way. After he had gone two or three blocks in this direction, avoiding carefully the few persons whom he met, he turned again. The streets were growing lighter and wider now, and there were more people on them, and that was

something to be thankful for. Finally he reached a busy, well-lighted thoroughfare, and turned into it, with a sigh of relief. He had not walked very far along it before he saw, over to the right, surrounded by lights, a long, low building, in the middle of an open square. It occurred to him, suddenly, that this was the railroad station, and he hurried toward it. When he reached the door he remembered that he was without money, but he thought he would go in at any rate. He was very tired, and he knew of no better place in which to stop and rest. So he went into the waiting-room, and sat down on a bench, and looked around him.

There were not many people there, but they began to come very soon, and kept coming until the room was nearly full. Finally, there was a puffing of a locomotive out on the track, and a ringing of an engine bell, and the door-keeper called out:—

"All aboard for Pittston, Scranton, and Carbondale!"

The people crowded toward the door, and just then a carriage drove up to the other side of the station, and a gentleman and a lady and a little girl came into the waiting-room from the street entrance. The lady was in deep mourning; but, as she threw aside her veil for a moment, Ralph recognized her as Mrs. Burnham, and the little girl as her child. His heart gave a great throb, and he started to his feet.

The gentleman was saying: "I trust you will reach home safely and comfortably."

And Mrs. Burnham replied: "Oh, there is no doubt of it, Mr. Goodlaw! I have telegraphed to James to meet us at the station; we shall be there before nine o'clock."



"I will see that you are comfortably settled," he said, as they crossed the room toward the waiting train.

For a moment Ralph stood, wondering and uncertain. Then there came into his mind a sudden resolution to speak to them, to tell them who he was, and why and how he was here, and ask them to help him. He started forward, but they were already passing out at the door. He pushed hurriedly by several people in his effort to overtake them, but the man who stood there punching tickets stopped him.

"Where's your ticket, sonny?" he asked.

"I ain't got any," replied Ralph.

"Then you can't get out here."

"But I want to find Mrs. Burnham."

"Who's Mrs. Burnham?"

"The lady't just went out."

"Has she got a ticket for you?"

"No, but she'd give me money to get one—I think."

"Well, I can't help that; you can't go out. Come, stand aside! you're blocking up the way."

The people, crowding by, pushed Ralph back, and he went and sat down on the bench again.

The bell rang, the conductor shouted "All aboard!" and the train moved off.

Ralph's eyes were full of tears, and his heart was very heavy. It was not so much because he was friendless and without money that he grieved, but because his mother,—his own mother,—had passed him by in his distress and had not helped him. She had been so close to him that he could almost have put out his hand and touched her dress, and yet she had swept by, in her haste, oblivious of his presence. He knew, of course, that, if he had spoken to her, or if she had seen and known him, she would gladly have befriended him. But it was not her assistance that he wanted so much as it was her love. It was the absence of that sympathy, that devotion, that watchful care over every step he might take, that motherly instinct that ought to have felt his presence though her eyes had been blinded; it was the absence of all this that filled his heart with heaviness.

But he did not linger long in despair; he dashed the tears from his eyes, and began to consider what he should do. He thought it probable that there would be a later train; and it was barely possible that some one whom he knew might be going up on it. It occurred to him that Sharpman had said he would be busy in Wilkesbarre all day. Perhaps he had not gone home yet; if not, he might go on the next train, if there was one. It was worth while to inquire, at any rate.

"Yes," said the door-keeper, in answer to Ralph's question, "there'll be another train going up at eleven thirty-five."

"Do you know Mr. Sharpman?" asked the boy, timidly.

"Mr. who?"

"Mr. Sharpman, the lawyer from Scranton."

"No, I don't know him,—why?"

"Oh, I didn't know but you might know w'ether he'd gone home or not; but, of course, if you don't know 'im you couldn't tell."

"No, I don't know anything about him," said the man, stretching himself on the bench for a nap.

Ralph thought he would wait. Indeed, there was nothing better for him to do. It was warm here, and he had a seat, and he knew of no other place in the city where he could be so comfortable. The clock on the wall informed him that it was eight in the evening. He began to feel hungry. He could see, through a half-opened door, the tempting array of food on the lunch-counter in another room; but he knew that he could get none, and he tried not to think of eating. It was very quiet now in the waiting-room, and it was not very long before Ralph fell to dozing and dreaming. He dreamed that he was somewhere in deep distress, and that his mother came, looking for him, but unable to see him; that she passed so close to him he put out his hand and touched her; that he tried to speak to her and could not, and so, unaware of his presence, she went on, leaving him alone in his misery.

The noise of persons coming into the room awoke him, finally, and he sat up and rubbed his eyes and looked around him. He saw, by the clock on the wall, that it was nearly train time. The escaping steam from the waiting engine could already be heard outside. People were buying tickets and making their way hurriedly to the platform; but, among all those who came in and went out, Ralph could not discover the familiar face and figure of Sharpman, nor, indeed, could he see any one whom he knew.

After the passengers had all gone out, the door-keeper called Ralph to him.

"Find your man?" he asked.

"Do you mean Mr. Sharpman?"

"Yes."

"No, he didn't come in. I guess he went home before."

The door-keeper paused and looked thoughtful. Finally he said:—

"You want to go to Scranton?"

"Yes, that's where I live."

"Well, I'll tell you what you do. You git onto that train, and when Jim Coleman—he's the conductor—when he comes around to punch your ticket, you tell him I said you were to be passed. Now you'll have to hurry; run!"

The kind-hearted door-keeper saw Ralph leap on to the train as it moved slowly out, and then he turned back into the waiting-room. "Might as well give the lad a lift," he said to a man who stood by, smiling; "he looked awful solemn when the last train before went and left him. Jim won't put him off till he gits to Pittston, anyway."

Ralph found a vacant seat in the car and dropped into it, breathless and excited. His good luck had come to him all in a moment so, that it had quite upset him.

He did not just understand why the door-keeper's word should be good for his passage, but the conductor would know, and doubtless it was all right.

The train went rumbling on through the darkness; the lamps, hanging from the ceiling, swayed back and forth; the people in the car were very

quiet,—some of them, indeed, were already asleep.

By and by, the conductor came in, a slender, young-looking man, with a good-natured face. He greeted several of the passengers pleasantly, and came down the aisle, punching tickets to the right and left, till he reached the seat where Ralph was.

"Ticket?" he asked.

"I ain't got any," said the boy.

"What's the reason?"

"W'y, I lost all my money, an' I couldn't buy one, an' I couldn't see nobody't I knew, an' the man't tended door, he said tell you to pass me up."

The conductor smiled, as he recognized a familiar scheme of the kind-hearted door-keeper, but he said, trying to speak sternly:—

"The man had no right to tell you that. Our rules are very strict. No one can ride without a ticket or a pass. Where do you want to go?"

"To Scranton; I live there," said Ralph, his voice faltering with apprehension.

"Well, I suppose I ought to stop the train and put you off."

Ralph looked out through the car window, at the blackness outside, and his face took on a look of fear.

"I'm very sorry," he said, "I'm awful sorry. I wouldn't 'a' got on if I'd 'a' known it. Do you think you've *got* to put me off—right away?"

The conductor looked out through the window, too.

"Well," he said, "it's pretty dark, and I hate to stop the train between stations. I guess I'll have to let you ride to Pittston, anyway. You'll get out there, won't you? it's the first stop."

"Oh, yes! I'll get out there," said Ralph, much relieved, settling back into his seat as the conductor left.

The train dashed on through the night, rumbling, rocking, waking the echoes now and then with its screaming whistle, and finally it pulled into the station at Pittston.

True to his bargain, Ralph stepped from the train. Two or three other people left it at the same time and hurried away up the street; then the puffing engine pulled the cars out again into the darkness.

The boy stood, for a moment or two, wondering what he should do now. The chill night air made him shiver, and he turned toward the waiting-room. But the lights were already out there, and the station-master had locked himself into his office. Off to the left he saw the street lamps of West Pittston, dotting the blackness here and there like dim, round stars; and between them and him the dark water of the river reflected the few lights that shone on it. Finally, Ralph walked down the length of the platform and turned up the street at the end of it.

In a minute or two he had reached Main Street, and stood looking up and down it, trying to decide which way to go. On the other side, and a little to the right, he saw a man standing on the corner, under a street lamp, and looking at him.

He was an honest-looking man, Ralph thought; may be he would tell him what to do. He crossed over and went down to where the man stood.

"Please, mister," he said, "I'd like to find a place to stay all night."

The man looked down on him wonderingly, but not unkindly.

"Is it a hotel ye're after?" he asked.

"Well, not hardly. I ain't got any money. I only want a place to stay where I won't be in the dark an' cold alone all night."

"Do ye belong in Pittston, I don' no'?"

"No, I live in Scranton."

"Sure, the train jist wint for there. Why didn't ye go with it?"

"Well, you see, I didn't have any ticket, an' the conductor, he told me to—to—he asked me if I wouldn't jest as lieve git off here."

The man gave a low whistle.

"Come along with me," he said, "it's little I can do for yez, but it's better nor the strate." He led the way up the pavement of the side street a few steps, unlocked a door and entered a building, and Ralph followed him.

They seemed to be in a sort of retiring room for the use of the adjoining offices. A gas light was burning dimly. There was a table in the room, and there were some chairs. Some engineering tools stood in one corner, some mining tools in another; caps were hanging on the wall, and odds and ends of many kinds were scattered about.

The man took down a heavy overcoat, and spread it on the table.

"There," he said, "ye can slape on that."

"That'll be very nice," said Ralph; "it'll be a sight better'n stayin' out in the street all night."

"Right ye are, me lad! Compose yoursilf now. Good-night, an' swate drames to yez! I'm the watchman; I'll be out an' in; it's nothing here that'll hurt ye, sure; good-night!" and the man went out, and locked the door after him.

It was warm in the room, and very comfortable, and it was not long after the boy laid down on the improvised bed before he was sound asleep. He did not wake until the day began to dawn, and the watchman came in and shook him; and it was some moments after he was roused before he could make out just where he was. But he remembered the situation, finally, and jumped down on to the floor.

"I've had a good sleep," he said. "I'm a great deal obliged to you."

"Don't shpake of it, lad," said the man; "don't shpake of it. Will ye wash up a bit?"

"Yes, I would like to," replied Ralph, "very much."

He was shown the way to the basin and water, and after a few moments he came back fresh and clean.

"Ye wouldn't like a bit to ate now, would ye?" asked the watchman, who had been busying himself about the room.

"Oh, I can get along very well without it," replied the boy; "you've done enough for me."

"Whin did ye ate last?"



"Well, it must 'a' been some after noon yestaday."

The man went to a closet and took down a dinner-pail.

"I've a bit left o' me last-night's dinner," said he; "an' av ye're the laste bit hungry ye'll not be makin' me carry it home with me." He had spread a newspaper on the table, and had laid out the pieces of food upon it.

"Oh, I am hungry!" responded Ralph, looking eagerly over the tempting array. "I'm very hungry; but you've been too good to me already, an' you don't know me, either."

The man turned his face toward the door, and stood for a minute without speaking. Then he said, huskily:—

"Ate it lad, ate it. Bless your sowl, there's a plinty more where that come from."

The boy needed no further urging. He ate the food with great relish, while the watchman stood by and looked on approvingly. When the meal was finished, Ralph said:—

"Now, I'll be a-goin'. I can't never thank you enough. Maybe I can do sumpthin' for you, some time, but—"

"Howld your tongue, now! Didn't I tell ye not to shpake of it?"

The boy opened the door and looked out upon the dawning day.

"Ain't it nice!" he said. "I can git along splendid in the daylight. I ain't afraid, but it's awful lonesome in the dark, 'specially when you're away from home this way."

"An' where do ye be goin' now?" inquired the watchman.

"Home; to Scranton. I can walk there, so long as it's daylight. Oh! I can git along beautiful now. Which is the bes' way to go?"

The man looked down at him wonderingly for a moment. "Well, ye do bate the—the—the prisidint!" he said, going with him to the corner of the street. "Now, thin, go up the strate straight,—I mean straight up the strate,—turn nayther to the right nor the left, an' whin the strate inds, follow the road up the river, an' be it soon or late ye'll come to Scranton."

"Thank you! Good-by. I'll al'ays remember you."

"Good-by, me lad! an' the saints attind ye!"

They shook hands cordially, and Ralph started up the street on his long journey toward home, while the watchman turned back to his duties, with his heart full of kindness and his eyes full of tears. But he never, never forgot the homeless lad whom he fed and sheltered that autumn night.

## CHAPTER IX.

### A FRIEND INDEED.

It had been understood, when Ralph went to Wilkesbarre that morning, that he should return in the afternoon. Bachelor Billy was very much surprised, therefore, when he returned from his work, not to find the boy waiting for him. Indeed, he had more than half expected that Ralph would come up to the breaker to walk home with him, or would, at least, meet him on the way. The Widow Maloney had not seen him, she said; and when supper was ready she sent her little girl down the road to look for him, and to tell him to hurry home.

Before they had finished eating, the child came back, saying that she could not find him. They were not worried about him, though; they thought he had been delayed at court, and would come in on one of the later trains. So, after supper, Billy lighted his pipe and walked down toward the city, hoping to meet the lad. He went on until he reached the railroad station. They told him there that the next train would be in from Wilkesbarre in about an hour. He concluded to wait for it, so he sat on one of the benches, and watched the people coming and going, and smoked his clay-pipe in comparative comfort. The train came at last, and the passengers from it crowded through the hall-way, and out into the street. But among them all Bachelor Billy could not discover Ralph. He saw Mrs. Burnham coming

from the cars, though, and it occurred to him that possibly she might know something about the boy. She had doubtless come from Wilkesbarre; indeed it was not unlikely that she had been in court. He did not hesitate to inquire of her; she knew him very well, and always had a kind word for him when she came to see Ralph.

He took off his cap and approached her. "Beggin' your pardon, Mistress Burnham," he said, "but ha' ye seen aught o' Ralph?"

The lady stopped in surprise, but in a moment she recognized the man, and, throwing aside her veil, she replied: "Oh, Billy, is that you? Ralph, did you say? I have not seen him. Why?"

"He went to Wilkesbarre the day, ma'am, an' he s'ould 'a' comit hame sooner, an' I thocht mayhap ye might 'a' rin across the lad, d'ye see. Pardon me for a-stoppin' o' ye."

The lady still stood, holding her child by the hand.

"Did he go alone?" she asked.

"No, he went doon wi' Muster Sharpman."

"And has Mr. Sharpman returned?"

"I did na thenk to ask; that was fulish in me,—I s'ould 'a' gone there first."

"I think Mr. Sharpman will look after him. I do not think you need to worry; perhaps it was necessary for them to remain overnight. But, if Ralph does not come in the morning, you must let me know, and I shall assist you in searching for him."

"Thank ye, Mistress Burnham, thank ye, kindly! I canna feel greatly concernit ower the lad, sin' he's verra gude at carin' for himsel'. But, gin he does na come i' the mornin', I s'all mak' search for 'im. Here's James awaitin' for ye"; going ahead, as he spoke, to stand by the fretting horses while James held open the carriage door.

"Good-night, Billy!" came from inside the coach as it rolled away; and "Good-night, Billy!" echoed the sweet voice of the child.

"Good-nicht to both o' ye!" he shouted, standing to watch them until the carriage disappeared into the darkness.

"She's verra kin'," he said to himself, as he walked up the street toward home, "verra kin', but it's no' sic a care as the lad's ane mither s'ould ha' ower 'im, an' he awa' fra hame i' the darkness o' the nicht so. But she dinna ken, she dinna ken as he be her son. Coom a day when that's plain to her, an' she'd spare naught to save 'im fra the ghost o' danger."

When Bachelor Billy reached home, Mrs. Maloney was at the door to ask about Ralph. The man told her what Mrs. Burnham had said, and expressed an earnest hope that the boy would come safely back in the morning. Then' he went to his room, started a fire in the grate, and sat down, by it to smoke.

It was already past his customary bed-time, but he could not quite make up his mind to go to bed without Ralph. It seemed a very lonely and awkward thing for him to do. They had gone to bed together every night for nearly three years, and it is not easy to break in upon such a habit as that.

So Billy sat by the fire and smoked his pipe and thought about the boy. He was thoroughly convinced that the child was Robert Burnham's son, and all of his hopes and plans and ambitions, during these days, were centred in the effort to have Ralph restored his family, and to his rights as a member of

that family. It would be such a fine thing for the boy, he thought. In the first place, he could have an education. Bachelor Billy revered an education. To him, it was almost a personality. He held that, with an education, a man could do anything short of performing miracles; that all possibilities of goodness or greatness that the world holds were open to him. The very first thing he would choose for Ralph would be an education. Then the child would have wealth; that, too, would be a great thing for him and, through him, for society. The poor would be fed, and the homeless would be sheltered. He was so sure of the boy's honest heart and moral firmness that he knew wealth would be a blessing to him and not a curse.

And a beautiful home! Once he had been in Robert Burnham's house; and, for days thereafter, its richness and beauty and its homelike air had haunted him wherever he went. Yes, the boy would have a beautiful home. He looked around on the bare walls and scanty furniture of his own poor dwelling-place as if comparing them with the comforts and luxuries of the Burnham mansion. The contrast was a sharp one, the change would be great. But Ralph was so delicate in taste and fancy, so high-minded, so pure-souled, that nothing would be too beautiful for him, no luxury would seem strange, no life would be so exalted that he could not hold himself at its level. The home that had haunted Bachelor Billy's fancy was the home for Ralph, and there he should dwell. But then—and the thought came suddenly and for the first time into the man's mind—when the boy went there to live, he, Billy, would be alone, *alone*. He would have no one to chatter brightly to him at the dawn of day, no one to walk with him to their daily tasks at Burnham Breaker, to eat from the same pail with him the dinner that had been prepared for both, to come home with him at night, and fill the bare room in which they lived with light and cheer enough to flood a palace. Instead of that, every day would be like this day had been, every night would be as dull and lonely as the night now passing.

How could he ever endure them?

He was staring intently into the fire, clutching his pipe in his hand, and spilling from it the tobacco he had forgotten to smoke.

The lad would have a mother, too,—a kind, good, beautiful mother to love him, to caress him, to do a million more things for him than his Uncle Billy had ever done or ever could do. And the boy would love his mother, he would love her very tenderly; he ought to; it was right that he should; but in the beauty and sweetness of such a life as that would Ralph remember him? How could he hope it? Yet, how could he bear to be forgotten by the child? How could he ever bear it?

In his intensity of thought the man had risen to his feet, grasping his clay pipe so closely that it broke and fell in fragments to the hearth.

He looked around again on the bare walls of his home, down on his own bent form, on his patched, soiled clothing and his clumsy shoes, then he sank back into his chair, covered his face with his hands, and gave way to tears. He had lived in this world too long not to know that prosperity breeds forgetfulness, and he felt already in his heart a foretaste of the bitterness that should overwhelm him when this boy, whom he loved as his own child, should leave him alone, forgotten.

But after a time he looked up again. Pleasanter thoughts were in his mind. They were thoughts of the days and nights that he and the boy had spent together, from the time when he had found him, sick, helpless, and alone, on the dusty highway, in the heat of the midsummer sun, to these days that were now passing, with their strange revelations, their bright hopes, their shadowy fears.

But in all his thought there was no touch of disappointment, no trace of regret. It was worth it all, he told himself,—worth all the care he had given to the boy, all the money he had spent to restore him to health, worth all he had ever done or ever could do for him, just to have had the lad with him for a year, a month, a week: why it was worth it all and more, yes, vastly more, just to have felt the small hand laid once on his arm, to have seen the loving eyes look up once into his, and to have heard the clear voice say, "Dear Uncle Billy" in the confiding way he knew so well.

It was nearly midnight when Bachelor Billy went to bed, and long after that hour before he fell asleep.

He awoke several times during the night with a sense of loneliness and desolation pressing down upon him, and he arose early to prepare for his day's work. It was arranged at the breakfast-table that Mrs. Maloney's oldest girl should go down to Lawyer Sharpman's office to inquire about Ralph, and Billy was to come home at noon, contrary to his custom, to hear her report.

Daylight is a great promoter of natural cheer, and the man went away to his work with a strong hope in his heart of Ralph's speedy return; and when the long morning had passed and he hurried back to his home, he half expected that the boy would meet him on the way. But he was disappointed; even Mrs. Maloney's girl had no news for him. She had been to Sharpman's office twice, she said, and had not found him in, though the clerk had told her that Mr. Sharpman had returned from Wilkesbarre the day before.

Billy decided then that it was time to make active search for the boy, and when he had finished a hurried dinner, he put on his best clothes and started for the city. He thought it would be wise for him to go first to Sharpman's office and learn what he could there. The lawyer had not yet returned from lunch, but the clerk said he would positively be in at half-past one, so Billy



took the proffered chair, and waited. Sharpman came promptly at the time, greeted his visitor cordially, and took him into his private office.

"Well, my friend; what can I do for you?" he asked.

"I cam' to see about Ralph, sir; Ralph as lives wi' me."

"Oh! are you Buckley? William Buckley?"

"I am, sir. I want to know when saw ye the lad last?"

"Why, about eleven o'clock yesterday. He came up on the noon train, didn't he?"

"I ha' no' seen 'im."

"Haven't seen him!" exclaimed Sharpman, in a voice expressive of much alarm. "Haven't seen him since when, man?"

"Not sin' yester-mornin', when I said 'good-by' till the lad, an' went t' the breaker. I got scared about 'im, an' cam' to look 'im oop."

Bachelor Billy had become infected with Sharpman's alarm.

"Well, we *must* look him up," said the lawyer, putting on his hat, which he had just laid aside, and taking up a light overcoat. "Come, we'll go down to the station and see if we can learn anything of him there."

Sharpman was really very anxious about the boy; it would interfere sadly with his scheme to have Ralph disappear again, now. The two men went out from the door together and down the street at a rapid pace. But they had not taken two steps around the corner into Lackawanna Avenue, when they came face to face with the missing boy. He was a sorry sight, limping slowly along, covered with dust, exhausted from his journey. He was no

less surprised to meet Bachelor Billy and the lawyer, than they were to meet him, and all three stood speechless, for a moment, with astonishment.

"Why, Ralph!" exclaimed Billy, "Ralph, lad, whaur ye been?"

But Ralph did not know what to say. An overwhelming sense of shame at his unfortunate adventure and at his wretched condition had come suddenly to him, and the lawyer's sharp eyes, fixed steadily upon him, increased his embarrassment not a little.

"Why don' ye speak, lad? Tell Uncle Billy what's happenit to ye; coom noo!" and the man took the child's hands affectionately into his.

Then Ralph spoke. From a full heart, poor lad, he made his confession.

"Well, Uncle Billy, I got lost in Wilkesbarre; I wasn't used to it, an' I went into a saloon there, an' they got all my money, an' I got onto the train 'ithout a ticket, an' the conductor put me off, an' I had to walk the rest o' the way home; an' I'm pirty tired, an' dirty, an' 'shamed."

Sharpman laughed aloud.

"Ah! that's Wilkesbarre charity," he said; "you were a stranger, and they took you in. But come, let's go back to my office and talk it over."

Secluded in the lawyer's private room Ralph told the whole story of his adventures from the time he left Sharpman at the court-house door.

When he had finished, Bachelor Billy said, "Puir lad!" then, turning to Sharpman, "it was no' his fau't, thenk ye?"

"Oh, no!" said the lawyer, smiling, "any one might have met with the same fate: dreadful town, Wilkesbarre is, dreadful! Have you had any

dinner, Ralph?"

"No, sir," said Ralph, "I haven't."

"Well, come into my wash-room and brighten yourself up a little. You're somewhat travel-stained, as it were."

In ten minutes Ralph reappeared, looking clean and comparatively fresh.

"Now," said Sharpman, "you don't resemble quite so strongly the man who went down from Jerusalem to Jericho. Here, take this," reaching out some money, "and go down to the restaurant on the corner and surprise yourself with the best dinner you can buy. Oh, you can pay it back," as the boy hesitated about accepting the money; "we'll call it a loan if you like. Come, you agreed to obey my instructions, you know. Buckley will wait here for you till you get back. Now, don't hurry!" he said, as Ralph passed out at the door, "there's plenty of time."

For some minutes after the boy's departure, Sharpman and Bachelor Billy sat talking over Ralph's recent adventure. Then the conversation turned to the prospect for the future, and they agreed that it was very bright. Finally, the lawyer said:—

"He was pretty sick when you first found him, wasn't he?"

"He was that, verra bad indeed."

"Called a doctor for him, didn't you?"

"Oh, yes! Dr. Gunther. He comed every day for a for'night, an' often he comed twice i' the same day. He was awfu' sick, the chil' was."

"Footed the doctor's bill, I suppose, didn't you?"

"Oh, yes, yes; but I did na min' that so long's the lad got well."

"Had to pay the woman to nurse him and look after him, I take it?"

"Oh! well, yes; but she needit the money, mon, an' the lad he needit the noorsin', an' it was doin' a bit double good wi' ma siller, do ye see?"

"Well, you've housed and clothed and fed the boy for a matter of three years or thereabouts, haven't you?"

"Why, the lad's lived wi' me; he had a right to't. He's the same as my own son'd be, min' ye."

"You collect his wages, I presume?"

"Oh, now! what'd I be doin' wi' the wee bit money that a baby like him'd earn? He's a-savin' o' it. It ain't much, but mayhap it'll buy a bit o' schoolin' for the lad some day. Ye s'ould see the braw way he'll read an' write now, sir."

Sharpman sat for some time as if in deep thought. Finally, he said:—

"Look here, Buckley! You're a poor man; you can't afford to throw away what little money you earn, nor to let an opportunity slip for turning an honest penny. You have done a good deal for the boy; I don't see why you shouldn't be rewarded."

"I've had ma reward, sir, i' the blessin' o' the lad's company."

"Yes, that's all very true, but a man must not rob himself; it's not right. You are getting along in years; you should have a little something to lay by for old age. We are sure to establish Ralph's identity, and to recover his interest in his father's estate. I know that the boy would be delighted to have

you paid out of the funds that would come into our hands, and I am very certain that Mrs. Burnham would be proud to have your services acknowledged in that way. The basis of compensation would not be so much the time, labor, and money actually expended by you, as it would be the value of the property rescued and cared for. That would figure into a very nice sum. I think you had better let me manage it, and secure for you something to lay by for a rainy day, or for old age that is sure to fall on you. What do you say?"

But Bachelor Billy had risen to his feet, excited, and in earnest.

"I'm a poor mon, Muster Sharpman," he said, "an' money's worth a deal to me, but I could na tak' it for a-doin' what I ha' for Ralph."

"Why, I am sure your services have been of infinite value, both to the boy and to his mother."

"Mayhap! mayhap! that's no' for me to say. But I canna do it. I could na look ony mon i' the eye wi' a cent o' the lad's money i' ma purse. It'd seem as though I'd been a-doin' for 'im a' these years wi' a purpose to get it back in siller some day, an' I never did; I never thocht o' it, sir. The chil's been as free an' welcome as the sunshine wi' me. The bit money I ha' spent, the bit care I ha' had wi' 'im, why that was paid back wi' dooble interest the first week he could sit oop i' the bed an' talk. It's a blessin' to hear the lad talk to ye. Na, na! do what ye can for Ralph. Spare naught to get his rightfu' dues; but me, there's not a penny comin' to me. I've had ma pay, an' that lang sin', lang sin', do ye mind."

The lawyer waved his hand, as much as to say: "Very well, you're a fool, but it's not my fault. I have placed the opportunity within your reach; if you do not choose to grasp it, you're the loser, not I." But Sharpman felt that he was the loser, nevertheless.

He knew that his shrewd scheme to use this honest man as a tool for the furtherance of his own ends had fallen through, and that the modest sum which he had expected to gain for himself in this way would never be his.

He was not quite so cordial when Ralph returned from his dinner; and, after a few words of admonition to the boy, he dismissed the pair, and set himself diligently to the task of preparing a new scheme to take the place of the one that had just vanished.

## CHAPTER X.

### AT THE BAR OF THE COURT.

When Ralph went to his work at the breaker on the morning after his return from Wilkesbarre, he was met with curious glances from the men, and wondering looks and abrupt questions from the boys. It had become generally known that he claimed to be Robert Burnham's son, and that he was about to institute proceedings, through his guardian, to recover possession of his share of the estate. There was but little opportunity to interrogate him through the morning hours: the flow of coal through the chutes was too rapid and constant, and the grinding and crunching of the rollers, and the rumbling and hammering of the machinery, were too loud and incessant.

Ralph worked very diligently too; he was in the mood for work. He was glad to be at home again and able to work. It was much better than wandering through the streets of strange towns, without money or friends. Nor were his hands and eyes less vigilant because of the bright future that lay before him. He was so certain of the promised luxuries, the beautiful home, the love of mother and sister, the means for education,—so sure of them all that he felt he could well afford to wait, and to work while waiting. This toil and poverty would last but a few weeks, or a few months at the

longest; after that there would be a lifetime of pleasure and of peace and of satisfied ambitions.

So hope nerved his muscles, and anticipation brought color to his cheeks and fire to his eyes, and the thought of his mother's kiss lent inspiration to his labor, and no boy that ever worked in Burnham Breaker performed his task with more skill and diligence than he.

When the noon hour came the boys took their dinner-pails and ran down out of the building and over on the hill-side, where they could lie on the clean grass in the warm September sunshine, and eat and talk until the bell should call them again to work.

Here, before the recess was over, Ralph joined them, feeling very conscious, indeed, of his embarrassing position, but determined to brave it out.

Joe Foster set the ball rolling by asking Ralph how much he had to pay his lawyer. Some one else followed it up with a question relating to his expectations for the future, and in a very few minutes the boy was the object of a perfect broadside of interrogations.

"Will you have a hoss of your own?" asked Patsey Welch.

"I don't know," was the reply; "that depen's on what my mother'll think."

"Oh! she'll give you one if you want 'im, Mrs. Burnham will," said another boy; "she'll give you everything you want; she's ter'ble good that way, they say."

"Will you own the breaker, an' boss us boys?" came a query from another quarter.



Before Ralph could reply to this startling and embarrassing question, some one else asked:—

"How'd you find out who you was, anyway?"

"Why, my lawyer told me," was the reply.

"How'd he find out?"

"Well, a man told him."

"What man?"

"Now, look here, fellows!" said Ralph, "I ain't goin' to tell you everything. It'd predujuice my case too much. I can't do it, I got no right to."

Then a doubting Thomas arose.

"I ain't got nothin' agin him," he began, referring to Ralph, "he's a good enough feller—for a slate-picker, for w'at I know; but that's all he is; he ain't a Burnham, no more'n I be, if he was he wouldn't be a-workin' here in the dirt; it ain't reason'ble."

Before Ralph could reply, some one took up the cudgel for him.

"Yes, he is too,—a Burnham. My father says he is, an' Lawyer Sharpman says he is, an' you don't know nothin' 'bout it."

Whereupon a great confusion of voices arose, some of the boys denying Ralph's claim of a right to participate in the privileges allotted to the Burnham family, while most of them vigorously upheld it.

Finally, Ralph made his voice heard above the uproar:—

"Boys," he said, "they ain't no use o' quarrellin'; we'll all find out the truth about it 'fore very long. I'm a-goin' to stay here an' work in the breaker till the thing's settled, an' I want you boys to use me jest as well as ever you did, an' I'll treat you jest the same as I al'ays have; now, ain't that fair?"

"Yes, that's fair!" shouted a dozen boys at a time. "Hooray for Ralph Burnham!" added another; "hooray!"

The cheers were given with a will, then the breaker bell rang, and the boys flocked back to their work.

Ralph was as good as his word. Every morning he came and took his place on the bench, and picked slate ten hours a day, just as the other boys did; and though the subject of his coming prosperity was often discussed among them, there was never again any malice or bitterness in the discussion.

But the days and weeks and months went by. The snows of winter came, and the north winds howled furiously about the towering heights of Burnham Breaker. Morning after morning, before it was fairly light, Ralph and Bachelor Billy trudged through the deep snow on their way to their work, or faced the driving storms as they plodded home at night. And still, so far as these two could see, and they talked the matter over very often, no progress was being made toward the restoration of Ralph to his family and family rights.

Sharpman had explained why the delay was expedient, not to say necessary; and, though the boy tried to be patient, and was very patient indeed, yet the unquiet feeling remained in his heart, and grew.

But at last there was progress. A petition had been presented to the Orphans' Court, asking for a citation to Margaret Burnham, as administrator

of her husband's estate, to appear and show cause why she should not pay over to Ralph's guardian a sufficient sum of money to educate and maintain the boy in a manner befitting his proper station in life. An answer had been put in by Mrs. Burnham's attorney, denying that Ralph was the son of Robert Burnham, and an issue had been asked for to try that disputed fact. The issue had been awarded, and the case certified to the Common Pleas for trial, and placed on the trial list for the May term of court.

As the time for the hearing approached, the preparations for it grew more active and incessant about Sharpman's office.

Old Simon had taken up his abode in Scranton for the time being, and was on hand frequently to inform and advise. Witnesses from distant points had been subpoenaed, and Ralph, himself, had been called on several occasions to the lawyer's office to be interrogated about matters lying within his knowledge or memory.

The question of the boy's identity had become one of the general topics of conversation in the city, and, as the time for the trial approached, public interest in the matter ran high.

In those days the courts were held at Wilkesbarre for the entire district. Lackawanna County had not yet been erected out of the northern part of Luzerne, with Scranton as its county seat.

There were several suits on the list for the May term that were to be tried before the Burnham case would come on, so that Ralph did not find it necessary to go to Wilkesbarre until Thursday of the first week of court.

Bachelor Billy accompanied him. He had been subpoenaed as a witness, and he was glad to be able to go and to have an opportunity to care for the boy during the time of the trial.

Spring comes early in the valley of the Susquehanna; and, as the train dashed along, Ralph, looking from the open window of the car, saw the whole country white with the blossoms of fruit-bearing trees. The rains had been frequent and warm, and the springing vegetation, rich and abundant, reflected its bright green in the waters of the river along all the miles of their journey. The spring air was warm and sweet, white clouds were floating in the sky, birds were darting here and there among the branches of the trees, wild flowers were unfolding their modest beauty in the very shadow of the iron rails. Ralph saw and felt it all, his spirit rose into accord with nature, and hope filled his heart more abundantly than it ever had before.

When he and Bachelor Billy went into the court-room that afternoon, Sharpman met them and told them that their case would probably not be reached that day, the one immediately preceding it having already taken much more time in the trial than had been expected. But he advised them not to leave the city. So they went out and walked about the streets a little, then they wandered down along the river bank, and sat there looking out upon the water and discussing the method and probable outcome of the trial.

When supper-time came, they went to their boarding-house, a cottage in the suburbs, kept by a man who had formerly known Bachelor Billy in Scranton.

The next morning when they went into court the lawyers were making their addresses to the jury in the case that had been heard on the previous day, and Ralph and Billy listened to the speeches with much interest. The judge's charge was a long one, and before it was concluded the noon-hour had come. But it was known, when court adjourned, that the Burnham case would be taken up at two o'clock. Long before that time, however, the

benches in the court-room were filled with people, and even the precincts of the bar were invaded. The suit had aroused so much interest and excitement that hundreds of people came simply to see the parties and hear the evidence in the case.

At two o'clock Mr. Goodlaw entered, accompanied by Mrs. Burnham and her little daughter, and all three took seats by a table inside the bar.

Sharpman came in a few minutes later, and Simon Craft arose from his place near the railing and went with him to another table. Ralph, who was with Bachelor Billy down on a front bench, scarcely recognized the old man at first, there was so marked a change in his appearance. He had on a clean new suit of black broadcloth, his linen was white and well arranged, and he had been freshly shaven. Probably he had not presented so attractive an appearance before in many years. It was all due to Sharpman's money and wit. He knew how much it is worth to have a client look well in the eyes of a jury, and he had acted according to his knowledge.

So Old Simon had a very grandfatherly air as he took his seat by the side of his counsel and laid his cane on the floor beside him.

After arranging his papers on the table, Sharpman arose and looked back over the crowded court-room. Finally, catching sight of Ralph, he motioned to him to come inside the bar. The boy obeyed, but not without embarrassment. He saw that the eyes of all the people in the room were fixed on him as he crossed the open space and dropped into a chair by the side of Craft. But he had passed Mrs. Burnham on his way, and she had reached out her gloved hand and grasped his little one and held him by her for a moment to look searchingly and longingly into his face; and she had said to him some kind words to put him at his ease, so that the situation was not so very trying, after all.

The clerk began to call a jury into the box. One by one they answered to their names, and were scrutinized closely by the lawyers as they took their places. Then Sharpman examined, carefully, the list of jurors that was handed to him, and drew his pen through one of the names. It was that of a man who had once suffered by reason of the lawyer's shrewdness, and he thought it best to challenge him.

"Call another juror," he said, passing the list to Goodlaw, who also struck a name from it, added a new one, and passed it back.

The jury was finally settled, the challenged men were excused, and the remaining twelve were duly sworn.

Then Sharpman arose to open his case. With rapid detail he went over the history of Ralph's life from the time of the railroad accident to the day of the trial. He dwelt upon Simon Craft's kindness to the child, upon his energetic search for the unknown parents, and, later, for the boy himself; of his final success, of his constant effort in Ralph's behalf, and his great desire, now, to help him into the family and fortune to which his birth entitled him. "We shall show to you all of these facts, gentlemen of the jury," said Sharpman, in conclusion. "We shall prove to you, beyond the shadow of a doubt, that this boy is Margaret Burnham's son and an heir to Robert Burnham's estates; and, having done so, we shall expect a verdict at your hands."

The lawyer resumed his seat, spent a few moments looking over his papers, and then said, in a tone of mingled respect and firmness:—

"We desire, if your Honor please, to call Mrs. Burnham for the purpose of cross-examination."

"That is your privilege under the law," said the judge.

"Mrs. Burnham," continued Sharpman, "will you kindly take the stand?"

"Certainly," replied the lady.

She arose, advanced to the witness-stand, received the oath, and took her chair with a matronly dignity and kindly grace that aroused the sympathy and admiration of all who saw her. She gave her name, the date of her marriage to Robert Burnham, the fact of his death, and the names and ages of her children. In the course of the examination, she was asked to describe the railway journey which ended in the disaster at Cherry Brook, and to give the details of that disaster as she remembered them.

"Can you not spare me that recital, sir?" she said.

"No one would be more willing or glad to do so, madam," responded Sharpman, "than I, but the whole future of this fatherless boy is hanging upon this examination, and I dare not do it. I will try to make it easier for you, however, by interrogation."

She had hidden her face in her hands a moment before; now she raised it, pallid, but fixed with strong determination.

"Go on," she said, "I will answer you."

Sharpman stood for a moment as if collecting his thoughts, then he asked: "Did you and your husband, accompanied by your child Ralph and his nurse, leave your home in Scranton on the thirteenth day of May, 1859, to go by rail to the city of Philadelphia?"

"We did."

"Was the car in which you were riding well filled?"

"It was not; no, sir."

"How many children were in that car besides your son?"

"Only one."

"A boy?"

"Yes, sir."

"About how old?"

"About Ralph's age, I should think."

"With whom was he travelling?"

"With an elderly gentleman whom he called, 'Grandpa.'"

"Before you reached Philadelphia, did the bridge over Cherry Creek give way and precipitate the car in which you were riding into the bed of the stream?"

"It did; yes, sir."

"Immediately before that occurred where was your child?"

"He was sitting with his nurse in the second seat ahead of us."

"And the other child, where was he?"

"Just across the aisle."

"Did you see that other child after the accident?"

"I did not; I only know that he survived it."



"How do you know it?"

"We learned, on inquiry, that the same old gentleman and little child went on to the city in the train which carried the rescued passengers."

"You and your husband were both injured in the disaster, were you not?"

"We were."

"And the nurse lost her life?"

"Yes, sir."

"How long was it after the accident before you began the search for your child?"

"It was nearly three days afterward before we were sufficiently recovered to be able to do anything."

"Did you find any trace of him?"

"None whatever."

"Any clothing or jewelry?"

"Only a few trinkets in the ashes of the wreck."

"Is it your belief that Ralph perished in that disaster?"

"It is; yes, sir."

"Would it take strong evidence to convince you to the contrary?"

"I think it would."

"Ralph," said Sharpman, turning to the boy, "stand up!"

The lad arose.

"Have you seen this boy before?" continued the lawyer, addressing the witness again.

"I have," she replied, "on several occasions."

"Are you familiar with his face, his expression, his manner?"

"To a great extent—yes, sir."

"Do you recognize him as your son Ralph?"

She looked down, long and searchingly, into the boy's face, and then replied, deliberately, "No, sir, I do not."

"That is all, Mrs. Burnham."

Ralph was surprised and disappointed. He had not quite expected this. He had thought she would say, perhaps, that she would receive him as her son when his claim was duly proven. He would not have wondered at that, but that she should positively, under oath, deny their relationship to each other, had not been to him, before, within the range of possibility. His brightness and enthusiasm were quenched in a moment, and a chill crept up to his heart, as he saw the lady come down from the witness-stand, throw her widow's veil across her face, and resume her seat at the table. The case had taken on a new, strange, harsh aspect in his sight. It seemed to him that a barrier had been suddenly erected between him and the lady whom he had learned to love as his mother; a barrier which no verdict of the jury or judgment of the court, even though he should receive them, would help him to surmount.

Of what use were these things, if motherly recognition was to be denied him? He began to feel that it would be almost better to go back at once to the not unpleasant home with Bachelor Billy, than to try to grasp something which, it now seemed, was lying beyond his reach.

He was just considering the advisability of crossing over to Sharpman and suggesting to him that he was willing to drop the proceedings, when that person called another witness to the stand. This was a heavily built man, with close-cropped beard, bronzed face, and one sleeve empty of its arm. He gave his name as William B. Merrick, and said that he was conductor of the train that broke through the Cherry Brook bridge, on the night of May 13, 1859.

"Did you see, on your train that night," asked Sharpman, "the witness who has just left the stand?"

"I cannot be positive," the man replied, "but, to the best of my recollection, the lady was a passenger in the rear car."

"With whom was she travelling?"

"With a gentleman whom I afterward learned was her husband, a little boy some two or three years of age, and the child's nurse."

"Were there any other children on the train?"

"Yes, one, a boy of about the same age, riding in the same car in company with an elderly gentleman."

"Did you see either of these children after the disaster?"

"I saw one of them."

"Which one?"

"I supposed, at the time, that it was the one who accompanied the old gentleman."

"Why did you suppose so?"

"Because I saw a child who bore marks of having been in the wreck riding in the car which carried the rescued passengers to the city, and he was in company with an elderly man."

"Was he the same elderly man whom you saw with the child before the accident?"

"I cannot say; my attention was not particularly called to him before the accident; but I supposed he was the one, from the fact of his having the child with him."

"Could you, at this time, recognize the man whom you saw with the child after the accident?"

"I think so. I took especial notice of him then."

"Look at this old gentleman, sitting by me," said Sharpman, waving his hand toward Craft, "and tell me whether he is the one."

The man turned his eyes on Old Simon, and looked at him closely for a full minute.

"Yes," he replied, "I believe he is the one. He has grown older and thinner, but I do not think I am mistaken."

Craft nodded his head mildly in assent, and Sharpman continued:—

"Did you take particular notice of the child's clothing as you saw it after the accident; could you recognize, at this time, the principal articles of outside wear that he had on?"

"I think I could."

Sharpman paused as if in thought.

After he had whispered for a moment with Craft, he said to the witness:

—

"That is all, for the present, Mr. Merrick." Then he turned to the opposing counsel and said:—

"Mr. Goodlaw, you may take the witness."

Goodlaw fixed his glasses more firmly on his nose, consulted briefly with his client, and then began his cross-examination.

After drawing out much of the personal history of the witness, he went with him into the details of the Cherry Brook disaster.

Finally he asked:—

"Did you know Robert Burnham in his lifetime?"

"A gentleman by that name called on me a week after the accident to make inquiries about his son."

"Did you say to him, at that time, that the child must have perished in the wreck?"

"I think I did; yes, sir."

"On what did you base your opinion?"

"On several circumstances. The nurse with whom he was sitting was killed outright; it would seem to have been impossible for any one occupying that seat to have escaped instant death, since the other car struck and rested at just that point. Again, there were but two children on the train. It took it for granted that the old man and child whom I saw together after the accident were the same ones whom I had seen together before it occurred."

"Did you tell Mr. Burnham of seeing this old man and child after the accident?"

"I did; yes, sir."

"Did you not say to him positively, at that time, that they were the same persons who were sitting together across the aisle from him before the crash came?"

"It may be that I did."

"And did you not assure him that the child who went to the city, on the train that night after the accident was not his son?"

"I may have done so. I felt quite positive of it at that time."

"Has your opinion in that matter changed since then?"

"Not as to the facts; no, sir; but I feel that I may have taken too much for granted at that time, and have given Mr. Burnham a wrong impression."

"At which time, sir, would you be better able to form an opinion,—one week after this accident occurred, or ten years afterward?"

"My opinion is formed on the facts; and I assure you that they were not weighted with such light consequences for me that I have easily forgotten them. If there were any tendency to do so, I have here a constant reminder," holding up his empty sleeve as he spoke. "My judgment is better, to-day, than it was ten years ago. I have learned more; and, looking carefully over the facts in this case in the light I now have, I believe it possible that this son of Robert Burnham's may have been saved."

"That will do," said Goodlaw. The witness left the stand, and the judge, looking up at the clock on the wall, and then consulting his watch, said:—

"Gentlemen, it is nearly time to adjourn court. Mr. Sharpman, can you close your case before adjourning time?"

"That will be impossible, your Honor."

"Then, crier, you may adjourn the court until to-morrow morning at nine o'clock."

The crier made due proclamation, the spectators began to crowd out of the room, the judge left the bench, and the lawyers gathered up their papers. Ralph, on his way out, again passed by Mrs. Burnham, and she had for him a smile and a kind word. Bachelor Billy stood waiting at the door, and the boy went down with him to their humble lodgings in the suburbs, his mind filled with conflicting thoughts, and his heart with conflicting emotions.

## CHAPTER XI.

### THE EVIDENCE IN THE CASE.

When court opened on Saturday morning, all the persons interested in the Burnham suit were present, and the court-room was crowded to even a greater extent than it had been on the previous day. Sharpman began the proceedings by offering in evidence the files of the Register's court, showing the date of Robert Burnham's death, the issuing of letters of administration to his widow, and the inventory and appraisement of his personal estate.

Then he called Simon Craft to the witness-stand. There was a stir of excitement in the room; every one was curious to see this witness and to hear his evidence.

The old man did not present an unfavorable appearance, as he sat, leaning on his cane, dressed in his new black suit, waiting for the examination to begin. He looked across the bar into the faces of the people with the utmost calmness. He was perfectly at his ease. He knew that what he was about to tell was absolutely true in all material respects, and this fact inspired him with confidence in his ability to tell it effectually. It relieved him, also, of the necessity for that constant evasion and watchfulness which had characterized his efforts as a witness in other cases.



The formal questions relating to his residence, age, occupation, etc., were answered with alacrity.

Then Sharpman, pointing to Ralph, asked the witness:—

"Do you know this boy?"

"I do," answered Craft, unhesitatingly.

"What is his name?"

"Ralph Burnham."

"When did you first see him?"

"On the night of May 13, 1859."

"Under what circumstances?"

This question, as by previous arrangement between attorney and witness, opened up the way for a narration of facts, and old Simon, clearing his throat, leaned across the railing of the witness-box and began.

He related in detail, and with much dramatic effect, the scenes at the accident, his rescue of the boy, his effort at the time to find some one to whom he belonged, and the ride into the city afterward. He corroborated conductor Merrick's story of the meeting on the train which carried the rescued passengers, and related the conversation which passed between them, as nearly as he could remember it.

He told of his attempts to find the child's friends during the few days that followed, then of the long and desperate illness from which he suffered as a result of his exertion and exposure on the night of the accident. From that point, he went on with an account of his continued care for the child, of his

incessant search for clues to the lad's identity, of his final success, of Ralph's unaccountable disappearance, and of his own regret and disappointment thereat.

He said that the lad had grown into his affections to so great an extent, and his sympathy for the child's parents was such, that he could not let him go in that way, and so he started out to find him.

He told how he traced him from one point to another, until he was taken up by the circus wagon, how the scent was then lost, and how the boy's whereabouts remained a mystery to him, until the happy discovery at the tent in Scranton.

"Well," said Sharpman, "when you had found the boy, what did you do?"

"I went, the very next day," was the reply, "to Robert Burnham to tell him that his son was living."

"What conversation did you have with him?"

"I object," interposed Goodlaw, "to evidence of any alleged conversation between this witness and Robert Burnham. Counsel should know better than to ask for it."

"The question is not a proper one," said the judge.

"Well," continued Sharpman, "as a result of that meeting what were you to do?"

"I was to bring his son to him the following day."

"Did you bring him?"

"I did not."

"Why not?"

"Mr. Burnham died that night."

"What did you do then?"

"I went to you for advice."

"In pursuance of that advice, did you have an interview with the boy Ralph?"

"I did."

"Where?"

"At your office."

"Did you explain to him the facts concerning his parentage and history?"

"They were explained to him."

"What did he say he wished you to do for him?"

Goodlaw interrupted again, to object to the testimony offered as incompetent and thereupon ensued an argument between counsel, which was cut short by the judge ordering the testimony to be excluded, and directing a bill of exceptions to be sealed for the plaintiff.

The hour for the noon recess had now come, and court was adjourned to meet again at two o'clock.

When the afternoon session was called, Sharpman announced that he was through with the direct examination of Craft.

Then Goodlaw took the witness in hand. He asked many questions about Craft's personal history, about the wreck, and about the rescue of the child. He demanded a full account of the way in which Robert Burnham had been discovered, by the witness and found to be Ralph's father. He called for the explicit reason for every opinion given, but Old Simon was on safe ground, and his testimony remained unshaken.

Finally, Goodlaw asked:—

"What is your occupation, Mr. Craft?" and Craft answered: "I have no occupation at present, except to see that this boy gets his rights."

"What was your occupation during the time that this boy lived with you?"

"I was a travelling salesman."

"What did you sell?"

"Jewelry, mostly."

"For whom did you sell the jewelry?"

"For myself, and others who employed me."

"Where did you obtain the goods you sold?"

"Some of it I bought, some of it I sold on commission."

"Of whom did you buy it?"

"Sometimes I bought it at auction, or at sheriff's sales; sometimes of private parties; sometimes of manufacturers and wholesalers."

Goodlaw rose to his feet. "Now, as a matter of fact, sir," he said, sternly, "did not you retail goods through the country that had been furnished to you by your confederates in crime? and was not your house in the city a place for the reception of stolen wares?"

Craft's cane came to the floor with a sharp rap. "No, sir!" he replied, with much indignation; "I have never harbored thieves, nor sold stolen goods to my knowledge. You insult me, sir!"

Goodlaw resumed his seat, looked at some notes in pencil on a slip of paper, and then resumed the examination.

"Did you send this boy out on the streets to beg?" he asked.

"Well, you see, we had pretty hard work sometimes to get along and get enough to eat, and—"

"I say, did you send this boy out on the streets to beg?"

"Well, I'm telling you that sometimes we had either to beg or to starve. Then the boy went out and asked aid from wealthy people."

"Did you send him?"

"Yes, I did; but not against his will."

"Did you sometimes whip him for not bringing back money to you from his begging excursions?"

"I punished him once or twice for telling falsehoods to me."

"Did you beat him for not bringing money to you when you sent him out to beg?"

"He came home once or twice when I had reason to believe that he had made no effort to procure assistance for us, and—"

Goodlaw rose to his feet again.

"Answer my question!" he exclaimed. "Did you beat this boy for not bringing back money to you when you had sent him out to beg?"

"Yes, I did," replied Craft, now thoroughly aroused, "and I'd do it again, too, under the same circumstances."

Then he was seized with a fit of coughing that racked his feeble body from head to foot. A tipstaff brought him a glass of water, and he finally recovered.

Goodlaw continued, sarcastically,—

"When you found it necessary to correct this boy by the gentle persuasion of force, what kind of a weapon did you use?"

The witness answered, mildly enough, "I had a little strip of leather that I used when it was unavoidably necessary."

"A rawhide, was it?"

"I said a little strip of leather. You can call it what you choose."

"Was it the kind of a strip of leather commonly known as a rawhide?"

"It was."

"What other mode of punishment did you practise on this child besides rawhiding him?"

"I can't recall any."

"Did you pull his ears?"

"Probably."

"Pinch his flesh?"

"Sometimes."

"Pull his hair?"

"Oh, I shouldn't wonder."

"Knock him down with your fist?"

"No, sir! never, never!"

"Did you never strike him with the palm of your hand?"

"Well, I have slapped him when my patience with him has been exhausted."

"Did any of these slaps ever happen to push him over?"

"Why, he used to tumble onto the floor sometimes, to cry and pretend he was hurt."

"Well, what other means of grandfatherly persuasion did you use in correcting the child?"

"I don't know of any."

"Did you ever lock him up in a dark closet?"

"I think I did, once or twice; yes."

"For how long at a time?"

"Oh, not more than an hour or two."

"Now, didn't you lock him up that way once, and keep him locked up all day and all night?"

"I think not so long as that. He was unusually stubborn. I told him he could come out as soon as he would promise obedience. He remained in there of his own accord."

"Appeared to like it, did he?"

"I can't say as to that."

"For how long a time did you say he stayed there?"

"Oh, I think from one afternoon till the next."

"Did he have anything to eat during that time?"

"I promised him abundance if he would do as I told him."

"Did he have anything to eat?" emphatically.

"No!" just as emphatically.

"What was it he refused to do?"

"Simply to go on a little errand for me."

"Where?"



"To the house of a friend."

"For what purpose?"

"To get some jewelry."

"Was the jewelry yours?"

"I expected to purchase it."

"Had it been stolen?"

"Not to my knowledge."

"Did the boy think it had been stolen?"

"He pretended to."

"Was that the reason he would not go?"

"It was the reason he gave."

"Have the city police found stolen goods on your premises?"

"They have confiscated goods that were innocently purchased by me; they have robbed me."

"Did you compel this boy to lie to the officers when they came?"

"I made him hold his tongue."

"Did you make him lie?"

"I ordered him not to tell where certain goods were stored in the house, on pain of being thrashed within an inch of his life. The goods were mine,

bought with my money, and it was none of their business where they were."

"Did you not command the boy to say that there were no such goods in the house?"

"I don't know—perhaps; I was exasperated at the outrage they were perpetrating in the name of law."

"Then you did make him lie?"

"Yes, if you call it lying to protect your own property from robbers, I did make him lie!"

"More than once?"

"I don't know."

"Did you make him steal?"

"I made him take what belonged to us."

"Did you make him *steal*, I say!"

"Call it what you like!" shouted the angered and excited old man. He had become so annoyed and harassed by this persistent, searching cross-examination that he was growing reckless and telling the truth in spite of himself. Besides, it seemed to him that Goodlaw must know all about Ralph's life with him, and he dared not go far astray in his answers.

But the lawyer knew only what Craft himself was disclosing. He based each question on the answers that had preceded it, long practice having enabled him to estimate closely what was lying in the mind of the witness.

"And so," continued Goodlaw, "when you returned from one of your trips into the country you found that the boy had disappeared?"

"He had."

"Were you surprised at that?"

"Yes, I was."

"Had you any idea why he went away?"

"None whatever. He was well fed and clothed and cared for."

"Did it ever occur to you that the Almighty made some boys with hearts so honest that they had rather starve and die by the roadside than be made to lie and steal at home?"

The old man did not answer, he was too greatly surprised and angered to reply.

"Well," said Sharpman, calmly, "I don't know, if your Honor please, that the witness is bound to be sufficiently versed in the subject of Christian ethics to answer questions of that kind."

"He need not answer it," said the judge.

Then Sharpman continued, more vehemently: "The cross-examination, as conducted by the eminent counsel, has, thus far, been simply an outrage on professional courtesy. I ask now that the gentleman be confined to questions which are germane to the issue and decently put."

"I have but a few more questions to ask," said Goodlaw.

Turning to the witness again, he continued: "If you succeed in establishing this boy's identity, you will have a bill to present for care and moneys expended and services performed on his account, will you not?"

"I expect so; yes, sir."

"As the service continued through a period of years, the bill will amount now to quite a large sum, I presume?"

"Yes, I have done a good deal for the boy."

"You expect to retain the usual commission for your services as guardian, do you not?"

"I do."

"And to control the moneys and properties that may come into your hands?"

"Well—yes."

"About how much money, all together, do you expect to make out of this estate?"

"I do not look on it in that light, sir; I am taking these proceedings simply to compel you and your client to give that boy his rights."

This impudent assertion angered Goodlaw, who well knew the object of the plot, and he rose from his chair, saying deliberately:—

"Do you mean to swear that this is not a deep-laid scheme on the part of you and your attorney to wrest from this estate enough to make a fortune for you both? Do you mean to say that you care as much for this boy's rights as you do for the dust in your path?"

Craft's face paled, and Sharpman started to his feet, red with passion.

"This is the last straw!" he exclaimed, hoarsely; "now I intend"—

But the judge, fearing an uncontrollable outbreak of temper, interrupted him, saying:—

"Your witness need not answer the question in that form, Mr. Sharpman. Mr. Goodlaw, do you desire to cross-examine the witness further?"

Goodlaw had resumed his seat and was turning over his papers.

"I do not care to take up the time of the court any longer," he said, "with this witness."

"Then, Mr. Sharpman, you may proceed with further evidence."

But Sharpman was still smarting from the blow inflicted by his opponent. "I desire, first," he said, "that the court shall take measures to protect me and my client from the unfounded and insulting charges of counsel for the defence."

"We will see," said the judge, "that no harm comes to you or to your cause from irrelevant matter interjected by counsel. But let us get on with the case. We are taking too much time."

Sharpman turned again to his papers and called the name of "Anthony Henderson."

An old man arose in the audience, and made his way feebly to the witness-stand, which had just been vacated by Craft.

After he had been sworn, he said, in reply to questions by Sharpman, that he was a resident of St. Louis; that in May, 1859, he was on his way east

with his little grandson, and went down with the train that broke through the bridge at Cherry Brook.

He said that before the crash came he had noticed a lady and gentleman sitting across the aisle from him, and a nurse and child a few seats further ahead; that his attention had been called to the child particularly, because he was a boy and about the age of his own little grandson.

He said he was on the train that carried the rescued passengers to Philadelphia after the accident, and that, passing through the car, he had seen the same child who had been with the nurse now sitting with an old man; he was sure the child was the same, as he stopped and looked at him closely. The features of the old man he could not remember. For two days he searched for his grandson, but being met, on every hand, by indisputable proof that the child had perished in the wreck, he then started on his return journey to St. Louis, and had not since been east until the week before the trial.

"How did the plaintiff in this case find you out?" asked Goodlaw, on cross-examination.

"I found him out," replied the witness. "I learned, from the newspapers, that the trial was to take place; and, seeing that it related to the Cherry Brook disaster, I came here to learn what little else I might in connection with my grandchild's death. I went, first, to see the counsel for the plaintiff and his client."

"Have you learned anything new about your grandson?"

"No, sir; nothing."

"Have you heard from him since the accident?"

"I have not."

"Are you sure he is dead?"

"I have no doubt of it."

"Can you recognize this boy," pointing to Ralph, "as the one whom you saw with the nurse and afterward with the old man on the night of the accident?"

"Oh, no! he was a mere baby at that time."

"Are you positive that the boy in court is not your grandson?"

"Perfectly positive, there is not the slightest resemblance."

"That will do."

The cross-examination had done little more than to strengthen the direct testimony. Mrs. Burnham had thrown aside her veil and gazed intently at the witness from the moment he went on the stand. She recognized him as the man who sat across the aisle from her, with his grandchild, on the night of the disaster, and she knew that he was telling the truth. There seemed to be no escape from the conclusion that it was her child who went down to the city that night with Simon Craft. Was it her child who escaped from him, and wandered, sick and destitute, almost to her own door? Her thought was interrupted by the voice of Sharpman, who had faced the crowded court-room and was calling the name of another witness: "Richard Lyon!"

A young man in short jacket and plaid trousers took the witness-stand.

"What is your occupation?" asked Sharpman, after the man had given his name and residence.

"I'm a driver for Farnum an' Furkison."

"Who are Farnum and Furkison?"

"They run the Great European Circus an' Menagerie."

"Have you ever seen this boy before?" pointing to Ralph.

"Yes, sir."

"When?"

"Three years ago this summer."

"Where?"

"Down in Pennsylvania. It was after we left Bloomsburg, I think, I picked 'im up along the road an' give 'im a ride on the tiger wagon."

"How long did he stay with you?"

"Oh, I don't remember; four or five days, maybe."

"What did he do?"

"Well, not much; chored around a little."

"Did he tell you where he came from?"

"No, nor he wouldn't tell his name. Seemed to be afraid somebody'd ketch 'im; I couldn't make out who. He talked about some one he called Gran'pa Craft two or three times w'en he was off his guard, an' I reckoned from what he said that he come from Philadelphy."

"Where did he leave you?"



"Didn't leave us at all. We left him; played the desertion act on 'im."

"Where?"

"At Scranton."

"Why?"

"Well, he wasn't much use to us, an' he got sick an' couldn't do anything, an' the boss wouldn't let us take 'im no further, so we left 'im there."

"Are you sure this is the boy?"

"Oh, yes! positive. He's bigger, an' looks better now, but he's the same boy, I know he is."

"Cross-examine."

This last remark was addressed to the defendant's attorney.

"I have no questions to ask," said Goodlaw, "I have no doubt the witness tells the truth."

"That's all," said Sharpman, quickly; then, turning again toward the court-room, he called:

"William Buckley!"

Bachelor Billy arose from among the crowds on the front benches, and made his way awkwardly around the aisle and up to the witness-stand. After the usual preliminary questions had been asked and answered, he waited, looking out over the multitude of faces turned toward him, while Sharpman consulted his notes.

"Do you know this boy?" the lawyer asked, pointing to Ralph.

"Do I know that boy?" repeated Billy, pointing also to Ralph, "'deed I do that. I ken 'im weel."

"When did you first see him?"

"An he's the son o' Robert Burnham, I seen 'im first i' the arms o' 'is mither a matter o' ten year back or so. She cam' t' the breaker on a day wi' her gude mon, an' she had the bairnie in her arms. Ye'll remember it, na doot, Mistress Burnham," turning to that lady as he spoke, "how ye said to me 'Billy,' said ye, 'saw ye ever so fine a baby as'"—

"Well, never mind that," interrupted Sharpman; "when did you next see the boy?"

"Never till I pickit 'im up o' the road."

"And when was that?"

"It'll be three year come the middle o' June. I canna tell ye the day."

"On what road was it?"

"I'll tell ye how it cam' aboot. It was the mornin' after the circus. I was a-comin' doon fra Providence, an' when I got along the ither side o' whaur the tents was I see a bit lad a-layin' by the roadside, sick. It was him," pointing to Ralph and smiling kindly on him, "it was Ralph yonner. I says to 'im, 'What's the matter wi' ye, laddie?' says I. 'I'm sick,' says 'e, 'an' they've gonied an' lef me.' 'Who's lef' ye?' says I. 'The circus,' says he. 'An' ha' ye no place to go?' says I. 'No,' says 'e, 'I ain't; not any.' So I said t' the lad as he s'ould come along wi' me. He could na walk, he was too sick, I carried 'im, but he was no' much o' a load. I took 'im hame wi' me an' pit 'im i' the bed.

He got warse, an' I bringit the doctor. Oh! but he was awfu' sick, the lad was, but he pullit through as cheerfu' as ye please. An' the Widow Maloney she 'tended 'im like a mither, she did."

"Did you find out where he came from?"

"Wull, he said little aboot 'imself at the first, he was a bit afraid to talk wi' strangers, but he tellit, later on, that he cam' fra Philadelphia. He tellit me, in fact," said Billy, in a burst of confidence, "that 'e rin awa' fra th'auld mon, Simon Craft, him that's a-settin' yonner. But it's small blame to the lad; ye s'ould na lay that up again' 'im. He *had* to do it, look ye! had ye not, eh, Ralph?"

Before Ralph could reply, Sharpman interrupted: "And has the boy been with you ever since?"

"He has that, an' I could na think o' his goin' awa' noo, an it would na be for his gret good."

"In your intercourse with the boy through three years, have you noticed in him any indications of higher birth than is usually found among the boys who work about the mines? I mean, do his manners, modes of thought, impulses, expressions, indicate, to your mind, better blood than ordinary?"

"Why, yes," replied the witness, slowly grasping the idea, "yes. He has a way wi' 'im, the lad has, that ye'd think he did na belong amang such as we. He's as gentle as a lass, an' that lovin', why, he's that lovin' that ye could na speak sharp till 'im an ye had need to. But ye'll no' need to, Mistress Burnham, ye'll no' need to."

The lady was sitting with her veil across her face, smiling now and then, wiping away a tear or two, listening carefully to catch every word.

Then the witness was turned over to the counsel for the defence, for cross-examination.

"What else has the boy done or said to make you think he is of gentler birth than his companions in the breaker?" asked Goodlaw, somewhat sarcastically.

"Why, the lad does na swear nor say bad words."

"What else?"

"He's tidy wi' the clothes, an' he *wull* be clean."

"What else?"

"What else? wull, they be times when he says things to ye so quick like, so bright like, so lofty like, 'at ye'd mos' think he was na human like the rest o' us. An' 'e fears naught, ye canna mak' 'im afeard o' doin' what's richt. D'ye min' the time 'e jumpit on the carriage an' went doon wi' the rest o' them to bring oot the burnit uns? an' cam' up alive when Robert Burnham met his death? Ah, mon! no coward chiel 'd 'a' done like that."

"Might not a child of very lowly birth do all the things you speak of under proper training and certain influences?"

"Mayhap, but it's no' likely, no' likely. Hold! wait a bit! I dinna mean but that a poor mon's childer can be bright, braw, guid boys an' girls; they be, I ken mony o' them mysel'. But gin the father an' the mither think high an' act gentle an' do noble, ye'll fin' it i' the blood an' bone o' the childer, sure as they're born. Now, look ye! I kenned Robert Burnham, I kenned 'im weel. He was kind an' gentle an' braw, a-thinkin' bright things an' a-doin' gret deeds. The lad's like 'im, mind ye; he thinks like 'im, he says like 'im, he does like 'im. Truth, I daur say, i' the face o' all o' ye, that no son was ever

more like the father than the lad a-settin' yonner is like Robert Burnham was afore the guid Lord took 'im to 'imself'."

Bachelor Billy was leaning forward across the railing of the witness-stand, speaking in a voice that could be heard in the remotest corner of the room, emphasizing his words with forceful gesticulation. No one could for a moment doubt his candor and earnestness.

"You are very anxious that the plaintiff should succeed in this suit, are you not?" asked Goodlaw.

"I dinna unnerstan' ye, sir."

"You would like to have this boy declared to be a son of Robert Burnham, would you not?"

"For the lad's sake, yes. But I canna tell ye how it'll hurt me to lose 'im fra ma bit hame. He's verra dear to me, the lad is."

"Have you presented any bill to Ralph's guardian for services to the boy?"

"Bill! I ha' no bill."

"Do you not propose to present such a bill in case the plaintiff is successful in this suit?"

"I tell ye, mon, I ha' no bill. The child's richt welcome to all that I 'a' ever done for 'im. It's little eneuch to be sure, but he's welcome to it, an' so's 'is father an' 'is mother an' 'is gardeen; an' that's what I tellit Muster Sharpman 'imself'. An the lad's as guid to them as 'e has been wi' me, they'll unnerstan' as how his company's a thing ye canna balance wi' gold an' siller."

Mrs. Burnham leaned over to Goodlaw and whispered something to him. He nodded, smiled and said to the witness: "That's all, Mr. Buckley," and Bachelor Billy came down from the stand and pushed his way back to a seat among the people.

There was a whispered conversation for a few moments between Sharpman and his client, and then the lawyer said:—

"We desire to recall Mrs. Burnham for one or two more questions. Will you be kind enough to take the stand, Mrs. Burnham?"

The lady arose and went again to the witness-stand.

Craft was busy with his leather hand-bag. He had taken a parcel therefrom, unwrapped it and laid it on the table. It was the cloak that Old Simon had shown to Robert Burnham on the day of the mine disaster. Sharpman took it up, shook it out, carried it to Mrs. Burnham, and placed it in her hands.

"Do you recognize this cloak?" he asked.

A sudden pallor overspread her face. She could not speak. She was holding the cloak up before her eyes, gazing on it in mute astonishment.

"Do you recognize it, madam?" repeated Sharpman.

"Why, sir!" she said, at last, "it is—it was Ralph's. He wore it the night of the disaster." She was caressing the faded ribbons with her hand; the color was returning to her face.

"And this, Mrs. Burnham, do you recognize this?" inquired the lawyer, advancing with the cap.

"It was Ralph's!" she exclaimed, holding out her hands eagerly to grasp it. "It was his cap. May I have it, sir? May I have them both? I have nothing, you know, that he wore that night."

She was bending forward, looking eagerly at Sharpman, with flushed face and eyes swimming in tears.

"Perhaps so, madam," he said, "perhaps; they go with the boy. If we succeed in restoring your son to you, we shall give you these things also."

"What else have you that he wore?" she asked, impatiently. "Oh! did you find the locket, a little gold locket? He wore it with a chain round his neck; it had his—his father's portrait in it."

Without a word, Sharpman placed the locket in her hands. Her fingers trembled so that she could hardly open it. Then the gold covers parted and revealed to her the pictured face of her dead husband. The eyes looked up at her kindly, gently, lovingly, as they had always looked on her in life. After a moment her lips trembled, her eyes filled with tears, she drew the veil across her face, and her frame grew tremulous with deep emotion.

"I do not think it is necessary," said Sharpman, courteously, "to pain the witness with other questions. I regard the identification of these articles, by her, as sufficiently complete. We will excuse her from further examination."

The lady left the stand with bowed head and veiled face, and Conductor Merrick was recalled.

"Look at that cloak and the cap," said Sharpman, "and tell me if they are the articles worn by the child who was going to the city with this old man after the accident."

"To the best of my recollection," said the witness, "they are the same. I noticed the cloak particularly on account of the hole burned out of the front of it. I considered it an indication of a very narrow escape."

The witness was turned over to the defence for cross-examination.

"No questions," said Goodlaw, shortly, gathering up his papers as if his defeat was already an accomplished fact.

"Mr. Craft," said Sharpman, "stand up right where you are. I want to ask you one question. Did the child whom you rescued from the wreck have on, when you found him, this cap, cloak, and locket?"

"He did."

"And is the child whom you rescued that night from the burning car this boy who is sitting beside you here to-day?"

"They are one and the same."

Mrs. Burnham threw back her veil, looked steadily across at Ralph, then started to her feet, and moved slightly toward him as if to clasp him in her arms. For a moment it seemed as though there was to be a scene. The people in the audience bent forward eagerly to look into the bar, those in the rear of the room rising to their feet.

The noise seemed to startle her, and she sank back into her chair and sat there white and motionless during the remainder of the session.

Sharpman arose. "I believe that is our case," he said.

"Then you rest here?" asked the judge.

"We rest."



His Honor continued: "It is now adjourning time and Saturday night. I think it would be impossible to conclude this case, even by holding an evening session; but perhaps we can get through with the testimony so that witnesses may be excused. What do you say, Mr. Goodlaw?"

Goodlaw arose. "It may have been apparent to the court," he said, "that the only effort being put forth by the defence in this case is an effort to learn as much of the truth as possible. We have called no witnesses to contradict the testimony offered, and we expect to call none. But, lest something should occur of which we might wish to take advantage, we ask that the evidence be not closed until the meeting of court on Monday next."

"Is that agreeable to you, Mr. Sharpman?" inquired the judge.

"Perfectly," replied that lawyer, his face beaming with good nature. He knew that Goodlaw had given up the case and that his path was now clear.

"Then, crier," said the judge, "you may adjourn the court until Monday next, at two o'clock in the afternoon."

## CHAPTER XII.

### AT THE GATES OF PARADISE.

The result of the trial seemed to be a foregone conclusion. Every one said there was no doubt, now, that Ralph was really Robert Burnham's son. People even wondered why Mrs. Burnham did not end the matter by acknowledging the boy and taking him to her home.

And, indeed, this was her impulse and inclination, but Goodlaw, in whose wisdom she put much confidence, had advised her not to be in haste. They had had a long consultation after the adjournment of court on Saturday evening, and had agreed that the evidence pointed, almost conclusively, to the fact that Ralph was Mrs. Burnham's son. But the lawyer said that the only safe way was to wait until the verdict of the jury should fix the status of the boy beyond question. It would be but a day or two at the most.

Then Ralph might be taken by his mother, and proceedings could be at once begun to have Simon Craft dismissed from the post of guardian. Indeed, it had been with this end in view that Goodlaw had made his cross-examination of Craft so thorough and severe. He had shown, as he intended to, from the man's own lips that he was unfit to have possession either of the child or of his property.

This danger was now making itself more and more apparent to Sharpman. In the excitement of the trial, he had not fully realized the probable effect which the testimony elicited from his client by the opposing counsel might have.

Now he saw what it could lead to; but he had sufficient confidence in himself to believe that, in the time before action in that phase of the case should become necessary, he could perfect a plan by which to avert disaster. The first and best thing to be done, however, under any circumstances, was to keep the confidence and friendship of Ralph. With this thought in mind, he occupied a seat with the boy as they rode up from Wilkesbarre on the train that night, and kept him interested and amused until they reached the station at Scranton.

He said to him that he, Sharpman, should go down to Wilkesbarre early on Monday morning, and that, as it might be necessary to see Ralph before going, the boy had better call at his office for a few moments on Sunday evening. Ralph promised to do so, and, with a cordial handshake, the lawyer hurried away.

It is seldom that the probable outcome of a suit at law gives so great satisfaction to all the parties concerned in it as this had done. Simon Craft was jubilant. At last his watching and waiting, his hoping and scheming, were about to be rewarded. It came in the evening of his life to be sure, but—better late than never. He had remained in Wilkesbarre Saturday night. He thought it useless to go up to Scranton simply to come back again on Monday morning. He spent the entire day on Sunday planning for the investment of the money he should receive, counting it over and over again in anticipation, chuckling with true miserly glee at the prospect of coming wealth.

But Ralph was the happiest one of all. He knew that on the coming Monday the jury would declare him to be Robert Burnham's son.

After that, there would be nothing to prevent his mother from taking him to her home, and that she would do so there was no longer any doubt. When he awoke Sunday morning and thought it all over, it seemed to him that he had never been so near to perfect happiness in all his life before.

The little birds that came and sang in the elm-tree by his window repeated in their songs the story of his fortune. The kind old sun beamed in upon him with warmest greeting and heartiest approval.

Out-of-doors, the very atmosphere of the May day was redolent with all good cheer, and Ralph took great draughts of it into his lungs as he walked with Bachelor Billy to the little chapel at the foot of the hill, where they were used to going to attend the Sunday morning service. In the afternoon they went, these two, out by the long way to the breaker. Ralph looked up at the grim, black monster, and thought of the days gone by; the days of watchfulness, of weariness, of hopeless toil that he had spent shut up within its jarring walls.

But they were over now. He should never again climb the narrow steps to the screen-room in the darkness of the early morning. He should never again take his seat on the black bench to bend above the stream of flowing coal, to breathe the thick dust, and listen to the rattling and the roaring all day long. That time had passed, there was to be no more grinding toil, no more harsh confinement in the heat and dust, no more longing for the bright sunlight and the open air, nor for the things of life that lay beyond his reach. The night was gone, the morning was come, the May day of his life was dawning, wealth was lying at his feet, rich love was overshadowing him; why should he not be happy?

"Seems jest as though I hadn't never had any trouble, Uncle Billy," he said, "as though I'd been kind o' waitin' an' waitin' all along for jest this, an' now it's here, ain't it?"

"Yes, lad."

"An' some way it's all so quiet an' smooth like, so peaceful, don't you know. She—she seems to be so glad 'at she needn't keep me away from her no longer after the trial's over. I think she wants me to come, don't you? It ain't like most law-suits, is it?"

"She's a lovin' lady, an' I'm a-thinkin' they're a-meanin' to deal rightly by ye, Ralph."

There was a pause. They were sitting on the bank in the shadow of the breaker, and the soft wind was bringing up to them the perfume of apple-blossoms from the orchard down by the road-side. Silence, indeed, was the only means of giving fitting expression to such quiet joy as pervaded the boy's heart.

A man, driving along the turnpike with a horse and buggy, turned up the road to the breaker, and stopped in front of Bachelor Billy and the boy.

"Is this Ralph?" he asked.

"Yes," said the boy, "that's me."

"Well, Mrs. Burnham would like to see you. She sent me over to bring you. I went to your house, and they said most likely I'd find you up here. Just jump in and we'll drive right down."

Ralph looked up inquiringly at Bachelor Billy.

"Go on, lad," he said; "when the mither sen's for ye, ye mus' go."  
Ralph climbed up into the buggy.

"Good-by, Uncle Billy," he called out, as they started away down the hill.

Bachelor Billy did not answer. A sudden thought had come to him; a sudden fear had seized him. He stood for a moment motionless; then he started to run after the retreating carriage, calling as he ran. They heard him and stopped. In a minute he had reached them.

"Ralph," he said, hastily, "ye're not goin' now for gude? Ye'll coom back the nicht, won't ye, Ralph? I couldn't—I couldn't abide to have ye go this way, not for gude. It's—it's too sudden, d'ye see."

His voice was trembling with emotion, and the pallor about his lips was heightened by the forced smile that parted them. Ralph reached out from the buggy and grasped the man's rough hand.

"I ain't leavin' you for good, Uncle Billy," he said. "I'm comin' back agin, sure; I promise I will. Would you ruther I wouldn't go, Uncle Billy?"

"Oh, no! ye mus' go. I shouldn't 'a' stoppit ye. It was verra fulish in me. But ye see," turning to the driver apologetically, "the lad's been so long wi' me it's hard to part wi' 'im. An' it cam' ower me so sudden like, that mayhap he'd not be a-comin' back, that I—that I—wull, wull! it's a' richt, ye need na min' me go on; go on, lad, an' rich blessin's go wi' ye!" and Bachelor Billy turned and walked rapidly away.

This was the only cloud in the otherwise clear sky of Ralph's happiness. He would have to leave Bachelor Billy alone. But he had fully resolved that the man who had so befriended him in the dark days of his adversity should not fail of sharing in the blessings that were now at hand.

His mind was full of plans for his Uncle Billy's happiness and welfare, as they rode along through the green suburban streets, with the Sunday quiet resting on them, to the House where Ralph's mother waited, with a full heart, to receive and welcome her son.

She had promised Goodlaw that she would not take the boy to her home until after the conclusion of the trial. He had explained to her that to anticipate the verdict of the jury in this way might, in a certain event, prejudice not only her interests but her son's also. And the time would be so short now that she thought surely she could wait. She had resolved, indeed, not to see nor to speak to the lad, out of court, until full permission had been granted to her to do so. Then, when the time came, she would revel in the brightness of his presence.

That there still lingered in her mind a doubt as to his identity was nothing. She would not think of that. It was only a prejudice fixed by long years of belief in her child's death, a prejudice so firmly rooted now that it required an effort to cast it out.

But it would not greatly matter, she thought, if it should chance that Ralph was not her son. He was a brave, good boy, worthy of the best that could come to him, and she loved him. Indeed, during these last few days her heart had gone out to him with an affection so strange and a desire so strong that she felt that only his presence could satisfy it. She could not be glad enough that the trial, now so nearly to its close, would result in giving to her a son. It was a strange defeat, indeed, to cause her such rejoicing. On this peaceful Sunday morning her mind was full with plans for the lad's comfort, for his happiness and his education. But the more she thought upon him the greater grew her longing to have him with her, the harder it became to repress her strong desire to see him, to speak to him, to kiss his face, to hold him in her arms. In the quiet of the afternoon this longing

became more intense. She tried to put it away from her, but it would not go; she tried to reason it down, but the boy's face, rising always in her thought, refuted all her logic. She felt that he must come to her, that she must see him, if only long enough to look into his eyes, to touch his hand, to welcome him and say good-by. She called the coachmen then, and sent him for the boy, and waited at the window to catch the first glimpse of him when he should appear.

He came at last, and she met him in the hall. It was a welcome such as he had never dreamed of. They went into a beautiful room, and she drew his chair so close to hers that she could hold his hands, and smooth his hair back now and then, and look down into his eyes as she talked with him. She made him repeat to her the whole story of his life from the time he could remember, and when he told about Bachelor Billy and all his kindness and goodness, he saw that her eyes were filled with tears.

"We'll remember him," she said; "we'll be very good to him always."

"Mrs. Burnham," asked Ralph, "do you really an' truly believe 'at I'm your son?"

She evaded the question skilfully.

"I'm not Mrs. Burnham to you any more," she said. "You are my little boy now and I am your mother. But wait! no; you must not call me 'mother' yet, not until the trial is over, then we shall call each other the names we like best, shall we not?"

"Yes; an' will the trial be over to-morrow, do you think?"

"I hope so. I shall be glad to have it done; shall not you?"



"Oh, yes; but so long as it's comin' out so nice, I don't care so very much. It's all so good now 'at it couldn't be much better. I could stan' it another day or two, I guess."

"Well, my dear, we will be patient. It cannot but come out right. Are you glad you are coming here to live with me, Ralph?"

"Yes, ma'am, I am; I'm very much delighted. I've always wanted a mother; you don't know how much I've wanted a mother; but I never 'xpected—not till Gran'pa Simon come—I never 'xpected to get such a lovely one. You don't know; I wisht I could tell you; I wisht I could do sumpthin' so 'at you'd know how glad I am."

She leaned over and kissed him.

"There's only one thing you can do, Ralph, to show me that; you can come back here when the trial is over and be my boy and live with me always."

"Oh, I'll come!"

"And then we'll see what you shall do. Would you like to go to school and study?"

"Oh, may I?"

"Certainly! what would you like to study?"

"Readin'. If I could only study readin' so as to learn to read real good. I can read some now; but you know they's such lots o' things to read 'at I can't do it fast enough."

"Yes, you shall learn to read fast, and you shall read to me. You shall read books to me."

"What! whole books?—through?"

"Yes, would you like that?"

"Oh!" and the boy clasped his hands together in unspeakable delight.

"Yes, and you shall read stories to Mildred, your little sister. I wonder where she is; wouldn't you like to see her?"

"Yes, ma'am, I would, very much."

"I'll send for her."

"You'll have books of your own, you know," continued the lady, as she returned across the room, "and playthings of your own, and a room of your own, near mine, and every night you'll kiss me good-night, will you not, and every morning you will kiss me good-morning?"

"Oh, indeed I will! indeed!"

In through the curtained door-way came little Mildred, her blond curls tossing about her face, her cheeks rosy with health, her eyes sparkling with anticipation.

She had seen Ralph and knew him, but as yet she had not understood that he was her brother. She could not comprehend it at once, there were many explanations to be made, and Ralph's story was retold; but when the fact of his relation to her became fixed in her mind, it was to her a truth that could never afterward be shaken.

"And will you come to live with us?" she asked him.

"Yes," said Ralph, "I 'xpect to."

"And will you play with me?"

"Well, I—I don't know how to play girl's plays, but I guess I can learn," he said, looking inquiringly up into his mother's face.

"You shall both learn whatever you like that is innocent and healthful and pretty to play, my children."

The house-maid, at the door, announced dinner.

"Come," said the lady, placing an arm about each child, "come, let us eat together and see how it seems."

She drew them gently to the dining-room and placed them at the table, and sat where she could look from one to the other and drink in the joy of their presence.

But Ralph had grown more quiet. It was all so new and strange to him and so very beautiful that he could do little more than eat his food, and answer questions, and look about him in admiring wonder.

When dinner was finished the afternoon had grown late, and Ralph, remembering Bachelor Billy's fear, said that he ought to go. They did not try to detain him; but, with many kind words and good-wishes and bright hopes for the morrow, they kissed him good-night and he went his way. The sky was still cloudless; the cool of the coming evening refreshed the air, the birds that sing at twilight were already breaking forth into melody as if impatient for the night, and Ralph walked out through it all like one in a dream.

It was so much sweeter than anything he had ever heard of or thought of, this taste of home, so much, so very much! His heart was like a thistle bloom floating in the air, his feet seemed not to touch the ground; he was walking as a spirit might have walked, buoyed up by thoughts of all things beautiful. He reached the cottage that for years had been his home, and entered it with a cry of gladness on his lips.

"Oh, Uncle Billy! it was—it was just like heaven!" He had thrown himself upon a stool at the man's feet, and sat looking up into the kindly face.

Bachelor Billy did not answer. He only placed his hand tenderly on the boy's head, and they both sat, in silence, looking out through the open door, until the pink clouds in the western sky had faded into gray, and the deepening twilight wrapped the landscape, fold on fold, in an ever thickening veil.

By and by Ralph's tongue was loosened, and he told the story of his visit to Mrs. Burnham. He gave it with all fulness; he dwelt long and lovingly on his mother's beauty and affection, on his sister's pretty ways, on the splendors of their home, on the plans marked out for him.

"An' just to think of it!" he exclaimed, "after to-morrow, I'll be there ev'ry day, *ev'ry day*. It's too beautiful to think of, Uncle Billy; I can't help lookin' at myself an' wonderin' if it's me."

"It's verra fine, but ye've a richt to it, lad, an' ye deserve it, an' it's a blessin' to all o' ye."

Again they fell into silence. The blue smoke from Billy's pipe went floating into the darkness, and up to their ears came the sound of distant church bells ringing out their music to the night.

Finally, Ralph thought of the appointed meeting at Sharpman's office, and started to his feet.

"I mus' hurry now," he said, "or he'll think I ain't a-comin'."

The proposed visit seemed to worry Bachelor Billy somewhat. He did not like Sharpman. He had not had full confidence in him from the beginning. And since the interview on the day of Ralph's return from Wilkesbarre, his faith in the pureness of the lawyer's motives had been greatly shaken. He had watched the proceedings in Ralph's case as well as his limited knowledge of the law would allow, and, though he had discovered nothing, thus far, that would injure or compromise the boy, he was in constant fear lest some plan should be developed by which Ralph would be wronged, either in reputation or estate.

He hesitated, therefore, to have the lad fulfil this appointment.

"I guess I'd better go wi' ye," he said, "mayhap an' ye'll be afeared a-comin' hame i' the dark."

"Oh, no, Uncle Billy!" exclaimed the boy, "they ain't no use in your walkin' way down there. I ain't a bit afraid, an' I'll get home early. Mr. Sharpman said maybe it wouldn't be any use for me to go to Wilkesbarre to-morrow at all, and he'd let me know to-night. No, don't you go! I'm a-goin' to run down the hill so's to get there quicker; good-by!"

The boy started off at a rapid pace, and broke into a run as he reached the brow of the hill, while Bachelor Billy unwillingly resumed his seat, and watched the retreating form of the lad until it was swallowed up in the darkness.

Ralph thought that the night air was very sweet, and he slackened his pace at the foot of the hill, in order to enjoy breathing it.

He was passing along a street lined with pretty, suburban dwellings. Out from one yard floated the rich perfume of some early flowering shrub. The delicious odor lingered in the air along the whole length of the block, and Ralph pleased his fancy by saying that it was following him.

Farther on there was a little family group gathered on the porch, parents and children, talking and laughing, but gently as became the day. Very happy they seemed, very peaceful, untroubled and content. It was beautiful, Ralph thought, very beautiful, this picture of home, but he was no longer envious, his heart did not now grow bitter nor his eyes fill full with tears. His own exceeding hope was too great for that to-night, his own home joys too near and dear.

Still farther on there was music. He could look into the lighted parlor and see the peaceful faces of those who stood or sat there. A girl was at the piano playing; a young, fair girl with a face like the faces of the pictured angels. They were all singing, a familiar sacred song, and the words came floating out so sweetly to the boy's ears that he stopped to listen:—

"O Paradise! O Paradise!  
Who doth not crave for rest?  
Who would not seek the happy land,  
Where they that loved are blest;  
Where loyal hearts and true  
Stand ever in the light,  
All rapture through and through,  
In God's most holy sight?"

Oh, it was all so beautiful! so peaceful! so calm and holy!

Ralph tried to think, as he started on, whether there was anything that he could have, or see, or do, that would increase his happiness. But there was nothing in the whole world now, nothing more, he said to himself, that he could think to ask for.

"Where loyal hearts and true,  
Stand ever in the light."

The words came faintly from the distance to his ears as the music died away, the gentle wind brought perfumed air from out the shadows of the night to touch his face. The quiet stars looked down in peace upon him, the heart that beat within his breast was full with hope, with happiness, with calm content.

## CHAPTER XIII.

### THE PURCHASE OF A LIE.

Lawyer Sharpman sat in his office on Sunday evening, meditating on his success in the Burnham suit and planning to avert the dangers that still lay in his path.

Old Simon's disclosures in court were a source of much anxiety to him. Goodlaw's design in bringing them out was apparent, and he felt that it must in some way be thwarted. Of what use was it to establish the boy's identity if he could not control the boy's fortune? He was glad he had asked Ralph to call. He intended, when he should come, to have a long talk with him concerning his guardian. He hoped to be able to work into the boy's mind a theory that he had been as well treated during his stay with Simon Craft as circumstances would permit. He would remind him, in the most persuasive manner possible, that Craft was old and ill and easily annoyed, that he was poor and unable to work, that his care for and maintenance of Ralph were deeds of the purest generosity, and that the old man's entire connection with the matter was very creditable to him, when all the adverse circumstances against which he had to struggle were taken into account. If he could impress this view of the case strongly enough upon Ralph's mind, he should not greatly fear the result of possible proceedings for the dismissal of the



guardian. This, at any rate, was the first thing to be done, and to-night was the time to do it.

He had been lying back in his chair, with his hands locked behind his head. He now straightened himself, drew closer to the table, turned up the gas, looked over some notes of evidence, and began to mark out a plan for his address to the jury on the morrow. He was sitting in the inner room, the door between that and the outer room being open, but the street door closed.

After a little he heard some one enter and walk across the floor. He thought it must be Ralph, and he looked up to welcome him. But it was dark in the outer office, and he could not see who came, until his visitor was fairly standing in the door-way of his room.

It was not Ralph. It was a young man, a stranger. He wore a pair of light corduroy pantaloons, a checked vest, a double-breasted sack coat, and a flowing red cravat.

He bowed low and said:—

"Have I the honor of addressing Mr. Sharpman, attorney at law?"

"That is my name," said the lawyer, regarding his visitor with some curiosity, "will you walk in?"

"With pleasure, sir."

The young man entered the room, removed his high silk hat from his head, and laid it on the table, top down. Then he drew a card case from an inner pocket, and produced and handed to the lawyer a soiled card on which was printed in elaborate letters the following name and address:—

**L. JOSEPH CHEEKERTON,**

**PHILADELPHIA.**

*"Rhyming Joe."*

While Sharpman was examining the card, his visitor was forming in his mind a plan of procedure. He had come there with a carefully concocted lie on his tongue to swindle the sharpest lawyer in Scranton out of enough money to fill an empty purse.

"Will you be seated, Mr. Cheekerton?" said the lawyer, looking up from the card.

"Thank you, sir!"

The young man drew the chair indicated by Sharpman closer to the table, and settled himself comfortably into it.

"It is somewhat unusual, I presume," he said, "for attorneys to receive calls on Sunday evening:—

"But this motto I hold as a part of my creed,  
The better the day, why, the better the deed.

"Excuse me! Oh, no; it doesn't hurt. I've been composing extemporaneous verse like that for fifteen years. Philosophy and rhyme are my forte. I've had some narrow escapes to be sure, but I've never been deserted by the muses. Now, as to my Sunday evening call. It seemed to be somewhat of a necessity, as I understand that the evidence will be closed in the Burnham case at the opening of court to-morrow. Am I right?"

"It may be, and it may not be," said Sharpman, somewhat curtly. "I am not acquainted with the plans of the defence. Are you interested in the case?"

"Indirectly, yes. You see, Craft and I have been friends for a good many years, we have exchanged confidences, and have matured plans together. I am pretty well acquainted with the history of his successes and his failures."

"Then it will please you to know that he is pretty certain to meet with success in the Burnham suit."

"Yes? I am quite delighted to hear it:—

"Glad to know that wit and pluck  
Bring their owner such good-luck.

"But, between you and me, the old gentleman has brought some faculties to bear on this case besides wit and pluck."

"Ah, indeed?"

"Yes, indeed! You see, I knew all about this matter up to the time the boy ran away. To tell the truth, the old man didn't treat the lad just right, and I gave the little fellow a pointer on getting off. Old Simon hasn't been so friendly to me since, for some reason.

"Strange what trifles oft will tend  
To cool the friendship of a friend.

"In fact, I was not aware that the boy had been found, until I heard that fact from his own lips one day last fall, in Wilkesbarre. We met by a happy chance, and I entertained him on account of old acquaintance's sake."

In a moment the story of Ralph's adventure in Wilkesbarre returned to Sharpman, and he recognized Rhyming Joe as the person who had swindled the lad out of his money. He looked at the young man sternly, and said:—

"Yes; I have heard the story of that chance meeting. You were very liberal on account of old acquaintance's sake, were you not? entertained the boy till his pocket was empty, didn't you?" and the lawyer cast a look of withering contempt on his visitor.

But Rhyming Joe did not wither. On the contrary, he broke into a merry fit of laughter.

"Good joke on the lad, wasn't it?" he replied. "A little rough, perhaps, but you see I was pretty hard up just then; hadn't had a square meal before in two days. I'll not forget the boy's generosity, though; I'll call and see him when he comes into his fortune; he'll be delighted to receive me, I've no doubt.

"For a trifle like that he'll remember no more,  
In the calm contemplation of favors of yore."

But, let that pass. That's a pretty shrewd scheme Old Simon has on foot just now, isn't it? Did he get that up alone or did he have a little legal advice? I wouldn't have said that he was quite up to it all, himself. It's a big thing.

"A man may work hard with his hands and his feet  
And find but poor lodging and little to eat.  
But if he would gather the princeliest gains  
He must smother his conscience and cudgel his brains."

Sharpman looked sternly across at his visitor. "Have you any business with me?" he said; "if not, my time is very valuable, and I desire to utilize it."

"I beg pardon, sir, if I have occupied time that is precious to you. I had no particular object in calling except to gratify a slight curiosity. I had a desire to know whether it was really understood between you—that is whether the old man had enlightened you as to who this boy actually is—that's all."

"There's no doubt as to who the boy is. If you've come here to give me any information on that point, your visit will have been useless. His identity is well established."

"Yes? Well, now I have the good-fortune to know all about that child, and if you are laboring under the impression that he is a son of Robert Burnham, you are very greatly mistaken. He is not a Burnham at all."

Sharpman looked at the young man incredulously. "You do not expect me to believe that?" he said. "You certainly do not mean what you are saying?"

There was a noise in the outer room as of some one entering from the street. Sharpman did not hear it; he was too busily engaged in thinking. Rhyming Joe gave a quick glance at the room door, which stood slightly ajar, then, turning in his chair to face the lawyer, he said deliberately and with emphasis:—

"I say the boy Ralph is not Robert Burnham's son."

For a moment Sharpman sat quietly staring at his visitor; then, in a voice which betrayed his effort to remain calm, he said:—

"What right have you to make such a statement as this? How can you prove it?"

"Well, in the first place I knew the boy's father, and he was not Robert Burnham, I assure you."

"Who was he?"

"Simon Craft's son."

"Then Ralph is—?"

"Old Simon's grandchild."

"How do you happen to know all this?"

"Well, I saw the child frequently before he was taken into the country, and I saw him the night Old Simon brought him back. He was the same child. The young fellow and his wife separated, and the old man had to take the baby. I was on confidential terms with the old fellow at that time, and he told me all about it."

"Then he probably deceived you. The evidence concerning the railroad disaster and the rescue of Robert Burnham's child from the wreck is too well established by the testimony to be upset now by such a story as yours."

"Ah! let me explain that matter to you. The train that went through the bridge was the express. The local was twenty minutes behind it. Old Simon and his grandchild were on the local to the bridge. An hour later they came down to the city on the train which brought the wounded passengers. I had this that night from the old man's own lips. I repeat to you, sir, the boy Ralph is Simon Craft's grandson, and I know it."

In the outer room there was a slight noise as of some person drawing in his breath sharply and with pain. Neither of the men heard it. Rhyming Joe was too intent on giving due weight to his pretended disclosure; Lawyer Sharpman was too busy studying the chances of that disclosure being true. It was evident that the young man was acquainted with his subject. If his story were false he had it too well learned to admit of successful

contradiction. It was therefore of no use to argue with him, but Sharpman thought he would see what was lying back of this.

"Well," he said, calmly, "I don't see how this affects our case. Suppose you can prove your story to be true; what then?"

The young man did not answer immediately. He took a package of cigarettes from his pocket and offered one to Sharpman. It was declined. He lighted one for himself, leaned back in his chair, crossed his legs, and began to study the ceiling through the rings of blue smoke which came curling from his nostrils. Finally he said: "What would you consider my silence on this subject worth, for a period of say twenty-four hours?"

"I do not know that your silence will be of material benefit to us."

"Well, perhaps not. My knowledge, however, may be of material injury to you."

"In what way?"

"By the disclosure of it to your opponent."

"What would he do with it?"

"Use it as evidence in this case."

"Well, had you not better go to him?"

Rhyming Joe laid his cigarette aside, straightened up in his chair, and again faced the lawyer squarely.

"Look here, Mr. Sharpman," he said, "you know, as well as I do, that the knowledge I hold is extremely dangerous to you. I can back up my assertion by any amount of corroborative detail. I am thoroughly familiar with the

facts, and if I were to go on the witness-stand to-morrow for the defendant in this suit, your hopes and schemes would vanish into thin air. Now, I have no great desire to do this; I have still a friendly feeling left for Old Simon, and as for the boy, he is a nice fellow, and I would like to see him prosper. But in my circumstances, as they are at present, I do not feel that I can afford to let slip an opportunity to turn an honest penny.

"If a penny saved is a penny earned,  
Then a penny found is a penny turned."

Sharpman was still looking calmly at his visitor. "Well?" he said, inquiringly.

"Well, to make a long story short, if I get two hundred dollars to-night, I keep my knowledge of Simon Craft and his grandson to myself. If I don't get two hundred dollars to-night, I go to Goodlaw the first thing to-morrow morning and offer my services to the defence. I propose to make the amount of a witness fee out of this case, at any rate."

"You are attempting a game that will hardly work here," said Sharpman, severely. "You will find yourself earning two hundred dollars for the state in the penitentiary of your native city if you persist in that course."

"Very well, sir; you have heard my story, you have my ultimatum. You are at liberty to act or not to act as you see fit. If you do not choose to act it will be unnecessary for me to prolong my visit. I will have to rise early in the morning, in order to get the first Wilkesbarre train, and I must retire without delay.

"The adage of the early bird,  
My soul from infancy has stirred,



And since the worm I sorely need  
I'll practise, now, that thrifty creed."

Rhyming Joe reached for his hat.

Sharpman was growing anxious. There was no doubt that the fellow might hurt them greatly if he chose to do so. His story was not an improbable one. Indeed, there was good reason to believe that it might be true. His manner tended to impress one with its truth. But, true or false, it would not do to have the statement get before that jury. The man must be detained, to give time for further thought.

"Don't be in a hurry," said Sharpman, mildly; "let's talk this matter over a little more. Perhaps we can reach an amicable understanding."

Rhyming Joe detected, in an instant, the weakening on the lawyer's part, and increased his audacity accordingly.

"You have heard my proposition, Mr. Sharpman," he said; "it is the only one I shall make, and I must decline to discuss the matter further. My time, as I have already intimated, is of considerable value to me."

"But how can you expect me to decide on your proposition without first consulting my client? He is in Wilkesbarre. Give us time. Wait until morning; I'll go down on the first train with you."

"No, I don't care to have Old Simon consulted in this matter; if I had cared to, I should have consulted him myself; I know where he is. Besides, his interest in the case is very small compared with yours. You are to get the lion's share, that is apparent, and you, of course, are the one to pay the cost. It is necessary that I should have the money to-night; after to-night it will be too late."

Sharpman arose and began pacing up and down the room. He was inclined to yield to the man's demand. The Burnham suit was drawing rapidly to a successful close. If this fellow should go on the witness-stand and tell his plausible story, the entire scheme might be wrecked beyond retrieval. But it was very annoying to be bulldozed into a thing in this way. The lawyer's stubborn nature rebelled against it powerfully. It would be a great pleasure, he thought, to defy the fellow and turn him into the street. Then a new fear came to him. What would be the effect of this man's story, with its air of genuineness, on the mind of so conscientious a boy as Ralph? He surely could not afford to have Ralph's faith interfered with; that would be certain to bring disaster.

He made up his mind at once. Turning quickly on his heel to face his visitor, he said:—

"I want you to understand that I'm not afraid of you nor of your story, but I don't want to be bothered with you. Now, I'll tell you what I'll do. I'll give you one hundred dollars in cash to-night, on condition that you will leave this town by the first train in the morning, that you'll not go to Wilkesbarre, that you'll not come back here inside of a year, and that you'll not mention a word of this matter to any one so long as you shall live."

The lawyer spoke with determined earnestness. Rhyming Joe looked up at the ceiling as if in doubt.

Finally, he said:—

"Split the difference and call it even,  
A hundred and fifty and I'll be leavin'."

Sharpman was whirling the knob of his safe back and forth. At last he flung open the safe-door.

"I don't care," he said, looking around at his visitor, "whether your story is true or false. We'll call it true if that will please you. But if I ever hear of your lisping it again to any living person, I give you my word for it you shall be sorry. I pay you your own price for your silence; now I want you to understand that I've bought it and it's mine."

He had taken a package of bank-notes from a drawer in his safe, had counted out a portion of them, and now handed them to Rhyming Joe.

"Certainly," said the young man, "certainly; no one can say that I have ever failed to keep an honest obligation; and between you and me there shall be the utmost confidence and good faith.

"Though woman's vain, and man deceives,  
There's always honor among—gentlemen.

"I beg your pardon! it's the first time in fifteen years that I have failed to find an appropriate rhyming word; but the exigencies of a moment, you will understand, may destroy both rhyme and reason."

He was folding the bills carefully and placing them in a shabby purse while Sharpman looked down on him with undisguised ill will.

"Now," said the lawyer, "I expect that you will leave the city on the first train in the morning, and that you will not stop until you have gone at least a hundred miles. Here! here's enough more money to pay your fare that far, and buy your dinner"; and he held out, scornfully, toward the young man, another bank-bill.

Rhyming Joe declined it with a courteous wave of his hand, and, rising, began, with much dignity, to button his coat.

"I have already received," he said, "the *quid pro quo* of the bargain. I do not sue for charity nor accept it. Reserve your financial favors for the poor and needy.

"Go find the beggar crawling in the sun,  
Or him that's worse;  
But don't inflict your charity on one  
With well filled purse."

Sharpman looked amused and put the money back into his pocket. Then a bit of his customary politeness returned to him.

"I shall not expect to see you in Scranton again for some time, Mr. Cheekerton," he said, "but when you do come this way, I trust you will honor me with a visit."

"Thank you, sir. When I return I shall expect to find that your brilliant scheme has met with deserved success; that old Craft has chuckled himself to death over his riches; and that my young friend Ralph is happy in his new home, and contented with such slight remnant of his fortune as may be left to him after you two are through with it. By the way, let me ask just one favor of you on leaving, and that is that the boy may never know what a narrow escape he has had to-night, and may never know that he is not really the son of Robert Burnham. It would be an awful blow to him to know that Old Simon is actually his grandfather; and there's no need, now, to tell him.

"'Where ignorance is bliss,' you know the rest,  
And a still tongue is generally the best."

"Oh, no, indeed! the boy shall hear nothing of the kind from me. I am very much obliged to you, however, for the true story of the matter."

Under the circumstances Sharpman was outdoing himself in politeness, but he could not well outdo Rhyming Joe. The young man extended his hand to the lawyer with a respectful bow.

"I shall long remember your extreme kindness and courtesy," he said.

"Henceforth the spider of a friendship true,  
Shall weave its silken web twixt me and you."

My dear sir, I wish you a very good night!"

"Good-night!"

The young man placed his silk hat jauntily on his head, and passed through the outer office, whistling a low tune; out at the street door and down the walk; out into the gay world of dissipation, down into the treacherous depths of crime; one more of the many who have chained bright intellects to the chariot wheels of vice, and have been dragged through dust and mire to final and to irretrievable disaster.

A moment later a boy arose from a chair in the outer office and staggered out into the street. It was Ralph. He had heard it all.

## CHAPTER XIV.

### THE ANGEL WITH THE SWORD.

Ralph had entered the office just as Rhyming Joe reached the point of his disclosure. He had heard him declare, in emphatic tones: "I say the boy Ralph is not Robert Burnham's son."

It was as though some one had struck him. He dropped into a chair and sat as if under a spell, listening to every word that was uttered. He was powerless to move or to speak until the man who had told the cruel story had passed by him in the dark and gone down the walk into the street.

Then he arose and followed him; he did not know just why, but it seemed as if he must see him, if only to beg him to declare that the story he had just heard him tell was all a lie. And yet Ralph believed that Rhyming Joe had told the truth. Why should he not believe him when Sharpman himself had put such faith in the tale as to purchase the man's silence with money. But if the story were true, if it *were* true, then it should be known; Mrs. Burnham should know it, Mr. Goodlaw should know it, Mr. Sharpman should not conceal it, Rhyming Joe must not be allowed to depart until he had told it on the witness-stand, in open court. He must see him, Ralph thought; he must find him, he must, in some way, compel him to remain. The sound of the man's footsteps had not yet died away as the boy ran after him along the street, but half-way down the block his breath grew short, his heart began to

pound against his breast, he pressed his hand to his side as if in pain, and staggered up to a lamp-post for support.

When he recovered sufficiently to start on, Rhyming Joe had passed out of both sight and hearing. Ralph hurried down the street until he reached Lackawanna Avenue, and there he stopped, wondering which way to turn. But there was no time to lose. If the man should escape him now he might never see him again, he might never hear from his lips whether the dreadful story was really and positively true. He felt that Rhyming Joe would not lie to him to-night, nor deceive him, nor deny his request to make the truth known to those who ought to know it, if he could only find him and speak to him, and if the man could only see how utterly miserable he was. He plunged in among the Sunday evening saunterers, and hurried up the street, looking to the right and to the left, before and behind him, hastening on as he could. Once he thought he saw, just ahead, the object of his search. He ran up to speak to him, looked into his face, and—it was some one else.

Finally he reached the head of the avenue and turned up toward the Dunmore road. Then he came back, crossed over, and went down on the other side of the street. Block after block he traversed, looking into the face of every man he met, glancing into doorways and dark corners, making short excursions into side streets; block after block, until he reached the Hyde Park bridge. He was tired and disheartened as he turned back and wondered what he should do next. Then it occurred to him that he had promised to meet Mr. Sharpman that night. Perhaps the lawyer was still waiting for him. Perhaps, if he should appeal to him, the lawyer would help him to find Rhyming Joe, and to make the truth known before injustice should be done.

He turned his steps in the direction of Sharpman's office, reached it finally, went up the little walk, tried to open the door, and found it locked.

The lights were out, the lawyer had gone. Ralph was very tired, and he sat down on the door-step to rest and to try to think. He felt that he had made every effort to find Rhyming Joe and had failed. To-morrow the man would be gone. Sharpman would go to Wilkesbarre. The evidence in the Burnham case would be closed. The jury would come into court and declare that he, Ralph, was Robert Burnham's son—and it would be all a lie. Oh, no! he could not let that be done. His whole moral nature cried out against it. He must see Sharpman to-night and beg him to put a stop to so unjust a cause. To-morrow it might be too late. He rose and started down the walk to find the lawyer's dwelling. But he did not know in which direction to turn. A man was passing along the street, and Ralph accosted him:—

"Please, can you tell me where Mr. Sharpman lives?" he asked.

"I don't know anything about him," replied the man gruffly, starting on.

In a minute another man came by, and Ralph repeated his question.

"I don't know where he does live, sonny," said the man, "but I know where he would live if I had my choice as to his dwelling-place; he'd reside in the county jail," and this man, too, passed on.

Ralph went back and sat down on the steps again.

The sky had become covered with clouds, no stars were visible, and it was very dark.

What was to be done now? He had failed to find Rhyming Joe, he had failed to find Lawyer Sharpman. The early morning train would carry both of them beyond his reach. Suppose it should? Suppose the case at Wilkesbarre should go on to its predicted end, and the jury should bring in their expected verdict, what then?



Why, then the law would declare him to be Robert Burnham's son; the title, the position, the fortune would all be his; Mrs. Burnham would take him to her home, and lavish love and care upon him; all this unless—unless he should tell what he had heard. Ah! there was a thought. Suppose he should not tell, suppose he should let the case go on just as though he had not known the truth, just as though he had stayed at home that night instead of coming to the city; who would ever be the wiser? who would ever suspect him of knowing that the verdict was unjust? He might yet have it all, all, if only he would hold his tongue. His heart beat wildly with the thought, his breath came in gasps, something in his throat seemed choking him. But that would be wrong—he knew it would be wrong, and wicked; a sense of shame came over him, and he cast the tempting thought aside.

No, there was but one thing for him, as an honest boy, to do, and that was to tell what he had heard.

If he could tell it soon enough to hold the verdict back, so much the better, if he could not, still he had no right to keep his knowledge to himself—the story must be known. And then farewell to all his hopes, his plans, his high ambition. No beautiful home for him now, no loving mother nor winsome sister nor taste of any joy that he had thought to know. It was hard to give them up, it was terrible, but it must be done.

He fell to thinking of his visit to his mother. It seemed to him as though it were something that had taken place very long ago. It was like a sweet dream that he had dreamed as a little boy. He wondered if it was indeed only that afternoon that it had all occurred. It had been so beautiful, so very beautiful; and now! Could it be that this boy, sitting weak, wretched, disconsolate, on the steps of this deserted office, in the night-time, was the same boy whose feet had scarcely touched the ground that afternoon for buoyant happiness? Oh, it was dreadful! dreadful! He began to wonder why

he did not cry. He put up his hands to see if there were any tears on his cheeks, but he found none. Did only people cry who had some gentler cause for tears?

But the thought of what would happen if he should keep his knowledge to himself came back again into his mind. He drove it out, but it returned. It had a fascination about it that was difficult to resist. It would be so easy simply to say nothing. And who would ever know that he was not Mrs. Burnham's son? Why, Old Simon would know, but he would not dare to tell; Lawyer Sharpman would know, but he would not dare to tell; Rhyming Joe would know, but he would not dare to tell, at least, not for a long time. And suppose it should be known after a year, after two years or longer, who would blame him? he would be supposed to have been ignorant of it all; he would be so established by that time in his new home that he would not have to leave it. They might take his property, his money, all things else, but he knew that if he could but live with Mrs. Burnham for a year she would never let him leave her, and that was all he cared for at any rate.

But then, he himself would know that he had no right there; he would have to live with this knowledge always with him, he would have to walk about with an ever present lie on his mind and in his heart. He could not do that, he would not do it; he must disclose his knowledge, and make some effort to see that justice was not mocked. But it was too late to do anything to-night. He wondered how late it was. He thought of Bachelor Billy waiting for him at home. He feared that the good man would be worried on account of his long absence. A clock in a church tower not far away struck ten. Ralph started to his feet, went out into the street again, and up toward home.

But Uncle Billy! what would Uncle Billy say when he should tell him what he had heard? Would he counsel him to hold his tongue? Ah, no! the

boy knew well the course that Uncle Billy would mark out for him.

But it would be a great blow to the man; he would grieve much on account of the lad's misfortune; he would feel the pangs of disappointment as deeply as did Ralph himself. Ought he not to be spared this pain?

And then, a person holding the position of Robert Burnham's son could give much comfort to the man who had been his dearest friend, could place him beyond the reach of possible want, could provide well for the old age that was rapidly approaching, could make happy and peaceful the remnant of his days. Was it not the duty of a boy to do it?

But, ah! he would not have the good man look into his heart and see the lie there, not for worlds.

Ralph was passing along the same streets that he had traversed in coming to the city two hours before; but now the doors of the houses were closed, the curtains were drawn, the lights were out, there was no longer any sound of sweet voices at the steps, nor any laughter, nor any music in the air. A rising wind was stirring the foliage of the trees into a noise like the subdued sobbing of many people; the streets were deserted, a fine rain had begun to fall, and out on the road, after the lad had left the suburbs, it was very dark. Indeed, it was only by reason of long familiarity with the route that he could find his way at all.

But the storm and darkness outside were not to be compared with the tempest in his heart; that was terrible. He had about made up his mind to tell Bachelor Billy everything and to follow his advice when he chanced to think of Mrs. Burnham, and how great her pain and disappointment would be when she should know the truth. He knew that she believed him now to be her son; that she was ready to take him to her home, that she counted very greatly on his coming, and was impatient to bestow on him all the care

and devotion that her mother's heart could conceive. It would be a bitter blow to her, oh, a very bitter blow. It would be like raising her son from the dead only to lay him back into his grave after the first day.

What right had he to inflict such torture as this on a lady who had been so kind to him? What right? Did not her love for him and his love for her demand that he should keep silence? But, oh! to hear the sound of loving words from her lips and know that he did not deserve them, to feel her mother's kisses on his cheek and know that his heart was dark with deep deceit. Could he endure that? could he?

As Ralph turned the corner of the village street, he saw the light from Bachelor Billy's window shining out into the darkness. There were no other lights to be seen. People went early to bed there; they must rise early in the morning.

The boy knew that his Uncle Billy was waiting for him, doubtless with much anxiety, but, now that he had reached the cottage, he stood motionless by the door. He was trying to decide what he should do and say on entering. To tell Uncle Billy or not to tell him, that was the question. He had never kept anything from him before; this would be the first secret he had not shared with him. And Uncle Billy had been so good to him, too, so very good! Yes, he thought he had better tell him; he would do it now, before his resolution failed. He raised his hand to lift the latch. Again he hesitated. If he should tell him, that would end it all. The good man would never allow him to act a falsehood. He would have to bid farewell to all his sweet dreams of home, and his high plans for life, and step back into the old routine of helpless poverty and hopeless toil. He felt that he was not quite ready to do that yet; heart, mind, body, all rebelled against it. He would wait and hope for some way out, without the sacrifice of all that he had longed

for. His hand fell nerveless to his side. He still stood waiting on the step in the beating rain.

But then, it was wrong to keep silent, wrong! wrong! wrong!

The word went echoing through his mind like the stern sentence of some high court; conscience again pushed her way to the front, and the struggle in the boy's heart went on with a fierceness that was terrible.

Suddenly the door was opened from the inside, and Bachelor Billy stood there, shading his eyes with his hand and peering out into the darkness.

"Ralph," he said, "is that yo' a-stannin' there i' the rain? Coom in, lad; coom in wi' ye! Why!" he exclaimed, as the boy entered the room, "ye're a' drippin' wet!"

"Yes, Uncle Billy, it's a-rainin' pirty hard; I believe I—I believe I did git wet."

The boy's voice sounded strange and hard even to himself. Bachelor Billy looked down into his face questioningly.

"What's the matter wi' ye, Ralph? Soun's like as if ye'd been a-cryin'. Anything gone wrong?"

"Oh, no. Only I'm tired, that's all, an'—an' wet."

"Ye look bad i' the face. Mayhap an' ye're a bit sick?"

"No, I ain't sick."

"Wull, then, off wi' the wet duddies, an' we'll be a-creepin' awa' to bed."

As Ralph proceeded to remove his wet clothing, Bachelor Billy watched him with increasing concern. The boy's face was white and haggard, there were dark crescents under his eyes, his movements were heavy and confused, he seemed hardly to know what he was about.

"Has the lawyer said aught to mak' ye unhappy, Ralph?" inquired Billy at last.

"No, I ain't seen Mr. Sharpman. He wasn't in. He was in when I first went there, but somebody else was there a-talkin' to 'im, an' I went out to wait, an' w'en I got back again the office was locked, so I didn't see 'im."

"Ye've been a lang time gone, lad?"

"Yes, I waited aroun', thinkin' maybe he'd come back, but he didn't. I didn't git started for home" till just before it begun to rain."

"Mayhap ye got a bit frightened a-comin' up i' the dark?"

"No—well, I did git just a little scared a-comin' by old No. 10 shaft; I thought I heard a funny noise in there."

"Ye s'ould na be oot so late alone. Nex' time I'll go wi' ye mysel'!"

Ralph finished the removal of his wet clothing, and went to bed, glad to get where Bachelor Billy could not see his face, and where he need not talk.

"I'll wait up a bit an' finish ma pipe," said the man, and he leaned back in his chair and began again his slow puffing.

He knew that something had gone wrong with Ralph. He feared that he was either sick or in deep trouble. He did not like to question him too

closely, but he thought he would wait a little before going to bed and see if there were any further developments.

Ralph could not sleep, but he tried to lie very still. A half-hour went by, and then Bachelor Billy stole softly to the bed and looked down into the lad's face. He was still awake.

"Have you got your pipe smoked out, Uncle Billy?" he asked.

"Yes, lad; I ha' just finished it."

"Then are you comin' to bed now?"

"I thocht to. Do ye want for anything?"

"Oh, no! I'm all right."

The man began to prepare for bed.

After a while Ralph spoke.

"Uncle Billy!"

"What is it, lad?"

"I've been thinkin', s'pose this suit should go against us, do you b'lieve Mrs. Burnham would do anything more for me?"

"She's a gude woman, Ralph. Na doot she'd care for ye; but ye could na hope to have her tak' ye to her hame, an they proved ye waur no' her son."

"An' then—an' then I'd stay right along with you, wouldn't I?"

"I hope so, lad, I hope so. I want ye s'ould stay wi' me till ye find a better place."

"Oh, I couldn't find a better place to stay, I know I couldn't, 'xcept with my—'xcept with Mrs. Burnham."

"Wull, ye need na worry aboot the matter. Ye'll ha' naught to fear fra the trial, I'm thinkin'. Gae to sleep noo; ye'll feel better i' the mornin', na doot."

Ralph was silent, but only for a minute. A new thought was working slowly into his mind.

"But, Uncle Billy," he said, "s'pose they should prove, to-morrow, 'at Simon Craft is my own gran'father, would I have to—Oh! Uncle Billy!"

The lad started up in bed, sat there for a moment with wildly staring eyes, and then sprang to the floor trembling with excitement and fear.

"Oh, don't!" he cried; "Uncle Billy, don't let him take me back there to live with him! I couldn't stan' it! I couldn't! I'd die! I can't go, Uncle Billy! I can't!"

"There, there, lad! ha' no fear; ye'll no' go back, I'll no' let ye."

The man had Ralph in his arms trying to quiet him.

"But," persisted the boy, "he'll come for me, he'll, make me go. If they find out I'm his gran'son there at the court, they'll tell him to take me, I know they will!"

"But ye're no' his gran'son, Ralph, ye've naught to do wi' 'im. Ye're Robert Burnham's son."



"Oh, no, Uncle Billy, I ain't, I—" He stopped suddenly. The certain result of disclosing his knowledge to his Uncle Billy flashed warningly across his mind. If Bachelor Billy knew it, Mrs. Burnham must know it; if Mrs. Burnham knew it, Goodlaw and the court must know it, the verdict would be against him, Simon Craft would come to take him back to the terrors of his wretched home, and he would have to go. The law that would deny his claim as Robert Burnham's son would stamp him as the grandson of Simon Craft, and place him again in his cruel keeping.

Oh, no! he must not tell. If there were reasons for keeping silence before, they were increased a hundred-fold by the shadow of this last danger. He felt that he had rather die than go back to live with Simon Craft.

Bachelor Billy was rocking the boy in his arms as he would have rocked a baby.

"There, noo, there, noo, quiet yoursel'," he said, and his voice was very soothing, "quiet yoursel'; ye've naught to dread; it'll a' coom oot richt. What's happenit to ye, Ralph, that ye s'ould be so fearfu'?"

"N—nothin'; I'm tired, that's all. I guess I'll go to bed again."

He went back to bed, but not to sleep. Hot and feverish, and with his mind in a tumult, he tossed about, restlessly, through the long hours of the night. He had decided at last that he could not tell what he had heard at Sharpman's office. The thought of having to return to Simon Craft had settled the matter in his mind. The other reasons for his silence he had lost sight of now; this last one outweighed them all, and placed a seal upon his tongue that he felt must not be broken.

Toward morning he fell into a troubled sleep and dreamed that Old Simon was holding him over the mouth of Burnham Shaft, threatening to

drop him down into it, while Sharpman stood by, with his hands in his pockets, laughing heartily at his terror. He managed to cry out, and awoke both himself and Bachelor Billy. He started up in bed, clutching at the coverings in an attempt, to save himself from apparent disaster, trembling from head to foot, moaning hoarsely in his fright.

"What is it, Ralph, lad, what's ailin' ye?"

"Oh, don't! don't let him throw me—Uncle Billy, is that you?"

"It's me, Ralph. Waur ye dreamin'? There, never mind; no one s'all harm ye, ye're safe i' the bed at hame. Gae to sleep, lad, gae to sleep."

"I thought they was goin' to throw me down the shaft. I must 'a' been a-dreamin'."

"Yes, ye waur dreamin'. Gae to sleep."

But Ralph did not go to sleep again that night, and when the first gray light of the dawning day came in at the cottage window he arose. Bachelor Billy was still wrapped in heavy slumber, and the boy moved about cautiously so as not to waken him.

When he was dressed he went out and sat on a bench by the door. The storm of the night before had left the air cool and sweet, and it refreshed him to sit there and breathe it, and watch the sun as it came up from behind the long slanting roof of Burnham Breaker.

But he was very miserable, very miserable indeed. It was not so much the sense of fear, of pain, of disappointment that disturbed him now, it was the misery of a fettered conscience, the shadow of an ever present shame.

Finally the door was opened and Bachelor Billy stepped out.

"Good mornin', Uncle Billy," said the boy, trying to speak cheerfully.

"Gude mornin' till ye, Ralph! Ye're up airly the mornin'. I mak' free to say ye're a-feelin' better."

"Yes, I am. I didn't sleep very well, but I'm better this mornin'. I wisht it was all over with—the trial I mean; you see it's a-makin' me kind o' nervous an'—an' tired. I can't stan' much 'xcitement, some way."

"Wull, ye'll no' ha' lang to wait I'm a-thinkin'. It'll be ower the day. What about you're gaein' to Wilkesbarre?"

"I don't know. I guess I'll go down to Mr. Sharpman's office after a while, an' see if he's left any word for me."

Mrs. Maloney appeared at her door.

"The top o' the mornin' to yez!" she cried, cheerily. "It's a fine mornin' this!"

Both Bachelor Billy and Ralph responded to the woman's hearty greeting. She continued:

"Ye'll be afther gettin' out in the air, I mind, to sharpen up the appetites; an' a-boardin' with a widdy, too, bad 'cess to ye!"

Mrs. Maloney was inclined to be jovial, as well as kind-hearted. "Well, I've a bite on the table for yez, an ye don't come an' ate it, the griddle-cakes'll burn an' the coffee'll be cowld, an'—why, Ralph, is it sick ye are? sure, ye're not lookin' right well."

"I wasn't feelin' very good las' night, Mrs. Maloney, but I'm better this mornin'."

The sympathetic woman took the boy's hand and rubbed it gently, and, with many inquiries and much advice, she led him to the table. He forced himself to eat a little food and to drink something that the good woman had prepared for him, which, she declared emphatically, would drive off the "wakeness."

Bachelor Billy did not take his dinner with him that morning as usual. He said he would come back at noon to learn whether anything new had occurred in the matter of the lawsuit, and whether it would be necessary for Ralph to go to Wilkesbarre.

He was really much concerned about the boy. Ralph's conduct since the evening before had been a mystery to him. He knew that something was troubling the lad greatly; but, whatever it was, he had faith that Ralph would meet it manfully, the more manfully, perhaps, without his help. So he went away with cheering predictions concerning the suit, and with kindly admonition to the boy to remain as quiet as possible and try to sleep.

But Ralph could not sleep, nor could he rest. He was laboring under too much excitement still to do either. He walked nervously about the cottage for a while, then he started down toward the city. He went first to Sharpman's office, and the clerk told him that Mr. Sharpman had left word that Ralph need not go to Wilkesbarre that day. Then he went on to the heart of the city. He was trying to divert himself, trying to drown his thought, as people try who are suffering from the reproaches of conscience.

He walked down to the railroad station. He wondered if Rhyiming Joe had gone. He supposed he had. He did not care to see him now, at any rate.

He sat on a bench in the waiting-room for a few minutes to rest, then he went out into the street again. But he was very wretched. It seemed to him as though all persons whom he met looked down on him disdainfully, as if

they knew of his proposed deceit, and despised him for it. A lady coming toward him crossed to the other side of the walk before she reached him. He wondered if she saw disgrace in his face and was trying to avoid him.

After that he left the busy streets and walked back, by a less frequented route, toward home. The day was very bright and warm, but the brightness had a cold glare in Ralph's eyes, and he actually shivered as he walked on in the shade of the trees. He crossed to the sunny side of the street, and hurried along through the suburbs and up the hill.

Widow Maloney called to him as he reached the cottage door, to ask after his health; but he told her he was feeling better, and went on into his own room. He closed the door behind him, locked it, and threw himself down upon the bed. He was very wretched. Oh, very wretched, indeed.

He had decided to keep silent, and to let the case at Wilkesbarre go on to its expected end, but the decision had brought to him no peace; it had only made him more unhappy than he was before. But why should it do this? Was he not doing what was best? Would it not be better for Uncle Billy, for Mrs. Burnham, for himself? Must he, for the sake of some farfetched moral principle, throw himself into the merciless clutch of Simon Craft?

Thus the fight began again, and the battle in the boy's heart went on with renewed earnestness. He gave to his conscience, one by one, the reasons that he had for acting the part of Robert Burnham's son; good reasons they were too, overwhelmingly convincing they seemed to him; but his conscience, like an angel with a flaming sword, rejected all of them, declaring constantly that what he thought to do would be a grievous wrong.

But whom would it wrong? Not Ralph Burnham, for he was dead, and it could be no wrong to him; not Mrs. Burnham, for she would rejoice to have this boy with her, even though she knew he was not her son; not Bachelor

Billy, for he would be helped to comfort and to happiness. And yet there stood the angel with the flaming sword crying out always that it was wrong.

But whom would it wrong? himself? Ah! there was a thought—would it be wronging himself?

Well, would it not? Had it not already made a coward of him? Was it not degrading him in his own eyes? Was it not trying to stifle the voice of conscience in his breast? Would it not make of him a living, walking lie? a thing to be shunned and scorned? Had he a right to place a burden so appalling on himself? Would it not be better to face the toil, the pain, the poverty, the fear? Would it not be better even to die than to live a life like that?

He sprang from the bed with clenched hands and flashing eyes and swelling nostrils. A fire of moral courage had blazed up suddenly in his breast. His better nature rose to the help of the angel with the flaming sword, and together they fought, as the giants of old fought the dragons in their path. Then hope came back, and courage grew, and resolution found new footing. He stood there as he stood that day on the carriage that bore Robert Burnham to his death, the light of heroism in his eyes, the glow of splendid faith illumining his face. He could not help but conquer. He drove the spirit of temptation from his breast, and enthroned in its stead the principle of everlasting right. There was no thought now of yielding; he felt brave and strong to meet every trial, yes, every terror that might lie in his path, without flinching one hair's breadth from the stern line of duty.

But now that his decision was made, he must act, and that promptly. What was the first thing to be done? Why, the first thing always was to confide in Uncle Billy, and to ask for his advice.

He seized his hat and started up the village street and across the hill to Burnham Breaker There was no lagging now, no indecision in his step, no doubt within his mind.

He was once more brave, hopeful, free-hearted, ready to do anything or all things, that justice might be done and truth become established.

The sun shone down upon him tenderly, the birds sang carols to him on the way, the blossoming trees cast white flowers at his feet; but he never stayed his steps nor turned his thought until the black heights of Burnham Breaker threw their shadows on his head.

## CHAPTER XV.

### AN EVENTFUL JOURNEY.

The shaft-tower of Burnham Breaker reached up so high from the surface of the earth that it seemed, sometimes, as if the low-hanging clouds were only a foot or two above its head. In the winter time the wind swept wildly against it, the flying snow drifted in through the wide cracks and broken windows, and the men who worked there suffered from the piercing cold. But when summer came, and the cool breeze floated across through the open places at the head, and one could look down always on the green fields far below, and the blossoming gardens, and the gray-roofed city, and the shining waters of the Lackawanna, winding southward, and the wooded hills rising like green waves to touch the far blue line of mountain peaks, ah, then it was a pleasant place to work in. So Bachelor Billy thought, these warm spring days, as he pushed the dripping cars from the carriage, and dumped each load of coal into the slide, to be carried down between the iron-teethed rollers, to be crushed and divided and screened and re-screened, till it should pass beneath the sharp eyes and nimble fingers of the boys who cleansed it from its slate and stone.

Billy often thought, as he dumped a carload into the slide, and saw a huge lump of coal that glistened brightly, or glowed with iridescent tints, or was veined with fossil-marked or twisted slate, that perhaps, down below in



the screen-room, Ralph's eyes would see the brightness of the broken lump, or Ralph's fingers pick the curious bits of slate from out the moving mass. And as he fastened up the swing-board and pushed the empty car to the carriage, he imagined how the boy's face would light up with pleasure, or his brown eyes gleam with wonder and delight in looking on these strange specimens of nature's handiwork.

But to-day Ralph was not there. In all probability he would never be there again to work. Another boy was sitting on his bench in the screen-room, another boy was watching rainbow coal and fern-marked slate. This thought in Bachelor Billy's mind was a sad one. He pushed the empty car on the carriage, and sat down on a bench by the window to consider the subject of Ralph's absence.

Something had gone wrong at the foot of the shaft. There were no cars ready for hoisting, and Billy and his co-laborer, Andy Gilgallon, were able to rest for many minutes from their toil.

As they sat looking down upon the green landscape below them, Bachelor Billy's attention was attracted to a boy who was hurrying along the turnpike road a quarter of a mile away. He came to the foot of the hill and turned up the path to the breaker, looking up to the men in the shaft-tower as he hastened on, and waving his hand to them.

"I believe it's Ralph," said Billy, "it surely is. An ye'll mind both carriages for a bit when they start up, Andy, I'll go t' the lad," and he hurried across the tracks and down the dark and devious way that led to the surface of the earth.

At the door of the pump-room he met Ralph. "Uncle Billy!" shouted the boy, "I want to see you; I've got sumpthin' to tell you."

Two or three men were standing by, watching the pair curiously, and Ralph continued: "Come up to the tree where they ain't so much noise; 'twon't take long."

He led the way across the level space, up the bank, and into the shadow of the tree beneath which the breaker boys had gathered a year before to pass resolutions of sympathy for Robert Burnham's widow;

They were no sooner seated on the rude bench than Ralph began:—

"I ought to 'a' told you before, I done very wrong not to tell you, but I couldn't raise the courage to do it till this mornin'. Here's what I want you to know."

Then Ralph told, with full detail, of his visit to Sharpman's office on Sunday evening, of what he had heard there, of his subsequent journey through the streets of the city, of his night of agony, of his morning of shame, of his final victory over himself.

Bachelor Billy listened with intense interest, and when he had heard the boy's story to the end he dashed the tears from his eyes and said: "Gie's your han' Ralph; gie's your twa han's! Ye're a braw lad. Son or no son o' Robert Burnham, ye're fit to stan' ony day in his shoes!"

He was looking down with strong admiration into the boy's pale face, holding the small hands affectionately in both of his.

"I come just as quick as I could," continued the boy, "after I got over thinkin' I'd keep still about it, just as quick as I could, to tell you an' ask you what to do. I'll do anything 'at you tell me it's right to do, Uncle Billy, anything. If you'll only say I must do it, I will. But it's awful hard to do it all alone, to let 'em know who I am, to give up everything so, an' not to have

any mother any more, nor no sister, nor no home, nor no learnin', nor nothing; not anything at all, never, any more; it's terrible! Oh, Uncle Billy, it's terrible!"

Then, for the first time since the dreadful words of Rhyming Joe fell on his ears in the darkness of Sharpman's office, Ralph gave way to tears. He wept till his whole frame shook with the deep force of his sobs.

Bachelor Billy put his arm around the boy and drew him to his side. He smoothed back the tangled hair from the child's hot forehead and spoke rude words of comfort into his ears, and after a time Ralph grew quiet.

"Do you think, Uncle Billy," asked Ralph, "'at Rhymin' Joe was a-tellin' the truth? He used to lie, I know he did, I've heard 'im lie myself."

"It looks verra like, Ralph, as though he might 'a' been a-tellin' o' the truth; he must 'a' been knowin' to it all, or he could na tell it so plain."

"Oh! he was; he knew all about it. I remember him about the first thing. He was there most all the time. But I didn't know but he might just 'a' been lyin' to get that money."

"It's no' unlikely. But atween the twa, I'd sooner think it was the auld mon was a-tellin' o' the lee. He has more to make out o' it, do ye see?"

"Well, there's the evidence in court."

"True, but Lawyer Sharpman kens the worth o' that as well as ony o' us. An he was na fearfu' that the truth would owerbalance it, he wadna gi' a mon a hunderd an' fifty dollars to hold his tongue. I'm doubtfu' for ye, Ralph, I'm verra doubtfu'."

Ralph had believed Rhyming Joe's story from the beginning, but he felt that this belief must be confirmed by Uncle Billy in order to put it beyond question. Now he was satisfied. It only remained to act.

"It's all true," he said; "I know it's all true, an' sumptin's got to be done. What shall I do, Uncle Billy?"

The troubled look deepened on the man's face.

"Whether it's fause or true," he replied, "ye s'ould na keep it to yoursel'. She ought to know. It's only fair to go an' tell the tale to her an' let her do what she thenks bes'."

"Must I tell Mrs. Burnham? Must I go an' tell her 'at I ain't her son, an' 'at I can't live with her, an' 'at we can't never be happy together the way we talked? Oh, Uncle Billy, I can't do that, I can't!"

He looked up beseechingly into the man's face. Something that he saw there—pain, disappointment, affection, something, inspired him with fresh courage, and he started to his feet and dashed the tears from his eyes.

"Yes, I can do it too!" he exclaimed. "I can do anything 'at's right, an' that's right. I won't wait; I'll go now."

"Don't haste, lad; wait a bit; listen! If the lady should be gone to court ye mus' gae there too. If ye canna find her, ye mus' find her lawyer. One or the ither ye s'ould tell, afoor the verdict comes; afterwards it might be too late."

"Yes, I'll do it, I'll do it just like that."

"Mos' like ye'll have to go to Wilkesbarre. An ye do I'll go mysel'. But dinna wait for me. I'll coom when I can get awa'. Ye s'ould go on the first train that leaves."

"Yes, I unnerstan'. I'll go now."

"Wait a bit! Keep up your courage, Ralph. Ye've done a braw thing, an' ye're through the worst o' it; but ye'll find a hard path yet, an' ye'll need a stout hert. Ralph," he had taken both the boy's hands into his again, and was looking tenderly into his haggard face and bloodshot eyes; the traces of the struggle were so very plain—"Ralph, I fear I'd cry ower ye a bit an we had the time, ye've sufferit so. An' it's gude for ye, I'm thinkin', that ye mus' go quick. I'd make ye weak, an' ye need to be strang. I canna fear for ye, laddie; ye ken the right an' ye'll do it. Good-by till ye; it'll not be lang till I s'all go to ye; good-by!"

He bent down and kissed the boy's forehead and turned him to face toward the city; and when Ralph had disappeared below the brow of the hill, the rough-handed, warm-hearted toiler of the breaker's head wiped the tears from his face, and climbed back up the steep steps, and the long walks of cleated plank, to engage in his accustomed task.

There was no shrinking on Ralph's part now. He was on fire with the determination to do the duty that lay so plainly in his sight. He did not stop to argue with himself, he scarcely saw a person or a thing along his path; he never rested from his rapid journey till he reached the door of Mrs. Burnham's house.

A servant came in answer to his ring at the bell, and gave him pleasant greeting. She said that Mrs. Burnham had gone to Wilkesbarre, that she had started an hour before, that she had said she would come back in the early evening and would doubtless bring her son with her.

Ralph looked up into the woman's face, and his eyes grew dim.

"Thank you," he said, repressing a sob, and he went down the steps with a choking in his throat and a pain at his heart.

He turned at the gate, and looked back through the half-opened door into the rich shadows that lay beyond it, with a ray of crimson light from the stained glass window cleaving them across, and then his eyes were blinded with tears, and he could see no more. The gates of his Eden were closed behind him; he felt that he should never enter them again.

But this was no time for sorrow and regret.

He wiped the tears from his eyes and turned his face resolutely toward the heart of the city.

At the railroad station he was told that the next train would leave for Wilkesbarre at twelve o'clock.

It lacked half an hour of that time now. There was nothing to do but to wait. He began to mark out in his mind the course he should pursue on reaching Wilkesbarre. He thought he would inquire the way to Mr. Goodlaw's office, and go directly to it and tell the whole story to him. Perhaps Mrs. Burnham would be there too, that would be better yet, more painful but better. Then he should follow their advice as to the course to be pursued. It was more than likely that they would want him to testify as a witness. That would be strange, too, that he should give such evidence voluntarily as would deprive him of a beautiful home, of a loving mother, and of an honored name. But he was ready to do it; he was ready to do anything now that seemed right and best, anything that would meet the approval of his Uncle Billy and of his own conscience.

When the train was ready he found a seat in the cars and waited impatiently for them to start. For some reason they were late in getting

away, but, once started, they seemed to be going fast enough to make up for lost time.

In the seats behind Ralph was a merry party of young girls. Their incessant chatter and musical laughter came to his ears as from a long distance. At any former time he would have listened to them with great pleasure; such sounds had an unspeakable charm for him; but to-day his brain was busied with weightier matters.

He looked from the car window and saw the river glancing in the sunlight, winding under shaded banks, rippling over stony bottoms. He saw the wooded hill-sides, with the delicate green of spring upon them fast deepening into the darker tints of summer. He saw the giant breakers looming up, black and massive, in the foreground of almost every scene. And yet it was all scarcely more to him than a shadowy dream. The strong reality in his mind was the trying task that lay before him yet, and the bitter outcome, so soon to be, of all his hopes and fancies.

At Pittston Junction there was another long delay. Ralph grew very nervous and impatient.

If the train could have reached Wilkesbarre on time he would have had only an hour to spare before the sitting of the court. Now he could hope for only a half-hour at the best. And if anything should happen to deprive him of that time; if anything *should* happen so that he should not get to court until after the case was closed, until after the verdict of the jury had been rendered, until after the law had declared him to be Robert Burnham's son; if anything *should* happen! His face flushed, his heart began to beat wildly, his breath came in gasps. If such a thing were to occur, without his fault, against his will and effort, what then? It was only for a moment that he gave way to this insidious and undermining thought. Then he fought it back, crushed it, trampled on it, and set his face again sternly to the front.

At last the train came, the impatient passengers entered it, and they were once more on their way.

It was a relief at least to be going, and for the moment Ralph had a faint sense of enjoyment in looking out across the placid bosom of the Susquehanna, over into the tree-girt, garden-decked expanse of the valley of Wyoming. Off the nearer shore of a green-walled island in the river, a group of cattle stood knee-deep in the shaded water, a picture of perfect comfort and content.

Then the train swept around a curve, away from the shore, and back among the low hills to the east. Suddenly there was a bumping together of the cars, an apparently powerful effort to check their impetus, a grinding of the brakes on the wheels, a rapid slowing of the train, and a slight shock at stopping.

The party of girls had grown silent, and their eyes were wide and their faces blanched with fear.

The men in the car arose from their seats and went out to discover the cause of the alarm. Ralph went also. The train had narrowly escaped plunging into a mass of wrecked coal cars, thrown together by a collision which had just occurred, and half buried in the scattered coal.

To make the matter still worse the collision had taken place in a deep and narrow cut, and had filled it from side to side with twisted and splintered wreckage.

What was to be done? the passengers asked. The conductor replied that a man would be sent back to the next station, a few miles away, to telegraph for a special train from Wilkesbarre, and that the passengers would take the



train from the other side of the wreck. And how long would they be obliged to wait here?

"Well, an hour at any rate, perhaps longer."

"That means two hours," said an impatient traveller, bitterly.

Ralph heard it all. An hour would make him very late, two hours would be fatal to his mission. He went up to the conductor and asked,—

"How long'd it take to walk to Wilkesbarre?"

"That depends on how fast you can walk, sonny. Some men might do it in half or three quarters of an hour: you couldn't." And the man looked down, slightly, on the boyish figure beside him.

Ralph turned away in deep thought. If he could walk it in three-quarters of an hour, he might yet be in time; time to do something at least. Should he try?

But this accident, this delay, might it not be providential? Must he always be striving against fate? against every circumstance that would tend to relieve him? against every obstacle thrown into his path to prevent him from bringing calamity on his own head? Must he?—but the query went no further. The angel with the flaming sword came back to guard the gates of thought, and conscience still was king. He would do all that lay in his human power, with every moment and every muscle that he had, to fulfil the stern command of duty, and then if he should fail, it would be with no shame in his heart, no blot upon his soul.

Already he was making his way through the thick underbrush along the steep hill-side above the wreck, stumbling, falling, bruising his hands and knees, and finally leaping down into the railroad track on the other side of

the piled-up cars. From there he ran along smoothly on the ties, turning out once for a train of coal cars to pass him, but stopping for nothing. A man at work in a field by the track asked him what the matter was up the line; the boy answered him in as few words as possible, walking while he talked, and then ran on again. After he had gone a mile or more he came to a wagon-road crossing, and wondered if, by following it, he would not sooner reach his journey's end. He could see, in the distance, the smoke arising from a hundred chimneys where the city lay, and the road looked as though it would take him more directly there. He did not stop long to consider. He plunged ahead down a little hill, and then along on a foot-path by the side of the wagon-track. The day had grown to be very warm, and Ralph removed his jacket and carried it on his arm or across his shoulder. He became thirsty after a while, but he dared not stop at the houses along the way to ask for water; it would take too much time. He met many wagons coming toward him, but there seemed to be few going in to the city. He had hoped to get a ride. He had overtaken a farmer with a wagon-load of produce going to the town and had passed him. Two or three fast teams whirled by, leaving a cloud of dust to envelop him. Then a man, riding in a buggy, drove slowly down the road. Ralph shouted at him as he passed:—

"Please, sir, may I have a ride? I'm in a desp'ate hurry!"

But the man looked back at him contemptuously. "I don't run a stage for the benefit of tramps," he said, and drove on.

Ralph was discouraged and did not dare to ask any one else for a ride, though there seemed to be several opportunities to get one.

But he came to a place, at last, where a little creek crossed the road, a cool spring run, and he knelt down by it and quenched his thirst, and considered that if he had been in a wagon he would have missed the drink. The road was somewhat disappointing to him, too. It seemed to turn away,

after a little distance, from the direct line to the city, and to bear to the west, toward the river. He feared that he had made a mistake in leaving the railroad, but he only walked the faster. Now and then he would break into a run and keep running until his breath gave out, then he would drop back into a walk.

His feet began to hurt him. One shoe rubbed his heel until the pain became so intense that he could not bear it, and he sat down by the roadside and removed his shoes and stockings, and then ran on in his bare feet. The sunlight grew hotter; no air was stirring; the dust hung above the road in clouds. Deep thirst came back upon the boy; his limbs grew weak and tired; his bared feet were bruised upon the stones.

But he scarcely thought of these things; his only anxiety was that the moments were passing, that the road was long, that unless he reached his journey's end in time injustice would be done and wrong prevail.

So he pressed on; abating not one jot of his swiftness, falling not one hair's breadth from his height of resolution, on and on, foot-sore, thirsty, in deep distress; but with a heart unyielding as the flint, with a purpose strong as steel, with a heroism more magnificent than that which meets the points of glittering bayonets or the mouths of belching cannon.

## CHAPTER XVI.

### A BLOCK IN THE WHEEL.

At half-past one o'clock people began to loiter into the court-house at Wilkesbarre; at two the court-room was full. They were there, the most of them, to hear the close of the now celebrated Burnham case.

The judge came in from a side door and took his seat on the bench. Beneath him the prothonotary was busy writing in a big book. Down in the bar the attorneys sat chatting familiarly and pleasantly with one another. Sharpman was there, and Craft was at his elbow.

Goodlaw was there, and Mrs. Burnham sat in her accustomed place. The crier opened court in a voice that could be heard to the farthest end of the room, though few of the listeners understood what his "Oyez! oyez! oyez!" was all about.

Some opinions of the court were read and handed down by the judge. The prothonotary called the jury list for the week. Two or three jurors presented applications for discharge which were patiently considered and acted on by the court.

The sheriff arose and acknowledged a bunch of deeds, the title-pages of which had been read aloud by the judge.

An attorney stepped up to the railing and presented a petition to the court; another attorney arose and objected to it, and quite a little discussion ensued over the matter. It finally ended by a rule being granted to show cause why the petition should not be allowed. Then there were several motions made by as many lawyers. All this took much time; a good half-hour at least, perhaps longer.

Finally there was a lull. The judge was busily engaged in writing. The attorneys seemed to have exhausted their topics for conversation and to be waiting for new ones.

The jury in the Burnham case sat listlessly in their chairs, glad that their work in the matter at issue was nearly done, yet regretful that a case had not been made out which might have called for the exercise of that large intelligence, that critical acumen, that capacity for close reasoning, of which the members of the average jury feel themselves to be severally and collectively possessed. As it was, there would be little for them to do. The case was extremely one-sided, "like the handle on a jug," as one of them sententiously and somewhat scornfully remarked.

The judge looked up from his writing. "Well, gentlemen," he said, "are you ready to proceed in the case of 'Craft against Burnham'?"

"We are ready on the part of the plaintiff," replied Sharpman.

Goodlaw arose. "If it please the court," he said, "we are in the same position to-day that we were in on Saturday night at the adjournment. This matter has been, with us, one of investigation rather than of defence.

"Though we hesitate to accept a statement of fact from a man of Simon Craft's self-confessed character, yet the corroborative evidence seems to warrant a belief in the general truth of his story.

"We do not wish to offer any further contradictory evidence than that already elicited from the plaintiff's witnesses. I may say, however, that this decision on our part is due not so much to my own sense of the legal barrenness of our case as to my client's deep conviction that the boy Ralph is her son, and to her great desire that justice shall be done to him."

"In that case," said the judge, "I presume you will have nothing further to offer on the part of the plaintiff, Mr. Sharpman?"

"Nothing," replied that gentleman, with an involuntary, smile of satisfaction on his lips.

"Then," said Goodlaw, who was still standing, "I suppose the evidence may be declared closed. I know of no—" He stopped and turned to see what the noise and confusion back by the entrance was about. The eyes of every one else in the room were turned in that direction also. A tipstaff was trying to detain Ralph at the door; he had not recognized him. But the boy broke away from him and hurried down the central aisle to the railing of the bar. In the struggle with the officer he had lost his hat, and his hair was tumbled over his forehead. His face was grimy and streaked with perspiration; his clothes were torn and dusty, and in his hand he still carried his shoes and stockings.

"Mr. Goodlaw!" he exclaimed in a loud whisper as he hastened across the bar, "Mr. Goodlaw, wait a minute! I ain't Robert Burnham's son! I didn't know it till yestaday; but I ain't—I ain't his son!"

The boy dropped, panting, into a chair. Goodlaw looked down on him in astonishment. Old Simon clutched his cane and leaned forward with his eyes flashing fire. Mrs. Burnham, her face pale with surprise and compassion, began to smooth back the hair from the lad's wet forehead. The

people back in the court-room had risen to their feet, to look down into the bar, and the constables were trying to restore order.

It all took place in a minute.

Then Ralph began to talk again:—

"Rhymin' Joe said so; he said I was Simon Craft's grandson; he told—"

Sharpman interrupted him. "Come with me, Ralph," he said, "I want to speak with you a minute." He reached out his hand, as if to lead him away; but Goodlaw stepped between them, saying, sternly:—

"He shall not go! The boy shall tell his story unhampered; you shall not crowd it back down his throat in private!"

"I say the boy shall go," replied Sharpman, angrily. "He is my client, and I have a right to consult with him."

This was true. For a moment Goodlaw was at his wit's end. Then, a bright idea came to him.

"Ralph," he said, "take the witness-stand."

Sharpman saw that he was foiled.

He turned to the court, white with passion.

"I protest," he exclaimed, "against this proceeding! It is contrary to both law and courtesy. I demand the privilege of consulting with my client!"

"Counsel has a right to call the boy as a witness," said the judge, dispassionately, "and to put him on the stand at once. Let him be sworn."

Ralph pushed his way up to the witness-stand, and the officer administered the oath. He was a sorry-looking witness indeed.

At any other time or in any other place, his appearance would have been ludicrous. But now no one laughed. The people in the court-room began to whisper, "Hush!" fearing lest the noise of moving bodies might cause them to lose the boy's words.

To Goodlaw it was all a mystery. He did not know how to begin the examination. He started at a venture.

"Are you Robert Burnham's son?"

"No, sir," replied Ralph, firmly. "I ain't."

There was a buzz of excitement in the room. Old Simon sat staring at the boy incredulously. His anger had changed for the moment into wonder. He could not understand the cause of Ralph's action. Sharpman had not told him of the interview with Rhyming Joe—he had not thought it advisable.

"Who are you, then?" inquired Goodlaw.

"I'm Simon Craft's grandson." The excitement in the room ran higher. Craft raised himself on his cane to lean toward Sharpman. "He lies!" whispered the old man, hoarsely; "the boy lies!"

Sharpman paid no attention to him.

"When did you first learn that you are Mr. Craft's grandson?" continued the counsel for the defence.

"Last night," responded Ralph.

"Where?"



"At Mr. Sharpman's office."

The blood rushed suddenly into Sharpman's face. He understood it all now; Ralph had overheard.

"Who told you?" asked Goodlaw.

"No one told me, I heard Rhymin' Joe—"

Sharpman interrupted him.

"I don't know," he said, "if the court please, what this boy is trying to tell nor what wild idea has found lodgement in his brain; but I certainly object to the introduction of such hearsay evidence as counsel seems trying to bring out. Let us at least know whether the responsible plaintiff in this case was present or was a party to this alleged conversation."

"Was Mr. Craft present?" asked Goodlaw of the witness.

"No, sir; I guess not, I didn't hear 'im, any way."

"Did you see him?"

"No, sir; I didn't see 'im. I didn't see either of 'em."

"Where were you?"

"In the room nex' to the street."

"Where did this conversation take place?"

"In the back room."

"Was the door open?"

"Just a little."

"Who were in the back room?"

"Mr. Sharpman an' Rhymin' Joe."

"Who is Rhyming Joe?"

"He's a man I used to know in Philadelphia."

"When you lived with Craft?"

"Yes, sir."

"What was his business?"

"I don't know as anything. He used to bring things to the house sometimes, watches an' things."

"How long have you known Rhyming Joe?"

"Ever since I can remember."

"Was he at Craft's house frequently?"

"Yes, sir; most all the time."

An idea of the true situation of affairs was dawning upon Goodlaw's mind. That Ralph had overheard Rhyming Joe say to Sharpman that the boy was Simon Craft's grandson was evident. But how to get that fact before the jury in the face of the rules of evidence—that was the question. It seemed to him that there should be some way to do it, and he kept on with the examination in order to gain time for thought and to lead up to the point.

"Did Mr. Sharpman know that you were in his office when this conversation took place?"

"No, sir; I guess not."

"Did Rhyming Joe know you were there?"

"No, sir; I don't believe he did."

"From the conversation overheard by you, have you reason to believe that Rhyming Joe is acquainted with the facts relating to your parentage?"

"Yes, sir; he must know."

"And, from hearing that conversation, did you become convinced that you are Simon Craft's grandson and not Robert Burnham's son?"

"Yes, sir, I did. Rhyming Joe said so, an' he knows."

"Did you see Rhyming Joe last night?"

"No, sir. Only as he passed by me in the dark."

"Have you seen him to-day?"

"No, sir; he promised to go away this mornin'."

"To whom did he make that promise?"

Sharpman was on his feet in an instant, calling on Ralph to stop, and appealing to the court to have the counsel and witness restricted to a line of evidence that was legal and proper. He saw open before him the pit of bribery, and this fearless boy was pushing him dangerously close to the brink of it.

The judge admonished the defendant's attorney to hold the witness within proper bounds and to proceed with the examination.

In the meantime, Goodlaw had been thinking. He felt that it was of the highest importance that this occurrence in Sharpman's office should be made known to the court and the jury, and that without delay. There was but one theory, however, on which he could hope to introduce evidence of all that had taken place there, and he feared that that was not a sound one. But he determined to put on a bold face and make the effort.

"Ralph," he said, calmly, "you may go on now and give the entire conversation as you heard it last night between Mr. Sharpman and Rhyiming Joe."

The very boldness of the question brought a smile to Sharpman's face as he arose and objected to the legality of the evidence asked for.

"We contend," said Goodlaw, in support of his offer, "that neither the trustee-plaintiff nor his attorney are persons whom the law recognizes as having any vital interest in this suit. The witness on the stand is the real plaintiff here, his are the interests that are at stake, and if he chooses to give evidence adverse to those interests, evidence relevant to the matter at issue, although it may be hearsay evidence, he has a perfect right to do so. His privilege as a witness is as high as that of any other plaintiff."

But Sharpman was on the alert. He arose to reply.

"Counsel forgets," he said, "or else is ignorant of the fact, that the very object of the appointment of a guardian is because the law considers that a minor is incapable of acting for himself. He has no discretionary power in connection with his estate. He has no more right to go on the witness-stand and give voluntary hearsay evidence which shall be adverse to his own

interests than he has to give away any part of his estate which may be under the control of his trustee. A guardian who will allow him to do either of these things without objection will be liable for damages at the hands of his ward when that ward shall have reached his majority. We insist on the rejection of the offer."

The judge sat for a minute in silence, as if weighing the matter carefully. Finally he said:—

"We do not think the testimony is competent, Mr. Goodlaw. Although the point is a new one to us, we are inclined to look upon the law of the case as Mr. Sharpman looks on it. We shall be obliged to refuse your offer. We will seal you a bill of exceptions."

Goodlaw had hardly dared to expect anything else. There was nothing for him to do but to acquiesce in the ruling of the court.

Ralph turned to face him with a question on his lips.

"Mr. Goodlaw," he said, "ain't they goin' to let me tell what I heard Rhymin' Joe say?"

"I am afraid not, Ralph; the court has ruled that conversation out."

"But they won't never know the right of it unless I tell that. I've got to tell it; that's what I come here for."

The judge turned to the witness and spoke to him, not unkindly:—

"Ralph, suppose you refrain from interrogating your counsel, and let him ask questions of you; that is the way we do here."

"Yes, sir, I will," said the boy, innocently, "only it seems too bad 'at I can't tell what Rhymin' Joe said."

The lawyers in the bar were smiling, Sharpman had recovered his apparent good-nature, and Goodlaw began again to interrogate the witness.

"Are you aware, Ralph," he asked, "that your testimony here to-day may have the effect of excluding you from all rights in the estate of Robert Burnham?"

"Yes, sir, I know it."

"And do you know that you are probably denying yourself the right to bear one of the most honored names, and to live in one of the most beautiful homes in this community?"

"Yes, sir, I know it all. I wouldn't mind all that so much though if it wasn't for my mother. I've got to give her up now, that's the worst of it; I don't know how I'm goin' to stan' that."

Mrs. Burnham, sitting by her counsel, bent her head above the table and wept silently.

"Was your decision to disclose your knowledge reached with a fair understanding of the probable result of such a disclosure?"

"Yes, sir, it was. I knew what the end of it'd be, an' I had a pirty hard time to bring myself to it, but I done it, an' I'm glad now 'at I did."

"Did you reach this decision alone or did some one help you to it?"

"Well, I'll tell you how that was. All't I decided in the first place was to tell Uncle Billy,—he's the man't I live with. So I told him, an' he said I

ought to tell Mrs. Burnham right away. But she wasn't home when I got to her house, so I started right down here; an' they was an accident up on the road, an' the train couldn't go no further, an' so I walked in—I was afraid I wouldn't get here in time 'less I did."

"Your long walk accounts for your dusty and shoeless condition, I suppose?"

"Yes, sir; it was pirty dusty an' hot, an' I had to walk a good ways, an' my shoes hurt me so't I had to take 'em off, an' I didn't have time to put 'em on again after I got here. Besides," continued the boy, looking down apologetically at his bruised and dusty feet, "I hurt my feet a-knockin' 'em against the stones when I was a-runnin', an' they've got swelled up so 'at I don't believe I could git my shoes on now, any way."

Many people in the room besides Mrs. Burnham had tears in their eyes at the conclusion of this simple statement.

Then Ralph grew white about the lips and looked around him uneasily. The judge saw that the lad was faint, and ordered a tipstaff to bring him a glass of water. Ralph drank the water and it refreshed him.

"You may cross-examine the witness," said Goodlaw to the plaintiff's attorney.

Sharpman hardly knew how to begin. But he felt that he must make an effort to break in some way the force of Ralph's testimony. He knew that from a strictly legal point of view, the evidence was of little value, but he feared that the boy's apparent honesty, coupled with his dramatic entrance, would create an impression on the minds of the jury which might carry them to a disastrous verdict. He leaned back in his chair with an assumed

calmness, placed the tips of his fingers against each other, and cast his eyes toward the ceiling.

"Ralph," he said, "you considered up to yesterday that Mr. Craft and I were acting in your interest in this case, did you not?"

"Yes, sir; I thought so."

"And you have consulted with us and followed our advice until yesterday, have you not?"

"Yes, sir."

"And last night you came to the conclusion that we were deceiving you?"

"Yes, sir; I did."

"Have you any reason for this opinion aside from the conversation you allege that you heard?"

"I don't know as I have."

"At what hour did you reach my office last evening?"

"I don't know, I guess it must 'a' been after eight o'clock."

"Was it dark?"

"It was jest dark."

"Was there a light in the office when you came in?"

"They was in the back room where you an' Rhymin' Joe were."

"Did you think that I knew when you came into the office?"



"I don't believe you did."

"Why did you not make your presence known?"

"Well, I—I—"

"Come, out with it! If you had any reason for playing the spy, let's hear what it was."

"I didn't play the spy. I didn't think o' bein' mean that way, but when I heard Rhymin' Joe tell you 'at I wasn't Robert Burnham's son, I was so s'prised, an' scart-like 'at I couldn't speak."

This was a little more than Sharpman wanted, but he kept on:—

"How long were you under the control of this spirit of muteness?"

"Sir?"

"How long was it before the power to speak returned to you?"

"Oh! not till Rhymin' Joe went out, I guess. I felt so bad I didn't want to speak to anybody."

"Did you see this person whom you call Rhyming Joe?"

"Only in the dark."

"Not so as to recognize him by sight?"

"No, sir."

"How did you know it was he?"

"By the way he talked."

"How long is it since you have been accustomed to hearing him talk?"

"About three years."

"Did you see me last night?"

"I caught a glimpse of you jest once."

"When?"

"When you went across the room an' gave Rhymin' Joe the money."

Sharpman flushed angrily. He felt that he was treading on dangerous ground in this line of examination. He went on more cautiously.

"At what time did you leave my office last night?"

"Right after Rhymin' Joe did. I went out to find him."

"Then you went away without letting me know of your presence there, did you?"

"Yes, sir."

"Did you find this Rhyming Joe?"

"No, sir, I couldn't find 'im."

"Now, Ralph, when you left me at the Scranton station on Saturday night, did you go straight home?"

"Yes, sir."

"Did you see any one to talk with except Bachelor Billy that night after you left me?"

"No, sir."

"Where did you go on Sunday morning?"

"Uncle Billy an' me went down to the chapel to meetin'."

"From there where did you go?"

"Back home."

"And had your dinner?"

"Yes, sir."

"What did you do after that?"

"Me an' Uncle Billy went up to the breaker."

"What breaker?"

"Burnham Breaker."

"Why did you go there?"

"Jest for a walk, an' to see how it looked."

"How long did you stay there?"

"Oh, we hadn't been there more'n fifteen or twenty minutes 'fore Mrs. Burnham's man came for me an' took me to her house."

Sharpman straightened up in his chair. His drag-net had brought up something at last. It might be of value to him and it might not be.

"Ah!" he said, "so you spent a portion of yesterday afternoon at Mrs. Burnham's house, did you?"

"Yes, sir, I did."

"How long did you stay there?"

"Oh! I shouldn't wonder if it was two or three hours."

"Did you see Mrs. Burnham alone?"

"Yes, sir."

"Have a long talk together?"

"Yes, sir, a very nice long talk."

Sharpman thought that if he could only lead the jury, by inference, to the presumption that what had taken place to-day was understood between Ralph and Mrs. Burnham yesterday it would be a strong point, but he knew that he must go cautiously.

"She was very kind to you, wasn't she?"

"Yes, sir; she was lovely. I never had so good a time before in all my life."

"You took dinner with her, I suppose?"

"Yes, sir."

"Have a good dinner?"

"It was splendid."

"Did you eat a good deal?"

"Yes, sir, I think I eat a great deal."

"Had a good many things that were new to you, I presume?"

"Yes, sir, quite a good many."

"Did you think you would like to go there to live?"

"Oh, yes! I did. It's beautiful there, it's very beautiful. You don't know how lovely it is till you get there. I couldn't help bein' happy in a home like that, an' they couldn't be no nicer mother'n Mrs. Burnham is, nor no pirtier little sister. An' everybody was jest as good to me there! Why, you don't know what a—"

The glow suddenly left the boy's face, and the rapture fled from his eyes. In the enthusiasm of his description he had forgotten, for the moment, that it was not all to be his, and when the memory of his loss came back to him, it was like a plunge into outer darkness. He stopped so unexpectedly, and in such apparent mental distress that people stared at him in astonishment, wondering what had happened.

After a moment of silence he spoke again: "But it ain't mine any longer; I can't have any of it now; I've got no right to go there at all any more." The sadness in his broken voice was pitiful. Those who were looking on him saw his under lip tremble and his eyes fill with tears. But it was only for a moment. Then he drew himself up until he sat rigidly in his chair, his little hands were tightly clenched, his lips were set in desperate firmness, every muscle of his face grew tense and hard with sudden resolution. It was a magnificently successful effort of the will to hold back almost

overpowering emotion, and to keep both mind and body strong and steady for any ordeal through which he might have yet to pass.

It came upon those who saw it like an electric flash, and in another moment the crowded room was ringing with applause.

## CHAPTER XVII.

### GENTLEMEN OF THE JURY.

Sharpman had not seen Ralph's expression and did not know what the noise was all about. He looked around at the audience uneasily, whispered to Craft for a moment, and then announced that he was done with the witness. He was really afraid to carry the examination further; there were too many pit-falls along the way.

Goodlaw, too, was wise enough to ask no additional questions. He did not care to lay grounds for the possible reversal of a judgment in favor of the defendant, by introducing questionable evidence. But he felt that the case, in its present aspect, needed farther investigation, and he moved for a continuance of the cause for two days. He desired, he said, to find the person known as Rhyming Joe, and to produce such other evidence as this new and startling turn of affairs might make necessary.

Craft whispered to Sharpman that the request should be agreed to, saying that he could bring plenty of witnesses to prove that Rhyming Joe was a worthless adventurer, notorious for his habits of lying; and stoutly asserting that the boy was positively Ralph Burnham. But Sharpman's great fear was that if Rhyming Joe should be brought back, the story of the bribery could no longer be hushed; and he therefore opposed the application for a continuance with all his energy.

The court ruled that the reasons presented were not sufficient to warrant the holding of a jury at this stage of the case for so long a time, but intimated that in the event of a verdict for the plaintiff a motion for a new trial might be favorably considered by the court.

"Then we have nothing further to offer," said Goodlaw.

Sharpman resumed his seat with an air of satisfaction, and sat for full five minutes, with his face in his hand, in deep thought.

"I think," he said, finally, looking up, "that we shall present nothing in rebuttal. The case, as it now stands, doesn't seem to call for it." He had been considering whether it would be safe and wise for him to go on the witness-stand and deny any portion of Ralph's story. He had reached the conclusion that it would not. The risk was too great.

"Very well," said the judge, taking up his pen, "then the evidence is closed. Mr. Goodlaw, are you ready to go to the jury?"

Goodlaw, who had been, during this time, holding a whispered conversation with Ralph, arose, bowed to the court, and turned to face the jurors. He began his speech by saying that, until the recent testimony given by the boy Ralph had been produced in court, he had not expected to address the jury at all; but that that testimony had so changed the whole tenor of the case as to make a brief argument for the defence an apparent necessity.

Fortified by the knowledge of the story that Rhyming Joe had told, as Ralph had just whispered it to him, Goodlaw was able to dissipate, greatly, the force of the plaintiff's evidence, and to show how Craft's whole story might easily be a cleverly concocted falsehood built upon a foundation of truth. He opened up to the wondering minds of the jurors the probable



scheme which had been originated by these two plotters, Craft and Sharpman, to raise up an heir to the estates of Robert Burnham, an heir of whom Craft could be guardian, and a guardian of whom Sharpman could be attorney. He explained how the property and the funds that would thus come into their hands could be so managed as to leave a fortune in the pocket of each of them before they should have done with the estate.

"The scheme was a clever one," he said, "and worked well, and no obstacle stood in the way of these conspirators until a person known as Rhyming Joe came on the scene. This person knew the history of Ralph's parentage and saw through Craft's duplicity; and, in an unguarded moment, the attorney for the plaintiff closed this man's mouth by means which we can only guess at, and sent him forth to hide among the moral and the social wrecks that constitute the flotsam and the jetsam of society. But his words, declaring Simon Craft's bold scheme a fabric built upon a lie, had already struck upon the ears and pierced into the heart of one whose tender conscience would not let him rest with the burden of this knowledge weighing down upon it. What was it that he heard, gentlemen? We can only conjecture. The laws of evidence drop down upon us here and forbid that we should fully know. But that it was a tale that brought conviction to the mind of this brave boy you cannot doubt. It is for no light cause that he comes here to publicly renounce his right and title to the name, the wealth, the high maternal love that yesterday was lying at his feet and smiling in his face. The counsel for the plaintiff tries to throw upon him the mantle of the eavesdropper, but the breath of this boy's lightest word lifts such a covering from him, and reveals his purity of purpose and his agony of mind in listening to the revelation that was made. I do not wonder that he should lose the power to move on hearing it. I do not wonder that he should be compelled, as if by some strange force, to sit and listen quietly to every piercing word. I can well conceive how terrible the shock would be to one who came, as he did, fresh from a home where love had made the hours so

sweet to him that he thought them fairer than any he had ever known before. I can well conceive what bitter disappointment and what deep emotion filled his breast. But the struggle that began there then between his boyish sense of honor and his desire for home, for wealth, for fond affection, I cannot fathom that;—it is too deep, too high, too terrible for me to fully understand. I only know that honor was triumphant; that he bade farewell to love, to hope, to home, to the brightest, sweetest things in all this world of beauty, and turned his face manfully, steadfastly, unflinchingly to the right. With the help and counsel of one honest man, he set about to check the progress of a mighty wrong. No disappointment discouraged him, no fear found place in his heart, no distance was too great for him to traverse. He knew that here, to-day, without his presence, injustice would be done, dishonesty would be rewarded, and shameless fraud prevail. It was for him, and him alone, to stop it, and he set out upon his journey hither. The powers of darkness were arrayed against him, fate scowled savagely upon him, disaster blocked his path, the iron horse refused to draw him, but he remained undaunted and determined. He had no time to lose; he left the conquered power of steam behind him, and started out alone through heat and dust to reach the place of justice. With bared, bruised feet and aching limbs and parched tongue he hurried, on, walking, running, as he could, dragging himself at last into the presence of the court at the very moment when the scales of justice were trembling for the downward plunge, and spoke the words that checked the course of legal crime, that placed the chains of hopeless toil upon his own weak limbs, but that gave the world—another hero!

"Gentlemen of the jury, I have labored at the bar of this court for more than thirty years, but I never saw before a specimen of moral courage fit to bear comparison with this; I never in my life before saw such a lofty deed of heroism so magnificently done. And do you think that such a boy as this

would lie? Do you think that such a boy as this would say to you one word that did not rise from the deep conviction of an honest heart?

"I leave the case in your hands, gentlemen; you are to choose between selfish greed and honest sacrifice, between the force of cunning craft and the mighty power of truth. See to it that you choose rightly and well."

The rumble of applause from the court-room as Goodlaw resumed his seat was quickly suppressed by the officers, and Sharpman arose to speak. He was calm and courteous, and seemed sanguine of success. But his mind was filled with the darkness of disappointment and the dread of disaster; and his heart was heavy with its bitterness toward those who had blocked his path. He knew that Ralph's testimony ought to bear but lightly on the case, but he feared that it would weigh heavily with the jury, and that his own character would not come out stainless. He hardly hoped to save both case and character, but he determined to make the strongest effort of which he was capable. He reviewed the testimony given by Mrs. Burnham concerning her child and his supposed tragic death; he recalled all the circumstances connected with the railroad accident, and repeated the statements of the witnesses concerning the old man and the child; he gave again the history of Ralph's life, and of Simon Craft's searching and failures and success; he contended, with all the powers of logic and oratory at his command, that Ralph Burnham was saved from the wreck at Cherry Brook, and Was that moment sitting by his mother before the faces and eyes of the court and jury.

"Until to-day," he said, "every one who has heard this evidence, and taken interest in this case, has believed, as I do, that this boy is Robert Burnham's son. The boy's mother believed it, the counsel for the defence believed it, the lad himself believed it, his Honor on the bench, and you, gentlemen in the jury-box, I doubt not, all believed it; indeed it was agreed

by all parties that nothing remained to be done but to take your verdict for the plaintiff. But, lo! this child makes his dramatic entrance into the presence of the court, and, under the inspired guidance of defendant's counsel, tells his story of eavesdropping, and when it is done my learned friend has the temerity to ask you to throw away your reason, to dismiss logic from your minds, to trample law under your feet, to scatter the evidence to the four winds of heaven, and to believe what? Why, a boy's silly story of an absurd and palpable lie?

"I did not go upon the witness-stand to contradict this fairy tale; it did not seem to be worth the while.

"Consider it for a moment. This youth says he came to my office last night and found me in the inner room in conversation with another person. I shall not deny that. Supposing it to be true, there was nothing strange or wrong in it, was there? But what does this boy whom my learned friend has lauded to the skies for his manliness and honor do next? Why, according to his own story, he steals into the darkness of the outer office and seats himself to listen to the conversation in the inner room, and hears—what? No good of himself certainly. Eavesdroppers never do hear good of themselves. But he thinks he hears the voice of a person whom no one in this court-room ever heard of or thought of before, nor has seen or heard of since—a person who, I daresay, has existence only in this child's imagination; he thinks he hears this person declare that he, Ralph, is not Robert Burnham's son, and, by way of embellishing his tale, he adds statements which are still more absurd, statements on the strength of which my learned friend hopes to darken in your eyes the character of the counsel for the plaintiff. I trust, gentlemen, that I am too well known at the bar of this court and in this community to have my moral standing swept away by such a flimsy falsehood as you see this to be. And so, to-day, this child comes into court and declares, with solemn asseveration, that the evidence

fixing his identity beyond dispute or question is all a lie; and what is this declaration worth? His Honor will tell you, in his charge, I have no doubt, that this boy's statement, founded, as he himself says, on hearsay, is valueless in law, and should have no weight in your minds. But I do not ask you to base your judgment on technicalities of law. I ask you to base it simply on the reasonable evidence in this case.

"What explanation there can be of this lad's conduct, I have not, as yet, been ably, fully, to determine.

"I have tried, in my own mind, to throw the mantle of charity across him. I have tried to think that, coming from an unaccustomed meal, his stomach loaded with rich food, he no sooner sank into the office chair than he fell asleep and dreamed. It is not improbable. The power of dreams is great on children's minds, as all of you may know. But in the face of these developments I can hardly bring myself to accept this theory. There is too much method in the child's madness. It looks more like the outcome of some desperate move on the part of this defence to win the game which they have seen slipping from their control. It looks like a deep-laid plan to rob my aged and honored client of the credit to which he is entitled for rescuing this boy at the risk of his life, for caring for him through poverty and disease, for finding him when his own mother had given him up for dead, and restoring him to the bosom of his family. It looks as though they feared that this old man, already trembling on the brink of the grave, would snatch some comfort for his remaining days out of the pittance that he might hope to collect from this vast estate for services that ought to be beyond price. It looks as though hatred and jealousy were combined in a desperate effort to crush the counsel for the plaintiff. The counsel for the plaintiff can afford to laugh at their animosity toward himself, but he cannot help his indignation at their plot. Now, let us see.

"It is acknowledged that the boy Ralph spent the larger part of yesterday afternoon at the house of this defendant, and was fed and flattered till he nearly lost his head in telling of it. That is a strange circumstance, to begin with. How many private consultations he has had with counsel for defence, I know not. Neither do I know what tempting inducements have been held out to him to turn traitor to those who have been his truest friends. These things I can only imagine. But that fine promises have been made to him, that pictures of plenty have been unfolded to his gaze, that the glitter of gold and the sheen of silver have dazzled his young eyes, there can be little doubt. So he has seen visions and dreamed dreams, at will; he has endured terrible temptations, and fought great moral battles, by special request, and has come off more than victor, in the counsel's mind. To-day everything is ready for the carrying-out of their skilful scheme. At the right moment the counsel gives the signal, and the boy darts in, hatless, shoeless, ragged, and dusty, for the occasion, and tragic to the counsel's heart's content, and is put at once upon the stand to tell his made-up tale, and—"

Sharpman heard a slight noise behind him, and some one exclaimed:—

"He has fainted!"

The lawyer stopped in his harangue and turned in time to see Ralph lying in a heap on the floor, just as he had slipped that moment from his chair. The boy had listened to Goodlaw's praises of his conduct with a vague feeling that he was undeserving of so much credit for it. But when Sharpman, advancing in his speech, charged him with having dreamed his story, he was astounded. He thought it was the strangest thing he had ever heard of. For was not Mr. Sharpman there, himself? and did not he know that it was all real and true? He could not understand the lawyer's allegation. Later on, when Sharpman declared boldly that Ralph's statement on the witness-stand was a carefully concocted falsehood, the bluntness of

the charge was like a cruel blow, and the boy's sensitive nerves shrank and quivered beneath it; then his lips grew pale, his breath came in gasps, the room went swimming round him, darkness came before his eyes, and his weak body, enfeebled by prolonged fasting and excitement, slipped down to the floor.

The people in the court-room scrambled to their feet again to look over into the bar.

A man who had entered the room in time to hear Sharpman's brutal speech pushed his way through the crowd, and hurried down to the place where Ralph was lying. It was Bachelor Billy.

In a moment he was down on his knees by the boy's side, chafing the small cold hands and wrists, while Mrs. Burnham, kneeling on the other side, was dipping her handkerchief into a glass of water, and bathing the lad's face.

Bachelor Billy turned on his knees and looked up angrily at Sharpman. "Mayhap an' ye've killet 'im," he said, "wi' your traish an' your lees!" Then he rose to his feet and continued: "Can ye no' tell when a lad speaks the truth? Mon! he's as honest as the day is lang! But what's the use o' tellin' ye? ye ken it yoursel'. Ye *wull* be fause to 'im!"

His lips were white with passion as he knelt again by the side of the unconscious boy.

"Ye're verra gude to the lad, ma'am," he said to Mrs. Burnham, who had raised Ralph's head in her arms and was pressing her wet handkerchief against it; "ye're verra gude, but ma mind is to tak' 'im hame an' ten' till 'im mysel'. He was ower-tired, d'ye see, wi' the trooble an' the toil, an' noo I fear me an they've broke the hert o' 'im."

Then Bachelor Billy, lifting the boy up in his arms, set his face toward the door. The people pressed back and made way for him as he passed up the aisle holding the drooping body very tenderly, looking down at times with great compassion into the white face that lay against his breast; and the eyes that watched his sturdy back until it disappeared from view were wet with sympathetic tears.

When the doors had closed behind him, Sharpman turned again to the jury, with a bitterly sarcastic smile upon his face.

"Another chapter in the made-up tragedy," he said, "performed with marvellous skill as you can see. My learned friend has drilled his people well. He has made consummate actors of them all. And yet he would have you think that one is but an honest fool, and that the other is as innocent as a babe in arms."

Up among the people some one hissed, then some one else joined in, and, before the judge and officers could restore order in the room, the indignant crowd had greeted Sharpman's words with a perfect torrent of groans and hisses. Then the wily lawyer realized that he was making a mistake. He knew that he could not afford to gain the ill-will of the populace, and accordingly he changed the tenor of his speech. He spoke generally of law and justice, and particularly of the weight of evidence in the case at bar. He dwelt with much emphasis on Simon Craft's bravery, self-sacrifice, poverty, toil, and suffering; and, with a burst of oratory that made the walls re-echo with the sound of his resonant voice, he closed his address and resumed his seat.

Then the judge delivered the charge in a calm, dispassionate way. He reviewed the evidence very briefly, warning the jury to reject from their minds all improper declarations of any witness or other person, and directing them to rest their decision only on the legal evidence in the case.



He instructed them that although the boy Ralph's declaration that he was not Robert Burnham's son might be regarded by them, yet they must also take into consideration the fact that his opinion was founded partly, if not wholly, on hearsay, and, for that reason, would be of little value to them in making up their decision. Any evidence of the alleged conversation at Mr. Sharpman's office, he said, must be rejected wholly. He warned them to dismiss from their minds all prejudice or sympathy that might have been aroused by the speeches of counsel, or the appearance of witnesses in court, and to take into consideration and decide upon but one question, namely: whether the boy Ralph is or is not the son of the late Robert Burnham: that, laying aside all other questions, matters, and things, they must decide that and that alone, according to the law and the evidence.

When the judge had finished his charge a constable was sworn, and, followed by the twelve jurors, he marched from the court-room.

It was already after six o'clock, so the crier was directed to adjourn the court, and, a few minutes later, the judge, the lawyers, the witnesses, and the spectators had all disappeared, and the room was empty.

## CHAPTER XVIII.

### A WRIT OF HABEAS CORPUS.

Every one expected that the jury would come into court with a verdict at the opening of the session on Tuesday morning. There was much difference of opinion, however, as to what that verdict would be.

But the morning hours went by and the jury still remained in their room. The constable who watched at the door shook his head and smiled when asked about the probability of an early agreement. No one seemed to know just how the jury stood.

Sharpman and his client had been greatly disheartened on Monday night, and had confessed as much to each other; but the longer the jury remained out the more hope they gathered. It was apparent that the verdict would not be rendered under the impulses of the moment; and that the jury were applying the principles of cold law and stern logic to the case, there seemed to be little doubt.

But, as a matter of fact, the jury were doing no such thing.

They believed, to a man, that Ralph had told the truth, and that such an event as he had described had actually taken place in Sharpman's office; and, notwithstanding the judge's charge, they were trying to harmonize

Ralph's statement with the evidence of the witnesses who had corroborated Simon Craft's story. This led them into so many difficulties that they finally abandoned the effort, and the questions before them were gradually reduced to just one. That question was not whether Ralph was the son of Robert Burnham; but it was: which would be better for the boy, to decide in favor of the plaintiff or of the defendant. If they found for the plaintiff, they would throw the boy's fortune into the hands of Craft and Sharpman, where they feared the greater part of it would finally remain. If they found for the defendant, they would practically consign the lad to a life of homelessness and toil. It was to discuss and settle this question, therefore, that the jury remained locked up in their room through so many hours.

The day wore on and no verdict was rendered. Sharpman's spirits continued to rise, and Goodlaw feared that his case was lost.

At four o'clock the jury sent in word that they had agreed, and a few minutes later they filed into the court-room. When their verdict had been inspected by the judge it was given to the prothonotary to read. He faced the jury, saying:—

"Gentlemen of the jury, listen to your verdict as the court has it recorded. In the case wherein Simon Craft, guardian of the estate of Ralph Burnham, a minor, is plaintiff, and Margaret Burnham, administrator of the estate of Robert Burnham, deceased, is defendant, you say you find for the defendant, and that the boy Ralph is *not* the son of Robert Burnham. So say you all?"

The jury nodded assent, and the verdict was filed. That settled it. Craft and Sharpman were beaten.

It was very strange that a solid truth, backed up by abundant and irreproachable evidence, presented under the strict rules of law and the

solemn sanction of an oath, should be upset and shattered by a flimsy falsehood told by an unknown adventurer, heard unawares by a listening child, and denied a proper entrance into court. It was strange but it was very true. Yet in that ruin was involved one of the boldest schemes for legal plunder that was ever carried into the courts of Luzerne County.

Sharpman felt that a fortune had slipped from his grasp, and that he had lost it by reason of his own credulity and fear. He saw now the mistake he had made in not defying Rhyming Joe. He knew now that the fellow never would have dared to appear in court as a witness. He felt that he had not only lost his money, but that he had come dangerously near to losing what character he had, also. He knew that it was all due to his own fault, and he was humiliated and angry with himself, and bitter toward every one who had sided with the defendant.

But if Sharpman's disappointment was great, that of his client was tenfold greater.

Simon Craft was in a most unenviable mood. At times, indeed, he grew fairly desperate. The golden bubble that he had been chasing for eight years had burst and vanished. He had told the truth, he had been honest in his statements, he had sought to do the boy and the boy's mother a great favor, and they had turned against him, and the verdict of the jury had placed upon him the stigma of perjury. This was the burden of his complaint. But aside from this he was filled with bitter regret. If he had only closed his bargain with Robert Burnham on the day it had been made! If he had only made his proposition to Mrs. Burnham as he had intended doing, instead of going into this wild scheme with this visionary lawyer! This was his silent sorrow. His misery was deep and apparent. He had grown to be ten years older in a day. This misfortune, he said, bitterly, was the result of trying to be honest and to do good. This was the reward of virtue, these the wages of charity.

Tired, at last, of railing at abstract principles of right, he turned his attention to those who had been instrumental in his downfall. The judge, the jury, and the attorney for the defence, all came in for a share of his malignant hatred and abuse. For Mrs. Burnham he had only silent contempt. Her honest desire to have right done had been too apparent from the start. The only fault he had to find with her was that she did not come to his rescue when the tide was turning against him. But against Ralph the old man's wrath and indignation were intense.

Had he not saved the child from death? Had he not fed and clothed and cared for him during five years? Had he not rescued him from oblivion, and made every effort to endow him with wealth and position and an honored name? And then, to think that in the very moment when these efforts were about to meet with just success, this boy had turned against him, and brought ruin and disgrace upon him. Oh, it was too much, too much!

If he could only have the lad in his possession for a week, he thought, for a day, for an hour even, he would teach him the cost of turning traitor to his friends. Oh, he would teach him!

Then it occurred to him that perhaps he might get possession of the boy, and permanent possession at that. Had not Ralph sworn that he was Simon Craft's grandson? Had not the jury accepted Ralph's testimony as true? And had not the court ordered judgment to be entered on the jury's verdict? Well, if the court had declared the boy to be his grandson, he was entitled to him, was he not? If the boy was able to earn anything, he was entitled to his earnings, was he not? If he was the child's grandfather, then he had authority to take him, to govern him, to punish him for disobedience—was not that true?

Old Simon rose from his chair and began to walk up and down the room, hammering his cane upon the floor at every step.

The idea was a good one, a very good one, and he resolved to act upon it without delay. He would go the very next day and get the boy and take him to Philadelphia.

But suppose Ralph should refuse to go, and suppose Bachelor Billy, with his strong arms, should stand by to protect the lad from force, what then? Well, there was a law to meet just such a case as that. He knew of an instance where a child had been taken by its grandfather by virtue of a writ of *habeas corpus*.

He would get such a writ, the sheriff should go with him, they would bring Ralph to court again; and since the law had declared the boy to be Simon Craft's grandson, the law could do nothing else than to place him in Simon Craft's custody. Then the old man went to bed, thinking that in the morning he would get Sharpman to prepare for him the papers that would be necessary to carry his plan into execution.

He derived much pleasure from his dreams that night, for he dreamed of torturing poor Ralph to his heart's content.

When Bachelor Billy left the court-room that Monday evening with his unconscious burden in his arms, he remained only long enough in the court-house square to revive the boy, then he took him to the railway station, and they went together, by the earliest train, to Scranton.

The next morning Ralph felt very weak and miserable, and did not leave the house; and Bachelor Billy came home at noon to see him and to learn what news, if any, had been received from Wilkesbarre. Both he and Ralph expected that a verdict would be rendered for the defendant, in accordance with Ralph's testimony, and neither of them were surprised, therefore, when Andy Gilgallon came up from the city after supper and informed them that the jury had so found. That settled the matter, at any rate. It was a relief to

Ralph to know that it was at an end; that he was through with courts and lawyers and judges and juries, and that there need be no further effort on his part to escape from unmerited fortune. The tumult that had raged in his mind through many hours was at last stilled, and that night he slept. He wanted to go back the next morning to his work at the breaker, but Bachelor Billy would not allow him to do so. He still looked very pale and weak, and the anxious man resolved to come home at noon again that day to see to the lad's health.

Indeed, as the morning wore on, Ralph acknowledged to himself that he did not feel so well. His head was very heavy, and there was a bruised feeling over the entire surface of his body. It was a dull day, too; it rained a little now and then, and was cloudy all the morning. He sat indoors the most of the time, reading a little, sleeping a little, and thinking a great deal. The sense of his loss was coming back upon him very strongly. It was not so much the loss of wealth, or of name, or of the power to do other and better things than he had ever done before that grieved him now. But it was that the dear and gentle lady who was to have been his mother, who had verily been a mother to him for one sweet day, was a mother to him no longer. To feel that he was nothing to her now, no more, indeed, than any other ragged, dust-black boy in Burnham Breaker, this was what brought pain and sorrow to his heart, and made the hot tears come into his eyes in spite of his determined effort to hold them back.

He was sitting in his accustomed chair, facing the dying embers of a little wood fire that he had built, for the morning was a chilly one.

Behind him the door was opened and some one entered the room from the street. He thought it was Bachelor Billy, just come from work, and he straightened up in his chair and tried to wipe away the traces of tears from his face before he should turn to give him greeting.

"Is that you, Uncle Billy?" he said; "ain't you home early?"

He was still rubbing industriously at his eyes. Receiving no answer he looked around.

It was not Uncle Billy. It was Simon Craft.

Ralph uttered a cry of surprise and terror, and retreated into a corner of the room. Old Simon, looking at him maliciously from under his bushy brows, gradually extended his thin lips into a wicked smile.

"What!" he exclaimed, "is it possible that you are afraid of your affectionate old grandfather? Why, I thought you desired nothing so much as to go and live with him and be his pet."

The boy's worst fears were realized. Old Simon had come for him.

"I won't go back with you!" he cried. "I won't! I won't!" Then, changing his tone to one of appealing, he continued: "You didn't come for me, did you, gran'pa? you won't make me go back with you, will you?"

"I'm afraid I can't do without you any longer," said Craft, coming nearer and looking Ralph over carefully. "I'm getting old and sick, and your presence will be a great comfort to me in my declining years. Besides, my affection for you is so great that I feel that I couldn't do without you; oh, I couldn't, I couldn't possibly!" And the old man actually chuckled himself into a fit of coughing at his grim sarcasm.

"But I don't want to go," persisted the boy. "I'm very happy here. Uncle Billy's very good to me, an' I'd ruther stay, a good deal ruther."

At the mention of Uncle Billy's name Old Simon's smile vanished and he advanced threateningly toward the boy, striking his cane repeatedly on the



floor.

"It don't matter what you want," he said, harshly; "you were crazy to be my grandson; now the law says you are, and the law gives me the right to take you and do what I choose with you. Oh, you've got to go! so get your hat and come along, and don't let's have any more nonsense about it!"

"Gran'pa—Gran'pa Simon!" exclaimed the terrified boy, shrinking still farther away, "I can't go back to Philadelphia, I can't! I couldn't live, I'd die if I went back there! I'd—"

Craft interrupted him: "Well, if you do die, it won't be because you're killed with kindness, I warrant you. You've cheated me out of a living and yourself out of a fortune; you've made your own bed, now you've got to lie in it. Come on, I say! get your hat and come along!"

The old man was working himself into a passion. There was danger in his eyes. Ralph knew it, too, but the thought of going back to live with Simon Craft was such a dreadful one to him that he could not refrain from further pleading.

"I know I belong to you, Gran'pa Simon," he said, "an' I know I've got to mind you; but please don't make me go back to live with you; please don't! I'll do anything else in the world you want me to; I'll give you ev'ry dollar I earn if you'll let me stay here, ev'ry dollar; an' I'll work hard, too, ev'ry day. I'll—I'll give you—I'll give you—"

"Well, what'll you give me? Out with it!"

It was a desperate chance; it called for sacrifice, but Ralph felt that he would offer it gladly if he could thereby be saved.

"I'll give you," he said, "all the money I've got saved up."

"How much money have you got saved up?" The light of hatred in the man's eyes gave place, for the time being, to the light of greed.

"About thirty-two dollars."

"Well, give it to me, then, and be quick about it!"

Ralph went to a small closet built into the wall over the chimney, and took from it a little box.

That box contained his accumulated savings. With a large portion of the money he had thought to buy new clothing for himself. He had determined that he would not go to live with Mrs. Burnham, dressed like a beggar. He would have clothes befitting his station in life. Indeed, he and Uncle Billy were to have gone out the day before to make the necessary purchases; but since the change came the matter had not been thought of. Now he should pay it to Simon Craft as the price of his freedom. He was willing and more than willing to do so. He would have given all he ever hoped to earn to save himself from that man's custody, and would have considered it a cheap release.

He took the money from the box,—it was all paper money,—and counted it carefully out into Old Simon's trembling hand. There were just thirty-two dollars.

"Is that all?" said Craft, folding the bills and putting them into an inside pocket as he spoke.

"Yes, that's all."

"You haven't got any more hidden around the house anywhere, have you? Don't lie to me, now!"

"Oh, no! I've given you ev'ry cent I had, ev'ry single cent."

"Well, then, get your hat and come along."

"Wh—what?" Ralph was staring at the man in astonishment. He thought he had just bought his freedom, and that he need not go.

"Get your hat and come along, I say; and be quick about it? I can't wait here all day."

"Where—where to?"

"Why, home with me, of course. Where would I take you?"

"But I gave you the money to let me stay here with Uncle Billy; you said you would take it for that."

"No, I didn't. I told you to give it to me. The money belongs to me the same as you do. Now, are you coming, or do you want me to help you?"

Ralph's face was white with indignation. He had been willing to do what was right. He thought he had made a fair bargain; but now, this—this was an outrage. His spirit rose against it. The old sense of fearlessness took possession of him. He looked the man squarely in the eyes. His voice was firm and his hands were clenched with resolution. "I will not go with you," he said.

"What's that?" Craft looked down on the boy in astonishment.

"I say I will not go with you," repeated Ralph; "that's all—I won't go."

Then the old man's wrath was let loose.

"You beggar!" he shouted, "how dare you disobey me! I'll teach you!" He raised his cane threateningly as he spoke.

"Hit me," said Ralph, "kill me if you want to; I'd rather die than go back to live with you."

Old Simon grasped his cane by its foot and raised it above his head. In another instant it would have descended on the body of the unfortunate boy; but in that instant some one seized it from behind, wrenched it from Craft's weak grasp, and flung it into the street.

It was Bachelor Billy; He had entered at the open door unseen. He seized Craft's shoulders and whirled him around till the two men stood face to face.

"Mon!" he exclaimed, "mon! an' yon steck had a-fallen o' the lad's head, I dinna ken what I s'ould 'a' done till ye. Ye're lucky to be auld an' sick, or ye s'ould feel the weight o' ma han' as it is."

But Craft was not subdued. On the contrary his rage grew more fierce. "What's the boy to you?" he shouted, savagely. "You leave us alone. He belongs to me; he shall go with me."

It was a full half-minute before Bachelor Billy's dull mind grasped the situation. Meanwhile he was looking down into Ralph's white face. Then he turned again to Craft.

"Never!" he said, solemnly. "Ye s'all never tak' 'im. I'll see the lad in his grave first." After a moment he continued, "It's no' safe for ye to stay longer wi' us; it's better ye s'ould go."

Then another man entered at the open door. It was the sheriff of Luzerne County. He held the writ of *habeas corpus* in his hand.

"Why didn't you wait for me," he said, turning angrily to Craft, "instead of coming here to pick a quarrel with these people?"

"That's none of your business," replied the old man. "You've got your writ, now do your duty or I'll—" A fit of coughing attacked him, and he dropped into a chair to give way to it.

The sheriff looked at him contemptuously for a moment, then he turned to Bachelor Billy.

"This miserable old man," he said, "has had a writ of *habeas corpus* issued, commanding you to produce immediately before the judge at Wilkesbarre the body of the boy Ralph. It is my place to see that the writ is properly executed. There's no help for it, so I think you had better get ready, and we will go as soon as possible." And he handed to Bachelor Billy a copy of the writ.

"I ha' no time to read it," said Billy, "but if the judge says as the lad s'ould gae to court again, he s'all gae. We mus' obey the law. An' I s'all gae wi' 'im. Whaur the lad gae's I s'all gae. I s'all stay by 'im nicht an' day. If the law says he mus' live wi' Seemon Craft, then I s'all live wi' Seemon Craft also. I ha' nursit 'im too long, an' lovit 'im too weel to turn 'im alone into the wolfs den noo."

In a minute or two Craft recovered, but the coughing had left him very weak. He rose unsteadily to his feet and looked around for his cane. He had grown calm. He thought that the game was his at any rate, and that it was of no use for him to lose strength over it. "You'll walk faster than I," he said, "so I'll be going. If I miss this train I can't get started to Philadelphia with the boy before to-morrow." He tottered out into the road, picked up his cane, and trudged on down the hill toward the city.

It was not long before the two men and the boy were ready to go also.

"Keep up your courage, my son," said the sheriff kindly, for the sight of Ralph's face aroused his sympathy. "Keep up your courage; the court has got to pass on this matter yet. You don't have to go with the old man till the judge says so."

"Tak' heart," added Bachelor Billy, "tak' heart, laddie. It's not all ower wi' us yet. I canna thenk as any law'd put a lamb i' the wolf's teeth."

"I don't know," said the sheriff, as they stood on the step for a moment before leaving the house. "I don't know how you'll make it. I suppose, as far as the law's concerned, the old man's on the right track. As near as I can make out, the way the law-suit turned, he has a legal right to the custody of the child and to his earnings. But, if I was the lad, he'd no sooner get me to Philadelphia than I'd give him the slip. You've done it once, Ralph, you can do it again, can't you?"

"I don't know," answered the boy, weakly; "I don't believe I'd try. If I have to go back with him I wouldn't live very long any way, an' it wouldn't pay to run away again. It don't make much difference; I ain't got anybody left now but Uncle Billy, an', if he goes with me, I guess I can stan' it till it's through with."

It was the first time in his life that Ralph had ever spoken in so despondent a way, and Bachelor Billy was alarmed. "Bear up, lad," he said, "bear up. We'll mak' the best o' it; an' they canna do much harm till ye wi' Uncle Billy a-stannin' by."

Mrs. Maloney had come to her door and stood there, looking at the trio in sorrowful surprise.

"Good-by, Mrs. Maloney!" said Ralph going up to her. "It ain't likely I'll ever come back here any more, an' you've been very good to me, Mrs. Maloney, very good indeed, an'—an'—good-by!"

"An' where do ye be goin' Ralphy?"

"Back to Gran'pa Simon's, I s'pose. He's come for me and he's got a right to take me."

The sheriff was looking uneasily at his watch. "Come," he said, "we'll have to hurry to catch the train."

The good woman bent down and kissed the boy tenderly. "Good-by to ye, darlin'," she said, "an' the saints protict ye." Then she burst into tears, and, throwing her apron up before her face, she held it against her eyes and went, backward, into the house.

Ralph laid hold of Bachelor Billy's rough hand affectionately, and they walked rapidly away.

At the bend in the street, the boy turned to look back for the last time upon the cottage which had been his home. A happy home it had been to him, a very happy home indeed. He never knew before how dear the old place was to him. The brow of the hill which they were now descending hid the house at last from sight, and, with tear-blinded eyes, Ralph turned his face again toward the city, toward the misery of the court-room, toward the desolate and dreadful prospect of a life with Simon Craft.

## CHAPTER XIX.

### BACK TO THE BREAKER.

It was a dull day in the court-room at Wilkesbarre. The jury trials had all been disposed of, and for the last hour or more the court had been listening to an argument on a rule for a new trial in an ejectment case. It was a very uninteresting matter. Every one had left the court-room with the exception of the court officers, a few lawyers, and a half-dozen spectators who seemed to be there for the purpose of resting on the benches rather than with any desire to hear the proceedings before the court.

The lawyers on both sides had concluded their arguments, and the judge was bundling together the papers in the case and trying to encircle the bulky package with a heavy rubber band.

Then the court-room door was opened, and the sheriff came down the aisle, accompanied by Ralph and Bachelor Billy. A moment later, Simon Craft followed them to the bar. Sharpman, who was sitting inside the railing by a table, looked up with disgust plainly marked on his face as the old man entered and sat down beside him.

He had prepared the petition for a writ of *habeas corpus*, at Craft's request, and had agreed to appear in his behalf when the writ should be returned. He shared, in some small degree, the old man's desire for revenge



on those who had been instrumental in destroying their scheme. But, as the day wore on, the matter took on a slightly different aspect in his mind. In the first place, he doubted whether the court would order Ralph to be returned into Craft's custody. In the next place, he had no love for his client. He had been using him simply as a tool; it was time now to cast him aside since he could be of no further benefit to him. Besides, the old man had come to be annoying and repulsive, and he had no money to pay for legal services. Then, there was still an opportunity to recover some of the personal prestige he had lost in his bitter advocacy of Craft's cause before the jury. In short, he had deliberately resolved to desert his client at the first opportunity.

The sheriff endorsed his return on the writ and filed it.

The judge looked at the papers, and then he called Bachelor Billy before him. "I see," he said, "that you have produced the body of the boy Ralph as you were directed to do. Have you a lawyer?"

"I ha' none," answered the man. "I did na ken as I needit ony."

"We do not think you do, either, as we understand the case. The prothonotary will endorse a simple return on the writ, setting forth the production of the boy, and you may sign it. We think that is all that will be necessary on your part. Now you may be seated."

The judge turned to Sharpman.

"Well, Mr. Sharpman," he said, "what have you to offer on the part of your client?"

Sharpman arose. "If the court please," he responded, "I would respectfully ask to be allowed, at this juncture, to withdraw from the case. I

prepared and presented the petition as a matter of duty to a client. I do not conceive it to be my duty to render any further assistance. That client, either through ignorance or deception, has been the means of placing me in a false and unenviable light before the court and before this community, in the suit which has just closed. I have neither the desire nor the opportunity to set myself right in that matter, but I do wish and I have fully determined to wash my hands of the whole affair. From this time forth I shall have nothing to do with it."

Sharpman resumed his seat, while Craft stared at him in astonishment and with growing anger.

He could hardly believe that the man who had led him into this scheme, and whose unpardonable blunder had brought disaster on them both, was now not only deserting him, but heaping ignominy on his head. Every moment was adding to his bitterness and rage.

"Well, Mr. Craft," said the judge, "what have you to offer in this matter? Your attorney seems to have left you to handle the case for yourself; we will hear you."

"My attorney is a rascal," said Craft, white with passion, as he arose. "His part and presence in that trial was a curse on it from the beginning. He wasn't satisfied to ruin me, but he must now seek to disgrace me as well. He is—"

The judge interrupted him:—

"We do not care to hear your opinion of Mr. Sharpman; we have neither the time nor the disposition to listen to it. You caused this defendant to produce before us the body of the boy Ralph. They are both here; what further do you desire?"

"I desire to take the boy home with me. The judgment of this court is that he is my grandson. In the absence of other persons legally entitled to take charge of him, I claim that right. I ask the court to order him into my custody."

The old man resumed his seat, and immediately fell into his customary fit of coughing.

When he had recovered, the judge, who had in the meantime been writing rapidly, said:—

"We cannot agree with you, Mr. Craft, as to the law. Although the presumption may be that the jury based their verdict on the boy's testimony that he is your grandson, yet their verdict does not state that fact specifically, and we have nothing on the record to show it. It would be necessary for you to prove that relation here and now, by new and independent evidence, before we could place the boy in your custody under any circumstances. But we shall save you the trouble of doing so by deciding the matter on other grounds. The court has heard from your own lips, within a few days, that you are, or have been, engaged in a business such as to make thieving and lying a common occurrence in your life. The court has also heard from your own lips that during the time this child was in your custody, you not only treated him inhumanly as regarded his body, but that you put forth every effort to destroy what has since proved itself to be a pure and steadfast soul. A kind providence placed it in the child's power to escape from you, and the same providence led him to the door of a man whose tenderness, whose honor, and whose nobility of character, no matter how humble his station in life, marks him as one eminently worthy to care for the body and to minister to the spirit of a boy like this.

"We feel that to take this lad now from his charge and to place him in yours, would be to do an act so utterly repugnant to justice, to humanity,

and to law, that, if done, it ought to drag us from this bench in disgrace. We have marked your petition dismissed; we have ordered you to pay the cost of this proceeding, and we have remanded the boy Ralph to the custody of William Buckley."

Simon Craft said not a word. He rose from his chair, steadied himself for a moment on his cane, then shuffled up the aisle, out at the door and down the hall into the street. Disappointment, anger, bitter hatred, raged in his heart and distorted his face. The weight of years, of disease, of a criminal life, sat heavily upon him as he dragged himself miserably along the crowded thoroughfare, looking neither to the right nor the left, thinking only of the evil burden of his own misfortunes. Now and then some one who recognized him stopped, turned, looked at him scornfully for a moment, and passed on. Then he was lost to view. He was never seen in the city of Wilkesbarre again. He left no friends behind him there. He was first ridiculed, then despised, and then—forgotten.

\* \* \* \* \*

It was two weeks after this before Ralph was able to return to his work. So much excitement, so much mental distress and bodily fatigue in so short a time, had occasioned a severe shock to his system, and he rallied from it but slowly.

One Monday morning, however, he went back to his accustomed work at the breaker.

He had thought that perhaps he might be ridiculed by the screen-room boys as one who had tried to soar above his fellows and had fallen ignominiously back to the earth. He expected to be greeted with jeering words and with cutting remarks, not so much in the way of malice as of fun.

He resolved to take it calmly, however, and to give way to no show of feeling, hoping that thus the boys would soon forget to tease him.

But when he came among them that morning, looking so thin, and pale, and old, there was not a boy in all the waiting crowd who had the heart or hardihood to say an unpleasant word to him or to give utterance to a jest at his expense.

They all spoke kindly to him, and welcomed him back. Some of them did it very awkwardly indeed, and with much embarrassment, but they made him to understand, somehow, that they were glad to see him, and that he still held his place among them as a companion and a friend. It was very good in them, Ralph thought, very good indeed; he could scarcely keep the tears back for gratitude.

He took his accustomed bench in the screen-room, and bent to his task in the old way; but not with the old, light heart and willing fingers. He had thought never to do this again. He had thought that life held for him some higher, brighter, less laborious work. He had thought to gain knowledge, to win fame, to satisfy ambition. But the storm came with its fierce blasts of disappointment and despair, and when it had passed, hope and joy were engulfed in the ruins it left behind it. Henceforth there remained nothing but this, this toilsome bending over streams of flowing coal, to-day, to-morrow, next week, next year. And in the remote future nothing better; nothing but the laborer's pick and shovel, or, at best, the miner's drill and powder-can and fuse. In all the coming years there was not one bright spot to which he could look, this day, with hope. The day itself seemed very long to him, very long indeed and very tiresome. The heat grew burdensome; the black dust filled his throat and lungs, the ceaseless noise became almost unendurable; the stream of coal ran down and down in a dull monotony that

made him faint and dizzy, and the bits of blue sky seen from the open windows never yet had seemed to him to be so far and far away.

But the day had an end at last, as all days must have, and Ralph came down from his seat in the dingy castle to walk with Bachelor Billy to their home.

They went by a path that led through green fields, where the light of the setting sun, falling on the grass and daisies, changed them to a golden yellow as one looked on them from the distance.

When they turned the corner of the village street, they were surprised to see horses and a carriage standing in front of Mrs. Maloney's cottage. It was an unaccustomed sight. There was a lady there talking to Mrs. Maloney, and she had a little girl by her side. At the second look, Ralph recognized them as Mrs. Burnham and Mildred. Then the lady descended from her carriage and stood at the door waiting for Bachelor Billy and the boy to come to her. But Ralph, looking down at his black hands and soiled clothing, hesitated and stopped in the middle of the road. He knew that his face, too, was so covered with coal-dust as to be almost unrecognizable. He felt that he ought not to appear before Mrs. Burnham in this guise.

But she saw his embarrassment and called to him.

"I came to see you, Ralph," she said. "I want to talk to you both. May I go into your house and find a chair?"

Both boy and man hurried forward then with kindly greetings, and Bachelor Billy unlocked the door and bade her enter.

She went in and sat in the big rocking-chair, looking pale and weak, while Ralph hurried away to wash the black dust from his face and hands.

"Ye were verra kind, Mistress Burnham," said the man, "to sen' Ralph the gude things to eat when he waur sick. An' the perty roses ye gie'd 'im,—he never tired o' watchin' 'em."

"I should have come myself to see him," she replied, "only that I too have been ill. I thought to send such little delicacies as might tempt his appetite. I knew that he must be quite exhausted after so great a strain upon his nervous system. The excitement wore me out, and I had no such struggle as he had. I am glad he has rallied from the shock."

"He's not ower strang yet; ye ken that by lukin' at 'im; but he's a braw lad, a braw lad."

The lady turned and looked earnestly into Bachelor Billy's face.

"He's the bravest boy," she said, "the very bravest boy I ever knew or heard, of, and the very best. I want him, Billy; I have come here to-night to ask you if I may have him. Son or no son, he is very dear to me, and I feel that I cannot do without him."

For a minute the man was silent. Down deep in his heart there had been a spark of rejoicing at the probability that Ralph would stay with him now indefinitely. He had pushed it as far out of sight as possible, because it was a selfish rejoicing, and he felt that it was not right since it came as a result of the boy's misfortune.

And now suddenly the fear of loss had quenched it entirely, and the dread of being left alone came back upon him in full force.

He bit his lip before replying, to help hold back his mingled feeling of pleasure at the bright prospect opening for Ralph, and of pain for the separation which must follow.

"I dinna ken," he said at last, "how aught could be better for the lad than bein' wi' ye. Ye're ower kin' to think o' it. It'll be hard partin' wi' im, but, if the lad wishes it, he s'all gae. I ha' no claim on 'im only to do what's best for 'im as I ken it. He's a-comin'; he'll speak for 'imself'."

Ralph came back into the room with face and hands as clean as a hurried washing could make them. "What thenk ye," said Bachelor Billy to him, "that the lady wants for ye to do?"

"I don't know," replied the boy, looking uneasily from one to the other; "but she's been very good to me, an', whatever it is, I'll try to do it."

"I want you to go home with me, Ralph," said Mrs. Burnham, "and live with me and be my son. I am not sure yet that you are not my child. We shall find that out. With the new light we have we shall make a new search for proofs of your identity, but that may take weeks, perhaps months. In the meantime I cannot do without you. I want you to come to me now, and, whatever the result of this new investigation may be, I want you to stay with me and be my son. Will you come?"

She had taken both the boy's hands and had drawn him to her, and was looking up into his face with tenderness and longing.

Ralph could not speak. He was dumb with the joy of hearing her kindly earnest words. A light of great gladness broke in upon his mind. The world had become bright and beautiful once more. He was not to be without home and love and learning after all. Then came second thoughts, bringing doubt, hesitancy, mental struggling.

Still he was silent, looking out through the open door to the eastern hills, where the sunlight lingered lovingly with golden radiance. On the boy's



face the lights and shadows, coming and going, marked the progress of the conflict in his mind.

The lady put her arm around him and drew him closer to her, regardless of his soiled and dusty clothing. She was still looking into his eyes.

"You will come, will you not, Ralph? We want you so much, so very much; do we not, Mildred?" she asked, turning to her little daughter, who stood at the other side of her chair.

"Indeed we do," answered the child. "Mamma wants you an' I want you. I don't have anybody to play wiv me half the time, 'cept Towser; an' yeste'day I asked Towser if he wanted you, an' Towser said 'bow,' an' that means 'yes.'"

"There! you see we all want you, Ralph," said Mrs. Burnham, smiling; "the entire family wants you. Now, you will come, won't you?"

The boy had looked across to the little girl, over to Bachelor Billy, who stood leaning against the mantel, and then down again into the lady's eyes. It was almost pitiful to look into his face and see the strong emotion outlined there, marking the fierceness of the conflict in his mind between a great desire for honest happiness and a stern and manly sense of the right and proper thing for him to do. At last he spoke.

"Mrs. Burnham," he said, in a sharp voice, "I can't, I can't!"

A look of surprise and pain came into the lady's face.

"Why, Ralph!" she exclaimed, "I thought,—I hoped you would be glad to go. We would be very good to you; we would try to make you very happy."

"An' I'll give you half of ev'ry nice thing I have!" spoke out the girl, impetuously.

"I know, I know!" responded Ralph, "it'd be beautiful, just as it was that Sunday I was there; an' I'd like to go,—you don't know how I'd like to,—but I can't! Oh, no! I can't!"

Bachelor Billy was leaning forward, watching the boy intently, surprise and admiration marking his soiled face.

"Then, why will you not come?" persisted the lady. "What reason have you, if we can all be happy?"

Ralph stood for a moment in deep thought.

"I can't tell you," he said, at last. "I don't know just how to explain it, but, some way, after all this that's happened, it don't seem to me as though I'd ought to go, it don't seem to me as though it'd be just right; as though it'd be a-doin' what—what—Oh! I can't tell you. I can't explain it to you so'st you can understand. But I mus'n't go; indeed, I mus'n't!"

At last, however, the lady understood and was silent.

She had not thought before how this proposal, well meant though it was, might jar upon the lad's fine sense of honor and of the fitness of things. She had not realized, until this moment, how a boy, possessing so delicate a nature as Ralph's, might feel to take a position now, to which a court and jury had declared he was not entitled, to which he himself had acknowledged, and to which every one knew he was not entitled.

He had tried to gain the place by virtue of a suit at law, he had called upon the highest power in the land to put him into it, and his effort had not only ended in ignominious failure, but had left him stamped as a lineal

descendant of one whose very name had become a by-word and a reproach. How could he now, with the remotest sense of honor or of pride, step into the place that should have been occupied by Robert Burnham's son?

The lady could not urge him any more, knowing what his thought was. She could only say:—

"Yes, Ralph; I understand. I am very, very sorry. I love you just the same, but I cannot ask you now to go with me. I can only hope for a day when we shall know, and the world shall know, that you are my son. You would come to me then, would you not, Ralph?"

"Indeed I would!" he said. "Oh, *indeed* I would!"

She drew his head down upon her bosom and kissed his lips again and again; then she released him and rose to go. She inquired very tenderly about his health, about his work, about his likes in the way of books and food and clothing; and one could see that, notwithstanding her resolution to leave Ralph with Bachelor Billy, she still had many plans in her mind, for his comfort and happiness. She charged Billy to be very careful of the boy; she kissed him again, and Mildred kissed him, and then they stepped into the carriage and the restless brown horses drew them rapidly away.

## CHAPTER XX.

### THE FIRE IN THE SHAFT.

A boy with Ralph's natural courage and spirit could not remain long despondent. Ambition came back to him with the summer days, and hope found an abiding place in his breast once more. It was not, indeed, the old ambition to be rich and learned and famous, nor the hope that he should yet be surrounded with beauty in a home made bright by a mother's love.

All these things, though they had not faded from his mind, were thought of only as sweet dreams of the past. His future, as he looked out upon it now, did not hold them; yet it was a future that had in it no disappointment, no desolation, no despair. The path before him was a very humble one, indeed, but he resolved to tread it royally. Because the high places and the beautiful things of earth were not for him was no reason why he should sit and mourn his fate in cheerless inactivity. He determined to be up and doing, with the light and energy that he had, looking constantly ahead for more. He knew that in America there is always something better for the very humblest toiler to anticipate, and that, with courage, hope, and high endeavor to assist him, he is sure to reach his goal.

Ralph resolved, at any rate, to do all that lay in his power toward the attainment of useful and honorable manhood. He did not set his mark so

very high, but the way to it was rough with obstacles and bordered with daily toil.

His plan was, simply to find better places for himself about the breaker and the mines, as his age and strength would permit, and so to do his work as to gain the confidence of his employers. When he should become old enough, he would be a miner's laborer, then a miner, and perhaps, eventually, he might rise to the position of a mine boss. He would improve his leisure with self study, get what schooling he could, and, finally, as the height of his ambition, he hoped that, some day, he might become a mining engineer; able to sink shafts, to direct headings, to map out the devious courses of the mine, or to build great breakers like the one in which he spent his days.

Having marked out his course he began to follow it. He labored earnestly and with a will. The breaker boss said that no cleaner coal was emptied into the cars at the loading place than that which came down through Ralph's chute.

His plan was successful as it was bound to be, and it was not long before a better place was offered to him. It was that of a driver boy in the mine below the breaker. He accepted it; the wages were much better than those he was now receiving, and it was a long step ahead toward the end he had in view.

But the work was new and strange to him. He did not like it. He did not think, at first, that he ever could like it. It was so dark in the mines, so desolate, so lonely. He grew accustomed to the place, however, as the days went by, and then he began not to mind it so much after all. He had more responsibility here, but the work was not so tiresome and monotonous as it had been in the screen-room, and he could be in motion all the time.

He went down the shaft every morning with a load of miners and laborers, carrying his whip and his dinner-pail, and a lighted lamp fastened to the front of his cap. When he reached the bottom of the shaft he hurried to the inside plane, and up the slope to the stables to get his mule. The mule's name was Jasper. Nobody knew why he had been named Jasper, but when Ralph called him by that name he always came to him. He was a very intelligent animal, but he had an exceedingly bad habit of kicking.

It was Ralph's duty to take the mule from the stable, to fasten him to a trip of empty mine cars, and to make him draw them to the little cluster of chambers at the end of the branch that turned off from the upper-level heading.

This was the farthest point from the shaft in the entire mine. The distance from the head of the plane alone was more than a mile, and it was from the head of the plane that Ralph took the cars. When he reached the end of his route he left one car of his trip at the foot of each chamber in which it was needed, gathered together into a new trip the loaded cars that had been pushed down to the main track for him, and started back with them to the head of the plane.

He usually made from eight to ten round trips a day; stopping at noon, or thereabouts, to eat the dinner with which the Widow Maloney had filled his pail. All the driver boys on that level gathered at the head of the plane to eat their dinners, and, during the noon-hour, the place was alive with shouts and songs and pranks and chattering without limit. These boys were older, stronger, ruder than those in the screen-room; but they were no less human and good-hearted; only one needed to look beneath the rough exterior into their real natures. There were eight of them who took trips in by Ralph's heading, but, for the last half-mile of his route, he was the only driver boy. It was a lonesome half-mile too, with no working chambers along it, and

Ralph was always glad when he reached the end of it. There was, usually, plenty of life, though, up in the workings to which he distributed his cars. One could look up from the air-way and see the lights dancing in the darkness at the breast of every chamber. There was always the sharp tap, tap of the drill, the noise of the sledge falling heavily on the huge lumps of coal, sometimes a sudden rush of air against one's face, followed by a dull report and crash that told of the firing of a blast, and now and then a miner's laborer would come running a loaded car down to the heading or go pushing an empty one back up the chamber.

There was a laborer up in one of these chambers with whom Ralph had formed quite a friendship. His name was Michael Conway. He was young and strong-limbed, with huge hairy arms, a kind face, and a warm heart.

He had promised to teach Ralph the art of breaking and loading coal. He expected, he said, to have a chamber himself after a while, and then he would take the boy on as a laborer. Indeed, Ralph had already learned many things from him about the use of tools and the handling of coal and the setting of props. But he did not often have an opportunity to see Conway at work. The chamber in which the young man was laboring was the longest one in the tier, and the loaded car was usually at the foot of it when Ralph arrived with his trip of lights; so that he had only to run the empty car up into the air-way a few feet, take on the loaded one, and start back toward the plane.

But one afternoon, when he came up with his last trip for the day, he found no load at the foot of Conway's chamber, and, after waiting a few minutes, he went up to the face to investigate. He found Conway there alone. The miner for whom the young man worked had fallen sick and had gone out earlier than usual, so his laborer had finished the blast at which the

employer had been at work. It was a blast of top-coal, and therefore it took longer to get it down and break it up. This accounted for the delay.

"Come up here with ye," said Conway to the boy; "I want to show ye something."

Ralph climbed up on to the shelf of coal at the breast of the chamber, and the man, tearing away a few pieces of slate and a few handfuls of dirt from a spot in the upper face, disclosed an opening in the wall scarcely larger than one's head. A strong current of air coursed through it, and when Conway put his lamp against it the flame was extinguished in a moment.

"Where does it go to?" asked Ralph.

"I don't just know, but I think it must go somewhere into the workin's from old No. 1 slope. The boss, he was in this mornin', and he said he thought we must be a-gettin' perty close to them old chambers."

"Does anybody work in there?"

"Oh, bless ye, no! They robbed the pillars tin years ago an' more; I doubt an ye could get through it at all now. It's one o' the oldest places in the valley, I'm thinkin'. D'ye mind the old openin' ye can see in the side-hill when ye're goin' up by Tom Ballard's to the Dunmore road?"

"Yes, that's where Uncle Billy worked when he was a miner."

"Did he, thin! Well, that's where they wint in. It's a long way from here though, I'm thinkin'."

"Awful strong wind goin' in there, ain't they?"

"Yes, I must block it up again, or it'll take all our air away."



"What'll your miner do to-morrow when he finds this place?"

"Oh, he'll have to get another chamber, I guess."

The man was fastening up the opening again with pieces of slate and coal, and plastering it over with loose wet dirt.

"Well," said Ralph, "I'll have to go now. Jasper's gettin' in a hurry. Don't you hear 'im?"

Conway helped the boy to push the loaded car down the chamber and fasten it to his trip.

"I'll not be here long," said the man as he turned back into the air-way, "I'll take this light in, an' pick things up a bit, an' quit. Maybe I'll catch ye before ye get to the plane."

"All right! I'll go slow. Hurry up; everybody else has gone out, you know."

After a moment Ralph heard Conway pushing the empty car up the chamber, then he climbed up on his trip, took the reins, said, "giddep" to Jasper, and they started on the long journey out. For some reason it seemed longer than usual this night. But Ralph did not urge his beast. He went slowly, hoping that Conway would overtake him before he reached the plane.

He looked back frequently, but Mike, as every one called him, was not yet in sight.

The last curve was reached, and, as the little trip rounded it, Ralph's attention was attracted by a light which was being waved rapidly in the distance ahead of him. Some one was shouting, too. He stopped the mule,

and held the cars back to listen, but the sound was so broken by intervening pillars and openings that all he could catch was: "Hurry! hurry—up!" He laid the whip on Jasper's back energetically, and they went swiftly to the head of the plane. There was no one there when he reached it, but half-way down the incline he saw the light again, and up the broad, straight gallery came the cry of danger distinctly to his ears.

"Hurry! hurry! The breaker's afire! The shaft's a-burnin'!—run!"

Instinctively Ralph unhitched the mule, dropped the trace-chains, and ran down the long incline of the plane. He reached the foot, rounded the curve, and came into sight of the bottom of the shaft. A half-dozen or more of men and boys were there, crowding in toward the carriage-way, with fear stamped on their soiled faces, looking anxiously up for the descending carriage.

"Ralph, ye're lucky!" shouted some one to the boy as he stepped breathless and excited into the group. "Ye're just in time for the last carriage. It'll not come down but this once, again. It's a-gettin' too hot up there to run it Ye're the last one from the end chambers, too. Here, step closer!"

Then Ralph thought of Conway.

"Did Mike come out?" he asked. "Mike Conway?"

As he spoke a huge fire-brand fell from the shaft at their feet, scattering sparks and throwing out smoke. The men drew back a little, and no one answered Ralph's question.

"Has Mike Conway come out yet?" he repeated.

"Yes, long ago; didn't he, Jimmy?" replied some one, turning to the footman.

"Mike Conway? no it was Mike Corcoran that went out. Is Conway back yet?"

"He is!" exclaimed Ralph, "he is just a-comin'. I'll tell 'im to hurry."

Another blazing stick fell as the lad darted out from among the men and ran toward the foot of the plane.

"Come back, Ralph!" shouted some one, "come back; ye've no time; the carriage is here!"

"Hold it a minute!" answered the boy, "just a minute; I'll see 'im on the plane."

The carriage struck the floor of the mine heavily and threw a shower of blazing fragments from its iron roof. At the same moment a man appeared from a lower entrance and hurried toward the group.

"It's Conway!" cried some one; "he's come across by the sump. Ralph! ho, Ralph!"

"Why, where's Ralph?" asked Conway, as he crowded on to the carriage.

"Gone to the plane to warn ye," was the answer."

"Wait the hoisting bell, then, till I get 'im."

But the carriage was already moving slowly upward.

"You can't do it!" shouted some one.

"Then I'll stay with 'im!" cried Conway, trying to push his way off.  
"Ralph, oh, Ralph!"

But the man was held to his place by strong arms, and the next moment the smoking, burning carriage was speeding up the shaft for the last time.

Ralph reached the foot of the plane and looked up it, but he saw no light in the darkness there. Before he had time to think what he should do next, he heard a shout from the direction of the shaft:—

"Ralph! oh, Ralph!"

It was Conway's voice. He recognized it. He had often heard that voice coming from the breast of Mike's chamber, in kindly greeting.

Quick as thought he turned on his heel and started back. He flew around the curve like a shadow.

"Wait!" he cried, "wait a minute; I'm a-comin'!"

At the foot of the shaft there was a pile of blazing sticks, but there was no carriage there, nor were there any men. He stumbled into the very flames in his eagerness, and called wildly up the dark opening:

"Wait! come back! oh, wait!"

But the whirring, thumping noise of a falling body was the only answer that came to him, and he darted back in time to escape destruction from a huge flaming piece of timber that struck the floor of the mine with a great noise, and sent out a perfect shower of sparks.

But they might send the carriage down again if he rang for it.

He ran across and seized the handle of the bell wire and pulled it with all his might. The wire gave way somewhere above him and came coiling down upon his head. He threw it from him and turned again toward the opening of the shaft. Then the carriage did descend. It came down the shaft for the last time in its brief existence, came like a thunderbolt, struck the floor of the mine with a great shock and—collapsed. It was just a mass of fragments covered by an iron roof—that was all. On top of it fell a storm of blazing sticks and timbers, filling up the space at the foot, piling a mass of wreckage high into the narrow confines of the shaft.

Ralph retreated to the footman's bench, and sat there looking vaguely at the burning heap and listening to the crash of falling bodies, and the deep roar of the flames that coursed upward out of sight. He could hardly realize the danger of his situation, it had all come upon him so suddenly. He knew, however, that he was probably the only human being in the mine, that the only way of escape was by the shaft, and that that was blocked.

But he did not doubt for a moment that he would be rescued in time. They would come down and get him, he knew, as soon as the shaft could be cleared out. The crashing still continued, but it was not so loud now, indicating, probably, that the burning wreckage had reached to a great height in the shaft.

The rubbish at the foot had become so tightly wedged to the floor of the mine that it had no chance to burn, and by and by the glow from the burning wood was entirely extinguished, the sparks sputtered and went out, and darkness settled slowly down again upon the place.

Ralph still sat there, because that was the spot nearest to where human beings were, and that was the way of approach when they should come to rescue him.

At last there was only the faint glimmer from his own little lamp to light up the gloom, and the noises in the shaft had died almost entirely away.

Then came a sense of loneliness and desolation to be added to his fear. Silence and darkness are great promoters of despondency. But he still hoped for the best.

After a time he became aware that he was sitting in an atmosphere growing dense with smoke. The air current had become reversed, at intervals, and had sent the smoke pouring out from among the charred timbers in dense volumes. It choked the boy, and he was obliged to move. Instinctively he made his way along the passage to which he was most accustomed toward the foot of the plane.

Here he stopped and seated himself again, but he did not stay long. The smoke soon reached him, surrounded him, and choked him again. He walked slowly up the plane. When he reached the head he was tired and his limbs were trembling. He went across to the bench by the wheel and sat down on it. He thought to wait here until help should come.

He felt sure that he would be rescued; miners never did these things by halves, and he knew that, sooner or later, he should leave the mine alive. The most that he dreaded now was the waiting, the loneliness, the darkness, the hunger perhaps, the suffering it might be, from smoke and foul air.

In the darkness back of him he heard a noise. It sounded like heavy irregular stepping. He was startled at first, but it soon occurred to him that the sounds were made by the mule which he had left there untied.

He was right. In another moment Jasper appeared with his head stretched forward, sniffing the air curiously, and looking in a frightened way at Ralph.

"Hello, Jasper!"

The boy spoke cheerily, because he was relieved from sudden fright, and because he was glad to see in the mine a living being whom he knew, even though it was only a mule.

The beast came forward and pushed his nose against Ralph's breast as if seeking sympathy, and the boy put up his hand and rubbed the animal's face.

"We're shut in, Jasper," he said, "the breaker's burned, an' things afire have tumbled down the shaft an' we can't get out till they clean it up an' come for us."

The mule raised his head and looked around him, then he rested his nose against Ralph's shoulder again.

"We'll stay together, won't we, old fellow? We'll keep each other company till they come for us. I'm glad I found you, Jasper; I'm very glad."

He patted the beast's neck affectionately; then he removed the bridle from his head, unbuckled the harness and slipped it down to the ground, and tried to get the collar off; but it would not come. He turned it and twisted it and pulled it, but he could not get it over the animal's ears. He gave up trying at last, and after laying the remainder of the harness up against the wheel-frame, he sat down on the bench again.

Except the occasional quick stamping of Jasper's feet, there was no sound, and Ralph sat for a long time immersed in thought.

The mule had been gazing contemplatively down the plane into the darkness; finally he turned and faced toward the interior of the mine. It was evident that he did not like the contaminated air that was creeping up the

slope. Ralph, too, soon felt the effect of it; it made his head light and dizzy, and the smoke with which it was laden brought back the choking sensation into his throat. He knew that he must go farther in. He rose and went slowly along the heading, over his accustomed route, until he reached a bench by a door that opened into the air-way. Here he sat down again. He was tired and was breathing heavily. A little exertion seemed to exhaust him so. He could not quite understand it. He remembered when he had run all the way from the plane to the north chambers with only a quickening of the breath as the result. He was not familiar with the action of vitiated air upon the system.

Jasper had followed him; so closely indeed that the beast's nose had often touched the boy's shoulder as they walked.

Ralph's lamp seemed to weigh heavily on his head, and he unfastened it from his cap and placed it on the bench beside him.

Then he fell to thinking again. He thought how anxious Bachelor Billy would be about him, and how he would make every effort to accomplish his rescue. He hoped that his Uncle Billy would be the first one to reach him when the way was opened; that would be very pleasant for them both.

Mrs. Burnham would be anxious about him too. He knew that she would; she had been very kind to him of late, very kind indeed, and she came often to see him.

Then the memory of Robert Burnham came back to him. He thought of the way he looked and talked, of his kind manner and his gentle words. He remembered how, long ago, he had resolved to strive toward the perfect manhood exemplified in this man's life. He wondered if he had done the best he could. The scenes and incidents of the day on which this good man died recurred to him.



Why, it was at this very door that the little rescuing party had turned off to go up into the easterly tier of chambers. Ralph had not been up there since. He had often thought to go over again the route taken on that day, but he had never found the time to do so. He had time enough at his disposal now, however; why not make the trip up there? it would be better than sitting here in idleness to wait for some sign of rescue.

He arose and opened the door.

The mule made as if to follow him.

"You stay here, Jasper," he said, "I won't be gone long."

He shut the door in the animal's face and started off up the side-heading. There had not been much travel on this road during the last year. Most of the chambers in this part of the mine had been worked out and abandoned.

As the boy passed on he recalled the incidents of the former journey. He came to a place where the explosion at that time had blown out the props and shaken down the roof until the passage was entirely blocked.

He remembered that they had turned there and had gone up into a chamber to try to get in through the entrances. But they had found the entrances all blocked, and the men had set to work to make an opening through one of them. Ralph recalled the scene very distinctly. With what desperate energy those men worked, tearing away the stones and dirt with their hands in order to get in the sooner to their unfortunate comrades.

He remembered that while they were doing this Robert Burnham had seated himself on a fallen prop, had torn a leaf from his memorandum book and had asked Ralph to hold his lamp near by, so that he could see to write. He filled one side of the leaf, half of the other side, folded it, addressed it,

and placed it in the pocket of his vest. Then he went up and directed the enlargement of the opening and crawled through with the rest. Here was the entrance, and here was the opening, just as it had been left. Ralph clambered through it and went down to the fall. The piled-up rocks were before him, as he had seen them that day. Nothing had been disturbed.

On the floor of the mine was something that attracted his attention. He stooped and picked it up. It was a piece of paper.

There was writing on it in pencil, much faded now, but still distinct enough to be read. He held his lamp to it and examined it more closely. He could read writing very well, and this was written plainly. He began to read it aloud:—

"My DEAR WIFE,—I desire to supplement the letter sent to you from the office with this note written in the mine during a minute of waiting. I want to tell you that our Ralph is living; that he is here with me, standing this moment at my side."

The paper dropped from the boy's trembling fingers, and he stood for a minute awe-struck and breathless. Then he picked up the note and examined it again. It was the very one that Robert Burnham had written on the day of his death. Ralph recognized it by the crossed lines of red and blue marking the page into squares.

Without thinking that there might be any impropriety in doing so, he continued to read the letter as fast as his wildly beating heart and his eyes clouded with mist would let him.

"I have not time to tell you why and how I know, but, believe me, Margaret, there is no mistake. He is Ralph, the slate-picker, of whom I told you, who lives with Bachelor Billy. If he should

survive this trying journey, take him immediately and bring him up as our son; if he should die, give him proper burial. We have set out on a perilous undertaking and some of us may not live through it. I write this note in case I should not see you again. It will be found on my person. Do not allow any one to persuade you that this boy is not our son. I *know* he is. I send love and greeting to you. I pray for God's mercy and blessing on you and on our children.

**"ROBERT."**

## CHAPTER XXI.

### A PERILOUS PASSAGE.

For many minutes Ralph stood, like one in a dream, holding the slip of paper tightly in his grasp. Then there came upon him, not suddenly, but very gently and sweetly, as the morning sunlight breaks into a western valley, the broad assurance that he was Robert Burnham's son. Here was the declaration of that fact over the man's own signature. That was enough; there was no need for him to question the writer's sources of knowledge. Robert Burnham had been his ideal of truth and honor; he would have believed his lightest word against the solemn asseveration of thousands.

The flimsy lie coined by Rhyming Joe no longer had place in his mind. He cared nothing now for the weakness of Sharpman, for the cunning of Craft, for the verdict of the jury, for the judgment of the court; he *knew*, at last, that he was Robert Burnham's son, and no power on earth could have shaken that belief by the breadth of a single hair.

The scene on the descending carriage the day his father died came back into his mind. He thought how the man had grasped his hands, crying, in a voice deep and earnest with conviction:—

"Ralph! Ralph! I have found you!"

He had not understood it then; he knew now what it meant.

He raised the paper to the level of his eyes, and read, again and again, the convincing words:—

"Do not allow any one to persuade you that this boy is not our son. I *know* he is."

Then Ralph felt again that honest pride in his blood and in his name, and that high ambition to be worthy of his parentage, that had inspired him in the days gone by. Again he looked forward into the bright future, to the large fulfilment of all his hopes and desires, to learning, culture, influence, the power to do good; above all, to the sweetness of a life with his own mother, in the home where he had spent one beautiful day.

He had drawn himself to his full height; every muscle was tense, his head was erect with proud knowledge, high hope flashed from his eyes, gladness dwelt in every feature of his face.

Then, suddenly, the light went out from his countenance, and the old look of pain came back there.

His face had changed with his changing thought as it did that day in the court-room at Wilkesbarre. The fact of his imprisonment had returned into his mind, and for the moment it overcame him. He sat down on a jutting rock to consider it. Of what use was it to be Robert Burnham's son, with two hundred feet of solid rock between him and the outside world, and the only passage through it blocked with burned and broken timbers?

For a time despondency darkened his mind and despair sat heavily upon him. He even wished that the joy of this new knowledge had not come to him. It made the depth of his present misfortune seem so much greater.

But, after a while, he took heart again; courage came back to him; the belief that he would be finally saved grew stronger in his mind; hope burned up brightly in his breast, and the pride of parentage within him filled him with ambition to do what lay in his power to accomplish his own deliverance. It was little he could do, indeed, save to wait with patience and in hope until outside help should come, but this little, he resolved, should be done with a will, as befitted his birth and position.

He folded the precious bit of paper he had found and fastened it in his waistcoat pocket so that he should not lose it as Robert Burnham had lost it; then he took up his lamp and went back through the half-walled entrance, down the chamber and along the side-heading to the air-way door where Jasper had been left.

There was a small can of oil sitting just inside the door-way. It was the joint property of Ralph and the door-boy. It was fortunate, he thought, that he had selected that place for it, as he was now in great need of it. He filled his lamp, from which the oil had become nearly exhausted, and then passed out through the door.

The mule was still there and uttered a hoarse sound of welcome when he saw the boy.

"I found somethin' up there, Jasper," said Ralph, as he sat down on the bench and began to pat the beast's neck again, "somethin' wonderful; I wish I could tell you so you could understand it; it's too bad you can't, Jasper; I know you'd be glad."

The mule seemed to recognize the pleasantness of the lad's voice and to enjoy it, and for a long time Ralph sat there petting him and talking to him.

Finally, he became aware that the air about him was growing to be very bad. It made him feel sick and dizzy, and caused his heart to beat rapidly.

He knew that he must go farther in. He thought, however, to make an attempt to get out toward the shaft first. It might be that it had grown clearer out there, it might be that the rescuers were already working down toward him. He started rapidly down the heading, but before he had gone half-way to the head of the plane, the smoke and the foul air were so dense and deadly that he had to stop and to crawl away from it on his hands and knees. He was greatly exhausted when he reached the air-way door again, and he sat on the bench for a long time to rest and to recover.

But he knew that it was dangerous to remain there now, and, taking the can of oil with him, he started slowly up the heading. He did not know how soon he should get back here, and when the oil in his lamp should give out again he desired to be able to renew it.

The mule was following closely behind him. It was a great comfort, too, to have a living being with him for company. He might have been shut up here alone, and that would have been infinitely worse.

At the point where the branch leading to the new chambers left the main heading, Ralph turned in, following his accustomed route. It seemed to him that he ought to go to places with which he was familiar.

He trudged along through the half-mile of gang-way that he had always found so lonely when he was at work, stopping now and then to rest. For, although he walked very slowly, he grew tired very easily. He felt that he was not getting into a purer atmosphere either. The air around him seemed to lack strength and vitality; and when, at last, he reached the tier of chambers that it had been his duty to supply with cars, he was suffering

from dizziness, from shortness of breath, and from rapid beating of the heart.

At the foot of Conway's chamber Ralph found a seat. He was very weak and tired and his whole frame was in a tremor.

He began to recall all that he had heard and read about people being suffocated in the mines; all the stories that had ever been told to him about miners being shut in by accident and poisoned with foul air, or rescued at the point of death. He knew that his own situation was a critical one. He knew that, with the shaft crowded full of wreckage and giving no passage to the air, the entire mine would eventually become filled with poisonous gases. He knew that his present physical condition was due to the foulness of the atmosphere he was breathing. He felt that the situation was becoming rapidly more alarming. The only question now was as to how long this vitiated air would support life. Still, his courage did not give way. He had strong hope that he would yet be rescued, and he struggled to hold fast to his hope.

The flame of his lamp burned round and dim, so dim that he could scarcely see across the heading.

The mule came up to him and put out his nose to touch the boy's hand.

"I guess we may as well stay here. Jasper," he said. "This is the furthest place away from the shaft, an' if we can't stan' it here we can't stan' it nowhere."

The beast seemed to understand him, for he lay down then, with his head resting on Ralph's knee. They remained for a long time in that position, and Ralph listened anxiously for some sound from the direction of the shaft. He began to think finally that it was foolish to expect help as yet. No human



being could get through the gas and smoke to him. The mine would first need to be ventilated. But he felt that the air was growing constantly more foul and heavy. His head was aching, he labored greatly in breathing, and he seemed to be confused and sleepy. He arose and tried to walk a little to keep awake. He knew that sleep was dangerous. But he was too tired to walk and he soon came back and sat down again by the mule.

"I'm a-tryin', Jasper," he said, "I'm a-tryin' my best to hold out; but I'm afraid it ain't a-goin' to do much good; I can't see much chance"—

He stopped suddenly. A thought had struck him. He seized his lamp and oil-can and pushed ahead across the air-way and up into Conway's chamber.

The mule arose with much difficulty and staggered weakly after him. A new hope had arisen in the boy's heart, an inspiration toward life had put strength into his limbs.

At the breast of the chamber he set down his lamp and can, climbed up on to the shelf of coal, and began tearing out the slate and rubbish from the little opening in the wall that Conway had that day shown to him. If he could once get through into the old mine he knew that he should find pure air and—life.

The opening was too small to admit his body, but that was nothing; there were tools here, and he still had strength enough to work. He dragged the drill up to the face but it was too heavy for him to handle, and the stroke he was able to make with it was wholly without effect. His work with the clumsy sledge was still less useful, and before he had struck the third blow the instrument fell from his nerveless hands.

He was exhausted by the effort and lay down on the bed of coal to rest, gasping for breath.

He thought if only the air current would come from the other mine into this what a blessing it would be; but, alas! the draft was the other way. The poisoned air was being drawn swiftly into the old mine, making a whistling noise as it crossed the sharp edges of the aperture.

Ralph knew that very soon the strong current would bring in smoke and fouler air, and he rose to make still another effort. He went down and brought up the pick. It was worn and light and he could handle it more easily. He began picking away at the edges of coal to enlarge the opening. But the labor soon exhausted him, and he sat down with his back against the aperture to intercept the passage of air while he recovered his breath.

He was soon at work again. The hope of escape put energy into his weak muscles.

Once, a block as large as his two hands broke away and fell down on the other side. That was a great help. But he had to stop and rest again. Indeed, after that he had very frequently to stop and rest.

The space was widening steadily, but very, very slowly.

After a time he threw down the pick and passed his head through the opening, but it was not yet large enough to receive his body.

The air that was now coming up the chamber was very bad, and it was blue with smoke, besides.

The boy bent to his task with renewed energy; but every blow exhausted him, and he had to wait before striking another. He was chipping the coal away, though, piece by piece, inch by inch.

By and by, by a stroke of rare good-fortune, a blow that drew the pick from the lad's weak hands and sent it rattling down upon the other side,

loosened a large block at the top of the opening, and it fell with a crash.

Now he could get through, and it would be none too soon either. He dropped his oil-can down on the other side, then his lamp, and then, after a single moment's rest, he crawled into the aperture, and tumbled heavily to the floor of the old mine.

It was not a great fall; he fell from a height of only a few feet, but in his exhausted condition it stunned him, and he lay for some minutes in a state of unconsciousness.

The air was better in here, he was below the line of the poisoned current, and he soon revived, sat up, picked up his lamp, and looked around him.

He was evidently in a worked-out chamber. Over his head in the side-wall was the opening through which he had fallen, and he knew that the first thing to be done was to close it up and prevent the entrance of any more foul air.

There was plenty of slate and of coal and of dirt near by, but he could not reach up so high and work easily, and he had first to build a platform against the wall, on which to stand.

It took a long time to do this, but when it was completed he stood up on it to put the first stone in place.

On the other side of the opening he heard a hoarse sound of distress, then a scrambling noise, and then Jasper's nose was pushed through against his hand. The mule had stood patiently and watched Ralph while he was at work, but when the boy disappeared he had become frightened, and had clambered up on the shelf of coal at the face to try to follow him. He was

down on his knees now, with his head wedged into the aperture, drawing in his breath with long, forced gasps, looking piteously into the boy's face.

"Poor Jasper!" said Ralph, "poor fellow! I didn't think of you. I'd get you in here too if I could."

He looked around him, as if contemplating the possibility of such a scheme; but he knew that it could not be accomplished.

"I can't do it, Jasper," he said, rubbing the animal's face as he spoke. "I can't do it. Don't you see the hole ain't big enough? an' I couldn't never make it big enough for you, never."

But the look in Jasper's eyes was very beseeching, and he tried to push his head in so that he might lay his nose against Ralph's breast.

The boy put his arms about the beast's neck.

"I can't do it, Jasper," he repeated, sobbing. "Don't you see I can't? I wisht I could, oh, I wisht I could!"

The animal drew his head back. His position was uncomfortable, and it choked him to stretch his neck out that way.

Ralph knew that he must proceed with the building of his wall. One after another he laid up the pieces of slate and coal, chinking in the crevices with dirt, keeping his head as much as possible out of the foul current, stopping often to rest, talking affectionately to Jasper, and trying, in a childish way, to console him.

At last his work was nearly completed, but the gruff sounds of distress from the frightened mule had ceased. Ralph held his lamp up out of the current, so that the light would fall through the little opening, and looked in.

Jasper lay there on his side, his head resting on the coal bottom, a long, convulsive respiration at intervals the only movement of his body. He was unconscious, and dying. The boy drew back with tears in his eyes and with sorrow at his heart. The beast had been his friend and companion, not only in his daily toil, but here also, in the loneliness and peril of the poisoned mine. For the time being, he forgot his own misfortunes in his sympathy for Jasper. He put his face once more to the opening.

"Good-by, Jasper!" he said, "good-by, old fellow! I couldn't help it, you know, an'—an' it won't hurt you any more—good-by!"

He drew back his head, put the few remaining stones in place, chinked the crevices with dirt and culm, and then, trembling and faint, he fell to the floor of the old mine, and lay there, panting and exhausted, for a long time in silent thought.

But it was not of himself he was thinking; it was of poor old Jasper, dying on the other side of the black wall, deserted, barred out, alone.

Finally it occurred to him that he should go to some other place in the mine. The poisonous gases must still be entering through the crevices of his imperfectly built and rudely plastered wall, and it would be wise for him to get farther away. His oil had nearly burned out again, and he refilled his lamp from the can. Then he arose and went down the chamber.

It was a very long chamber. When he reached the foot of it he found the entrances into the heading walled up, and he turned and went along the air-way for a little distance, and then sat down to rest.

For the first time he noticed that he had cut his hands badly, on the sharp pieces of coal he had been handling, and he felt that there was a bruise on his side, doubtless made when he fell through the opening.

Hitherto he had not had a clear idea as to the course he should pursue when he should have obtained entrance into the old mine. His principal object had been to get into pure air.

Now, however, he began to consider the matter of his escape. It was obvious that two methods were open to him. He could either try to make his way out alone to the old slope near the Dunmore road, or he could remain in the vicinity of Conway's chamber till help should reach him from the Burnham mine.

But it might be many hours before assistance would come. The shaft would have first to be cleared out, and that he knew would be no easy matter. After that the mine would need to be ventilated before men could make their way through it. All this could not be done in a day, indeed it might take many days, and when they should finally come in to search for him, they would not find him in the Burnham mine; he would not be there.

If he could discover the way to the old slope, and the path should be unobstructed, he would be in the open air within half an hour. In the open air! The very thought of such a possibility decided the question for him. And when he should reach the surface he would go straight to Mrs. Burnham, straight to his mother, and place in her hands the letter he had found. She would be glad to read it; she would be very, very glad to know that Ralph was her son. Sitting there in the darkness and the desolation he could almost see her look of great delight, he could almost feel her kisses on his lips as she gave him tender greeting. Oh! it would be beautiful, so beautiful!

But, then, there was Uncle Billy. He had come near to forgetting him. He would go first to Uncle Billy, that would be better, and then they would go together to his mother's house and would both enjoy her words of welcome.

But if he was going he must be about it. It would not do to sit there all night. All night? Ralph wondered what time it had come to be. Whether hours or days had passed since his imprisonment he could hardly tell.

He picked up his lamp and can and started on. At no great distance he found an old door-way opening into the heading. He passed through it and began to trudge along the narrow, winding passage. He had often to stop and rest, he felt so very weak. A long time he walked, slowly, unsteadily, but without much pain. Then, suddenly, he came to the end of the heading. The black, solid wall faced him before he was hardly aware of it. He had taken the wrong direction when he entered the gallery, that was all. He had followed the heading in instead of out. His journey had not been without its use, however, for it settled definitely the course he ought to take to reach the slope, and that, he thought, was a matter of no little importance.

He sat down for a few minutes to rest, and then started on his return. It seemed to be taking so much more time to get back that he feared he had passed the door-way by which he had entered the heading. But he came to it at last and stopped there.

He began to feel hungry. He wondered why he had not thought to look for some one's dinner pail, before he came over into the old mine. He knew that his own still had fragments of food in it; he wished that he had them now. But wishing was of no use, the only thing for him to do was to push ahead toward the surface. When he should reach his mother's house his craving would be satisfied with all that could tempt the palate.

He started on again. The course of the heading was far from straight, and his progress was very slow.

At last he came to a place where there had been a fall. They had robbed the pillars till they had become too weak to support the roof, and it had

tumbled in.

Ralph turned back a little, crossed the air-way and went up into the chambers, thinking to get around the area of the fall. He went a long way up before he found an unblocked opening. Then, striking across through the entrances, he came out again, suddenly, to a heading. He thought it must have curved very rapidly to the right that he should find it so soon, if it were the one he had been on before. But he followed it as best he could, stopping very often to catch a few moments of rest, finding even his light oil-can a heavy burden in his hands, trying constantly to give strength to his heart and his limbs by thoughts of the fond greeting that awaited him when once he should escape from the gloomy passages of the mine.

The heading grew to be very devious. It wound here and there, with entrances on both sides, it crossed chambers and turned corners till the boy became so bewildered that he gave up trying to trace it. He pushed on, however, through the openings that seemed most likely to lead outward, looking for pathways and trackways, hungering, thirsting, faint in both body and spirit, till he reached a solid wall at the side of a long, broad chamber, and there he stopped to consider which way to turn. He struck some object at his feet. It was a pick. He looked up at the wall in front of him, and he saw in it the filled-up entrance through which he had made his way from the Burnham mine.

It came upon him like a blow, and he sank to the floor in sudden despair.

This was worse than anything that had happened to him since the time when he ran back to the shaft to find the carriage gone and its place filled with firebrands. His journey had been such a mournful waste of time, of energy, and of hopeful anticipation.



But, after a little, he began to think that it was not quite so bad as it might have been after all. He had his lamp and his oil-can, and he was in a place where the air was fit to breathe. That was better, certainly, than to be lying on the other side of the wall with poor old Jasper. He forced new courage into his heart, he whipped his flagging spirits into fresh activity, and resolved to try once more to find a passage to the outside world.

But he needed rest; that was apparent. He thought that if he could lie down and be quiet and contented for fifteen or twenty minutes he would gain strength and vigor enough to sustain him through a long journey. He arose and moved up the chamber a little way, out of the current of poisoned air that still sifted in through the crevices of his rudely built wall.

Here he lay down on a place soft with culm, to take his contemplated rest, and, before he was aware of it, sleep had descended on him, overpowered him, and bound him fast. But it was a gracious victor. It put away his sufferings from him; it allayed his hunger and assuaged his thirst, it hid his loneliness and dispelled his fear, and it brought sweet peace for a little time to his troubled mind. He was alone and in peril, and far from the pure air and the bright sunlight of the upper world; but the angel of sleep touched his eyelids just as gently in the darkness of this dreadful place as though he had been lying on beds of fragrant flowers, with white clouds or peaceful stars above him to look upon his slumber.

## CHAPTER XXII.

### IN THE POWER OF DARKNESS.

Ralph slept, hour after hour. He dreamed, and moved his hands uneasily at intervals, but still he slept. There were no noises there to disturb him, and he had been very tired.

When he finally awoke the waking was as gentle as though he had been lying on his own bed at home. He thought, at first, that he was at home; and he wondered why it was so very dark. Then he remembered that he was shut up in the mines. It was a cruel remembrance, but it was a fact and he must make the best of it. While he slept his oil had burned out, and he was in total darkness. He felt for his oil-can and found it. Then he found his lamp, filled it by the sense of touch, and lighted it. He always carried matches; they had done him good service in the mines before this. He was very thankful too, that he had thought to bring the oil-can. Without it he would have been long ago in the power of darkness. He was still hungry, and thirsty too, very thirsty now, indeed.

He arose and tried to walk, but he was so dizzy that he had to sit down again. He felt better after a little, though, very much better than before he had taken his rest. He wondered how long he had slept, and what progress was being made, if any, toward his rescue. He went down to the opening in the wall, and held his lamp up to it. Threads of smoke were still curling in

through the slate and culm, and the air that crept in was very bad. Then, for a little time, Ralph sat there and listened. He thought that possibly he might hear some distant sound of rescue. But there was no noise; the silence was burdensome.

His thirst increased and he was hot and feverish.

At last he rose with the determination to carry out his plan of searching for the old slope.

He knew that it would be worse than useless to stay here.

Besides, he hoped that he might find a stream of water on the way at which to quench his thirst.

He thought of the letter in his pocket, and the desire grew strong within him to read it again. He took it out, unfolded it, and held it close to the light, but there seemed to be a mist before his eyes and he could not distinguish the words. He knew what it contained, though, and that was sufficient for him. He was Robert Burnham's son. His father had been brave and manly; so would he be. His father would have kept up heart and courage to the end, no matter what fate faced him. He determined that the son should do no less. He would be worthy of his parentage, he would do all that lay in his power to accomplish his own safety; if he failed, the fault should not be his.

He folded and replaced the letter, picked up his oil-can, fastened his lamp to his cap and started down the chamber. He felt that he was strong with the strength of inspiration. It seemed to him, too, that he was very light in body. It seemed almost as though he were treading on air, and he thought that he was moving very fast.

In reality his steps were heavy and halting, and his way down the long chamber was devious and erratic. His fancied strength and elasticity were born of the fever in his blood.

He came to the heading. He knew, now, which way to turn, and he passed down it in what he thought was rapid flight.

But here was the fall again. What was to be done now? His last attempt to get around it had been disastrous. He would not try that plan again. He would work his way through it this time and keep to the heading.

He climbed slowly up over the fallen rock and coal and let himself down upon the other side. But it took his breath away, this climbing, and he had to wait there a little while to recover it. There was a clear space before him, though, and he made good progress through it till he came again to the fall.

In this place the rock was piled higher and it was more difficult of ascent. But he clambered bravely up, dragging his oil-can with him; then he moved out along the smooth, sloping surfaces of fallen slate, keeping as close as possible to the wall of the heading, climbing higher and higher, very slowly now, and with much labor, stopping often to rest.

He came, at last, to a place where the space between the fallen rock and the roof above it was so narrow that he could scarcely squeeze his slender body through it. When he had done so he found himself on the edge of a precipice, a place where a solid mass had fallen like a wall, and had made a shelf so high that the feeble rays of Ralph's lamp would not reach to the bottom of it. The boy crawled, trembling, along the edge of this cliff, trying to find some place for descent.

The oil-can that he carried made his movements cumbersome; the surface of the rock was smooth and hard to cling to; his limbs were weak and his

fingers nerveless.

He slipped, the can fell from his hand, he tried to recover it, slipped further, made a desperate effort to save himself, failed, and went toppling over into the darkness.

The height was not very great, and he was not seriously injured by the fall; but it stunned him, and he lay for some time in a state of unconsciousness.

When he came to himself, he knew what had happened and where he was. He tried to rise, but the effort pained him and he lay back again. He was in total darkness. His lamp had fallen from his cap and become extinguished. He reached out to try and find it and his hand came in contact with a little stream of water. The very touch of it refreshed him. He rolled over, put his mouth to it and drank. It was running water, cool and delicious, and he was very, very thankful for it.

In the stream he found his lamp. The lid had flown open, the oil was spilled out, and the water had entered. The can was not within reach of him as he lay. He raised himself to his hands and knees and groped around for it. He began to despair of ever finding it. It would be terrible, he thought, to lose it now, and be left alone in the dark.

But at last he came upon it and picked it up. It was very light; he felt for the plug, it was gone; he turned the can upside down, it was empty.

For the moment his heart stopped beating; he could almost feel the pallor in his face, he could almost see the look of horror in his own eyes. From this time forth he would be in darkness. It was not enough that he was weak, sick, lost and alone in the mysterious depths of this old mine, but now darkness had come, thick darkness to crown his suffering and bar his

path to freedom. His self-imposed courage had almost given way. It required matchless bravery to face a peril such as this without a murmur, and still find room for hope.

But he did his best. He fought valiantly against despair.

It occurred to him that he still had matches. He drew them from his pocket and counted them. There were seven.

He poured the water from the chamber of his lamp and pulled out the wick and pressed it. He thought that possibly he might make it burn a little longer without oil. He selected one of the matches and struck it against the rock at his side. It did not light. The rock was wet and the match was spoiled.

The next one he lighted by drawing it swiftly across the sleeve of his jacket. But the light was wasted; the cotton wick was still too wet to ignite.

There was nothing left to him, then, save the matches, and they would not light him far. But it was better to go even a little way than to remain here.

He rose to his feet and struck a match on his sleeve, but it broke short off at the head, and the sputtering sulphur dropped into the stream and was quenched. He struck another, this time with success. He saw the heading; the way was clear; and he started on, holding one hand out before him, touching at frequent intervals the lower wall of the passage with the other.

But his side pained him when he tried to walk: he had struck it heavily in his last fall; and he had to stop in order to relieve it. After a time he arose again, but in the intense darkness and with that strange confusion in his brain, he could not tell in which direction to go.

He lighted another match; it sputtered and went out.

He had two matches left. To what better use could he put them than to make them light him as far as possible on his way? He struck one of them, it blazed up, and with it he lighted the stick of the imperfect one which he had not thrown away. He held them up before him, and, shielding the blaze with his hand, he moved rapidly down the narrow passage.

He knew that he was still in the heading and that if he could but follow it he would, in time, reach the slope.

His light soon gave out; darkness surrounded him again, but he kept on.

He moved from side to side of the passage, feeling his way.

His journey was slow, very slow and painful, but it was better to keep going, he knew that.

He had one match left but he dared not light it. He wanted to reserve that for a case of greater need.

The emergency that called for its use soon arose.

The heading seemed to have grown suddenly wider. He went back and forth across it and touched all the pillars carefully. The way was divided. One branch of the gallery bore to the right and another to the left.

Straight ahead was a solid wall. Ralph did not know which passage to enter. To go into one would be to go still farther and deeper into the recesses of the old mine; to go into the other would be to go toward the slope, toward the outer world, toward his mother and his home.

If he could only see he could choose more wisely.

Had the necessity arisen for the use of his last match?

He hesitated. He sat down to rest and to consider the question. It was hard to think, though, with all that whirling and buzzing in his fever-stricken brain.

Then a scheme entered his mind, a brilliant scheme by which he should get more light. He resolved to act upon it without delay. He transferred everything from the pockets of his jacket to those of his waistcoat. Then he removed this outer garment, tore a portion of it into strips, and held it in one hand while he made ready to light his last match. He held his breath while he struck it.

It did not light.

He waited a minute to think. Then he struck it again, this time with success. He touched it to the rags of his coat, and the oil-soaked cloth flashed brightly into flame. He held the blazing jacket in his hand, looked around him for one moment to choose his way, and then began to run.

It was a travesty on running, to be sure, but it was the best he could do. He staggered and stumbled; he lurched rapidly ahead for a little space and then moved with halting steps. His limbs grew weak, his breath came in gasps, and the pain in his side was cutting him like a knife.

But he thought he was going very rapidly. He could see so nicely too. The flames, fanned by the motion, curled up and licked his hand and wrist, but he scarcely knew it.

Then his foot struck some obstacle in the way and he fell. For a moment he lay there panting and helpless, while the burning cloth, thrown from him in his fall, lighted up the narrow space around him till it grew as clear as



day. But all this splendid glow should not be wasted; it would never do; he must make it light him on his journey till the last ray was gone.

He staggered to his feet again and ran on into the ever growing darkness. Behind him the flames flared, flickered, and died slowly out, and when the last vestige of light was wholly gone he sank, utterly exhausted, to the floor of the mine, and thick darkness settled on him like a pall.

A long time he lay there wondering vaguely at his strange misfortunes. The fever in his blood was running high, and, instead of harboring sober thought, his mind was filled with fleeting fancies.

It was very still here, so still that he thought he heard the throbbing in his head. He wondered if it could be heard by others who might thus find where he lay.

Then fear came on him, fear like an icy hand clutching at his breast, fear that would not let him rest, but that brought him to his feet again and urged him onward.

To die, that was nothing; he could die if need be; but to be shut up here alone, with strange and unseen things hovering about him in the blackness, that was quite beyond endurance. He was striving to get away from them. He had not much thought, now, which way he went, he cared little for direction, he wished only to keep in motion.

He had to stop at times to get breath and to rest his limbs, they ached so. But, whenever he stood still or sat down to rest, the darkness seemed to close in upon him and around him so tightly as to give him pain. He would not have cared so much for that, though, if it had not been filled with strange creatures who crept close to him to hear the throbbing in his head. He could not bear that; it compelled him to move on.

He went a long way like this, with his hands before him, stumbling, falling, rising again, stopping for a moment's rest, moaning as he walked, crying softly to himself at times like the sick child that he was.

Once he felt that he was going down an inclined way, like a long chamber; there had been no prop or pillar on either side of him for many minutes. Finally, his feet touched water. It grew to be ankle deep. He pushed on, and it reached half-way to his knees. This would never do. He turned in his tracks to retreat, just saved himself from falling, and then climbed slowly back up the long slope of the chamber.

When he had reached the top of it he thought he would lie down and try not to move again, he was so very tired and sick.

In the midst of all his fancies he realized his danger. He knew that death had ceased to be a possibility for him, and had come to be more than probable.

He felt that it would be very sad indeed to die in this way, alone, in the dark, in the galleries of this old mine; it was not the way Robert Burnham's son should have died. It was not that he minded death so much; he would not have greatly cared for that, if he could only have died in his mother's arms, with the sweet sunlight and the fresh air and the perfume of flowers in the room. That, he thought, would have been beautiful, very beautiful indeed. But this, this was so different.

"It is very sad," he said; "poor Ralph, poor boy."

He was talking to himself. It seemed to him that he was some one else, some one who stood by trying to pity and console this child who was dying here alone in the awful darkness.

"It's hard on you," he said, "I know it's hard on you, an' you've just got to where life'd be worth a good deal to you too. You had your bitter an' the sweet was just a-comin'; but never mind, my boy, never mind; your Uncle Billy says 'at heaven's a great sight better place 'an any you could ever find on earth. An', then, you're Robert Burnham's son, you know, an' that's a good deal to think of; you're—Robert Burnham's—son."

For a long time after this there was silence, and the boy did not move. Then fear came back to him. He thought that the darkness was closing in again upon him, that it pressed him from above, from right and left, that it crowded back his breath and crushed his body. He felt that he must escape from it.

He was too weak now to rise and walk, so he lifted himself to his hands and knees and began to move away like a creeping child.

There were many obstacles in his path, some of them imaginary, most of them real. There were old mine caps, piles of dirt, pieces of slate, and great lumps of coal on' which he cut his hands and bruised his knees. But he met and passed them all. He was intent only on getting away from these dreadful powers of darkness, they tortured him so.

And he did get away from them. He came to a place where the space about him seemed large, where the floor was smooth, and the air so clear and pure that he could breathe it freely.

Utter darkness, indeed, surrounded him, but it was a darkness not peopled with evil beings; it was more like the sweet darkness of a summer night, with the fragrance of dew-wet flowers in the air.

He leaned against a pillar to rest. He thought to stay here until the end should come.

He was not suffering from any pain now; he was glad of that. And he should die peacefully, leaving no wrong behind him, with no guilt upon his conscience, no sin upon his soul. He was glad of that too. He wondered if they would know, when they found his body, that he was Robert Burnham's son. Suppose they should never find it out. Suppose the days and months and years should pass away, and no one ever know what high honor came to him while yet he lived on earth. That would be sad, very, very sad; worse even than death itself. But there was a way for him to make it known. He thought that some sweet voice was telling him what to do.

He took from his waistcoat pocket the paper that declared his birth, unfolded it once, pressed it to his lips once, took pins from the edge of the collar of his vest, and pinned the letter fast upon the bosom of his flannel shirt.

It took him a long time to do this in the darkness, his hands were so very weak and tremulous, but, when it was done, he smoothed the paper over carefully and was content.

"They'll know it now," he said gently to himself, "they'll surely know it now. They'll no sooner find me here than they'll know who I am, an' who my mother is, an' where to take me. It's just the same, just the same as though I was alive myself to tell 'em."

He leaned back then, and closed his eyes and lay quite still. He felt no pain from his cut and bleeding hands and knees, nor from his burned wrist, nor from his bruised body. He was not hungry any more, nor thirsty, nor suffering for breath. He was thinking, but he thought only of pleasant things. He remembered no evil, neither any person who had done him evil.

Off somewhere in the distance he could see blue sky, and the tips of waves glancing in the sunlight, and green fields, and long stretches of

yellow grain. It seemed very real to him, so real that he wondered if he was still lying there in the darkness. He opened his eyes to see. Yes, it was dark, very dark.

The faint noise of dripping water came to his ears from somewhere in the mine below him. It reminded him of a tiny waterfall he had once seen under the shadow of a great rock on the bank of Roaring Brook. It was where a little stream, like a silver thread, ran down across the mossy covering of the edge and went drip, dripping into the stone-walled basin far below. He wondered if the stream was running there this day, if the tall rock-oak was bending yet above it, if the birds sang there as gayly as they sang that happy day when first he saw it.

For a little time he thought that he was indeed there. He found it hard to make himself believe that he was still in the mine, alone. But he was not alone; he knew that he was not alone. He felt that friends were somewhere near him. They were staying back in the shadow so that they should not disturb him. They would come to him soon, when—when he should waken.

He did not move any more, his eyes were closed and he seemed to be sleeping. His breath came gently, in long respirations. The precious letter rose and fell with the slow heaving of his breast.

Down in the darkness the water dripped as placidly as pulses beat. For the rest there was no sound, no motion.

Once the boy stirred a little and opened his eyes.

"Is that you, Uncle Billy?" he said. "Come an' sit down an' rest a little, an' then we'll go out. I think I got lost or—or somethin'."

His Uncle Billy was not there. The darkness about him held no human being save himself, but the vision was just as real to him, and the coming was just as welcome as though it had all been true.

"Why, how strange you look, Uncle Billy; an' you're a-laughin' at me—what! does she? Well, I'll go to her just as soon as I get out, just as soon. How did she find it out? I was goin' to be the first to tell her. I'm glad she knows it, though."

After a moment he continued:—

"Oh, no, Uncle Billy; I shouldn't ever do that, I couldn't. You've been too good to me. You've been awful good to me, Uncle Billy—awful good."

Again silence fell. Thick darkness, like a veil, wrapped the unconscious child in its folds. Black walls and winding galleries surrounded him, the "valley of the shadow" lay beyond him, but on his breast he bore the declaration of his birth, and in his heart he felt that "peace of God which passeth understanding."

Down in the darkness the water dripped; up in the earth's sky the stars were out and the moon was shining.

## CHAPTER XXIII.

### A STROKE OF LIGHTNING.

It was a hot day at Burnham Breaker. The sun of midsummer beat fiercely upon the long and sloping roofs and against the coal-black sides of the giant building.

Down in the engine-room, where there was no air stirring, and the vapor of steam hung heavily in the atmosphere, the heat was almost insupportable.

The engineer, clothed lightly as he was, fairly dripped with perspiration. The fireman, with face and neck like a lobster, went out, at intervals, and plunged his hands and his head too into the stream of cool water sent out from the mine by the laboring pumps.

Up in the screen-room, the boys were sweltering above their chutes, choking with the thick dust, wondering if the afternoon would never be at an end.

Bachelor Billy, pushing the cars out from the head, said to himself that he was glad Ralph was no longer picking slate. It was better that he should work in the mines. It was cool there in summer and warm in winter, and it was altogether more comfortable for the boy than it could be in the breaker; neither was it any more dangerous, in his opinion, than it was among the

wheels and rollers of the screen-room. He had labored in the mines himself, until the rheumatism came and put a stop to his under-ground toil. He mourned greatly the necessity that compelled him to give up this kind of work. It is hard for a miner to leave his pillars and his chambers, his drill and powder-can and fuse, and to seek other occupation on the surface of the earth. The very darkness and danger that surround him at his task hold him to it with an unaccountable fascination.

But Bachelor Billy had a good place here at the breaker. It was not hard work that he was doing. Robert Burnham had given him the position ten years and more ago.

Even on this hot mid-summer day, the heat was less where he was than in any other part of the building. A cool current came up the shaft and kept the air stirring about the head, and the loaded mine-cars rose to the platform, dripping cold water from their sides, and that was very refreshing to the eye as well as to the touch.

It was well along in the afternoon that Billy, looking out to the northwest, saw a dark cloud rising slowly above the horizon, and said to Andy Gilgallon, his assistant, that he hoped it would not go away without leaving some rain behind it.

Looking at it again, a few minutes later, he told Andy that he felt sure there would be water enough to lay the dust, at any rate.

The cloud increased rapidly in size, rolling up the sky in dark volumes, and emitting flashes of forked lightning in quick succession.

By and by the face of the sun was covered, and the deep rumbling of the thunder was almost continuous.



There was a dead calm. Not even at the head of the shaft could a particle of moving air be felt.

"Faith! I don't like the looks o' it, Billy," said Andy Gilgallon, as a sharp flash cut the cloud surface from zenith to horizon, and a burst of thunder followed that made the breaker tremble.

"No more do I," replied Bachelor Billy; "but we'll no' git scart afoor we're hurt. It's no' likely the buildin' 'll be washit awa'."

"Throe for ye! but this bit o' a steeple ud be a foine risting-place for the lightnin's fut, an' a moighty hot fut it has, too—bad 'cess to it!"

The man had been interrupted by another vivid flash and a sharp crack of thunder.

The mountains to the north and west were now entirely hidden, and the near hills were disappearing rapidly behind the on-coming storm of rain. Already the first drops were rattling sharply on the breaker's roof, and warning puffs of wind were beating gently against the side of the shaft-tower.

"I'm glad Ralph's no' workin' i' the screen-room," said Bachelor Billy, as he put up his hand to shield his eyes from the blinding glare. "It'd be a fearfu' thing to ha' the breaker hit."

The fury of the storm was on them at last. It was as though the heavens were shattered.

Billy looked out upon the dreadful onslaught of the elements with awe and wonder on his face. His companion crouched against the timbers of the shaft in terror.

Then—lightning struck the breaker.

People who sat in their houses a mile away started up in sudden fright at the fierce flash and terrible report.

A man who was running toward the engine-room for shelter was blinded and stunned by the glare and crash, and fell to his knees.

When he rose again and could use his eyes, he saw men and boys crowding from the building out into the pouring rain. But the breaker was on fire. Already the shaft-tower was wrapped in smoke and lighted with flame. Some one in authority stood in the door of the engine-room giving orders.

The carriage was descending the shaft. When it came up it was loaded with men. It went down again, almost with the rapidity of lightning itself.

The engineer was crowding his servant of iron and steel to the utmost. The men of the next load that came up had hardly time to push each other from the carriage before it darted down again into the blackness.

The flames were creeping lower on the shaft timbers, and were rioting among the screens.

The engine-room was hot and stifling. The engineer said he was hoisting the last load that could be brought out.

When it reached the surface Conway leaped from among the men and stood in the door of the engine-room.

"Let it down again!" he shouted. "Ralph is below yet, the boy. I'll go down myself an' git 'im."

He heard a crash behind him, and he turned in time to see the iron roof of the carriage disappear into the mouth of the shaft.

The burning frame-work at the head had ceased to support it, and it had fallen down, dragging a mass of flaming timbers with it.

Conway went out into the rain and sat down and cried like a child.

Afterward, when the storm had partially subsided, a wagon was stopped at the door of the office near the burning breaker, the limp body of Bachelor Billy was brought out and placed in it, and it was driven rapidly away. They had found him lying on the track at the head with the flames creeping dangerously near. He was unconscious when they came to him, he was unconscious still. They took him to his room at Mrs. Maloney's cottage, and put him in his bed. The doctor came soon, and under his vigorous treatment the man lost that deathly pallor about his face, but he did not yet recover consciousness. The doctor said he would come out of it in time, and went away to see to the others who had been injured.

The men who had brought the invalid were gone, and Mrs. Maloney was sitting by him alone.

The storm had passed, the sun had come out just long enough to bid a reassuring "good-night" to the lately frightened dwellers on the earth, and was now dropping down behind the western hills.

A carriage stopped at Bachelor Billy's door and a moment later Mrs. Burnham knocked and entered.

"I heard that he had suffered from the stroke," she said, looking at the still form on the bed, "and I came to see him. Is he better?"

"He ain't come out of it yet, ma'am," responded Mrs. Maloney, "but the doctor's been a-rubbin' of im' an' a-givin' 'im stimmylants, an' he says it's all right he'll be in the course of a few hours. Will ye have a chair, ma'am?"

"Thank you. I'll sit here by him a while with the fan and relieve you. Where is Ralph?"

"He's not come yet, ma'am."

"Why, Mrs. Maloney, are you sure? Is it possible that anything has happened to him?"

"To shpake the trut', ma'am, I'm a bit worried about 'im meself. But they said to me partic'ler, as how ivery man o' thim got out o' the mine befor the carriage fell. Most like he's a-watchin' the fire an' doesn't know his Uncle Billy's hurted. Ye'll see 'im comin' quick enough when he hears that, I'm thinkin'."

Mrs. Burnham had seated herself at the bedside with the fan in her hand.

"I'll wait for him," she said; "perhaps he'll be here soon."

"I'll be lookin' afther the supper, thin," said Mrs. Maloney, "the lad'll be hungry whin he comes," and she left the room.

Bachelor Billy lay very quiet, as if asleep, breathing regularly, his face somewhat pale and his lips blue, but he had not the appearance of one who is in danger.

A few minutes later there came a gentle knock at the street door. Mrs. Burnham arose and opened it. Lawyer Goodlaw stood on the step. She gave him as courteous greeting as though she had been under the roof of her own mansion.

"I called at your home," he said, as he entered, "and, learning that you had come here, I concluded to follow you."

He went up to the bed and looked at Bachelor Billy, bending over him with kind scrutiny.

"I heard that the shock had affected him seriously," he said, "but he does not appear to be greatly the worse for it; I think he'll come through all right. He's an honest, warm-hearted man. I learned the other day of a proposition that Sharpman made to him before the trial; a tempting one to offer to a poor man, but he rejected it with scorn. I'll tell you of it sometime; it shows forth the nobility of the man's character."

Goodlaw had crossed the room and had taken a seat by the window.

"But I came to bring you news," he continued. "Our detective returned this morning and presented a full report of his investigation and its result. You will be pleased with it."

"Oh, Mr. Goodlaw! is Ralph—is Ralph—"

She was leaning toward him with clasped hands.

"Ralph is your son," he said.

She bowed her head, and her lips moved in silence. When she looked up, there were tears in her eyes, but her face was radiant with happiness.

"Is there any, any doubt about it now?" she asked.

"None whatever," he replied.

"And what of Rhyming Joe's story?"

"It was a pure falsehood. He does not tire of telling how he swindled the sharpest lawyer in Scranton out of a hundred and fifty dollars, by a plausible lie. He takes much credit to himself for the successful execution of so bold a scheme. But the money got him into trouble. He had too much, he spent it too freely, and, as a consequence, he is serving a short term of imprisonment in the Alleghany county jail for some petty offence."

The tears would keep coming into the lady's eyes; but they were tears of joy, not of sorrow.

"I have the detective's report here in writing," continued Goodlaw; "I will give it to you that you may read it at your leisure. Craft's story was true enough in its material parts, but a gigantic scheme was based on it to rob both you and your son. The odium of that, however, should rest where the expense of the venture rested, on Craft's attorney. It is a matter for sincere congratulation that Ralph's identity was not established by them at that time. He has been delivered out of the hands of sharpers, and his property is wholly saved to him.

"I learn that Craft is dying miserably in his wretched lodgings in Philadelphia. With enough of ill-gotten gain to live on comfortably, his miserly instincts are causing him to suffer for the very necessities of life."

"I am sorry for him," said the lady; "very sorry."

"He is not deserving of your sympathy, madam; he treated your son with great cruelty while he had him."

"But he saved Ralph's life."

"That is no doubt true, yet he stole the jewelry from the child's person and kept him only for the sake of obtaining ransom.

"This reminds me that it is also true that he had an interview with your husband on the day of Mr. Burnham's death. What took place between them I cannot ascertain, but I have learned that afterward, while the rescuing party were descending into the mine, your husband recognized Ralph in a way that those who saw and heard him could not at the time understand. Recent events, however, prove beyond a doubt that your husband knew, on the day he died, that this boy was his son."

Mrs. Burnham had been weeping silently.

"You are bringing me too much good and comforting news," she said; "I am not quite able to bear it all, you see."

She was smiling through her tears, but a look of anxiety crossed her face as she continued:—

"I am worried about Ralph. He has not yet come from the breaker."

She glanced up at the little clock on the shelf, and then went to look out from the window.

The man on the bed moved and moaned, and she went back to him.

"Perhaps we had better send some one to look for the boy," said Goodlaw. "I will go myself—"

He was interrupted by the opening of the door. Andy Gilgallon stood on the threshold and looked in with amazement. He had not expected to find the lady and the lawyer there.

"I come to see Bachelor Billy," he said. "Me an' him work together at the head. He got it worse nor I did. I'm over it, only I'm wake yit. The likes o' it was niver seen afoor."

He looked curiously in at the bed where his comrade was lying.

"Come in," said Mrs. Burnham, "come in and look at him. He's not conscious yet, but I think he'll soon come to himself."

The man entered the room, walking on the toes of his clumsy shoes.

"Have you seen anything of Ralph since the fire?" continued the lady.

Andy stopped and looked incredulously at his questioner.

"An' have ye not heard?" he asked.

"Heard what, Andy?" she replied, her face paling as she noted the man's strange look.

"Why, they didn't get 'im out," he said. "It's in the mine he is, sure, mum."

She stood for a moment in silence, her face as white as the wall behind her. Then she clasped her hands tightly together and all the muscles of her body grew rigid in the desperate effort to remain calm for the sake of the unconscious man on the bed, for the sake of the lost boy in the mine, for the sake of her own ability to think and to act.

Goodlaw saw the struggle and rose from his chair.

"It's a dangerous imprisonment," he said, "but not, of necessity, a fatal one."

She still stood staring silently at the messenger who had brought to her these dreadful tidings.

"They're a-thryin' to get to the mouth o' the shaft now," said Andy. "They're a-dhraggin' the timbers away; timbers wid the fire in 'em yit. Ye'd



be shtartled to see 'em, mum."

Then the lady spoke.

"I will go to the shaft," she said. Her carriage was already at the door; she started toward it, throwing a light wrap across her arm as she went.

Again the man on the bed moved and moaned.

"Stay with him," she said to Andy, "until I come myself, or send some one to relieve you. See that he has everything he needs. He is my charge."

Goodlaw helped her to the carriage.

"Will you come with me?" she asked.

He seated himself beside her and they were driven away. There was little that he could say to comfort and assure her. The shock was too recent. The situation of her son was too perilous.

Darkness was coming on when they reached the scene of the disaster; one or two stars were already out, and the crescent of the new moon was hanging in the west. Great clouds of white smoke were floating away to the east, and where the breaker had that morning stood there was now only a mass of charred and glowing ruins.

There were many people there, people who talked in low tones and who looked on with solemn faces. But there were no outcries nor lamentations; there was but one person, a boy, shut up in the mine, and he was kin to no one there.

Up at the south-west corner of the pile they were throwing water on the ruins. An engine had been brought up from the city and was pouring a

steady stream on the spot where the shaft was thought to be.

Many men were engaged in cutting and pulling away the burned timbers, handling them while they were yet glowing with fire, so eager were they to forward the work of rescue.

The superintendent of the mines was there, directing, encouraging, and giving a helping hand. He saw Mrs. Burnham and came up to her carriage.

"It was a very disastrous lightning stroke," he said; "the property of the company is in ruins, but as yet no lives have been lost. There is but one person in the mine, the boy Ralph; you both know him. We are clearing away the wreckage from the mouth of the shaft as rapidly as possible, in the hope that we may get down there in time to save his life. Our people have directed me to spare no effort in this matter. One life, even though it is that of an unknown boy, is not too poor a thing for us to try, by every possible means, to save."

"That boy," said Goodlaw, "is Mrs. Burnham's son."

"Is it possible! Has he been identified, then, since the trial?"

"Fully, fully! My dear sir, I beg that you will do all that lies in your power to save this life for your company's sake, then double your effort for this lady's sake. She has no such fortune as this boy is to her."

Mrs. Burnham had sat there pale-faced and eager-eyed. Now she spoke:

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"What is the prospect? What are the chances? Can you surely save him? Tell me truly, Mr. Martin?"

"We cannot say certainly," replied the superintendent; "there are too many factors in the problem of which we are yet ignorant. We do not know how badly the shaft is choked up; we do not know the condition of the air in the mine. To be frank with you, I think the chances are against rescuing the boy alive. The mine soon fills with poisonous gases when the air supply is cut off."

"Are you doing all that can be done?" she asked. "Will more men, more money, more of anything, help you in your work?"

"We are doing all that can be done," he answered her. "The men are working bravely. We need nothing."

"How soon will you be able to go down and begin the search?"

The man thought for a moment before replying.

"To-morrow," he said, uncertainly. "I think surely by to-morrow."

She sank back into the carriage-seat, appalled by the length of time named. She had hoped that an hour or two at the farthest would enable them to reach the bottom of the shaft.

"We will push the work to the utmost," said Martin, as he hurried away. "Possibly we shall be able to get in sooner."

Goodlaw and Mrs. Burnham sat for a long time in silence, watching the men at their labor. Word had been passed among the workers that the missing boy was Mrs. Burnham's son, and their energetic efforts were put forth now for her sake as well as for the lad's. For both mother and son held warm places in the hearts of these toiling men.

The mouth of the shaft had been finally uncovered, a space cleared around it, and the frame of a rude windlass erected. They were preparing to remove the debris from the opening.

Conway came to the carriage, and, in a voice broken with emotion, told the story of Ralph's heroic effort to save a human life at the risk of his own. He had little hope, he said, that Ralph could live till they should reach him; but he should be the first, he declared, to go into the mine in search of the gallant boy.

At this recital Mrs. Burnham wept; she could restrain her tears no longer.

At last Goodlaw persuaded her to leave the scene. He feared the effect that continued gazing on it might have upon her delicate nerves.

The flashing of the lanterns, the huge torches lighting up the darkness, the forms of men moving back and forth in the smoky atmosphere, the muscular and mental energy exhibited, the deep earnestness displayed,—all this made up a picture too dramatic and appalling for one whose heart was in it to look at undismayed.

Arrangements were made for a messenger service to keep Mrs. Burnham constantly informed of the progress of the work, and, with a parting appeal to those in charge to hasten the hour of rescue, the grief-stricken mother departed.

They drove first to Bachelor Billy's room. Andy was still there and said he would remain during the night. He said that Billy had spoken once or twice, apparently in his right mind, and was now sleeping quietly.

Then Mrs. Burnham went to her home. She passed the long night in sleepless anxiety, waiting for the messages from the mine, which followed

each other in slow succession. They brought to her no good news. The work was going on; the opening was full with wreckage; the air was very bad, even in the shaft. These were the tidings. It was hardly possible, they wrote, that the boy could still be living.

Long before the last star had paled and faded in the western sky, or the first rays of the morning sun had shot across the hills, despair had taken in her heart the place of hope. She could only say: "Well, he died as his father died, trying to save the lives of others. I have two lost heroes now to mourn for and be proud of, instead of one."

But even yet there crossed her mind at times the thought that possibly, possibly the one chance for life as against thousands and thousands for death might fall to her boy; and the further and deeper thought that the range of God's mercy was very wide, oh, very wide!

## CHAPTER XXIV.

### AT THE DAWN OF DAY.

It was not until very late on the morning following the storm that Bachelor Billy came fully to his senses and realized what had happened.

He was told that the breaker had been struck by lightning and burned to the ground, and that his own illness was due to the severity of the electric shock.

He asked where Ralph was, and they told him that Ralph was up at the mine. They thought it wiser that he should not know the truth about the boy just yet.

He thought to get up and dress himself, but he felt so weak and bruised, and the strong metallic taste in his mouth nauseated him so, that he yielded to the advice of those who were with him and lay down again.

He looked up anxiously at the clock, at intervals, and seemed to be impatient for the noon hour to arrive. He thought Ralph would come then to his dinner. He wondered that the boy should go away and leave him for so long a time alone in his illness.

The noon hour came, but Ralph did not come.

Andy Gilgallon returned and tried to divert the man's mind with stories of the fire, but the attempt was in vain.

At one o'clock they made a pretence of sending Mrs. Maloney's little girl to look for Ralph, in order to quiet Bachelor Billy's growing apprehension.

But he remained very anxious and ill at ease. It struck him that there was something peculiar about the conduct of the people who were with him when Ralph's name was mentioned or his absence discussed. A growing fear had taken possession of his mind that something was wrong, and so terribly wrong that they dared not tell it to him.

When the clock struck two, he sat up in the bed and looked at Andy Gilgallon with a sternness in his face that was seldom seen there.

"Andy," he said, "tha's summat ye're a-keepin' fra me. If aught's happenit to the lad I want ye s'ould tell me. Be he hurt, be he dead, I wull know it. Coom noo, oot wi' it, mon! D'ye hear me?"

Andy could not resist an appeal and a command like this. There was something in the man's eyes, he said afterwards, that drew the truth right out of him.

Bachelor Billy heard the story calmly, asked about the means being taken for the boy's rescue, and then sat for a few moments in quiet thought.

Finally he said: "Andy, gi' me ma clothes."

Andy did not dare to disobey him. He gave his clothes to him, and helped him to dress.

The man was so sick and dizzy still that he could hardly stand. He crossed the room, took his cap from its hook and put it on his head.

"An' where do yez be goin' to I donno?" inquired Andy, anxiously.

"I'm a-goin' to the breaker," replied Bachelor Billy.

"Ah, man! but ye're foolish. Ye'll be losin' your own life, I warrant, an' ye'll be doin' no good to the boy."

But Billy had already started from the door.

"I might be able to do a bit toward savin' 'im," he said. "An' if he's beyon' that, as mos' like he is, I s'ould want to get the lad's body an' care for it mysel'. I kenned 'im best."

The two men were walking up through the narrow street of the village.

"I hear now that it's Mrs. Burnham's son he is," said Andy. "Lawyer Goodlaw came yesterday wid the news."

Billy did not seem surprised.

He trudged on, saying simply:—

"Then he's worthy of his mither, the lad is, an' of his father. I'm thankfu' that he's got some one at last, besides his Uncle Billy, happen it's only to bury 'im."

The fresh, cool air seemed to have revived and strengthened the invalid, and he went on at a more rapid pace. But he was weak enough still. He wavered from side to side as he walked, and his face was very pale.

When the two men reached the site of the burned breaker, they went directly to the opening to learn the latest news concerning the search. There was not much, however, for them to hear. The shaft was entirely cleaned out



and men had been down into the mine, but they had not been able to get far from the foot, the air was so very bad.

A rough partition was being built now, down the entire depth of the opening, a cover had been erected over the mouth of the shaft, and a fan had been put up temporarily, to drive fresh air into the mine and create an atmosphere there that would support life.

It was not long after the arrival of the two men before another party of miners stepped into the bucket to be lowered into the mine.

Bachelor Billy asked to be allowed to go with them, but his request was denied. They feared that, in his present condition, the foul air below would be fatal to him.

The party could not go far from the foot of the shaft, no farther, indeed, than the inside plane. But they found nothing, no sign whatever of the missing boy.

Others went down afterward, and pushed the exploration farther, and still others. It seemed probable that the lad, driven back by the smoke and gas, had taken refuge in some remote portion of the mine; and the portion that he would be apt to choose, they thought, would be the portion with which he had been most familiar. They therefore extended the search mainly in that direction.

But it was night before they reached those chambers which Ralph had been accustomed to serve with cars. They looked them over thoroughly; every entrance and every corner was scrutinized, but no trace of the imprisoned boy could be found.

Bachelor Billy had not left the place. He had been the first to hear the report of each returning squad, but his hope for the lad's safety had disappeared long before the sun went down. When night came on he went up on the bank and sat under the tree on the bench; the same bench on which he had sat that day in May to listen to the story of Ralph's temptation. His only anxiety now was that the child's body should be brought speedily from the foul air, so that the face might be kept as fair as possible for the mother's sake.

Conway, who had gone down into the mine with the first searching party, had been overcome by the foul air, and had been brought out insensible and taken to his home. But he had recovered, and was now back again at the shaft. It seemed to him, he said, as though he was compelled to return; as though there was something to be done here that only he could do. He was sitting on the bench now with Bachelor Billy, and they were discussing the lad's heroic sacrifice, and wondering to what part of the mine he could have gone that the search of half a day should fail to disclose his whereabouts.

A man who had just come out from the shaft, exhausted, was assisted up the bank by two companions, and laid down on the grass near the bench, in the moonlight, to breathe the fresh air that was stirring there.

After a little, he revived, and began to tell of the search.

"It's very strange," he said, "where the lad could have gone. We thought to find him in the north tier, and we went up one chamber and down the next, and looked into every entrance, but never a track of him could we get."

He turned to Conway, who was standing by, and continued:—

"Up at the face o' your chamber we found a dead mule with his collar on. The poor creature had gone there, no doubt, to find good air. He'd climbed up on the very shelf o' coal at the breast to get the farthest he could. Did ye ever hear the like?"

But Conway did not answer. A vague solution of the mystery of Ralph's disappearance was dawning on him. He turned suddenly to the man, and asked:—

"Did ye see the hole in the face when ye were there; a hole the size o' your head walled up with stone-coal?"

"I took no note o' such a thing. What for had ye such a hole there, an' where to?"

"Into the old mine," said Conway, earnestly, "into old No. 1. The boy saw it yisterday. I told 'im where it wint. He's broke it in, and crawled through, he has, I'll bet he has. Come on; we'll find 'im yet!" and he started rapidly down the hill toward the mouth of the shaft.

Bachelor Billy rose from the bench and stumbled slowly after him; while the man who had told them about the mule lifted himself to his elbows, and looked down on them in astonishment.

He could not quite understand what Conway meant.

The superintendent of the mine had gone. The foreman in charge of the windlass and fan stood leaning against a post, with the light of a torch flaring across his swarthy face.

"Let me down!" cried Conway, hastening to the opening. "I know where the boy is; I can find 'im."

The man smiled. "It's against orders," he responded. "Wait till Martin comes back an' the next gang goes in; then ye can go."

"But I say I know where the boy is. I can find 'im in half an hour. Five minutes delay might cost 'im his life."—

The man looked at Conway in doubt and wonder; he was hesitating between obedience and inclination.

Then Bachelor Billy spoke up, "Why, mon!" he exclaimed, "what's orders when a life's at stake? We *mus'* go doon, I tell ye! An ye hold us back ye'll be guilty o' the lad's daith!"

His voice had a ring of earnestness in it that the man could not resist. He moved to the windlass and told his helpers to lower the bucket. Conway entreated Bachelor Billy not to go down, and the foreman joined in the protest. They might as well have talked to the stars.

"Why, men!" said Billy, "tha's a chance as how the lad's alive. An that be so no ither body can do for 'im like me w'en he's foond. I wull go doon, I tell ye; I *mus'* go doon!"

He stepped carefully into the bucket, Conway leaped in after him, and they were lowered away.

At the bottom of the shaft they found no one but the footman, whose duty it was to remain steadily at his post. He listened somewhat incredulously to their hasty explanations, he gave to them another lighted lamp, and wished them good-luck as they started away into the heading.

In spite of his determination and self-will, Bachelor Billy's strength gave out before they had reached the head of the plane, and he was obliged to stop and rest. Indeed, he was compelled often to do this during the

remainder of the journey, but he would not listen to any suggestion that he should turn back. The air was still very impure, although they could at times feel the fresh current from the shaft at their backs.

They met no one. The searching parties were all south of the shaft now, this part of the mine having been thoroughly examined.

By the time the two men had reached the foot of Conway's chamber, they were nearly prostrated by the foul air they had been compelled to breathe. Both were still feeble from recent illnesses and were without the power to resist successfully the effects of the poisoned atmosphere. They made their way up the chamber in silence, their limbs unsteady, their heads swimming, their hearts beating violently. At the breast Conway clambered up over the body of the mule and thrust his lighted lamp against the walled-up aperture.

"He's gone through here!" he cried. "He's opened up the hole an' gone through."

The next moment he was tearing away the blocks of slate and coal with both hands. But his fingers were stiff and numb, and the work progressed too slowly. Then he braced himself against the body of the mule, pushed with his feet against Ralph's rude wall, and the next moment it fell back into the old mine. He brushed away the bottom stones and called to his companion.

"Come!" he said, "the way's clear an' we'll find better air in there."

But Bachelor Billy did not respond. He had fallen against the lower face of coal, unconscious. Conway saw that he must do quick work.

He reached over, grasped the man by his shoulders, and with superhuman effort drew him up to the shelf and across the body of the mule. Then,

creeping into the opening, he pulled the helpless man through with him into the old mine, and dragged him up the chamber out of reach of the poisoned current. He loosened his collar and chafed his wrists and the better air in there did the rest.

Bachelor Billy soon returned to consciousness, and learned where he was.

"That was fulish in me," he said, "to weaken like that; but I'm no' used to that white damp. Gi' me a minute to catch ma breath an' I'll go wi' ye."

Conway went down and walled up the opening again. When he came back Bachelor Billy was on his feet, walking slowly down the chamber, throwing the light of his lamp into the entrances on the way.

"Did he go far fra the openin,' thenk ye?" he asked. "Would he no' most like stay near whaur he cam' through?"

Then he tried to lift up his voice and call to the boy; but he was too weak, he could hardly have been heard across the chamber.

"Call 'im yoursel', Mike," he said; "I ha' no power i' my throat, some way."

Conway called, loudly and repeatedly. There was no answer; the echoes came rattling back to their ears, and that was all that they heard.

"Mayhap he's gone to the headin'," said Billy, "an" tried to get oot by the auld slope."

"That's just what he's done," replied Conway, earnestly; "I told 'im where the old openin' was; he's tried to get to it."

"Then we'll find 'im atween here an' there."

The two men had been moving slowly down the chamber. When they came to the foot of it, they turned into the air-way, and from that they went through the entrance into the heading. At this place the dirt on the floor was soft and damp, and they saw in it the print of a boy's shoe.

"He's gone in," said Bachelor Billy, examining the foot-prints, "he's gone in toward the face. I ken the place richt well, it's mony's the time I ha' travelled it."

They hurried in along the heading, not stopping to look for other tracks, but expecting to find the boy's body ahead of them at every step they took.

When they reached the face, they turned and looked at each other in surprise.

"He's no' here," said Billy.

"It's strange, too," replied Conway. "He couldn't 'a' got off o' the headin'!"

He stooped and examined the floor of the passage carefully, holding his lamp very low.

"Billy," he said, "I believe he's come in an' gone out again. Here's tracks a-pointin' the other way."

"So he has, Mike, so he has; the puir lad!"

Bachelor Billy was thinking of the disappointment Ralph must have felt when he saw the face of the heading before him, and knew that his journey in had been in vain.

Already the two men had turned and were walking back.

At the point where they had entered the heading they found foot-prints leading out toward the slope. They had not noticed them at first.

They followed them hastily, and came, as Ralph had come, to the fall.

"He's no' climbit it," said Billy. "He's gone up an' around it. The lad knew eneuch about the mines for that."

They passed up into the chambers, but the floor was too dry to take the impress of footsteps, and they found no trace of the boy.

When they reached the upper limit of the fall, Billy said:—

"We mus' turn sharp to the left here, or we'll no' get back. It's a tarrible windin' headin'."

But Conway had discovered tracks, faintly discernible, leading across into a passage used by men and mules to shorten the distance to the inner workings.

"He's a-goin' stret back," said Billy, sorrowfully, as they slowly followed these traces, "he's a-goin' stret back to whaur he cam' through."

Surely enough the prints of the child's feet soon led the tired searchers back to the opening from Conway's chamber.

They looked at each other in silent disappointment, and sat down for a few moments to rest and to try to think.

Bachelor Billy was the first to rise to his feet.

"Mike," he said, "the lad's i' this auld mine. Be it soon or late I s'all find 'im. I s'all search the place fra slope to headin'-face. I s'all no' gae oot till I gae wi' the boy or wi' 'is body; what say ye? wull ye help?"



Conway grasped the man's hand with a pressure that meant more than words, and they started immediately to follow their last track back. They passed up and down all the chambers in the tier till they reached the point, at the upper limit of the fall, where Ralph had turned into the foot-way. Their search had been a long and tiresome one and had yielded to them no results.

They began to appreciate the fact that a thorough exploration of the mine could not be made in a short time by two worn-out men. Billy blamed himself for not having thought sooner to send for other and fresher help.

"Ye mus' go now, Mike," he said. "Mayhap it'd take days wi' us twa here alone, an' the lad's been a-wanderin' aroun' so."

But Conway demurred.

"You're the one to go," he said. "You can't stan' it in here much longer, an' I can. You're here at the risk o' your life. Go on out with ye an' get a bit o' the fresh air. I'll stay and hunt for the boy till the new men comes."

But Bachelor Billy was in earnest.

"I canna do it," he said. "I would na get farther fra the lad for warlds, an' him lost an' a-dyin' mayhap. I'll stan' it. Never ye fear for me! Go on, Mike, go on quick!"

Conway turned reluctantly to go.

"Hold out for an hour," he shouted back, "an' we'll be with ye!"

Before the sound of his footsteps had died away, Billy had picked up his lamp again and started down on the easterly side of the fall, making little side excursions as he went, hunting for foot-prints on the floor of the mine.

When he came to the heading, he turned to go back to the face of the fall. It was but a few steps. There was a little stream of water running down one side of the passage and he lay down by it to drink. Half hidden in the stream he espied a miner's lamp. He reached for it in sudden surprise. He saw that it had been lately in use. He started to his feet and moved up closer to the fall, looking into the dark places under the rock. His foot struck something; it was the oil-can. He picked it up and examined it. There was blood on it; and both can and lamp were empty. He looked up at the face of the fall and then the truth came slowly into his mind. The boy had attempted to climb through that wilderness of rock, had reached the precipice, had fallen to the floor, had spilled his oil, and had wandered off into the dreadful darkness, hurt and helpless.

"Oh, the puir lad!" he said, aloud. "Oh, the puir dear lad! He canna be far fra here," he continued, "not far. Ralph! Ralph!"

He waited a moment in silence, but there was no answer. Then, hastily examining the passage as he went, he hurried down along the heading.

At one place he found a burned match. The boy had gone this way, then. He hastened on. He came to a point where two headings met, and stopped in indecision. Which route had Ralph taken? He decided to try the one that led to the slope. He went in that way, but he had not gone ten rods before he came upon a little heap of charred rags in the middle of the passage. He could not understand it at first; but he was not long in discovering what it meant. Ralph had burned his jacket to light up the path.

"Ah! the sufferin' child!" he murmured; "the dear sufferin' child!"

A little further along he saw a boy's cap lying in the way. He picked it up and placed it in his bosom. He brushed away a tear or two from his eyes and hastened on. It was no time to weep over the lad's sufferings when he

expected to find his body at every step he took. But he went a long distance and saw no other sign of the boy's passage. He came to a place at last where the dirt on the floor of the heading was wet. He bent down and made careful scrutiny from side to side, but there were no foot-prints there save his own. He had, in his haste gone too far. He turned back with a desperate longing at his heart. He knew that the lad must be somewhere near.

At one point, an unblocked entrance opened from the heading into the air-way at an acute angle. He thought the boy might have turned into that, and he passed up through it and so into the chambers. He stopped at times to call Ralph's name, but no answer ever came. He wandered back, finally, toward the fall, and down into the heading where the burned coat was. After a few moments of rest, he started again, examining every inch of the ground as he went. This time he found where Ralph had turned off into the air-way. He traced his foot-prints up through an entrance into the chambers and there they were again lost. But he passed on through the open places, calling as he went, and came finally to the sump near the foot of the slope. He held his lamp high and looked out over the black surface of the water. Not far away the roof came down to meet it. A dreadful apprehension entered the man's mind. Perhaps Ralph had wandered unconsciously into this black pool and been drowned. But that was too terrible; he would not allow himself to think of it. He turned away, went back up the chamber, and crossed over again to the air-way. Moving back a little to search for foot-prints, he came to an old door-way and sat clown by it to rest—yes, and to weep. He could no longer think of the torture the child must have endured in his wanderings through the old mine and keep the tears from his eyes. He almost hoped that death had long ago come to the boy's relief.

"Oh, puir lad!" he sobbed, "puir, puir lad!"

Below him, in the darkness, he heard the drip of water from the roof. Aside from that, the place was very, very still.

Then, for a moment, his heart stopped beating and he could not move.

He had heard a voice somewhere near him saying:—

"Good-night, Uncle Billy! If I wake first in the mornin', I'll call you—good-night!"

It was what Ralph was used to saying when he went to bed at home. But it was not Ralph's voice sounding through the darkness; it was only the ghost of Ralph's voice.

In the next moment the man's strength returned to him; he seized his lamp and leaped through the old door-way, and there at his feet lay Ralph. The boy was living, breathing, talking.

Billy fell on his knees beside him and began to push the hair back from his damp forehead, kissing it tenderly as he did so.

"Ralph," he said, "Ralph, lad, dinna ye see me? It's your Uncle Billy, Ralph, your Uncle Billy."

The boy did not open his eyes, but his lips moved.

"Did you call me, Uncle Billy?" he asked. "Is it mornin'? Is it daylight?"

"It'll soon be daylight, lad, verra soon noo, verra soon."

He had fastened his lamp in his cap, placed his arms gently under the child's body, and lifted him to his breast. He stood for a moment then, questioning with himself. But the slope was the nearest and the way to it was the safest, and there was no time to wait. He started down the air-way

on his journey to the outer world, bearing his burden as tenderly as a mother would have borne her babe, looking down at times into the still face, letting the tears drop now and then on the paper pinned to the boy's breast.

He stopped to rest after a little, holding the child on his knees as he sat, and looking curiously at the letter, on which his tears had fallen. He read it slowly by the light of his lamp, bending back the fold to do so. He did not wonder at it. He knew what it meant and why the boy had fastened it there.

"Ye s'all gae to her, lad," he said, "ye s'all gae to the mither. I'm thankfu', verra thankfu', that the father kenned the truth afoor he deed."

He raised his precious burden to his heart and began again his journey.

The water in the old sump had risen and flowed across the heading and the air-way and far up into the chambers, and he was compelled to go around it. The way was long and devious; it was blocked and barred; he had often to lay his burden down and make an opening through some walled-up entrance to give them room for passage.

There were falls in his course, and he clambered across rough hills of rock and squeezed through narrow openings; but every step brought him nearer to the slope, and this thought nerved him to still greater effort. Yet he could not wholly escape the water of the sump. He had still to pass through it. It was cold and black. It came to his ankles as he trudged along. By and by it reached to his knees. When it grew to be waist-deep he lifted the child to his shoulder, steadied himself against the side wall of the passage and pushed on. He slipped often, he became dizzy at times, there were horrible moments when he thought surely that the dark water would close over him and his precious burden forever. But he came through it at last, dripping, gasping, staggering on till he reached the foot of the old slope. There he sat down to rest. From away back in the mine the echoing shouts of the

rescuing party came faintly to his ears. Conway had returned with help. He tried to answer their call, but the cry stuck in his throat.

He knew that it would be folly for him to attempt to reach them; he knew also that they would never trace his course across that dreadful waste of water.

There was but one thing to do; he must go on, he must climb the slope.

He gave one look up the long incline, gathered his burden to his breast and started upward. The slope was not a steep one. There were many in that region that were steeper; but to a man in the last stage of physical exhaustion, forcing his tired muscles and his pain-racked body to carry him and his helpless charge up its slippery way, it was little less than precipitous.

It was long too, very long, and in many places it was rough with dislodged props and caps and fallen rock.

Many and many a time Bachelor Billy fell prone upon the sloping floor, but, though he was powerless to save himself, though he met in his own body the force of every blow, he always held the child out of harm's way.

He began to wonder, at last, if he could ever get the lad to the surface; if, within fifty rods of the blessed outer air, he would not after all have to lie down and die with Ralph in his arms.

But as soon as such thoughts came to him he brought his tremendous will and magnificent courage to the rescue, and arose and struggled on.

The boy had not spoken since the journey began, nor had he opened his eyes. He was still unconscious, but he was breathing; his heart was beating, there was life in his body, and that was all that could be asked or hoped for.

At last! oh, at last! The straight, steep, dreadful half mile of slope was at Bachelor Billy's back. He stood out once more in the free and open air. Under his feet were the grass and flowers and yielding soil; over his head were the shining stars, now paling in the east; below him lay the fair valley and the sleeping town clothed lightly in the morning mist; and in his arms he still held the child who had thought never again to draw breath under the starry sky or in the dewy air. There came a faint breeze, laden with all the fragrance of the young morning, and it swept Ralph's cheek so gently that the very sweetness of it made his eyes to open.

He looked at the reddening east, at the setting stars still glowing in the western sky, at the city church spires rising out of the sea of silver mist far down below him, and then at last up into the dear old face and the tear-wet eyes above him, and he said: "Uncle Billy, oh, Uncle Billy! don't you think it's beautiful? I wish—I wish my mother could see it."

"Aye, lad! she s'all look upon it wi' ye, mony's the sweet mornin' yet, an it please the good God."

The effort to look and to speak had overpowered the weary child, and he sank back again into unconsciousness.

Then began the journey home. Not to the old cottage; that was Ralph's home no longer, but to the home of wealth and beauty now, to the mansion yonder in the city where the mother was waiting for her boy.

Aye! the mother was waiting for her boy.

They had sent a messenger on horseback shortly after midnight to tell her that the lad's tracks had been found in the old mine, that all the men at hand had started in there to make the search more thorough, that by daylight the

child would be in her arms, that possibly, oh! by the merest possibility, he might still be living.

So through the long hours she had waited, had waited and watched, listening for a footfall in the street, for a step on the porch, for a sound at her door; yet no one came. The darkness that lay upon the earth seemed, also, to lie heavily on her spirit.

But now, at last, with the gray light that told of coming day, there crept into her heart a hope, a confidence, a serenity of faith that set it quite at rest.

She drew back the curtains and threw open the windows to let in the morning air.

The sky above the eastern hilltops was aglow with crimson; in the zenith it was like the color of the sweet pale rose.

She felt and knew that her boy was living and that very soon he would be with her. Doubt had disappeared wholly from her mind. She threw open the great hall doors that he might have a gracious and a fitting welcome to his home.

She went up once more to the room in which he was to lie until health should return to him, to see that it was ready to receive him.

When she again descended the stairs she saw the poor, bent figure of a man, carrying a burden in his arms, staggering weakly up the walk, laboring with awful effort at the steps of the porch. He was wet and wretched, he was hatless and ragged, but on his soiled face was a smile befitting one of God's angels.

He kissed his burden tenderly, and gave it into the lady's arms.



He said:—

"I've brought 'im to ye fra the edge o' daith. His title to your luve is pinnit on 'is breast. I'm thankfu'—thankfu' for ye—both."

Bachelor Billy's work was done. He had lived to place his dearest treasure in the safest place on earth; there was nothing left for him to do. He sank down gently to the floor of the broad hall. The first sunlight of the new day flashed its rays against the stained-glass windows, and the windows caught them and laid them in coverlets of blue and gold across the prostrate form of this humblest of earth's heroes.

Under them was no stain visible, no mark of poverty, no line of pain; he lay like a king in state with the cloth of gold across his body, and a crown of gold upon his head; but his soul, his brave, pure, noble soul, ah! that was looking down from the serene and lofty heights of everlasting life.

\* \* \* \* \*

Yes, he lived, Ralph lived and became well and strong. He took his name and his estates and chose his mother for his guardian; and life for him was very, very beautiful.

The summer passed and the singing birds grew silent in the woods and fields. The grain stood golden, and the ripe fruit dropped from vine and tree. October came, with her frosty nights and smoky days. She dashed the hill-sides with her red and yellow, and then she held her veil of mist for the sun's rays to shine through, lest the gorgeous coloring should daze the eyes of men.

On one of these most beautiful autumnal days, Ralph and his mother went driving through the country roads, gathering golden-rod and purple

aster and the fleecy immortelle. When they returned they passed through the cemetery gates and drove to one spot where art and nature had combined to make pleasant to the living eye the resting-places of the dead, and they laid their offering of fresh wild-flowers upon the grave of one who had nobly lived and had not ignobly died. Above the mound, a block of rugged granite rose, bearing on its face the name and age and day of death of William Buckley, and also this inscription:—

"Having finished his work, by the will of God he fell asleep."

As they drove back toward the glowing west, toward the pink clouds that lay above the mountain-tops behind which the sun had just now disappeared, toward the bustling city and the dear, dear home, Ralph lifted up his face and kissed his mother on her lips. But he did not speak; the happiness and peace within him were too great for words.

**\*\*\* END OF THE PROJECT GUTENBERG EBOOK BURNHAM  
BREAKER \*\*\***

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